

Workforce Australia Guidelines

Part B: Workforce Australia Services

Disclaimer

This Guideline is not a stand-alone document and does not contain the entirety of Provider obligations. It must be read in conjunction with the Workforce Australia Services Deed of Standing Offer 2022-2028 (the **Deed**), including any relevant Guidelines and reference material issued by Department of Employment and Workplace Relations under or in connection with the Deed.

This Guideline is not legal advice and the Commonwealth accepts no liability for any action purportedly taken in reliance upon it and assumes no responsibility for the delivery of the Services. This Guideline does not reduce the obligation of Providers to comply with their relevant legal obligations and, to the extent that this Guideline is inconsistent with obligations under the Privacy Act, Social Security Law, the WHS Laws or any other legislation or laws relevant to the respective jurisdictions in which Providers operate, the relevant legislation or laws will prevail.

Version History

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In this version of the Guideline, the Guideline Glossary and following Chapters have been updated:

- Eligibility and Referral
- Commencements, Transfers, Suspensions and Exits
- Provider Payments and Vacancies
- Job Plan and Mutual Obligations Requirements
- Targeted Compliance Framework and Mutual Obligation Failures
- Employability Skills Training
- Career Transition Assistance
- Work for the Dole
- Local Jobs Program
- Launch into Work
- Provider Performance Framework
- Quality Assurance Framework

A full version history of this Guideline can be found on the [Archived Guidelines page on the Provider Portal](#).

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Guideline Interpretation and Glossary

Reading Notes

In this Guideline, 'must' means that compliance is mandatory and 'should' means that compliance represents best practice for Providers and is expected by the Department.

While reading this document, please note the following Icons and their meaning:



This icon represents 'System Steps' – information contained under this dot point will relate to usage of the Department's IT Systems.



This icon represents 'Work Health and Safety Steps' – information contained under this dot point will relate to matters of work health and safety.



This icon represents 'Documentary Evidence' – information contained under this dot point will relate to matters of Documentary Evidence.

Glossary

All capitalised terms in this Guideline have the same meaning as in the Deed unless otherwise defined below.

'4 Week Employment Outcome' means an Employment Outcome achieved over a 4 Week Period.

'12 Week Employment Outcome' means an Employment Outcome achieved over a 12 Week Period

'25 Plus Course' means an EST Course (delivered as either a Training Block 1 Course or a Training Block 2 Course) provided to EST Eligible Participants aged 25 years and older.

'26 Week Employment Outcome' means an Employment Outcome achieved over a 26 Week Period

'Aggregator Model' means a WorkFoundations delivery model where a lead organisation or Employer (aggregator) coordinates Placements across multiple host employers, managing compliance and reporting on their behalf.

'All Ages Course' means an EST Course (delivered as either a Training Block 1 Course or a Training Block 2 Course) provided to EST Eligible Participants aged 15 years and older.

'Arranging Provider' means a Workforce Australia Employment Services Provider that has the Host Organisation Agreement with the Host Organisation for a Work for the Dole activity.

'Approved Program of Work Supplement' or 'APWS' means a fortnightly payment of \$20.80 by Services Australia to Participants in Work for the Dole.

'Centrelink-managed' means, individuals who have a Centrelink job plan, and report their requirements to Centrelink, including:

- those who are Fully Meeting their requirements.
- those who have a work capacity of less than 15 hours per week.
- newly arrived refugees who are in their first 12 months in Australia.
- Reconnection, Employment and Learning Program Participants.

Those with an exemption from Mutual Obligation Requirements are also considered Centrelink-managed.

'Closed' means that all non-conforming Practice Requirements constituting the Minor or Major non-conformance identified during a Quality Principles Initial Certification or Recertification audit have been corrected.

'Community Support Project' or **'CSP'** means a Work for the Dole activity that will contribute to recovery efforts following a disaster, or to assist with nationally significant projects at a local level that have been identified as providing a social, economic, environmental, cultural, and/or heritage benefit to the Australian community.

'Continuous Supervision' means that a Participant must be with or alongside the Supervisor or within the Supervisor's line of sight at all times while undertaking the Activity.

'Conformity Assessment Body' or **'CAB'** is a company responsible for carrying out conformity assessment activities (audits) in accordance with standards and industry regulations. Also known as a Quality Auditor.

'Corrective Action Plan' or **'CAP'** means the documented corrective actions required for all identified Quality Principles Initial Certification or Recertification audit non-conformances.

'Downgraded' means non-conforming Practice Requirements have been corrected so that the conditions for a Major non-conformance are no longer met.

'DSP Recipient (Compulsory Participation Requirements)' means a Participant who is in receipt of the Disability Support Pension (DSP), is under 35 years of age, has an assessed work capacity of eight hours or more per week, and has no dependent children under six years of age.

'Early Access' is an initiative that provides retrenched workers (and their eligible partners) with access to employment services up to 3 months before their retrenchment date and for up to 6 months after - regardless of their eligibility for Income Support Payments.

'Employer (Aggregator)' means, for the purposes of a WorkFoundations Placement, a type of Employer contracted to the Department to deliver WorkFoundations and is responsible for all aspects of delivery.

'Employer (Placement)' means, for the purposes of a WorkFoundations Placement, a type of Employer which will employ the Participant in a WorkFoundations Placement and work with the Employer (Aggregator) to meet the Employer (Aggregator)'s grant obligations.

'Employer Visit' means, as applicable:

- an 'Inbound Employer Visit' - a visit by an Employer to the premises of a CTA or an EST Provider, or
- an 'Outbound Employer Visit' - a visit by Participants to an Employer's premises, arranged by the CTA Provider

for the purpose of providing Participants with an insight into the tasks and duties of a particular occupation or industry.

'Evidence Requirement' means the minimum evidentiary requirement to demonstrate conformance against Quality Principles Practice Requirements.

'Extraordinary audit' means undertaking an additional Quality Principles audit if directed by the Department.

'Family Member' means, in relation to a particular individual (such as a Participant or an Employer):

- (a) any spouse, de facto partner, child, parent, grandparent, grandchild or sibling, including where any of these are adopted relations, of the particular individual;
- (b) any child, parent, grandparent, grandchild or sibling, including where any of these are adopted relations, of the spouse or de facto partner of the particular individual; or
- (c) any in-law of any individual referred to in paragraph (a) or (b) above, including any in-law of the particular individual.

'Fully Meeting' or 'Fully Meet' means where an individual is meeting their Mutual Obligation Requirements through sufficient participation in Activities, and does not have other requirements such as attending Provider appointments or Job Search Requirements.

'Full-Time Study' has the same meaning as the definition of full-time study (for tertiary students and secondary students) within the Social Security Guide.

'Generalist Course' means a Training Block 2 Course which provides EST Participants with training in relation to a mix of industries and occupations that address the needs of a broad range of Employers, in accordance with any Guidelines. A Generalist Course may be a Youth Course or 25 Plus Course.

'Harvest Area' means an area comprising of one or more SA2 geographical regions (defined by the Australian Bureau of Statistics) from which HTS is delivered.

'Harvest Employer' means an entity:

- (a) whose business undertakes Harvest Work within a Harvest Area; and
- (b) that has the legal capacity to enter into a contract of employment with an eligible Harvest Worker.

'Incident' means:

- an unplanned, accidental or deliberate event or happening resulting in personal injury (physical or mental), illness or damage to equipment, property, plant, site or building;
- an event or happening that had the potential to result in personal injury (physical or mental), illness or damage to equipment, property, plant, site or building;
- unacceptable or hostile behaviour that could result in legal proceedings or potential personal injury (physical or mental), illness or damage to equipment, property, plant, site or building.

'Initial Certification audit' is the initial Quality Principles audit conducted when a Provider is seeking to meet their QAF Certification requirements.

'ISO 9001' means the internationally recognised standard that promotes a quality management system as an integral part of an organisation's operations.

'Labour Hire Organisation' means an organisation which engages workers and assigns these workers to perform work for client organisations, including organisations that may be referred to as 'on-hire organisations' or 'contract recruitment agencies'.

'Learning Outcomes' means, in respect of an EST Course, the specifications of knowledge and skills expected to be attained by a Participant as a result of their participation in the EST Course.

'National Standards for Disability Services' or 'NSDS' means the disability employment standards which underpin the Quality Strategy for Disability Employment.

'Non-arranging Provider' means a Workforce Australia Employment Services Provider which has a Participant in a Work for the Dole activity for which they are not the arranging Provider.

'Non-Government Program' means work-focused programs or vocational interventions approved by the Department and identified as such on the Provider Portal.

'Partial capacity to work' or 'PCW' means the definition of partial capacity to work as set out in the Social Security Guide.

'Pay Slip Verified Outcome' means an Employment Outcome where the Participant's earnings or hours worked have been verified by the Provider uploading Documentary Evidence to the Department's IT Systems.

'Performance Improvement Plan' means a mechanism to document a Provider's plan to address poor performance identified through ongoing performance assessment and/or the Licence Review, initiated by the Department. It is a formal agreement between the Department and a Provider used to set expectations and track progress of a Provider's performance and compliance with condition/s applied by the Department.

'Personal Handover Meeting' means an individual meeting between the Provider, the Participant and the CTA Provider which takes place within 5 Business Days after completion of the Participant's CTA Course.

'Points Period Assessment' is the process undertaken in the Department's IT Systems where a Provider conducts and completes a quality review of the Job Search efforts within 5 Business Days of the end of the Points Reporting Period.

'Practice Requirement' provides the detailed areas of assessment within the Quality Principles.

'Pre-Training Assessment' or 'PTA' means an assessment conducted by the SEE Provider to determine the Participant's capability levels against the Australian Core Skills Framework and their capacity to benefit from the SEE program.

'Pre-Release Prisoner' means a Participant as defined in the Workforce Australia Deed, who meets the eligibility criteria for the Pre-Release Prisoner initiative as described in the Guidelines.

'Principal Carer Parent' or 'PCP' means the definition of principal carer as set out in the Social Security Guide.

'Private homes' means places of residence where individuals currently reside and the 'grounds' to which a private home is attached. This may include entry into an apartment, unit, house or boarding facility, or grounds such as courtyards, gardens or balconies that are attached to the main dwelling and privately occupied.

'Private property' means privately owned land or privately owned or occupied estate or house acreage. It may also encompass private homes or grounds.

'Progress Payment Period' means a period during which a Participant may meet the requirements for a Progress Payment to be payable. A Progress Payment Period is 730 Period of Service days long. Following completion of a Progress Payment Period, a new Progress Payment Period begins, and a further Progress Payment may be claimed if the requirements specified in this Guideline have been met.

'Project Overhead Costs' means the costs directly associated with the establishment and running of a Work for the Dole Project, as detailed in the Deed.

'Quality Improvement Plan' or 'QIP' means the documented improvement actions required for all 'Developing' Practice Requirements identified during a Surveillance audit.

'Recertification audit' is conducted every 3 years to maintain QAF Certification.

'Services Australia Fortnight' means the fortnightly periods that align with the fortnight for which a Participant has reported earnings and income to Services Australia.

'Specialist Course' means a Training Block 2 Course which provides EST Participants with training in the context of a particular industry's or industries' work environment (e.g. retail, hospitality, construction), in accordance with any Guidelines. A Specialist Course may be a Youth Course or 25 Plus Course.

'Surveillance audit' is the audit conducted annually between Quality Principles Initial and Recertification audits.

'Training Block 1 Course' means the EST Course as described in the [Benefits of Training Block 1](#) section.

'Training Block 2 Course' means the EST Course as described in the [Benefits of Training Block 2](#) section.

'Volunteer Period' means the period of time in which a Participant (Mutual Obligations) is Suspended and chooses to voluntarily engage in Services.

'Vulnerable Youth' means an individual who:

- (a) is aged 15 to 21 years
- (b) is not Employed for more than 15 hours per week
- (c) is not in Full-Time Study
- (d) is not in receipt of Income Support Payments
- (e) has at least one Non-vocational Barrier that requires immediate intervention with a view to stabilising the individual's circumstances, and
- (f) has a legal right to work in Australia.

'Vulnerable Youth (Student)' means an individual who:

- (a) is aged 15 to 21 years
- (b) is in Full-Time Study
- (c) presents in crisis
- (d) has at least one Non-vocational Barrier that requires immediate intervention with a view to stabilising the individual's circumstances, and
- (e) has a legal right to work in Australia.

'Workforce Australia Online for Individuals Base Service' or **'Online Base Service'** refers to the Department's *Self-managing in Workforce Australia Online for Individuals* service that is available to any Australian wishing to participate in employment services who is not otherwise considered a fully eligible Participant. Access is via myGov, with no referral from Services Australia required. The Online Base Service will enable users to look for jobs, develop their résumé and access complementary programs, based on the eligibility of each program.

'Workforce Australia Online for Individuals Full Service' or **'Online Full Service'** refers to the Department's *Self-managing in Workforce Australia Online for Individuals* service available to fully eligible Participants who are assessed as able to self-manage their search for work. The Online Full Service allows Participants to self-manage their participation in employment services with a range of supports available such as access to the Digital Employment Fund, pre-employment pathways for eligible Participants and support provided by the Digital Service Contact Centre (DSCC). **'Youth Course'** means an EST Course (delivered as either a Training Block 1 Course or a Training Block 2 Course) provided to EST Eligible Participants aged under 25 years.

Chapter 1. Eligibility and Referral

Supporting Documents for this Chapter:

- [Referral to Workforce Australia Online Form](#)

1.1. Chapter Overview

This Chapter outlines who is eligible to receive Services from Workforce Australia Employment Services Providers (Providers), how Providers may receive Referrals, and other employment services that Participants may be eligible for and the associated Referral process. Providers must provide Participants with appropriate Services, taking into account their individual circumstances, to assist them to find employment and move off Income Support Payments.

The [Eligibility Table](#) identifies categories of Participants based on their individual circumstances and their eligibility for Services.

1.2. Referrals of Eligible Participants

Participants are generally Referred to Services from Services Australia, from the Department's IT Systems, from an Other Service or from Workforce Australia Online.

Some Participants may elect to voluntarily participate in Services and can Directly Register with a Provider. Refer to [Direct Registration](#) Chapter.

Providers can check an individual's program eligibility by reviewing the Participant's record on the Department's IT Systems. The eligibility information can be found in the *Servicing and Eligibility* section of the Participant's record.

Please note, the eligibility results in the Department's IT Systems are a guide only. When the eligibility result shows a Participant is eligible for Workforce Australia Online, the Participant is also eligible for Workforce Australia Services.

(Deed Reference(s): Clauses 99 and 102)

1.2.1. Referrals from Workforce Australia Online

Participants can be Referred from the full level of services in Workforce Australia Online (Online Full Service) to a Provider for a range of reasons, including:

- where the Participant opts out of the Online Full Service for any reason,
- following a Capability Assessment or Capability Interview which identifies a Participant receiving the Online Full Service would be better supported by a Provider,
- where the Participant is returned to the Green Zone following a Capability Assessment, and
- where the Participant is no longer eligible for the Online Full Service (for example, the Participant has reached 12 months or more of assistance in the Online Full Service). In these circumstances, a Participant will not be eligible to return to the Online Full Service in the same Period of Unemployment.

Selecting a Provider

Participants will be able to choose their Provider¹ when they are Referred to Services. Where a Participant Referred to Services selects a Provider, they will be Referred to that Provider as long as:

- the Provider has not exceeded their Business Share, and
- the Provider has sessions in their Electronic Calendar available.

Where the Participant does not select a Provider for themselves, they will be allocated one based on a range of criteria including Provider Site location, Business Share and Provider Specialisation.

Participants who are randomly allocated to a Provider will still have the opportunity to transfer to a different Provider if they choose to do so (refer to [Transfers](#)).

1.2.2. Referrals from Workforce Australia Services to Online Full Services

Participants may be referred from a Provider to the Online Full Service, in certain circumstances, via the Department's National Customer Service Line (NCSL). To request a Participant be referred to the Online Full Service, the Provider must send a completed [Referral to Workforce Australia Online form](#) to nationalcustomerserviceline@dewr.gov.au.

In considering whether a Participant should be referred to the Online Full Service, the NCSL will take a range of factors into account, including whether:

- the Provider has assessed the Participant is able to self-manage in the Online Full Service, including that they have appropriate access to technology,
- the Provider has determined the Participant would benefit from the Online Full Service,
- the Participant agrees to the referral, and
- the Participant has linked their myGov account with Workforce Australia.

Participants will not be referred to the Online Full Service if the Participant:

- has already participated in the Online Full Service in the same Period of Unemployment,
- has a High JSCI score,
- is not digitally capable,
- is in the Penalty Zone,
- has not registered for myGov and linked their Workforce Australia account,
- has a current Employment Services Assessment (ESAt) or Job Capacity Assessment recommending Workforce Australia Services (refer to the [Job Seeker Assessments Chapter](#)),
- has a Managed Service Plan or Serious Incident Report,
- has a draft or approved wage subsidy,
- has a Pre-Release Prisoner Flag,
- has no email or mobile phone number in the Department's IT Systems or,
- has an outstanding non-compliance event.

¹ Participants will only be offered the choice of a Specialist Provider where one is available, and the Participant is eligible.

Providers must check in the Department's IT Systems that none of the above reasons apply before making a referral request.

If the NCSL approves a referral request, the Participant will be notified and the NCSL will action the referral request in the Department's IT Systems.

If the NCSL does not approve the transfer, it will notify the Provider and the Participant.

If the Participant and/or the Provider is not satisfied with the outcome of a referral request, they can seek a review of the decision by contacting the NCSL in writing within 14 Business Days of the original decision. If a review has been requested, it will be undertaken by a departmental officer who was not involved in the original approval process.

If the outcome of the review is that the request for referral is approved, the NCSL will action the referral in the Department's IT Systems and notify the parties.

If the outcome of the review is the request for referral is not approved, the parties will be notified, and the Provider must continue to provide Services to the Participant.



The Provider must retain records of their assessment of the Participant's suitability for online services.

1.2.3. Referrals from Workforce Australia Services to Transition to Work

A Provider may Refer Participants to Transition to Work (TtW) if they meet eligibility requirements and would benefit from the Service.

The core eligibility requirements that apply to young people in TtW are:

- aged 15-24 years on Commencement in the service, and
- an Australian citizen, or
- the holder of a permanent visa, or a nominated Visa Holder (including a New Zealand Special Category Visa, Temporary Protection Visa Holder and a Safe Haven Visa Holder).

Eligibility for TtW services is broken into 2 groups. Along with the core eligibility, eligible Participants fall into one of the following groups:

- **Group One** includes a young person who is:
 - receiving an Activity Tested Income Support Payment [other than Youth Allowance (student)], and
 - assessed as being at higher risk of not successfully transitioning to employment, and
 - not a ParentsNext Participant.
- **Group Two** includes a young person who is:
 - not receiving an Activity Tested Income Support Payment, and
 - not already in provider-delivered employment services, and
 - not connected to education and/or employment for the specific period based on their level of education as specified in the Transition to Work Deed 2022-2027, or
 - an Indigenous Australian, or
 - a ParentsNext Participant who is participating in TtW.

1.3. Eligibility Table

Table 1-A identifies which Participants are eligible for provider-led Workforce Australia Services and Online Full Services. It does not consider eligibility for Other Services. Most fully eligible Participants will have their eligibility determined by their JSCI². In some cases, Participants are eligible for provider-led services regardless of their JSCI.

The sections below are not mutually exclusive, and sections of this table should be considered in combination according to Participants' individual circumstances. For example, a Participant may be in receipt of JobSeeker Payment, be Mature-age (aged 55+) and be a Principal Carer Parent.

Participants not eligible for provider-led services or Online Full Services will be able to access the Online Base Service.

Table 1-A: Eligibility Table

Type	Eligibility
Australian Government Disaster Recovery payment	Not eligible for provider-led services or Online Full Services.
Disability Support Pension (DSP)	DSP recipients with compulsory participation requirements are eligible for provider-led services All other DSP recipients without compulsory participation requirements are not eligible for provider-led or Online Full Services. People who are not on another eligible income support payment, who are intending to claim DSP and are undertaking a Program of Support (not eligible for Inclusive Employment Australia or the Remote Australia Employment Service) are eligible for the Online Base Service.
Early School Leaver	Eligible for provider-led services.

² Participants can choose to move from Online Full Services to provider-led services at any time.

	Note: Early School Leavers unable to access Transition to Work will be Referred by Services Australia to a Workforce Australia Employment Services Provider.
JobSeeker Payment	Eligible for provider-led or Online Full Services (JSCI will determine).
Mature-aged (aged 55 years and over)	Eligible for provider-led or Online Full Services (JSCI will determine). Note: Mature-aged Participants who are Fully Meeting their Mutual Obligation Requirements or are currently subject to a Services Australia granted Exemption may voluntarily elect to participate in provider-led services.
Newly arrived refugee	After their initial 13-week Exemption, newly arrived refugees may voluntarily participate in provider-led services for 12 months after they have started on Income Support. Standard eligibility for provider-led or Online Full Services (JSCI will determine) and Mutual Obligation rules apply after the end of this period.
Not in receipt of Income Support	Not eligible for provider-led or Online Full Services unless eligible for Direct Registration (including Transition to Work).
Other Income Support payment without participation requirements	Not eligible for provider-led or Online Full Services.
Parent	Principal Carer Parents Principal Carer Parents who are not Fully Meeting their requirements through part-time paid employment, voluntary work or study may be Referred to provider-led or Online Full Services (JSCI will determine). Parenting Payment recipients with participation requirements Eligible for provider-led or Online Full Services (JSCI will determine). Note: Participants who are Fully Meeting their part-time Mutual Obligation Requirements or are currently subject to a Services Australia granted Exemption may voluntarily elect to participate in Services.

Pre-Release Prisoner	Directly Eligible for provider-led services. See the Pre-Release Prisoners Chapter for full eligibility criteria. See the Direct Registration Chapter for further information on direct registration of the Pre-Release Prisoner initiative.
Retrenched worker or partner of a retrenched worker	Early Access Participants (Retrenched workers and their partner) Eligible for provider-led services. See the Direct Registration Chapter and Retrenched Workers Chapter for further information. Structural Adjustment Package (SAP) Participants Eligible for provider-led or Online Full Services (SAP will determine eligibility). See the Direct Registration Chapter and the Retrenched Workers Chapter for more information. Note: Where an SAP provides Services for a retrenched worker but not their partner, the partner will be eligible as an Early Access Participant.
Special Benefit	Eligible for provider-led or Online Full Services (JSCI will determine). Note: Special Benefit recipients who are Nominated Visa Holders have the same Mutual Obligation Requirements, and consequences for non-compliance as JobSeeker Payment and Youth Allowance (other) recipients. Note: Special Benefit recipients, who are not Nominated Visa Holders, but are capable of looking for and undertaking work must be connected to employment services and have voluntary requirements. To remain qualified for their Income Support Payment, these Participants must remain connected to employment services either through provider-led or Online Full Services.

Visa holders and migrants	Visa holders with working rights attached and on Income Support Eligible for provider-led or Online Full Services (JSCI will determine). Note: Visa holders with working rights attached are eligible for employment services if they are in receipt of an Income Support Payment that would otherwise make them eligible for Services. New Zealand non-protected Special Category Visa holders in receipt of JobSeeker Payment or Youth Allowance (other) Eligible for provider-led or Online Full Services (JSCI will determine).
Youth and students	Youth Allowance (other) recipient Eligible for provider-led or Online Full Services (JSCI will determine). Vulnerable Youth Directly Eligible for provider-led services. More information in Direct Registration Chapter. Vulnerable Youth (Student) Directly Eligible for provider-led services. More information in Direct Registration Chapter.

Chapter 2. Commencements, Transfers, Suspensions and Exits

Supporting Documents for this Chapter:

- [Transfer by Agreement Form](#)
- [Transfer Due to Relationship Failure Form](#)

2.1. Commencements

This section outlines what Providers must do to Commence Participants in Workforce Australia Services, and what Providers should be aware of when undertaking these actions.

(Deed Reference(s): Clauses 89, 101, 102, 105, 106 and 108)

2.1.1. Commencing Participants in Workforce Australia Services

A Participant must be a Fully Eligible Participant to be Commenced. Providers will not be able to Commence a Participant who is flagged as 'No Referral Required'. Please refer to *KB0015191 - Workforce Australia Online for Providers - No Referral Required*.

A Participant with a Pending status will generally Commence in Services in the Department's IT Systems when the Provider records attendance at the Initial Interview and the Participant's Job Plan is recorded as approved in the Department's IT Systems i.e. Commencement is triggered by the status date and not the actual approval date which may be different. It is therefore recommended that Providers finalise and approve the Job Plan in the Department's IT Systems on the day the Participant has read, understood and agreed to the Job Plan and the date the Job Plan was agreed.

As part of Commencing a Participant, the Provider should:

- confirm whether the Participant has a myGov account which is linked to the Workforce Australia website,
- help the Participant to establish a Job Seeker Profile in the Department's IT Systems, and
- determine whether the Participant is able to fulfil the requirement to report their Points Based Activation System (PBAS) themselves via the Workforce Australia website, where applicable.

For Participant's without Mutual Obligation Requirements, a Participant will Commence in Services in the Department's IT Systems when the Provider records attendance at the Initial Interview. While an approved Job Plan is not required, the Provider must discuss and determine suitable Activities and record relevant details, including the Activity placement and subsequent attendance and completion of those Activities. For further information refer to [Arrangements for Participants \(Voluntary\)](#).

Please note: Participants who have Commenced with a Provider who then transfer to an alternative Site with the same Provider, will transfer with a status of "Pending".

These Participants will Commence in Services at the new Site when the Provider records attendance at the Initial Interview in the Department's IT Systems.

A new Job Plan will not be required if there is an approved Job Plan with the same Provider that has an approval date on or after the original referral date. However, it is good practice to review the Participant's Job Plan during the Initial Interview to ensure it remains appropriate and current.

Participants must be Commenced in a timely manner

Providers must ensure Participants are Commenced within 10 Business Days of the Referral. This includes 'think time' for Participants to agree to their Job Plan (if requested and applicable). For further information please refer to the [Job Plan and Mutual Obligations Requirements Chapter](#).

Commencing a Refugee in Workforce Australia Services

Under the Better Targeting of Support for Refugees measure, from 1 January 2020, newly arrived refugees receiving activity tested income support receive an Exemption from Mutual Obligation Requirements for their first 13 weeks after arrival in Australia.

Refugees in their first 12 months

After their initial 13-week Exemption, individuals who are refugees can choose to participate in Workforce Australia Services but are not required to do so. Those who choose to participate are not compellable until they have been receiving income support for 12 months.

At the Initial Appointment, Providers must check if the Participant is a newly arrived refugee. If the individual is a newly arrived refugee, Providers need to confirm the individual wishes to participate in Workforce Australia Services. If they don't, they can be Exited.



Commencement of a refugee only requires recording the Participant's attendance at their Initial Appointment. The Participant's Centrelink Job Plan must be left in place. Refer to [KB0015170](#) Digital Solutions Support - Newly Arrived Refugees and Participation in Workforce Australia Services (service-now.com).

If a newly arrived refugee does not have a Centrelink Job Plan or Refugee Activity in place, Providers should contact their Provider Lead or submit a Question via Question Manager.

Please note: Newly arrived refugees eligible for Transition to Work are referred to Transition to Work. Where a newly arrived refugee is referred from Transition to Work to a Workforce Australia Services Provider during their first 12 months, the individual will not have a Centrelink Job Plan or a Refugee Activity coded on the referral history screen.

Newly arrived refugees eligible for or transferred from Transition to Work who do not wish to voluntarily participate in Workforce Australia Services should not be Exited until a Centrelink Job Plan and a Refugee Activity have been coded.

Where a newly arrived refugee eligible for Transition to Work wishes to voluntarily participate in Workforce Australia Services, the Provider should not commence them until a Centrelink Job Plan and a Refugee Activity have been coded.

Refugees after their first 12 months

Individuals who are refugees are required to be referred to employment services once they have been receiving income support for 12 months. Those who are referred to Providers at this time are commenced in the same way as all other Participants.

Commencing Participants undertaking residential treatment programs in Workforce Australia Services

Participants who are pending on a Provider's caseload and participating in residential treatment programs must not be commenced for the duration of their treatment program. This is because a Participant who enters a treatment program will have limited ability to participate in activities that are external to their treatment program, including taking phone calls or using computers to access the internet.

Providers can only schedule initial appointments with these Participants once their treatment program has ended (if known). Providers must retain adequate record keeping comments in the Department's IT Systems documenting the reasons for delays in commencement of the Participant. Verbal notification of commencement into the treatment program and release is sufficient. Participants are not required to provide written evidence of their participation in treatment programs.

Participants with a valid Employment Services Assessment (ESAt) recommending either Disability Employment Services (DES) or Inclusive Employment Australia

Participants who are pending on a Workforce Australia Services Provider's caseload with a current, valid ESAt which recommends DES or Inclusive Employment Australia are not able to be commenced in Workforce Australia Services. In these cases, Providers should check if the Participant is referred to a DES or Inclusive Employment Australia Provider. If there is not a current DES or Inclusive Employment Australia referral, and if the individual:

- has a future work capacity with intervention of at least eight hours per week, but less than 30 hours per week
- is not studying full-time, and
- is not working at or above their Employment Benchmark hours,

then the Provider should create one. The Workforce Australia Services referral will display as exited once the individual has commenced in DES or Inclusive Employment Australia.

Participants with sensitive records (restricted access)

Participants with sensitive information in their records may be allocated to a Provider's Caseload and the Participant's contact details will not be visible.

Services Australia will contact these Participants and if they wish to be serviced by a Provider, Services Australia will make a referral to the Provider. Participants will be required to provide their contact details to the Provider at the first appointment.

Parent Pathways Participants

The Australian Government's voluntary Parent Pathways service provides early intervention pre-employment support to parents of young children (under 6 years of age) to help them work towards and achieve goals to improve their future economic security.

Parent Pathways Participants are supported by a **'Mentor'** who is engaged by the Provider to support Participants throughout their participation in the service.

When a Parent Pathways Participant's youngest child turns 6 years old they are no longer eligible for Parent Pathways. At this time, some parents may have a mutual obligation requirement to participate in mainstream employment services, including Workforce Australia Services. In this case, parents are referred by Services Australia to Workforce Australia after they have exited Parent Pathways.

Parent Pathways Participants may choose to have a Warm Handover meeting as part of their Initial Interview. **'Warm Handover'** means a meeting between the Provider, the Participant and the Participant's former Parent Pathways Mentor which takes place as part of the Participant's Initial Interview with their Workforce Australia Services Provider. The Participant has responsibility for advising their Parent Pathways Mentor of the Initial Interview appointment details.

Warm Handovers are optional for Participants and are intended to improve the continuity of support for the Participant by the Provider tailoring support that takes account of, and builds on, the Participant's achievements and progress in Parent Pathways.

Participants who participated in Parent Pathways must be assisted to prepare a Job Plan. The Job Plan must meet the requirements outlined in the [Job Plan and Mutual Obligations Chapter](#). In addition, the Provider must ensure the Job Plan and any suitable Activities identified in line with [Identifying suitable Activities for Participants](#) includes and takes into account the details of the Participant's Parent Pathways Goal Plan (where the Goal Plan is shared by the Participant), and/or details of any advice provided by the Participant and the Parent Pathways Mentor about the Participant's goals, achievements and progress during Parent Pathways. If a Participant is studying, then attention should be given to the circumstances in which full time study may be approved outlined in [Approval of courses of 12 months or longer in duration](#). If a parent is studying approved courses for 30 hours per fortnight or more this may Fully Meet requirements.

Providers must deliver high quality case management to support Participants who participated in Parent Pathways, to find suitable and sustainable employment, taking into account their primary responsibilities for their family and the care of a child, other relevant circumstances and the Participant's servicing needs.

At the time of attending the Initial Interview, the Participant will already be exited from Parent Pathways and can be commenced in Workforce Australia Services in the usual way.

Reconnection, Employment and Learning (REAL) Participants

The REAL program is a voluntary program to help First Nations participants transition from incarceration into the community. The REAL program offers culturally safe, person-centred mentoring across three stages:

- **pre-release** (up to six months before release),

- **on-release** (intensive support on the day of release), and
- **post-release** (up to 12 months after release).

It does this by supporting REAL Participants to reconnect with health, housing and other social services and build better connections to employment and training opportunities. The REAL Program also facilitates connection to culture, Country and language where appropriate.

The benefits of the REAL Program include, but are not limited to:

- culturally responsive and flexible servicing that focuses on supporting REAL Participants to achieve their goals and aligns with their individual circumstances
- developing an Individual Action Plan to set goals relevant to the REAL Participant and help them address barriers to successfully reconnect to community, training and jobs
- support to connect to services and programs to help REAL Participants reach their goals, address barriers and develop their skills

REAL Participants may choose to be concurrently serviced while they continue in the REAL program, or to exit the REAL Program and engage solely in Workforce Australia Services. If this is the case, they will be referred to Providers via Services Australia.

Participation in REAL meets Mutual Obligation Requirements for those in receipt of an income support payment.

Warm Handovers

For the purposes of the REAL Program, a warm handover is a three-way meeting between the REAL Participant, the REAL Mentor, and the Workforce Australia Services Provider. A warm handover is the opportunity to share appropriate information about a REAL Participant's progress and the support they are receiving so the Workforce Australia Services Provider and REAL Mentor can give continuity of that support. The REAL Participant or REAL Mentor (with the REAL Participant's consent) may share caseload notes and the REAL Participant's REAL Individual Action Plan (like a Job Plan but without Mutual Obligation Requirements applied) as a hard copy or electronically.

Once the Workforce Australia Services Provider receives the referral from Services Australia, they should determine if the Participant is commenced in REAL via the Workforce Australia Online for Providers Referral History screen or by asking the Participant if they are currently commenced in another program such as REAL (if they identify as Aboriginal and/or Torres Strait Islander).

A warm handover may take place, with the consent of the REAL Participant, when a REAL Participant:

- is not being concurrently serviced and exits from REAL,
- commences concurrent servicing with Workforce Australia Services, or
- transfers from a REAL Mentor to another REAL Mentor while being concurrently serviced with Workforce Australia Services.

The Workforce Australia Services Provider should then liaise with the REAL Mentor and Participant to determine a suitable day and time for an initial appointment and provide flexibility to allow the REAL Participant's REAL Mentor to attend. The REAL Participant will liaise directly with their REAL Mentor who, with the consent of the Participant, may contact the Workforce Australia Services Provider for appointment details.

A warm handover should be in person where possible, or via phone/video if distance or cost is prohibitive.

REAL Participants choosing not to be concurrently serviced

Upon receiving a referral from Services Australia for a REAL Participant exiting the REAL Program, Providers must:

- confirm that they are eligible to participate in Workforce Australia Services
- participate in a warm handover meeting
- conduct a Change of Circumstances Reassessment for them using the Job Seeker Snapshot
- commence providing Workforce Australia Services to them as a Participant (Mutual Obligation), and
- take into account any REAL Individual Action Plan that was previously prepared for them when developing a new Job Plan.

(Deed Reference(s): 101.1(a))

Concurrent Servicing

Upon receiving a referral from Services Australia for a REAL Participant choosing to receive concurrent servicing, Providers must:

- determine if the REAL Participant meets the eligibility criteria to participate in Workforce Australia Services as a Participant (Voluntary). This can be checked on the Eligibility screen via Workforce Australia Online for Providers
- confirm with the REAL Mentor that Workforce Australia Services are complementary and not duplicative of the services being provided by the REAL Mentor and that Workforce Australia Services will benefit the REAL Participant
- participate in a warm handover meeting
- commence the REAL Participant as a Workforce Australia Services Participant (Voluntary) by recording their attendance at the initial appointment, and
- ensure REAL Participants remain Centrelink-managed with a Centrelink Managed Job Plan during concurrent servicing.

REAL Participants who choose concurrent servicing remain eligible for Participant-related funds relevant to each service, subject to program guidelines.

Ongoing support

While providing concurrent servicing, Providers must:

- with the REAL Participant's consent, share relevant information and ensure Workforce Australia Services are aligned with the Participant's REAL Individual Action Plan and, where appropriate, collaborate with the REAL Mentor.
- maintain regular contact with the REAL Mentor including to advise the REAL Mentor if the REAL Participant:
 - is meaningfully engaging in Workforce Australia Services and whether Workforce Australia Services continues to meet the REAL Participant's needs;
 - has a change in their circumstances which may impact on their participation in the REAL Program and/or Workforce Australia Services; and
 - has been Exited from Workforce Australia Services for any reason.

- before referring or arranging Activities, identify if the REAL Participant meets the eligibility criteria to participate in the Activity and consult with the REAL Participant and REAL Mentor on the suitability

Incident Management

Where there is any incident involving an Activity or the Services more generally where a REAL Participant is in attendance (including travel to, from or during an Activity), Providers must: manage the incident in accordance with the [Managing Activity-related Incidents](#) section, and notify the REAL Participant's REAL Mentor.

Mutual Obligation Requirements

While the Participant has a current REAL activity coded as shown on the Referral History screen:

- They are meeting their Mutual Obligation Requirements for Centrelink payments.
- They must agree to a Centrelink managed Job Plan, where the REAL Program is the agreed activity to meet their Mutual Obligation Requirements.
- **Workforce Australia Services Providers must not apply the Targeted Compliance Framework.**

Job Plan

To prevent conflicts between Centrelink managed and Provider managed Job Plans:

- The REAL Program will be recorded as the approved activity in the Participant's Centrelink Managed Job Plan, by Services Australia, upon confirmation that the Participant will be engaging in REAL after they are released from custody.
- While a Participant has a valid REAL activity they must have a Centrelink managed Job Plan.

Participants with a history of serious incidents and Managed Service Plans

Provider staff can see the details of a Participant's incident and Managed Service Plan history in the Department's IT Systems when they have a Pending status. Provider staff should review these details prior to scheduling an Initial Interview so they can implement appropriate interview safety measures to protect Participants and staff, and improve engagement with the Participant. This may include implementing a proactive MSP limiting face-to-face servicing where appropriate. For information on Servicing Participants with Challenging Behaviours, including Incident Reporting and Managed Service Plans refer to [Part A Guidelines: Servicing Participants with Challenging Behaviours Chapter](#).

2.1.2. Initial Interview

Unless otherwise directed by the Department, Providers must deliver the Initial Interview face-to-face in accordance with [the Face-to-face Service Delivery section in the Part A: Universal Guidelines](#) where:

- it is safe,
- it is beneficial to the individual Participant, and
- it is reasonable in the circumstances.

Providers must consider a Participant's personal circumstances when scheduling Initial Interviews.

A Provider may decide not to schedule a face-to-face Initial Interview where a Participant has a history of serious incidents and Managed Service Plans, including at Services Australia which may pose a risk to other Participants and Provider staff that cannot be reasonably managed at the Site.



Where a Provider determines face-to-face servicing is not appropriate for an Initial Interview, they must record why it is not suitable for the Participant, including what other alternative solutions were explored prior to choosing non face-to-face delivery. Providers must record their reasons in the Comments section of the Department's IT Systems and update their reasons as circumstances change.

2.1.3. Connecting a Participant's Workforce Australia account to myGov

As part of Commencing a Participant in Services, the Provider should identify whether the Participant has connected their myGov profile to their Workforce Australia account. If the Participant has not connected, the Provider should support them to do so. Connecting the myGov account will enable the Participant to use the online tools and resources available through the Department's IT Systems and will enable the Participant to self-report for the PBAS, where applicable.

Participants who do not have a myGov profile connected to their Workforce Australia account and who have a PBAS requirement will be unable to report on their PBAS points; the Provider must undertake this action on behalf of the Participant.

Providers must support Participants to report their PBAS points where they are not capable of doing so on their own.

2.2. Transfers

Participants may transfer between Providers for a range of reasons. Transfers can be automatic or involve a manual process and can be initiated by the Participant, a Provider or the Department. Transfer arrangements support continuity of servicing when Participants change location, and support Participant choice.

(Deed Reference(s): Clause 103)

2.2.1. Automatic transfers

If the Participant's address is updated in the Department's IT Systems and the new address is not within a reasonable distance of the Participant's current Site, the Department's IT Systems will automatically transfer the Participant to a new Site.

Where a Participant has a change of address that results in a transfer, Sites will be prioritised using criteria such as:

- the distance from the Participant's new address,
- whether the Participant is eligible for a Specialist Provider, and
- Provider market share tolerance.

Example: A Participant receiving Services moves 150km away from their current residence. The Participant no longer lives within a reasonable distance of their current Provider Site and must be transferred. The Department's IT Systems will transfer the Participant to a Provider at a site within a reasonable distance from their new residential address, considering their eligibility to Specialist Provider services.

2.2.2. Participant or Provider initiated transfer

A Participant or their Provider can initiate a transfer to a different Provider. In some instances, the Department will transfer Participants without seeking agreement from Providers.

Transfer by agreement

Participants and Providers can initiate a transfer by agreement. This can be done manually using a [Transfer by Agreement form](#), or may be processed online.

Manual Requests lodged via a Transfer By Agreement form - initiated by a Provider

Either the current or the proposed Provider can request a transfer by agreement using the [Transfer by Agreement form](#). If all parties (the current and proposed Provider and the Participant) agree and sign the form, the current Provider must enter the details into the Department's IT Systems to action the transfer.



The current Provider must retain a copy of the signed Transfer by Agreement form.

Note: where the transfer is between two of the Provider's own Sites, a signed Transfer by Agreement form is not required. However, Providers must record the reason for the move, and that the 'Transfer by Agreement' option was used without a signed form, in the Comments section of the Department's IT Systems.

Online Requests lodged via workforceaustralia.gov.au - initiated by a Participant

Participants can initiate a transfer by agreement through workforceaustralia.gov.au. These requests are sent to the proposed Provider for agreement, and can be seen under the 'Site open tasks' section in the Department's IT Systems, with title of 'Incoming Transfer Requests Pending'. Requests must be processed by the Provider within 3 Business days.

If the proposed Provider agrees to a requested transfer, the transfer request is sent to the current Provider. The current Provider can see the request under the 'Site open tasks' section in the Department's IT Systems, with a title of 'Outgoing Participant transfers pending'. Requests **must** be processed by the Provider within 3 weekdays and it is expected that most requests are approved unless there is a good reason.

If both Providers have agreed to a Participant's transfer request within the required timeframe, the Participant is automatically transferred. If either Provider declines the request or does not action the Participant's online transfer request within 3 weekdays of receiving the request, the transfer will not be actioned, and the Participant will be notified. This does not preclude the Participant from contacting the Department's National Customer Service Line (NCSL) to facilitate a transfer.



Online requests to transfer by agreement do not require a paper form to be completed by either Provider or the Participant.

Providers are reminded that they need to regularly check for transfer requests in the 'Site open tasks' section in Workforce Australia Online for Providers (PCMS), either under 'Incoming participant transfers pending' or 'Outgoing participant transfers pending', and action as soon as possible to ensure that a decision is made within three Business days. If either the current or proposed Provider does not accept the transfer, reasons for the rejection should be recorded in the 'reason for denial of transfer' field in the Department's IT Systems.

Some Transfer Requests cannot be actioned by the Participant or Provider

There will be some circumstances in which a Participant or Provider initiated transfer cannot be actioned in the Department's IT Systems. For example, where a Participant has a current Serious Incident Report and/or a Reactive Managed Service Plan (refer to [Part A Guidelines: Servicing Participants with Challenging Behaviours Chapter](#)).

Where this occurs, the Participant will need to contact the NCSL or the Provider will need to contact their Provider Lead to have the request actioned in the Department's IT Systems.

Transfer due to relationship failure

If a Provider thinks it cannot maintain a reasonable and constructive servicing relationship with a Participant, it can complete the [Transfer Due to Relationship Failure Form](#) and forward to the NCSL (nationalcustomerserviceline@dewr.gov.au) for investigation. The NCSL will consider the request based on the evidence provided, including whether the Provider has followed the process outlined in the [Part A Guidelines: Servicing Participants with Challenging Behaviours Chapter](#).

If the NCSL approves a transfer due to relationship failure, the Participant will be sent a notification advising them of their new Provider and the date and time of their next appointment.

If the NCSL does not approve the transfer, it will notify the Provider and/or the Participant.

Transfer where a change in Provider would be beneficial

If a Participant thinks a change in Provider would be beneficial to them, they can request a transfer by contacting the NCSL. The NCSL will action the transfer if it thinks the Participant has demonstrated their case for a transfer or where the Participant had been randomly allocated to the Provider. If the NCSL does not agree to the request, it will inform the Participant of the decision.

2.2.3. Participants or Providers can request the Department review a decision

If the Participant and/or the Provider is not satisfied with the outcome of a transfer request, they can seek a review of the decision by contacting the NCSL in writing within 14 Business Days of the original decision. If a review has been requested, it will be undertaken by a departmental officer who was not involved in the original approval process, and will consider, where relevant, whether the Provider has applied the strategies outlined in [Part A Guidelines: Servicing Participants with Challenging Behaviours Chapter](#).

If the outcome of the review is that the request for transfer is approved, the NCSL will action the transfer in the Department's IT Systems and notify the parties.

If the outcome of the review is the request for transfer is not approved, the Provider and/or Participant will be notified, and the Provider must continue to provide Services to the Participant.

2.3. Caseload Suspensions



Note: In this Caseload Suspensions section, the term Suspension has the meaning outlined in Attachment 1 – Definitions of the Workforce Australia Services Deed of Standing Offer 2022-

2028. Suspension means a period of time as specified in the Department's IT Systems, during which a Participant is not obliged to participate in Workforce Australia Services – in effect they are 'suspended from the caseload'. The use of the word Suspension in this part, does not relate to the suspension of an Income Support Payment under the Targeted Compliance Framework.

Suspensions are periods during which Participants on the Caseload of a Provider are not required to participate in Services.

Providers are not required to deliver Services to a Suspended Participant unless the Participant chooses to voluntarily participate in Services.

(Deed Reference(s): Clauses 115, 116 and 117)

2.3.1. When are Participants Suspended?

Participants are Suspended on the Provider's caseload if they are a Participant (Mutual Obligation):

- with an Exemption applied by Services Australia, or
- with a temporary reduced work capacity or Partial Capacity to Work of less than 15 hours per week, or
- who are Principal Carer Parents (PCP), have a Partial Capacity to Work (PCW), receive Carer Allowance or are 55 years and over and are Fully Meeting their Mutual Obligation Requirements, or
- who is a Workforce Australia Participant Fully Meeting their Mutual Obligation Requirements by undertaking 70 hours a fortnight of approved study in combination with paid work (including self-employment).

Participants will be automatically Exited if they are expected to Fully Meet their Mutual Obligation Requirements by participation in an approved activity for more than 13 weeks (unless they choose to remain in employment services voluntarily).

Refer to [Participants who are Fully Meeting their Mutual Obligation Requirements](#) for more information.

2.3.2. Who applies a Suspension?

A Participant will be Suspended if Services Australia grant an Exemption from their Mutual Obligation Requirements, or they are recorded as Fully Meeting their Mutual Obligation Requirements through sufficient participation in an approved activity.

Providers can record that Participants are Fully Meeting their Mutual Obligation Requirements through sufficient participation in an approved activity which will trigger a suspension.

If a Participant who is voluntarily participating is experiencing a situation that means they are temporarily unable to participate in Services, the Provider may Exit the Participant but must first end any Volunteer Periods. Refer to [Exits](#) for more information.

2.3.3. Participants who are Suspended can voluntarily participate in Provider Services

The Provider must provide Services to a Suspended Participant if they advise they want to voluntarily participate in Services. Participants who are Suspended can choose to participate voluntarily in Services while they are Suspended after:

- being contacted by their Provider to discuss and agree to voluntarily participate while Suspended,
- notifying Services Australia who will either call their Provider or book an Appointment for them, or
- directly contacting their Provider to request Services.

For Participants (Voluntary) who elect to volunteer during a Suspension period, the Provider must record a Volunteer Period in the Department's IT Systems. Once a Volunteer Period is entered, the Department's IT Systems will revert the Participant to their pre-Suspended status.

- If the Participant was Commenced prior to the Suspension, they will revert to Commenced on entering of the Volunteer Period.
- If the Participant was Pending prior to the Suspension, they will revert to Pending on entering of the Volunteer Period. The Participant's status will change to Commenced when the Participant attends their Initial Interview.
- The Participant will revert to Suspended status upon expiry of the Volunteer Period.

For further information about the servicing arrangements for Participants (Voluntary) refer to [Arrangements for Participants \(Voluntary\)](#).



Where a Participant elects to volunteer while Suspended, the Provider must record the agreed start and end dates for the Volunteer Period in the Department's IT Systems. Where the Participant chooses to end the Volunteer Period earlier than originally agreed, the Provider must adjust the end date for the Volunteer Period in the Department's IT Systems.

2.3.4. Services resume when a Suspension ends

When a Suspension ends, Providers must resume delivery of Services.

Suspensions do not affect a Participant's Period of Unemployment. However, the Participant's Period of Registration and Period of Service pause when a Participant is Suspended and restart when the Suspension ends.

2.4. Exits

Participants may be Exited from Services for a range of reasons. This will usually happen automatically (Effective Exit) but there are some instances where Providers can manually Exit Participants.

(Deed Reference(s): Clauses 115 and 118)

2.4.1. When are Participants Exited?

Effective Exit (Automatic Exit)

Participants will be Exited automatically (known as an Effective Exit) when:

- The Participant (Mutual Obligation) is no longer receiving an eligible Income Support Payment. This can include where a Participant is in a job and has had 12 consecutive fortnights with nil rate of Income Support, or where the Participant has not lodged a report of income with Services Australia (even if this is zero) 14 days after their Report Due Date.

- The Participant is commenced in Inclusive Employment Australia or referred to the Remote Australia Employment Service. The Participant begins receiving Self-Employment Assistance Small Business Coaching (formerly known as 'Comprehensive Services').
- The Participant is Fully Meeting their Mutual Obligations Requirements by participation in an approved activity expected to continue for 13 weeks or more and does not wish to continue as a Participant (Voluntary) (see [Participants who are Fully Meeting their Mutual Obligation Requirements](#) for further information).

Note: Participants can voluntarily elect to participate in provider-led services when Fully Meeting their Mutual Obligations Requirements.

Provider Exit (manually actioned by Providers)

Providers may manually Exit a Participant, who does not wish to continue as a Participant (Voluntary), in the following circumstances:

- The Participant (Mutual Obligation) is Suspended and has a Partial Capacity to Work of less than 15 hours per week.
- The Participant (Mutual Obligation) is a Principal Carer Parent and Suspended and has a long-term Exemption (end date longer than 16 weeks).
- The Participant (Mutual Obligation) is Suspended and Fully Meeting their Mutual Obligation Requirements by participation in an approved activity expected to continue for 13 weeks or more (see [Participants who are Fully Meeting their Mutual Obligation Requirements](#)).
- The Participant (Voluntary) ceases to participate in voluntary activities or no longer wishes to participate in Services.
- The Participant's Youth Bonus Wage Subsidy is suspended.

Structural Adjustment Program and Directly Registered Participants

Providers should manually Exit a Structural Adjustment Program (SAP) Participant (who have no Mutual Obligation Requirements) or a Directly Registered Participant if:

- they no longer wish to participate; or
- the Participant is in Employment and the Provider has claimed a 26-Week Employment Outcome for that Employment.

2.4.2. Assessing Participant requests to Exits

If a Participant advises their Provider they wish to Exit, the Provider should determine whether a Provider Exit is appropriate, the Participant is eligible for a Provider Exit and whether the Participant is aware of the Services the Provider can offer.

The Provider must advise a Participant when they do not approve a request for an Exit and must continue to deliver Services.

2.4.3. Participants returning to services after an Exit

Where an Exit occurs but the Participant returns to Services fewer than 13 consecutive weeks after the Exit, the Participant's Period of Service and Period of Registration (if relevant), continue from the date of the Participant's return, and the Provider must resume providing appropriate Services.

Where an Exit occurs and the Participant subsequently returns to the service 13 consecutive weeks or more after the date of the Exit, the Participant begins a new Period of Service; Period of Registration (if relevant).

Where the Participant is Exited to commence in another employment service, the Participant's Period of Unemployment continues in the new service and on return to Workforce Australia Services. The Period of Unemployment also continues in the case of the reactivation of Participant's record (e.g. the restoration of a cancelled allowance if the Participant returns within 13 consecutive weeks after the cancellation). Otherwise, a new Period of Unemployment begins.

Chapter 3. Direct Registration

Supporting Documents for this Chapter:

- [Direct Registration Form](#)

3.1. Chapter Overview

Some Participants who are not in receipt of Income Support Payments are eligible to voluntarily engage in Services and can Directly Register with a Provider.

(Deed Reference(s): Clause 102)

3.2. Eligibility for Direct Registration

Providers must only Directly Register a person who has a legal right to work in Australia and is:

- a Vulnerable Youth or Vulnerable Youth (Student),
- a [Pre-Release Prisoner](#), or
- a [Structural Adjustment Program](#) (SAP) Participant.
- an [Early Access](#) Participant (retrenched worker or their partner).

Where the Provider assesses a person as ineligible for Direct Registration, they should direct them to contact Services Australia to assess their eligibility for Income Support (if relevant) and advise them they can register for the Online Base Service by linking through myGov.

3.2.1. Confirming a person's legal right to work in Australia

The Provider must confirm whether a person has a legal right to work in Australia. Two resources can be used to assist the Provider in this regard:

- The [Visa Entitlement Verification Online \(VEVO\)](#) service can be used to check a non-citizen's visa status after sighting their international passport, or
- [Schedule 8 of the Migration Regulations 1994](#) sets out the visa conditions that prohibit or restrict the work that a visa holder can do in Australia.

The Provider must not proceed with the Direct Registration process if the person does not have a legal right to work in Australia or the Provider has any reservations. If the person's legal right to work cannot be established, the person should be encouraged to contact the Department of Home Affairs (DHA) to check their legal right to work in Australia. The person should also be referred to Services Australia or an appropriate community service for assistance.

Note: Providers can be legally liable for referring non-citizens who are not allowed to work or are restricted from undertaking certain work in Australia to a job. See the DHA's [guide for businesses](#) for information and examples of the steps that Providers can take when assisting non-citizens.

3.2.2. Vulnerable Youth and Vulnerable Youth (Student)

Where a Vulnerable Youth or Vulnerable Youth (Student) presents to the Provider without a Referral, and in the case of a Vulnerable Youth (Student), no appropriate local youth services are available, the Provider must:

- assess their eligibility for Transition to Work (TtW) and if eligible, refer them to TtW unless the participant chooses to be serviced by the Provider,
- if they present in crisis, immediately provide, or refer them to, relevant crisis assistance, and
- within 4 weeks of the Direct Registration, refer them to Services Australia to determine their eligibility for Income Support Payments, regardless of whether the Provider expects them to be eligible for Income Support or not.

Refer to [Referrals from Workforce Australia Services to Transition to Work](#) for further information about TtW eligibility.

3.2.3. Pre-Release Prisoner (PRP) initiative

State or territory corrective or youth justice services refer suitable people for the PRP initiative to Providers. Suitability depends on factors such as proximity to the location a person is in custody and a Provider's performance and experience in servicing people in custody.

People must meet the PRP initiative eligibility criteria before Direct Registration. Refer to the [Pre-Release Prisoner initiative Chapter](#) for further information.

3.2.4. Early Access and Structural Adjustment Participants

Retrenched workers are eligible for assistance through the Early Access initiative, regardless of whether they are in receipt of Income Support. Partners (spouse or de facto) of retrenched workers are also eligible for support if they are looking for work or looking to increase their working hours.

Structural Adjustment Programs (SAP) provide additional assistance in exceptional circumstances only.

Retrenched workers can register under Early Access if they are not participating in a SAP. Refer to [Early Access initiative](#) for further information.

3.3. Commencing a Directly Registered Participant

A Directly Registered Participant will Commence in the Department's IT Systems when the Provider records attendance at the Initial Interview.

As part of Commencing a Directly Registered Participant, the Provider should:

- confirm whether the Participant has a myGov account which is linked to the Workforce Australia website,
- conduct a Registration search in the Department's IT Systems as part of the Registration process. This will determine whether the person has an existing Registration that may contain relevant information, such as a Job Seeker Identification Number (JSID), or to confirm the receipt of an Income Support Payment. Refer to the [Registration search](#) for further information
- conduct a JSID for the Participant, and
- help the Participant to establish a career profile in the Department's IT Systems, and

Where the Participant does not have a myGov account, the Provider should assist the Participant to create one.

Note: If the person is a Services Australia customer, the Department's IT Systems can obtain information from Services Australia, such as current Income Support Payment type, recent Referrals or Mutual Obligation Requirements. For this to occur, where the records are not already linked, the Provider must link the JSID to the Customer Reference Number through the Department's IT Systems.



The Provider must use the Workforce Australia Direct Registration form and retain a copy of the completed and signed form. Providers must also retain a note that they sighted relevant identification and the form of that identification (for example, a driver's licence).

3.3.1. Registration search

Where the person has:

- A current Registration and is on the Provider's Caseload—the Provider must provide Services in accordance with the Deed (Direct Registration is not applicable).
- A current Registration and wishes to transfer to the Provider but is on another Provider's caseload—the Provider must follow the [Transfers](#) process (Direct Registration is not applicable).
- A current Registration, is eligible for Services and is not connected to a Provider—the Provider must connect them to their Caseload and provide Services.
- An inactive Registration and is eligible for Services —the Provider must re-register the person, connect them to their Caseload and provide Services.
- No Registration and is eligible for Services—the Provider must create a new record for the person prior to connecting them to their Caseload and providing Services.

People wishing to register for the Self-Employment Assistance program do not need to first be Referred to a Provider's Caseload. These people should instead be directed to the relevant Self-Employment Assistance Provider, who may complete a self-referral if appropriate. A Registration establishes a Participant's identity in the Department's IT Systems, and results in a JSID.

Chapter 4. Job Seeker Assessments

Supporting Documents for this Chapter:

- [Explanation of the Job Seeker Snapshot Questions](#)
- [Job Seeker Snapshot Offline Form](#)
- [Job Seeker Snapshot Overview](#)
- [Learning Centre Training Module - Job Seeker Assessment Framework](#)

4.1. Chapter Overview

This Chapter describes the role and purpose of the Job Seeker Assessment Framework (JSAF) under Workforce Australia Services. It provides instructions on the JSAF assessments used by a Provider to determine the services a Participant is eligible for and supports they may need to secure employment.

4.2. The Job Seeker Assessment Framework

The JSAF assists in determining the employment services that Participants are eligible for and supports them in making appropriate choices. The JSAF is intended to be ongoing and dynamic, to support and encourage Participant disclosure and engagement and to minimise reporting duplication for Participants. It personalises interventions and support, and includes safeguards for Participants in Workforce Australia Online.

It also acknowledges that Providers may have their own tools, assessments, and resources to provide servicing that is tailored to the Participant's individual needs, circumstances, skills, strengths, and any barriers or issues they may have in relation to finding employment.

The Job Seeker Snapshot and Employment Services Assessment (ESAt) both perform a fundamental role in Workforce Australia Services. The results of a Participant's Job Seeker Snapshot and any ESAt should be used in conjunction with other assessments to understand a Participant's goals and personal circumstances. Providers may also support Participants to access and use the assessments and tools available on Workforce Australia Online, including the Job Seeker Snapshot and profile.

(Deed Reference(s): Clause 112)

4.3. The Job Seeker Snapshot and the Job Seeker Classification Instrument

The Job Seeker Snapshot is the questionnaire completed by the Participant, Services Australia or the Provider. The results of the Job Seeker Snapshot inform the Participant of the employment services that they are eligible for and supports them in making appropriate choices. It includes questions that determine the Participant's Job Seeker Classification Instrument (JSCI) score, supports the Participant to make an informed decision when given a choice between Workforce Australia Online and Workforce Australia Services, and helps identify if the Participant requires an ESAt. Refer to [Referring Participants for an Employment Services Assessment](#) for details.

The JSCI is the statistical tool that determines a Participant's risk of becoming long-term unemployed. It considers the relative labour market disadvantage of a Participant to determine the

level of support and assistance required. The JSCI score is a product of various personal factors such as a Participant's work experience and qualifications. For further information, see [Job Seeker Snapshot Overview](#).

4.3.1. When to conduct the Job Seeker Snapshot

The Job Seeker Snapshot is generally first completed prior to a Participant's Referral to Workforce Australia Services. If a Participant has not completed the Job Seeker Snapshot, or has an inactive Job Seeker Snapshot upon Referral, the Provider must:

- ask the Participant to complete the Job Seeker Snapshot; or
- conduct the Job Seeker Snapshot with the Participant (e.g. if the Participant cannot access the internet, or has limited digital ability).

The Provider may, at any time, record changes in the Participant's personal circumstances (for example a loss of licence) or include new information (for example a change in living circumstances) in a Participant's record in Workforce Australia Online for Providers by conducting a Change of Circumstances Reassessment. These changes can be made by editing the relevant questions in the Job Seeker Snapshot. Where a Participant supplies documentation to support their answers in the Job Seeker Snapshot, it is good practice for the Provider to retain this documentation.

Providers should inform Participants they can access and update their Job Seeker Snapshot at any time and that this will assist in identifying services and supports that may be beneficial to them. When a Participant updates their Job Seeker Snapshot, their Provider is notified via Workforce Australia Online for Providers. Some data such as their age or length of time in an employment service will update the Job Seeker Snapshot automatically.

If Workforce Australia Online for Providers is unavailable for any reason, a Job Seeker Snapshot Offline form can be used for updates. Any information obtained this way must be recorded by the Provider in Workforce Australia Online for Providers as soon as practicable. Until the Participant's responses are captured, the level of assistance and support required is unable to be determined.

(Deed Reference(s) Clause 113)

4.3.2. How to conduct the Job Seeker Snapshot

Should the Provider need to conduct a Job Seeker Snapshot, the [Explanation of the Job Seeker Snapshot Questions](#) document available on the [Provider Portal](#) will assist Providers to administer the Job Seeker Snapshot. The Provider should ensure:

- the Job Seeker Snapshot is conducted in a private setting and in a professional and culturally appropriate manner
- the Participant has given their consent for the Provider to collect and use the sensitive information collected through the Job Seeker Snapshot (refer to Chapter 3.2.1 of the Workforce Australia - Part A: Universal Guideline in relation to personal information and sensitive information, for further information)
- an interpreter is provided when requested by the Participant and the Provider considers it appropriate
- the Participant understands they may be accompanied by a support person of their choosing

- the Participant is informed their responses to the questions will not affect their payments in any way and that the questions are designed to ensure they receive the services and support best suited to their needs
- the Participant understands some of the questions in the Job Seeker Snapshot are voluntary questions and the Provider will inform the Participant if a question is voluntary before the question is asked.

If a Participant discloses the need for crisis assistance or other support, the Provider should refer them to services appropriate to their needs. Please refer to the [Assisting Participants in Crisis Factsheet](#) on the Provider Portal.

Services Australia may also assist with counselling, child support payments and accessing a crisis payment. For further information, please visit [Services Australia's website](#).

4.4. Referring Participants for an Employment Services Assessment

Services Australia conducts an Employment Services Assessment (ESAt) to determine the most appropriate employment services program for the Participant and their level of work capacity. Barriers experienced by the Participant could include a medical condition that impacts on their work capacity. The Participant should be referred to an ESAt if the Provider believes they may be eligible for Inclusive Employment Australia or may have a reduced work capacity. Providers can make direct referrals, through the FOCUS Response Team, to an ESAt for any Participants on their Caseload. See [How to refer a Participant for an ESAt](#) for further information.

If the Participant has a medical condition(s) or disability that requires further assessment, the Participant will need to be able to provide medical evidence to Services Australia by uploading it via their Centrelink account.

If, as part of a Capability Interview, the Job Seeker Snapshot indicates that the Participant may benefit from a further assessment through an ESAt, Workforce Australia Online for Providers will automatically set the Job Seeker Snapshot to a status of 'pending'. For further information, see [Knowledge Base Article KB0013414](#). The Provider needs to determine whether the Participant would benefit from an ESAt before referring them for an ESAt Appointment.

If the Provider determines that an ESAt is not required, they must select the button 'Withdraw need for ESAt' button in the Job Seeker Snapshot to change the status to 'Active'.

A referral for an ESAt must be of genuine benefit to the Participant and should generally not be completed for the Participant if:

- they have a valid ESAt (submitted within the past 2 years) and the assessed level of work capacity has not changed
- their identified barriers will not/do not have a significant long-term impact on the Participant's ability to work or participate in other activities, including Workforce Australia Services
- their identified barriers are being actively addressed by the Provider or another provider of appropriate services (e.g. a state government or community sector provider and/or Services Australia)
- an ESAt referral is not likely to result in a change to the Participant's Services or their currently assessed work capacity e.g. because there has not been a significant change in the

Participant's barriers or medical conditions or there is no medical evidence available and the Participant will not benefit from further assessment, or

- they are expected to be exempt from Mutual Obligation Requirements for an extended period for up to two years and are unlikely to benefit from further Assessment while the Exemption is current.

A Provider may adjust a Participant's Mutual Obligation Requirements to reflect a short-term or temporary change in circumstances, such as an injury or temporary medical condition.

See the [Job Plan and Mutual Obligation Requirements Chapter](#) for further information.

4.4.1. How to refer a Participant for an ESAt

The FOCUS Response Team at Services Australia manages all ESAt appointment times.

To book an urgent appointment for a vulnerable Participant, the Provider should contact the FOCUS Response Team directly on 1800 110 608.

In all other cases, Providers must email the Services Australia FOCUS Response Team to request an ESAt appointment via FOCUS.RESPONSE.TEAM@servicesaustralia.gov.au.

The FOCUS Response Team will determine whether an ESAt is required and will contact the Participant and attempt to complete the ESAt over the telephone.

If the ESAt cannot be completed immediately, the FOCUS Response Team will book an ESAt appointment, and the FOCUS Response Team will notify the Participant.

Note: Providers need to ensure medical evidence is available for the assessment before requesting an ESAt through the FOCUS Response Team.

4.4.2. Medical evidence needed for the ESAt referral

Prior to referring the Participant for an ESAt, the Provider must confirm that the Participant:

- has appropriate medical evidence supporting their condition(s) or
- needs assistance to obtain appropriate medical evidence supporting their condition.

The Provider should assist the Participant where required.

Appropriate medical evidence can include:

- a Services Australia medical certificate
- a standard general practitioner medical certificate
- a specialist medical report
- a hospital/outpatient's report
- a psychologist's report (by a certified/registered psychologist)
- a special school report (IQ report for people with intellectual disability)
- x-rays and related reports
- psychometric test results
- prescription medication
- reports from community services and organisations (for example, drug and alcohol support services)

- medical evidence prepared and collated on behalf of the Participant by a medical practitioner, registered nurse, nurse practitioner or a registered Aboriginal and Torres Strait Islander Health Practitioner.



The [Verification of medical conditions form \(SU684\) - Services Australia](#) should be given to the Participant for their treating doctor, registered nurse, nurse practitioner or Aboriginal and Torres Strait Islander health practitioner to complete. The completed form provides appropriate information to assess medical conditions for an ESAt. Providers should encourage Participants to upload medical evidence to Services Australia online through either their Centrelink online account or the Express Plus Centrelink mobile app if not already uploaded through Health Professional Online Services (HPOS) by their healthcare professional. The Provider does not need to retain medical evidence to justify an ESAt referral, unless presented by the Participant to have on their record for other purposes.

4.4.3. Preparing the Participant for the ESAt

When a Provider refers a Participant to an ESAt appointment the Provider must advise the Participant of the following:

- the reason for the ESAt
- that the ESAt is an interview to assess their work capacity and/or their eligibility for specialist employment services assistance
- that attending the appointment is compulsory and if they are unable to attend they are to contact the Services Australia assessor at least 24 hours before the appointment
- the importance of disclosing all of their barriers to employment at the ESAt appointment
- the importance of providing medical evidence via their Centrelink online account prior to the appointment and the steps they will need to take to gather the medical evidence
- they may have a support person present to assist them.

4.4.4. ESAt outcomes

The Provider must take account of the recommendations for interventions made by the Services Australia assessor in the ESAt report – working with the Participant to reflect their capacity when setting their Mutual Obligation Requirements, and in tailoring their services.

An ESAt report will capture the Participant's:

- medical conditions
- barriers to employment
- recommended interventions
- current baseline work capacity
- future work capacity with intervention
- recommended Service.

Should the ESAt result in the Participant no longer being serviced by the Provider, for example the Participant is referred to Inclusive Employment Australia or no longer required to participate in Employment Services, the Provider will see this Exit on Workforce Australia Online for Providers in Servicing and Eligibility.

An ESAt is generally valid for a period of two years. Providers can view the relevant dates on the ESAt/JCA screen in the 'Servicing and Eligibility' section of a Participant's record on the Department's IT Systems.

See [Job Plan and Mutual Obligation Requirements Chapter](#) for further information.

Requesting a review of the ESAt report

A Provider may contact Services Australia to request a review of the ESAt if new information is made available or if the Provider believes an error has been made. This must be made within 28 calendar days of the ESAt report being submitted.

The Provider will need to justify the review with supporting evidence. If the Services Australia assessor does not agree to change their referral recommendation, the Provider must accept the assessor's decision as final.

A Participant can also contact Services Australia directly to discuss the decision with a Service Officer and discuss their options to request an explanation or apply for a formal review of the decision.

4.4.5. Releasing the ESAt report to the Participant

The ESAt report may be released to a Participant except where Services Australia has indicated in the report that it contains information that may be detrimental to the Participant's health. In this circumstance, the Participant has the option of requesting the report through the Department's Corporate Legal team, email: foi@dewr.gov.au.

Additional information regarding disclosure of information and privacy considerations can be found in [Part A Guidelines: Privacy Chapter](#).

Chapter 5. Provider Payments and Vacancies

Supporting Documents for this Chapter:

- [Calculating the rate reduction for Pre-Existing Employment Supporting Document](#)
- [Manual Claim Provider Advice](#)
- [Progress Payment Review template](#)
- [SEE Program – Evidence for Progress Payments](#)
- [Workforce Specialist Projects eligible for Progress Payments](#)

5.1. Chapter Overview

The Workforce Australia Employment Services Provider payment model recognises Providers are servicing the most disadvantaged Participants and will need to invest in them if they are to secure long-term employment. The payment model has been designed to incentivise personalised support and outcomes for those hardest to help, and to support Provider viability.

The payments covered in this Chapter are:

- Upfront Payments to support early intervention through:
 - Engagement Payments on a Participant's initial Commencement into Services, and
 - Transfer Payments when a Participant Commences with a Provider having previously Commenced with another Workforce Australia Employment Services Provider.
- Progress Payments where a Participant's job readiness has improved through participation in education, vocational and non-vocational activities, and work placements including paid work that does not result in an Employment Outcome.
- Employment Outcome Payments upon achievement of 4, 12 and 26 Week Employment Outcomes.
- Harvest Work Outcomes upon achievement of 4, 12 and 26 Weeks in Harvest Work.
- Very Long Term Unemployment (VLTU) Bonus paid in addition to 12 and 26 Week Employment Outcomes and Harvest Work Outcomes for Participants unemployed longer than 24 months.

Note: All Provider payment amounts in this Guideline are inclusive of GST.

5.2. Upfront Payments

5.2.1. General

An Upfront Payment will be available once per Provider for each Participant in a Period of Unemployment³. Upfront Payments include Engagement Payments and Transfer Payments.

(Deed Reference(s): Clause 154)

³ The Department's IT Systems will determine a Period of Unemployment has ended when the Participant Exits employment services for longer than 13 consecutive weeks.

5.2.2. Engagement Payments

An Engagement Payment of \$1,281.60 will be paid once during a Participant's Period of Unemployment upon their initial Commencement in Services. Eligible Commencement dates prior to 1 July 2025 attracted a \$1,200 Engagement Payment.

The Engagement Payment will be paid automatically by the Department's IT Systems once the Provider has Commenced the Participant in Services.

No further Engagement Payments will be payable during the Participant's same Period of Unemployment. This includes where a Participant transfers between Workforce Australia Services providers or between Other Services such as Workforce Australia – Transition to Work or Workforce Australia Online. Where a Participant Exits and returns to Services within 13 weeks, a new Engagement Payment will not be payable.

5.2.3. Transfer Payments

A Transfer Payment of \$640.80 is paid when a Provider Commences a Participant who has previously been Commenced in Workforce Australia Services within their current Period of Unemployment. This includes where the Participant has transferred from another Provider, or is returning to Workforce Australia Services from Other Services or Workforce Australia Online within the same Period of Unemployment. Transfer Payments were \$600 for eligible Commencement dates prior to 1 July 2025.

There is no limit on the number of Transfer Payments that can be made for a Participant; however, a Provider is only eligible for one Upfront Payment (either an Engagement Payment or Transfer Payment) for each Participant per Period of Unemployment. Hence, if a Participant transfers off a Provider's Caseload and then transfers back within the same Period of Unemployment, the Provider is not eligible for another Upfront Payment.

Example: Participant Commences with Provider A (who receives an Engagement Payment), transfers to Provider B (who receives a Transfer Payment) and later transfers back to Provider A, all in the same Period of Unemployment, there is no new Upfront Payment for Provider A.

Where the same Participant leaves Workforce Australia Services and returns to Workforce Australia Services within the same Period of Unemployment:

- a) If the Participant returns to Provider A, there is no further payment for Provider A, who has already received an Engagement Payment.
- b) If the Participant is Referred to Provider B, there is no further payment for Provider B, who has already received a Transfer Payment.
- c) If the Participant Commences with a different Provider, a Transfer Payment is payable to that Provider.

Where a Participant has Exited employment services and recommences outside the allowable break period of 13 consecutive weeks, a new Period of Unemployment starts and an Upfront Payment will be available to the Provider, even where they have previously serviced the Participant.

5.2.4. Scaling of Upfront Payments

Upfront Payments will be scaled in the 6 months prior to the end of a Licence when a Provider will cease to deliver services.

Payments will be scaled to 50 per cent where a Participant commences with a Provider in the last 4 to 6 months of the Provider's Licence, and scaled to 25 per cent in the final 3 months of the Provider's Licence.

	Full Amount	Final 4-6 months	Final 3 months
Engagement Payment	\$1,281.60	\$640.80	\$320.40
Transfer Payment	\$640.80	\$320.40	\$160.20

If scaling applies, the Department's IT Systems will automatically adjust the value of the Upfront Payment, and no further action is required of the Provider.

When a Participant is Commenced in the Department's IT Systems the Upfront Payment is made automatically and a Recipient Created Tax Invoice is automatically generated.

5.3. Progress Payments

All Personnel must complete the [Workforce Australia - Progress Payments](#) training module before lodging a claim for Progress Payments in the Department's IT Systems. The training module is available through the [Learning Centre](#).

(Deed Reference(s): Clause 56.3)

Progress Payments are payable for demonstrable improvement in a Participant's employment prospects through the delivery of intensive, tailored services. Progress Payments recognise the changes in Participants' circumstances that increase their job-readiness, including:

- developing new skills through training and work or work-like experience,
- gaining new qualifications and certifications that improve employability, and/or
- reducing or removing barriers to employment (both vocational and non-vocational).

(Deed Reference(s): Clause 157)

There are 4 ways a Participant may demonstrate progress towards Employment:

- Education: participation in a course of study, such as participating for 6 months, completing a minimum benchmark qualification, or demonstrating advancement (see [Progress Payments for undertaking Education](#))
- Activities and interventions: successfully completing the requirements of 2 or more eligible Activities or interventions that build work readiness through work-like Activities or that address Vocational or Non-vocational Barriers (see [Progress Payments for undertaking Activities](#)),
- Pathway to Employment: successfully completing an eligible Activity that provides a pathway to employment (see [Progress Payments for completing a pathway to employment](#)), or
- through a Progress Payment Review: where the Participant has completed a number of non-vocational interventions, and the Provider considers the Participant has made progress

towards Employment, and the Participant agrees and verifies this (see [Progress Payment Review](#)).

The eligibility of an Activity or intervention for a Progress Payment does not constitute automatic approval of any costs in relation to the Employment Fund. Providers must ensure use of the Employment Fund meets all Guideline requirements, including the Employment Fund Principles and Prohibited purchase list, as outlined in the [Employment Fund Chapter](#).

5.3.1. Eligibility for Progress Payments

All Participants in Workforce Australia Services are eligible for a Progress Payment.

Progress Payments are available to claim when the Participant's circumstances have been changed during participation in Workforce Australia Services such that they are more prepared to gain and maintain Employment. This requires assessment by the Provider to determine when a Participant's participation in Services has resulted in demonstrable improvement in their employment prospects.

The pathway will look different for each Participant, with some Participants requiring multiple Activities or interventions before achieving a demonstrable improvement in their employment prospects.

Requirement	Details
Availability	The Progress Payment is available to claim immediately once a Participant Commences (once payment eligibility is achieved). The Progress Payment is available to claim once in each 24-month Progress Payment Period from the date the Participant Commences in Workforce Australia Services, including when a Participant transfers to a new Provider (see Transfers and Exit section). The availability of the Progress Payment resets after each 24 months Period of Service (not 24 months after the previous Progress Payment was claimed). For example, if a Progress Payment is claimed after 18 months, the next Progress Payment will be available 6 months later, after the Participant reaches 24 months in Services. The same Activity cannot be used to claim another Progress Payment in a new Progress Payment Period.
On the Caseload	For a Provider to be eligible to claim a Progress Payment, a Participant must have Commenced with the Workforce Australia Provider on or prior to the Milestone Date. The Milestone Date must occur prior to the Participant Exiting or Transferring to another Provider. Providers are able to claim a Progress Payment up to 28 days after a Participant Exits or Transfers off their Caseload (noting the milestone date must be on or before the date the Participant Exits or Transfers).

	A Progress Payment can be claimed where the Milestone Date occurs while the Participant is Suspended, provided they had been Commenced by the Workforce Australia Services Provider prior to the Suspension, and the Activity or intervention was started prior to the Suspension.
Evidence	Depending on the intervention the Participant has undertaken, different evidence requirements will apply. Any required information or evidence must be included when claiming a Progress Payment.



Providers must upload the required Documentary Evidence and any required comments in the Progress Payment screen of the Department's IT Systems at the time of claiming the Progress Payment. If there is not sufficient space for comments, these can also be saved in a separate document (e.g. Word or PDF) that is then uploaded at the time the claim is lodged.

(Deed Reference(s): Clause 56.3, 157)

The Milestone Date

The Milestone Date is the date on which the requirements of the Progress Payment have been met.

In many cases this is when the intervention is completed, but in some circumstances, it may happen earlier. For each Activity or intervention a Participant undertakes for the purpose of the Progress Payment, these guidelines specify the requirements that must be met for a Progress Payment to be achieved. See tables [5A](#), [5B](#), [5C](#), [5D](#) or [5E](#) for specific requirements for each Activity.

The Milestone Date depends on the number of Activities that need to be undertaken:

- For an Education Progress Payment or Pathway to Employment Progress Payment, only one Activity is undertaken. The Milestone Date is the date that progress is considered to have been achieved in that single Activity.
- For an Activity and intervention Progress Payment, or a Progress Payment Review, the Participant needs to undertake two interventions. The Milestone Date is the date that progress is considered to have been achieved in the second (i.e. the latter) Activity.

The Milestone Date is used to determine:

- whether the Participant is on the Provider's Caseload (i.e. the Milestone Date must occur on or after the day of Commencement, and on or before the date of Exit or Transfer)
- which 24-month Progress Payment Period the payment falls into
- which Provider is eligible for the Progress Payment if the Participant Transfers while undertaking an Activity (see [Payment if a Participant Transfers or Exits](#)).

Progress Payment Period

The Progress Payment Period is a measure of time during which a Progress Payment is available. Each Progress Payment Period is 730 Period of Service days long, after which a new Progress Payment Period begins. One Progress Payment is available to claim during each Progress Payment Period.

The Milestone Date will determine in which period the Progress Payment can be claimed and which period it falls into.

For example, a Participant commenced in July 2022 and had no breaks in their period of service (such as Suspensions). The first Progress Payment Period runs from July 2022 to June 2024, with the second Progress Payment Period running from July 2024 to June 2026. The Provider lodges a Progress Payment claim in August 2024 (during the 2nd Progress Payment period), and the activity has a milestone date in June 2024 (during the 1st Progress Payment period). As the Milestone Date is part of the first Progress Payment Period, the Department's IT Systems will treat it as occurring in Progress Payment Period 1 (and a Progress Payment will still be available for Progress Payment Period 2).

The Progress Payment Period only includes time that the Participant is Commenced on the Caseload. Periods of Suspension and/or Exemption are not part of a Participant's Period of Service and don't count as part of the 24-month Progress Payment Period. This means that the start of the second (and subsequent) 24-month Progress Payment Periods will be delayed by the time that the Participant was Suspended or held an Exemption.

Activities started Prior to Commencement in Workforce Australia Services

Activities or interventions that the Participant started prior to their initial commencement in Workforce Australia Services, may be eligible for inclusion in a Progress Payment claim provided that:

- the milestone date occurs whilst the Participant is Commenced on the Workforce Australia Provider's caseload, and
- any minimum requirements (specified in Table [5A](#), [5B](#), [5C](#), [5D](#) or [5E](#)) for participation in the activity after Commencement are met.

Payment if a Participant Transfers or Exits

The Progress Payment can only be claimed once in each 24-month Progress Payment Period, even where the Participant transfers between Providers.

If the Progress Payment has already been claimed for this 24-month Progress Payment Period, including by a different Workforce Australia Services Provider, the Broome Employment Services Provider, or the Yarrabah Employment Services Provider, the Progress Payment is not available to claim again.

The Progress Payment is payable to the Provider servicing the Participant on the [Milestone Date](#) of the Progress Payment, including where the Participant Commenced in the Activity with a different Provider.

Where a Participant meets the requirements for a Progress Payment by completing 2 Activities or interventions with different Providers, the Progress Payment will be payable to the Provider that is servicing the Participant when they complete the second Activity or intervention.

When a Participant transfers after completing the requirements for a Progress Payment (i.e. the milestone date occurred while the Participant was on the relinquishing Provider's caseload), the relinquishing Provider must enter a claim for a Progress Payment within 28 calendar days from the date of transfer if not already claimed prior to the transfer. The relinquishing Provider will not be able to make a claim for the Progress Payment after 28 calendar days after transfer.

If the milestone date occurs after the date of transfer, including within this 28-day period, the Progress Payment is payable to the gaining Provider where the Participant is Commenced on the gaining Provider's caseload on the milestone date.

The system will not allow a gaining Provider to enter a claim until 28 days after the date of Transfer to their caseload, to allow time for the relinquishing Provider to enter any claims for a Progress Payments with a milestone date prior to the Transfer.

Limit on Progress Payments

Progress Payments are intended to support and incentivise tailored servicing that meets the individual needs of Participants.

Where the Department identifies unusual patterns in Progress Payment claims, such as a disproportionately high number of claims from a particular site involving the same Activity or intervention, the Provider may be asked to explain why that activity is considered appropriate for such a large portion of the caseload.

The Department, at its discretion, can determine that a specific Activity or intervention is no longer eligible for inclusion in future Progress Payment claims. If directed to limit use of an Activity or intervention, Providers must not make any further claims that include that Activity or intervention.

5.3.2. Progress Payments for undertaking Education

The Progress Payment for undertaking Education recognises the importance of Education in improving the job readiness and employability of Participants.

Providers may claim an Education Progress Payment where a Participant:

- participates full-time for 26 consecutive weeks in, or attains, a Certificate III or higher qualification, or
- makes progress in the Adult Migrant English Program (AMEP) and/or Skills for Education and Employment (SEE) as defined in Table 5-A.

Education may include distance learning, online or self-paced study methods.

The following table sets out the requirements and Documentary Evidence to claim an Education Progress Payment.

Table 5-A: Requirements and Documentary Evidence for Education (one Education activity is required to claim a Progress Payment)

Activity Type	Activity Description	Requirements	Evidence requirement
Accredited Education (participation)	Participation in one of the following: • Certificate III or higher, including (but not limited to): ○ Certificate III ○ Certificate IV ○ Diploma, ○ Advanced Diploma, ○ Associate Degree ○ Bachelor Degree • Year 12	Full time participation (as defined by the institution) for 26 consecutive weeks. Scheduled breaks in study (e.g. term or semester breaks) are included in the 26 weeks. For self-paced study, provided the Participant is enrolled at a full-time load, and making satisfactory progress (for example, keeping up to date on course work) then the study may be used for the Progress Payment, including where their actual hours of study are (on average) less than the indicative hours published by the institution. Additional requirements if started prior to Commencement 26 consecutive weeks after Commencement is required.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation Must be uploaded on the Progress Payment screen. Must be in the form of confirmation from the RTO or Education institution that the course is full-time study as defined by the RTO or Education institution and that the Participant is still participating in the course 6 months after commencement. This may be in the form of correspondence from the RTO or Education institution, a certificate of attainment, an academic transcript or extract. Comments: not required
Accredited Education (attainment)	Completion of one of the following: • Certificate III or higher, including: ○ Certificate III	Completion, including achievement of the relevant certificate or qualification, of the course. Additional requirements if started prior to Commencement:	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation

Activity Type	Activity Description	Requirements	Evidence requirement
	○ Certificate IV ○ Diploma, ○ Advanced Diploma, ○ Associate Degree ○ Bachelor Degree ● Year 12	At least four weeks Participation must have occurred after Commencement if the activity was started prior to Commencing in Workforce Australia Services or an Other Service.	Must be uploaded on the Progress Payment screen. Must be in the form of a copy of the qualification or statement issued by the Registered Training Organisation (RTO) or Education institution showing the qualification achieved, the Participant's name, details of the RTO or Education institution. Comments: not required
Adult Migrant English Program (AMEP)	A course delivered through the Commonwealth Government's Adult Migrant English Program (see the Adult Migrant English Program Chapter).	Attainment: The Participant achieves a Statement of Attainment as part of participating in AMEP Participation: has participated in AMEP for 6 months while in Workforce Australia Services. Additional requirements if started prior to Commencement: Attainment: at least four weeks' Participation must have occurred after Commencement Participation: the six month period starts on Commencement.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation Must be uploaded on the Progress Payment screen. Must be in the form of either of the following: ● Attainment: a copy of the Statement of Attainment (Statements of Attainment are available with the Unique Student Identifier (USI) through the USI website⁴ or the Provider can contact the RTO for documentation); or ● Participation: written confirmation from the AMEP provider acknowledging participation for at least 6 months. The confirmation can be in any format (e.g. email exchange) but

⁴ <https://www.usi.gov.au>

Activity Type	Activity Description	Requirements	Evidence requirement
			must include the Participant's start date and end date or the start date and acknowledgment that the Participant is still undertaking AMEP. Note, Providers should, where possible, include any relevant dates in the request to AMEP providers to confirm rather than requesting this information. An AMEP provider is not required to provide specific hours and/or days attended by the Participant. Comments: not required
Skills for Education and Employment (SEE)	Participation in the Skills for Education and Employment Program (see the Skills for Education and Employment Chapter)	Attainment: the Participant achieves advancement in at least one level of a Core Skill in the Australian Core Skills Framework (ACSF) as part of participating in SEE. Participation: the Participant has participated in SEE for 6 months while in Workforce Australia Services. Additional requirements if started prior to Commencement: Attainment: at least four weeks' Participation must have occurred after Commencement. Participation: the six month period starts on Commencement.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation Must be uploaded on the Progress Payment screen. For Attainment, must be in the form of a one of the following: • a statement from the SEE provider detailing the advancement(s) the Participant has achieved in terms of level(s), such as via email or in the "Additional comments" section of the SEE/AMEP Capability Guide; or • a copy of the Customised Training Plan completed by the SEE Provider, indicating progress achieved. Information on the Customised Training Plan is contained in the

Activity Type	Activity Description	Requirements	Evidence requirement
			supporting document SEE Program – Evidence for Progress Payments available on the SEE page. For Participation, must be in the form of one of the following: • a statement from the SEE provider including the dates the Participant was participating in SEE or the date they started in SEE and that they are continuing in SEE; or • a copy of the Customised Training Plan showing at least six months Participation. Comments: not required
Re-entry to Practice (RN)	The Re-entry to Practice for nurses and midwives course (under the requirements of the Nursing and Midwifery Board of Australia (NMBA)).	Completion of the Re-entry to Practice course. Additional requirements if started prior to Commencement At least four weeks' Participation must have occurred after Commencement.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation Upload the of certificate of completion issued by the Education institution. Comments: not required

5.3.3. Progress Payments for undertaking Activities and interventions

Providers may claim a Progress Payment when a Participant completes 2 approved Activities or interventions across 3 categories:

- work placements,
- vocational interventions, or
- non-vocational interventions.

While a single Activity may address multiple barriers, it is not sufficient on its own to meet Progress Payment eligibility. At a minimum, the Participant must undertake an additional Activity or intervention. For some Participants this may require multiple interventions or Activities before progress is considered achieved. Similarly, for a Progress Payment Review, the Participant must have engaged in multiple interventions, a single intervention or Activity is not sufficient.

As of 1 October 2025, two vocational interventions may now be used in a single Progress Payment claim (previously, there was a limit of one vocational intervention). A maximum of one intervention from the categories of Skill based qualification completion and Workplace Certification may be counted towards a Progress Payment (i.e. either may be used, not one of each).

Activities or interventions can be drawn from any of the categories (including two from the same category), however some restrictions apply to vocational interventions (see [Progress Payments based on vocational interventions](#)). The Progress Payment for completion of Activities or interventions recognises the importance of addressing barriers to employment and must be appropriate to a Participant's individual needs. The Progress Payment is not intended to be paid for participation in Activities, but for progress towards Employment.

For the purposes of the Progress Payment, an intervention must involve the Participant participating in an Activity. If an intervention only involves the provision of information, purchasing an item (for example, a bicycle or a pair of glasses) or covering a Participant's costs (such as paying for car registration or a phone bill) it is not a suitable intervention for the Progress Payment. To qualify, the Participant must engage in a service such as training, counselling, health program etc, or a work placement.

The Provider is required to assess whether the Participant's circumstances have changed such that they are now closer to finding Employment or being ready to find Employment. For example, the Participant has more work experience, additional skills or relevant qualifications, or has addressed identified barriers to their Employment. Paid Employment is not always required to be the next step. For example, undertaking a non-vocational intervention may mean the Participant is now capable of undertaking training or a work experience placement.

The following tables provide a list of the Activities and interventions that could count towards the Progress Payment, including the requirements or principles for each intervention type, and the type of evidence that might be used to substantiate the claim. These are intended to guide Providers in making the decision that progress towards Employment has been achieved; where the Participant has not completed the intervention but the Provider still considers they have made progress towards employment, the Progress Payment Review may be applicable.

Progress Payments based on work placements

Table 5-B: Requirements and Documentary Evidence for work placements

Activity Type	Activity Description	Requirements	Evidence requirement
Defence Reserves	The Participant has undertaken training or service with the Australian Defence Force Reserves (that meets requirements of the Other Activities Chapter - Australian Defence Force Reserves).	At least two weeks' Participation. Additional requirements if started prior to Commencement Two weeks' Participation must have occurred after Commencement.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation Upload a copy of the signed training notice, training signal, notice of annual camp or equivalent. Comments: Not required
Launch into Work	The project is an approved Launch into Work project (that meets requirements of the Launch into Work Chapter)	At least two weeks' Participation (but not completion). If the Participant completes the Launch into Work Project, it may be eligible to be counted as a Pathway to Employment .	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Providers will need to ensure they have Commenced the Participant in the Activity ID and the Participant has earned their 25 PBAS points for each week of the project they participated in (minimum 2 weeks). Documentation If unusual circumstances apply and you are not certain whether a Participant's participation counts you can contact LaunchintoWork@dewr.gov.au for

Activity Type	Activity Description	Requirements	Evidence requirement
			confirmation. If confirmed this email exchange can be uploaded as evidence for the claim. Otherwise, not required. Comments: Not required
Local Jobs Program Activity	Participation in a Local Jobs Program in accordance with the rules in place for the Activity (that meets requirements of the Local Jobs Program Chapter).	At least two weeks' Participation. Additional requirements if started prior to Commencement At least two weeks' Participation must have occurred after Commencement.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation Confirmation that the Participant participated in the project for at least 2 weeks. Where attendance hours are recorded on the system, or a Participant's declaration of their attendance for the purposed of PBAS are available, no documentation needs to be uploaded. If these are not available, written confirmation directly from the Local Jobs Activity Host. Comments: not required – however it is recommended to note what evidence is being relied on (e.g. attendance hours or PBAS declaration).
WorkFoundations Program	Participation (but not completion) in a WorkFoundations Placement (that meets requirements of	At least 5 hours per week, for at least four weeks. Note: Where the Participant completes the WorkFoundations Placement, it may be	Vacancy ID Record the WorkFoundations flagged Vacancy ID in the Progress Payment claim screen in the Department's IT Systems.

Activity Type	Activity Description	Requirements	Evidence requirement
	the WorkFoundations Chapter).	eligible to be counted as a Pathway to Employment .	Documentation: No evidence is required that the Participant has participated in the WorkFoundations Placement as the Department can verify this directly. Comments: not required
Observational Work Experience	Participation in an Observational Work Experience activity (that meets requirements of the Observational Work Experience Chapter)	At least two weeks' participation. The Participant must participate for the period and weekly hours as agreed in the Host Agreement.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation If the Participant's attendance at Observational Work Experience has been recorded through the Calendar, no further documentation is required. If attendance has not been recorded through the Calendar, upload written confirmation from the Host Organisation that the Participant participated in the placement for the required duration. Confirmation can be in the form of a letter or email, and must include: • details uniquely identifying the specific placement (such as the Activity ID, or details of the Participant and placement dates), and • Host Organisation's name and ABN Comments: Not required

Activity Type	Activity Description	Requirements	Evidence requirement
Other Government programs (e.g. Indigenous Skills and Employment Program)	Undertaking a local, state or federal government program with an employment focus. (that meets requirements of the Other Activities Chapter - Other government programs)	The Participant must complete the program in accordance with the program's rules. If the other government program does not have a measure of completion, the Provider must determine whether it has led to progress towards Employment for the Participant. Additional requirements if started prior to Commencement At least two weeks' Participation must have occurred after Commencement.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation Not required. Comments Record comments indicating why the other government program was required for the Participant, what the program rules are and how the Provider has determined it was successful.
Paid work	Undertaking paid work that is not eligible for an Employment Outcome (including self-employment that does not meet Outcome requirements). Employment that meets the requirements for a Full or Partial Employment Outcome cannot be counted towards the Progress Payment, even if the Employment Outcome has not been claimed.	The paid work must last for a minimum of 2 weeks. Additional requirements if started prior to Commencement At least two weeks' Participation must have occurred after Commencement if the activity was started within 2 weeks prior to commencing in Workforce Australia Services or an Other Service. Paid work that has already been going longer than 2 weeks prior to Commencement cannot be used for the	Activity ID Record the Vacancy ID or Activity ID in the Progress Payment claim screen in the Department's IT Systems. Documentation Evidence that the Participant undertook 2 weeks of Paid Work must be available. It may be in the form of: earnings or hours declared to Services Australia (this may be sourced from the Department's IT Systems either from the declared earnings box on the Participant

Activity Type	Activity Description	Requirements	Evidence requirement
	Where paid work does not achieve an Outcome, but the same job is later used for an Outcome (either because of a Significant Increase in Income, or where it is combined with work in another job to achieve an Outcome) it can be used for the Progress Payment. Paid work in an Unsuitable position cannot be used for the Progress Payment.	Progress Payment (as the milestone date would occur prior to Commencement)	Summary or the JRRR or JEHR results on the Outcome Tracker). Where this is used, no documentation is required to be uploaded, or Documentary Evidence, which may be in the form of any evidence allowed for a Pay Slip Verified Outcome. Comments Not required, however it is recommended to note what evidence is being relied on if it stored on the system (e.g. JRRR or JEHR results).
Voluntary Work (Participant Sourced)	Participation in a Participant Sourced Voluntary Work placement (that meets requirements in the Voluntary Work Chapter)	Participation lasts for at least 4 weeks (with Voluntary Work undertaken each week).	Activity ID Not required. Documentation Upload written confirmation from the Host Organisation that the Participant participated in the placement for the required duration. Confirmation can be in the form of a letter or email, and must include: - details uniquely identifying the specific placement (such as details of the Participant and placement dates), and - the Host Organisation's business name.

Activity Type	Activity Description	Requirements	Evidence requirement
			Comments Record comments in the Progress Payment claim screen in the Department's IT Systems describing the Voluntary Work undertaken, that it was sourced by the Participant and the time period.
Voluntary Work (Provider Sourced)	Participation in a Provider Sourced Voluntary Work placement (that meets requirements in the Voluntary Work Chapter)	Participation lasts for at least 4 weeks (with Voluntary Work undertaken each week).	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation If the Participant's attendance at Provider Sourced Voluntary Work has been recorded through the Calendar, no further documentation is required. If attendance has not been recorded through the Calendar, upload written confirmation from the Host Organisation that the Participant participated in the placement for the required duration. Confirmation can be in the form of a letter or email, and must include: • details uniquely identifying the specific placement (such as the Activity ID, or details of the Participant and placement dates), and • Host Organisation's business name. Comments

Activity Type	Activity Description	Requirements	Evidence requirement
			Not required.
Work for the Dole	The Work for the Dole Activity meets activity requirements in the Work for the Dole Chapter	The Participant undertakes Work for the Dole for at least 8 weeks.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation: Not required Comments: Not required
Workforce Specialist Project	The Workforce Specialist Project is listed as one that is approved as a Work Placement (the Department will determine whether the Workforce Specialist Project can be counted as a Work Placement during the co-design stage of the relevant project and communicate this information on the Payments - Supporting Information page of the Provider Portal.)	The Participant successfully completes the individual Workforce Specialist Project in accordance with the rules in place for the project. Additional requirements if started prior to Commencement At least two weeks' Participation must have occurred after Commencement.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation: Not required Comments: Not required

Progress Payments based on vocational interventions

Table 5-C: Requirements and Documentary Evidence for vocational interventions

Activity Type	Activity Description	Requirements	Evidence requirement
Career Transition Assistance (CTA) completion	Participation in a CTA placement (that meets requirements detailed in the Career Transition Assistance Chapter)	The Participant completes the CTA Course in accordance with the CTA requirements. The Participant must achieve at least 60 hours of attendance over the CTA course.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation: Not required Comments: Not required
Employability Skills Training (EST) completion	Participation in an EST placement (that meets requirements detailed in the Employability Skills Training Chapter)	The Participant completes one or both EST Courses in accordance with the EST requirements. Providers can determine whether, for an individual Participant, completion of one or both Training Block 1 Course or/and Training Block 2 Course of EST may be sufficient depending on the Participant's circumstances. The Participant must achieve at least 60 hours of attendance over the EST Course.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation: Not required Comments: Not required
Language, Literacy and Numeracy or Digital Literacy training	An accredited Language, Literacy and Numeracy course at any level, provided that language, literacy or	Completion of the Language, Literacy and Numeracy course. Additional requirements if started prior to Commencement	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation

Activity Type	Activity Description	Requirements	Evidence requirement
completion (other than those that meet the Education requirements in Table 5.1)	numeracy is a barrier for the Participant. An accredited digital literacy course at any level, provided that digital literacy is a barrier for the Participant. Note, if the course is a Certificate III or higher, it may be eligible as an Education placement.	At least two weeks' Participation must have occurred after Commencement.	Upload evidence the Participant completed the course (e.g. a statement of attainment, academic transcript or certificate) Comments: Not required
Non-Government Programs (NGP)	The Non-Government Program is approved by the Department (in accordance with the arrangements detailed in the Other Activities Chapter - Non-Government Programs).	Participation for at least 2 weeks, and: • If the NGP has a measure or completion, completion of the program in accordance with the program's rules. • If the NGP does not have a measure of completion, the Provider must determine whether it has led to meaningful progress towards Employment for the Participant.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation Not required. Comments Record comments when claiming the Progress Payment indicating why the NGP was required for the Participant and why it was successful.
Self-Employment Assistance Small Business Training	Participation in Small Business Training through a	Completion of at least one of the accredited units of competency available through Small Business Training.	Activity ID The Activity ID must be entered on the Progress Payment claim screen.

Activity Type	Activity Description	Requirements	Evidence requirement
	Self-Employment Assistance Provider. Note, if the course is a Certificate III or higher, it may be eligible as an Education placement.	Additional requirements if started prior to Commencement At least two weeks' participation must have occurred after Commencement if the Activity was started prior to Commencing in Workforce Australia Services or an Other Service.	Documentation Upload evidence the Participant completed the qualification (e.g. a statement of attainment, academic transcript or certificate). Comments: Not required
Self-Employment Assistance Exploring Self-Employment Workshops	A Self-Employment Workshop delivered through the Self-Employment Assistance program.	Participant completes an Exploring Self-Employment Workshop.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation: Not required Comments: Not required
Skill based qualification completion (other than those that meet the Education requirements in Table 5-A)	A qualification that is less than a Certificate III, one or more units of a qualification, or non-accredited training (such as Barista Training, software training or food safety training). The course is linked to a work placement (including a vacancy the Participant applies for) or is a pre-requisite to gaining	Completion of the course and achievement of the qualification. Additional requirements if started prior to Commencement At least two weeks' participation must have occurred after Commencement if the Activity was started prior to Commencing in Workforce Australia Services or an Other Service.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation Upload evidence the Participant completed the qualification (e.g. a statement of attainment, academic transcript or certificate). Comments Record comments when claiming the Progress Payment outlining the work placement, vacancy or

Activity Type	Activity Description	Requirements	Evidence requirement
	employment in an industry the Participant is seeking work in. A limit of one activity across the Skills based qualification or Workplace Certification categories can be included in a Progress Payment claim.		industry the qualification is linked to and why it is relevant for the Participant. The comments must describe why the qualification is necessary or why not having the qualification is a barrier to gaining or retaining the identified employment.
Workplace certification completion	Completion of a workplace placement relevant to a work placement (including a vacancy the Participant applies for) or a pre-requisite to gaining employment in an industry the Participant is seeking work in (e.g. obtaining a White Card where the Participant is seeking work in the construction industry). Payment of workplace checks would not constitute a workplace certification and should not be claimed towards a Progress Payment.	Completion of the course and achievement of the qualification. Additional requirements if started prior to Commencement At least two weeks' participation must have occurred after Commencement if the Activity was started prior to Commencing in Workforce Australia Services or an Other Service.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation Upload evidence the Participant achieved the certification, such as a copy of the certificate, ticket or licence itself, or confirmation from the body that issued the certificate. Comments Record comments when claiming the Progress Payment outlining the work placement, vacancy or industry the qualification is linked to and why it is relevant for the Participant. The comments must describe why the qualification is necessary or why not having the qualification is a barrier to gaining or retaining the identified employment.

Activity Type	Activity Description	Requirements	Evidence requirement
	A limit of one activity across the Skills based qualification or Workplace Certification categories can be included in a Progress Payment claim.		
Workforce Specialist Project	The Workforce Specialist Project is listed as one that is approved as a vocational intervention (the Department will determine whether the Workforce Specialist Project can be counted as a vocational intervention during the co-design stage of the relevant project and communicate this information on the Payments - Supporting Information page page of the Provider Portal.)	The Participant successfully completes the individual Workforce Specialist Project in accordance with the rules in place for the project. Additional requirements if started prior to Commencement At least two weeks Participation must have occurred after Commencement.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation: Not required Comments: Not required

Progress Payments based on non-vocational interventions

Table 5-D: Requirements and Documentary Evidence for non-vocational interventions

Activity Type	Activity Description	Requirements	Evidence requirement
Personal interventions, including: • Drug and alcohol program • Treatment for behavioural addictions (e.g. gambling) • Counselling and mental health program • Medical/health related interventions • Obtaining stable housing • Addressing barriers associated with caring responsibilities	The Participant has undertaken and completed a non-vocational intervention to address a barrier that is impacting their ability to gain and sustain Employment. Interventions must build the Participant's personal capacity and move them closer to Employment. Simply attending a routine appointment as part of ongoing personal healthcare such as renewing a script or attending a dental check up is insufficient to count towards a Progress Payment. Buying equipment, covering costs such as car registration, purchasing a mobile phone and/or purchasing medical or allied health products (such as glasses) is insufficient to count towards a Progress Payment. Generalised online or webinar-style financial literacy courses (e.g. ANZ MoneyMinded or Commonwealth Bank's Financial Fitness) are not suitable interventions for the Progress Payment.	Completion of the intervention. The intervention has changed the Participant's circumstances such that they have made progress towards Employment. For example, previously all efforts were related to treating the Participant's barrier, but now they are able to participate in other interventions (e.g. treating a different Vocational or Non-vocational Barrier), a work placement or job search. If the Participant has not completed an intervention, but their circumstances have changed such that they have made progress towards Employment, a Progress Payment Review should be conducted. Additional requirements if started prior to Commencement	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation and Comments Upload documentation and record comments to demonstrate • the Participant has/had a barrier, • the non-vocational intervention to address that barrier has been undertaken and completed, and • how it has changed the Participant's circumstances. Documentation may be in the form of: • Evidence from an Assessment (including an Employment Services Assessment or Job Seeker Classification Instrument) showing the Participant is affected by a barrier.

Activity Type	Activity Description	Requirements	Evidence requirement
• Parenting Course • Support to address financial barriers • Anger management courses • Cultural services • Personal development, such as addressing self-esteem and confidence issues	Where a Participant has disclosed that financial stress is a challenge that impacts their ability to look for work, sessions with a licensed financial adviser, financial counsellor or the completion of other structured financial capability activities (such as with a trained coach and which respond to an individual's circumstances) may be eligible as an intervention for the Progress Payment. It is important that any intervention is not generic, but is tailored to the needs of the Participant and supports their efforts to find and maintain work.	If the Participant was already participating in a non-vocational intervention prior to Commencement, then their status at Commencement is considered their 'starting point' for considering whether progress towards Employment has been achieved (e.g. the Participant must show progress from the date they commenced in Workforce Australia Services, not the date they started the intervention).	• Evidence from a doctor, counsellor or rehabilitation provider (e.g. invoices for services or a letter of acceptance into a program) voluntarily supplied by the Participant. • Medical evidence voluntarily supplied by the Participant. • Recording the Employment Fund Commitment ID and detailed comments, where payment was through the Employment Fund and Documentary Evidence is already held to substantiate that claim. • Evidence of attendance (e.g. the Participant reporting their attendance for activities scheduled in the diary). • A statement from the Participant they undertook the intervention.
Addressing transport access issues (e.g. driver's licence)	The Participant previously had a transport barrier that has been addressed such that the Participant is now able to access Employment and/or study opportunities.	Completion of the intervention and a change in the Participant's circumstances.	Activity ID Not required. Documentation and Comments

Activity Type	Activity Description	Requirements	Evidence requirement
	Assisting a Participant with work-related licensing (e.g. a heavy vehicle licence), should be considered a vocational intervention and recorded as Workplace Certification.	For example, organising driving lessons alone is not sufficient; the barrier to accessing transport must be addressed by gaining a licence. Similarly, a short-term intervention such as buying bus tickets or supplying taxi vouchers does not address the Participant's barrier. Further, a Participant renewing their vehicle registration, insurance or licence cannot be counted towards the Progress Payment, including where this is funded by the Provider. Purchasing a vehicle, including bikes, scooters and electric scooters cannot be counted towards a Progress Payment. Additional requirements if started prior to Commencement If the Participant was already participating in a non-vocational intervention prior to Commencement, then their status at Commencement is considered their 'starting point' for considering whether progress towards	Upload evidence and comments in the Progress Payment claim screen in the Department's IT Systems indicating the nature of the transport barrier and how it has been addressed. For example, an email or statement from the Participant they have obtained a driver's licence and comments the licence changed their circumstances as they have access to a car and can now attend work or interviews.

Activity Type	Activity Description	Requirements	Evidence requirement
		employment has been achieved (e.g. the Participant must show progress from the date they commenced in Workforce Australia Services, not the date they started the intervention).	
Community-led Cultural Participation (Aboriginal and Torres Strait Islander) This category recognises the value of Aboriginal and Torres Strait Islander Participants' involvement in community-led activities as a pathway towards building confidence, skills, resilience and readiness for employment.	Community-led activities must: - be undertaken by an Aboriginal or Torres Strait Islander Participant, and - reflect meaningful engagement in community, cultural or wellbeing activities that support improved work readiness, capacity and/or confidence to participate in education and/or employment opportunities. Interpretations of cultural activities may vary across communities. Providers should consider these differences and ensure activities are aligned with the perspectives of relevant Indigenous organisations, communities, and the Participant. Examples of eligible activities include (but are not limited to): Cultural business and ceremonies – participating in or supporting traditional ceremonies, sorry	Activities may be episodic, seasonal or event based in nature, recognising the importance of ceremonies, seasonal activities and sorry business as genuine and valued forms of participation. Engagement does not need to be weekly or ongoing to be valid. Activities can be a one-off where they are significant and improve skills relevant to work readiness.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation and Comments Upload evidence and provide comments to demonstrate: - the Participant has participated in the community led activity, - the nature of the Activity, and how the participation has changed their circumstances, reduced barriers or improved their work readiness, capacity and/or confidence to strengthen their ability to participate in education and/or employment opportunities. The evidence may be in the form of any of the following (or a combination):

Activity Type	Activity Description	Requirements	Evidence requirement
	business, language preservation, or cultural festivals. • Cultural and community responsibilities – activities that support Elders, contribute to community decision-making, or strengthen kinship responsibilities that build transferable skills such as organisation, leadership, or problem-solving. • Mentoring and youth programs – volunteering in programs that guide and support young people, cultural knowledge sharing, or community wellbeing initiatives. • Healing and wellbeing activities – engaging in cultural healing, counselling, group activities, or programs delivered through First Nation organisations that support connection to culture and language to improve confidence, self-esteem, and mental health. • Seasonal or event-based activities – participating in community-based projects or responsibilities tied to seasonal calendars, harvest periods, or annual community gatherings. The following are not eligible under this category:		• A statement or confirmation (written or electronic) from the Participant they have undertaken the activity and agree it has changed their circumstances and/or improved job readiness. • A short note, statement or confirmation from a community leader, the activity co-ordinator or organisation recognising the Participant's involvement in the activity. • Evidence from an Assessment (including an Employment Services Assessment or Job Seeker Snapshot) showing the Participant is affected by the barrier.

Activity Type	Activity Description	Requirements	Evidence requirement
	• Private or family responsibilities not connected to organised cultural or community activities (e.g. personal childcare or household duties). • Activities that a Provider cannot reasonably demonstrate are connected to cultural or community responsibilities and progress a participant toward employment.		

5.3.4. Progress Payments for completing a pathway to Employment

Activities that provide a full pathway towards Employment can be used to claim a Progress Payment on its own. While these activities would usually result in a job placement, they can still be used to claim the Progress Payment where a job placement does not eventuate if the Participant successfully completes the Activity (for example, because the business is no longer operating or the job is no longer suitable for the Participant).

Table 5-E: Pathway to Employment Activities

Activity Type	Activity Description	Requirements	Evidence requirement
Workforce Specialist Project	The Workforce Specialist Project is listed as one that is approved as a Pathway to Employment (the Department will determine whether the Workforce Specialist Project can be counted as a Pathway to Employment during the co-design stage of the relevant project and communicate this information on the Payments - Supporting Information page page of the Provider Portal.)	The Participant successfully completes the individual Workforce Specialist Project in accordance with the rules in place for the project.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation: Not required. Comments: Not required.
WorkFoundations Program	A project that meets WorkFoundations requirements (see the WorkFoundations Chapter)	The Participant successfully completes the WorkFoundations Placement. Note: Where the Participant does not complete the WorkFoundations Placement but participates for at least 5	Activity ID The WorkFoundations flagged Vacancy ID must be entered on the Progress Payment claim screen. Documentation: Not required.

Activity Type	Activity Description	Requirements	Evidence requirement
		hours per week for four weeks, the participation may be eligible to be counted as a work placement.	Comments: Not required.
Launch into Work	The project is an approved Launch into Work project (that meets requirements of the Launch into Work Chapter)	Completion of the Launch into Work Project. Where the Participant does not complete the Launch into Work Project, but participates for at least two weeks, the participation may be eligible to be counted as a work placement.	Activity ID The Activity ID must be entered on the Progress Payment claim screen. Documentation If unusual circumstances apply and you are not certain whether a Participant's participation counts you can contact LaunchintoWork@dewr.gov.au for confirmation. If confirmed this email exchange can be uploaded as evidence for the claim. Otherwise, not required. Comments: Not required.

5.3.5. Progress Payment Review

For some Participants with Non-vocational Barriers, it may be possible to demonstrate progress towards Employment without actually completing interventions. For example, a Participant may participate in treatment for a substance abuse addiction and successfully stabilise their circumstances such that they are now able to look for work, however as their addiction is an ongoing challenge, they continue to attend a support group. In this case, although the Participant has not *completed* an intervention, their circumstances have materially changed and they are more prepared to look for, gain and maintain Employment.

For Participants in this circumstance, the Provider can undertake a Progress Payment Review. The Progress Payment Review has 3 components:

1. considering the Participant's initial circumstances,
2. the details of interventions undertaken, and
3. the change in the Participant's circumstances following the interventions that has increased their capacity to look for and gain Employment.

Participants must have undertaken 2 distinct activities or interventions when the Progress Payment Review is used. At least one of the Activities or interventions must be a non-vocational intervention where progress may be achieved without completing the intervention.

To undertake a Progress Payment Review, the Provider must complete the [Progress Payment Review template](#) capturing these 3 elements. As the Progress Payment Review is an inherently subjective undertaking, an important consideration is that the Participant agrees they have made progress towards Employment, which must be documented as part of the Progress Payment Review.

In completing the Progress Payment Review, the Provider must include evidence to show the interventions undertaken, including the details of the Activity ID (if required) for each Activity and/or intervention, and how the Participant's circumstances have changed. Examples of evidence a Provider might use are provided below. This is not an exhaustive list and Providers may use one or more of these, or may have alternative evidence that is more appropriate, taking into account any sensitivities for the Participant.

- The results of an assessment such as the JSCL, a Capability Assessment or Interview, an ESAT or an assessment completed by the Provider, demonstrating improvement in the Participant's circumstances.
- Medical evidence voluntarily supplied by the Participant.
- Observations of changes in the Participant's behaviour or demeanour, where these improve job readiness and employability.
- Recording the Employment Fund Commitment ID, where payment was through the Employment Fund and Documentary Evidence is already held to substantiate that claim, together with comments detailing the relevance to addressing the Participant's barrier.
- Evidence from a doctor, counsellor or rehabilitation provider (e.g. invoices for services or a letter of acceptance into a program) voluntarily supplied by the Participant.
- Evidence of supports made available to the Participant to assist with caring responsibilities.
- Evidence of attendance (e.g. the Participant reporting their attendance for activities scheduled in the diary).
- A statement from the Participant that they undertook the intervention(s).

- Evidence the Participant is now participating, or participating to a greater degree or more successfully, in other Vocational or Non-vocational activities, work placements or job search.



The Progress Payment Review must be completed in full by the Provider and agreed by the Participant. The Participant's agreement can be documented by them countersigning the Progress Payment Review or provided electronically (e.g. an email acknowledgement). The completed Progress Payment Review and any electronic acknowledgement (where obtained) must be uploaded in the Department's IT Systems when claiming the Progress Payment.

5.4. Employment Outcome Payments

All Personnel must complete the [Workforce Australia - Outcome Payments](#) training module before lodging a claim for Outcome Payments in the Department's IT Systems. The training module is available through the Learning Centre.

(Deed Reference(s): Clause 56.3)

Providers may claim Employment Outcomes when a Participant they are servicing achieves Employment, Unsubsidised Self-Employment, an apprenticeship or traineeship, or self-employment by accessing Self-Employment Assistance Small Business Coaching. This includes Employment sourced through another Workforce Australia Employment Services Provider, Workforce Specialist, CTA or EST Provider.

The amount of the Employment Outcome paid will depend on:

- whether a Full or a Partial Outcome is achieved,
- the duration of the Employment Outcome (4, 12 or 26 weeks), and
- the Participant's JSCI score at the time of the Job Placement Start Date or Self-Employment Assistance Commencement.

(Deed Reference(s): Clauses 155 and 156, Annexure B1 – Payments and Employment Fund Credits, Annexure B2 - Outcomes)

5.4.1. Full and Partial Employment Outcomes

A Full Outcome is achieved when a Participant is in Employment, Unsubsidised Self-Employment or an apprenticeship or traineeship and has a 100 per cent income support rate reduction, or meets hours worked requirements, for the duration of the Outcome Period. A Full Outcome for Participants with a Partial Work Capacity or who are Principal Carer Parents will take into account their part-time requirements.

A Partial Outcome is achieved when a Participant is in Employment, Unsubsidised Self-Employment, an apprenticeship or traineeship, or self-employment reduces their income support by 60 per cent on average over the outcome period, or meets the relevant hours worked requirements. Partial Outcomes may also be paid for Participants accessing Self-Employment Assistance Small Business Coaching.

5.4.2. Outcome Periods

- The Outcome Periods are 4, 12 and 26 weeks from the Employment Outcome Start Date:

- Generally, these weeks are consecutive, however in some circumstances there is flexibility around when the period begins or a Permissible Break can be entered (see [Achieving an Employment Outcome](#)).
- Outcomes can be achieved at different levels for the different Outcome Periods. For example, a Participant may achieve a Full Outcome at 4 and 12 Weeks, but a Partial Outcome at 26 Weeks. Alternatively, where Partial 4 or 12 Week Outcomes are achieved, the participant may go on to achieve a Full 26 Week Outcome.
- The 4 and 12 Week Outcome Periods both commence on the Employment Outcome Start Date and run concurrently, i.e. the 4 Week Outcome makes up the first 4 weeks of the 12 Week Outcome.
- The 26 Week Period comprises 7 fortnights and the Employment Outcome Start Date may be the start of any of the 8 Services Australia fortnights following achievement of the 12 Week Outcome.

5.4.3. Employment Outcome Payment Amounts

The amount that is paid for an Employment Outcomes is aligned to the Participant's JSCI score (Moderate or High) at the time of the Job Placement Start Date. Participants with a High JSCI score attract the higher payment amount. Providers can identify if a Participant has a High or Moderate JSCI for a tracking Outcome in the Payment Type field on the Outcome Details screen.

5.4.4. Very Long Term Unemployment (VLTU) Bonus

For 12 and 26 Week Employment Outcomes, if a Participant's Period of Unemployment exceeds 24 months on the Job Placement Start Date or Self-Employment Assistance Commencement date, a VLTU Bonus is paid automatically by the Department's IT Systems following the associated Employment Outcome claim being lodged. The Department's IT Systems will display the Participant's Period of Unemployment (as at the Job Placement Start Date) on the Outcome tracker (labelled as 'Unemployment Period').

5.4.5. Non-Payable Outcomes

There are some Employment types that are not eligible for Employment Outcome payments, even where the Participant works sufficient hours or earns sufficient income. These are referred to as Non-Payable Outcomes as follows:

- Employment in a position that is Unsuitable.
- Any Employment involving the Participant generating their income or earnings directly from gambling work. For example, if the Participant works as a bookmaker or card dealer and keeps their 'winnings' as declared earnings, an Employment Outcome is not payable. However, an Outcome could still be payable where Employment is in a venue where legal gambling occurs (for example, working in a bar in a licensed venue with poker machines) but the Employment does not involve earnings derived from gambling.
- Employment that started before the Participant commenced in Workforce Australia Services, except where a Significant Increase in [Pre-Existing Employment](#) applies.
- A program, including a Work Trial program funded by the Australian Government or a state and territory government, including a Complementary Program as advised by the Department.
- Employment Outcomes where:

- the Provider has already claimed an Outcome Payment for another Participant who previously occupied the same or a similar position (the prior outcome); and
- the Employment Outcome Start Date occurs less than 12 weeks after the end of the Outcome Period for the prior outcome.
- Employment or Unsubsidised Self-Employment which is Recurring, except for:
 - 4 Week Full and Partial Employment Outcomes,
 - Employment Outcomes where the Participant has, and maintains, a Significant Increase in Income, or
 - Harvest Work 4 Week Outcomes.
- Any other situation the Department may advise.

5.4.6. Vacancy Management

Sourcing a Vacancy

Providers must engage and work with Employers to understand their needs and to identify job opportunities.

Providers must:

- refer suitable eligible Participants to appropriate Vacancies, including Vacancies sourced by the Provider and by other services such as the Local Jobs Program and Launch into Work Organisations,
- ensure any Participants referred to Vacancies meet that Employer's needs, and
- advise eligible Participants they are required to accept any suitable job and explain the consequences of failing to do so.



Providers must record all Employment Vacancies, including those found by Participants, in the Department's IT Systems. They must ensure each Vacancy is complete, up-to-date and compliant with any conditions of use for workforceaustralia.gov.au.

(Deed Reference(s): Clause 147)

Vacancy Types



When entering a Vacancy in the Department's IT Systems, Providers need to enter a range of information including a job description, employer details, hours, salary and whether the job was sourced by the Participant. Providers will also need to select a Vacancy type from those listed below. Some Vacancy types trigger certain functionality when tracking for or claiming an Outcome:

- Apprenticeship or Traineeship – 'Apprenticeship' or 'Traineeship' must be selected to make use of the provision that allows a Full Outcome to be paid for a [Full time Apprenticeship or Traineeship](#)
- Pre-existing Employment – this vacancy type must be selected to enable claiming a [Outcomes for Pre-Existing Employment](#)
- Normal position – this vacancy type should be used when none of the other (more specific) vacancy types are applicable.
- Graduate
- Seasonal

- Significant Increase in Income – this vacancy type must be selected to enable claiming [Outcomes for a Significant Increase in Income](#)
- Self-Employment
- Real Jobs, Real Wages (RJRW) – must be used where the Job Placement is eligible for a [RJRW Wage Subsidy](#). When this vacancy type is selected, Outcomes will track with the same features as a Normal position. Therefore, Providers need to be aware:
 - Where the Outcome is for Pre-existing Employment or a Significant Increase in Income, Providers must ensure the required Documentary Evidence is uploaded against Outcomes claimed. There will be no mandatory Documentary Evidence requirement enforced by the Department's IT Systems for Outcomes associated with the RJRW vacancy type.
 - If the Employment is an Apprenticeship or Traineeship, the option to claim a Full Outcome via the system (based on full-time participation) will not be available for Outcomes associated with the RJRW vacancy type. If Providers wish to claim Full Outcomes based on participation in a full-time Apprenticeship or Traineeship they will need to submit a Manual Claim.
- [WorkFoundations](#) – this vacancy type will not track for Outcomes. It relates to paid employment placements in social enterprises under the WorkFoundations program.



Outcome requirements and Documentary Evidence requirements may differ according to the type of Vacancy selected.

Checking Minimum Wage

Where a Provider has sourced a Vacancy they must, at the time they lodge the Vacancy in the Department's IT Systems, make sure the relevant minimum wage is satisfied.

The minimum wage may be set out in the Modern Award that relates to the Vacancy. If a Modern Award is not in place, then the National Minimum Wage will apply. As Providers will check this at the Vacancy lodgement stage, they will not be expected to check minimum wages again when they claim an associated Outcome Payment.

Where a Participant has sourced a Vacancy, Providers are not required to check the applicable minimum wage. The Participant should already have information relating to the National Minimum Wage and the Fair Work Ombudsman. Providers must give this information to all Participants when they Commence in Services.

The information must include the following, which is contained in the [Minimum wages fact sheet](#) available on the [Fair Work Ombudsman website](#):

- details of the latest National Minimum Wage rates,
- where to access information about the [Pay and Conditions Tool](#) and any changes to the National Minimum Wage rates, and
- the contact details of the Fair Work Ombudsman.

While Providers are not required to check the National Minimum Wage upon Job Placement for a Participant-sourced Vacancy, if a Provider becomes aware the employment does not meet National Minimum Wage requirements, they should not claim associated Outcomes.

If the Participant is being paid less than National Minimum Wage requirements, the Provider should ensure the Participant is aware of the information and assistance available to them through the Fair

Work Ombudsman. While this information should have been given to the Participant when they first Commenced in Services, the Provider should again give the Participant the relevant information about the National Minimum Wage and Fair Work Ombudsman.

Placing a Participant into a Vacancy



Where a Participant is successful in gaining Employment, the Provider must place the Participant into the relevant Vacancy and record the Job Placement Start Date. The Job Placement Start Date is the date on which the Participant first commences in a job, unless one of the following circumstances apply:

- For Pre-existing Employment, the Job Placement Start Date must be the day on which the increase in hours or earnings occurred (see [Outcomes for Pre-Existing Employment](#)).
- For Full Outcomes based on a Significant Increase in Income, the Job Placement Start Date must be the day on which the increase in earnings occurred (see [Outcomes for a Significant Increase in Income](#)).
- For a trial or probationary period of employment funded by the Provider which leads to ongoing Employment with the Employer, the Job Placement Start Date is the first day of the ongoing Employment.
- For a job with a Paid Induction Period or employer-funded work trial the Provider can decide whether to use the date on which the Participant commences the induction/work trial or the first day of continuous Employment following the induction as the Job Placement Start Date.
- For volunteer work/work experience/unpaid work that leads to ongoing Employment the Job Placement Start Date is the first day of the ongoing Employment.



The Job Placement Start Date must be recorded within 56 calendar days of the Participant commencing in the job or the date of the Significant Increase in Income/Significant Increase in Pre-existing Employment. The Department's IT Systems will not allow Providers to backdate a Job Placement Start Date by more than 56 days, nor will Providers be able to amend vacancy details outside the 56 day period. The Department expects Providers to remain in regular contact with Participants, including awareness of gaining Employment.



Providers need to have Documentary Evidence to support the entering of a Job Placement Start Date in the Department's IT Systems. This Documentary Evidence can take a range of forms, including a file note that records how the Provider became aware of the Employment or written communication about the Employment from the Participant or Employer.

(Deed Reference: Clause 19.1)

For an Employment Outcome to track, the Job Placement Start Date must be a date that the Participant was commenced on the Provider's Caseload (unless the provisions of the next paragraph apply).

Where a Participant has a Job Placement Start Date within 28 calendar days of Exit or transfer to another Site/Provider, an Employment Outcome may be payable if all requirements are met.

Job Placement Start Dates (within 28 days of Exit) that have been entered into the Department's IT Systems from 11 December 2023 will automatically track for Employment Outcomes where eligible. Any such Job Placement State Dates entered prior to 11 December 2023 will not automatically track for Employment Outcomes and will only be payable via Manual Claim.

Employment Outcomes will not track for the Provider/Site if the Participant has Commenced with another Provider/Site prior to the Job Placement Start Date.

5.4.7. Achieving an Employment Outcome

To trigger the Department's IT Systems to commence tracking the 4 and 12 Week Periods for an Employment Outcome, a Provider must record a Vacancy in the Department's IT Systems and record the Job Placement Start Date against that Vacancy with a Placement Confirmed status.

For Participants on an Income Support Payment, the Department's IT Systems capture the Participant's earnings and hours information as declared to Services Australia by the Participant. The Department's IT Systems use this information to calculate whether the requirements for a Partial or Full Outcome have been met.

For Participants where this information is not available (such as Participants not on an Income Support Payment), or the Provider disagrees with the information in the Department's IT Systems, the Provider will need to enter the relevant information manually, supported by Documentary Evidence. See [Pay Slip Verified Outcomes](#) for more information.

Setting the Outcome Start Date - Participants on income support

Where a Participant is receiving an Income Support Payment, the Outcome Period will always be aligned with the fortnightly cycle that the Participant declares their earnings and hours worked to Services Australia.

After a Job Placement Start Date is entered, the Department's IT Systems will initially set the Employment Outcome Start Date to be the first day of the Participant's Services Australia Fortnight on or after the Job Placement Start Date.

Where the Participant's earnings or hours for that Services Australia Fortnight are less than required for a Full or Partial Outcome, the Department's IT Systems will automatically move the Outcome Start Date to the next fortnight/s and continue tracking to maximise the Provider's opportunity to achieve a Full or Partial Outcome.

Providers can also manually choose the Outcome Start Date, within the fortnight limits outlined below, to select the fortnight that is most beneficial to them. Once an Employment Outcome has been claimed, the Employment Outcome Start Date cannot be changed. There are no Documentary Evidence requirements when selecting an Outcome Start Date.

4 Week and 12 Week Outcome Start Date

At any time until a 4 Week or 12 Week Outcome is claimed, Providers can manually change the Outcome Start Date to be any of the first 4 Services Australia fortnights beginning on or after the Job Placement Start Date. The 4 and 12 Week Outcomes Periods share the same Employment Outcome Start Date and run concurrently with the 4 Week Outcome being the first 4 weeks of the 12 Week Outcome. Therefore, claiming the 4 Week Outcome will set the Outcome Start Date for both the 4 and 12 Week Outcome Periods.

26 Week Outcome Start Date

For the 26 Week Outcome Period, Providers can choose the Outcome Start Date to be any of the first 8 Services Australia fortnights following achievement of the 12 Week Outcome. A 26 Week Outcome cannot be achieved without the associated 12 Week Outcome being achieved and claimed. The 26 Week Outcome Period begins after the achievement of the 12 Week Outcome and comprises 7 fortnights.

Setting the Outcome Start Date - Participants not on income support

For Participants who are not receiving an Income Support Payment when they are placed in Employment, as there is no Services Australia Fortnight to align to, the Employment Outcome Start Date will automatically be the Job Placement Start Date recorded in the Department's IT Systems.

Providers have the choice of 4 Employment Outcome Start dates, from and including the Job Placement Start Date. That is, the Employment Outcome Start Date can be either the Job Placement Start Date, or 14, 28 or 42 days later.

Tracking towards an Outcome - Fortnightly Result

The Department's IT Systems will use earnings and/or hours worked information declared by the Participant to Services Australia, or entered by the Provider based on Documentary Evidence, to determine if an Outcome is payable.

For Outcomes tracking using Services Australia information, the Department's IT Systems will automatically make Partial or Full Outcomes available if Outcome requirements have been met.

Outcomes are assessed using fortnightly periods, comprising:

- 2 fortnights for a 4 Week Outcome,
- 6 fortnights for a 12 Week Outcome (which includes the 2 fortnights of the 4 Week Outcome), and
- 7 fortnights for a 26 week Outcome (i.e. weeks 13 to 26 of the Outcome Period).

There are some circumstances where flexibilities apply to the fortnight periods for an Outcome to be payable:

- For Partial Outcomes, the Participant needs to achieve the necessary income rate reduction or hours requirement on average over the Outcome Period.
- For example, to achieve a 4 Week Outcome (earnings based) which requires a 60 per cent rate reduction, a Participant may achieve an 80 per cent rate reduction in one fortnight, and a 50 per cent rate reduction in the second fortnight.
- For Full Outcomes based on the Participant's earnings, a small number of fortnights with reduced earnings are permitted. Please see [Variability in Earnings](#) for more information.
- For all types of Outcomes, [Permissible Breaks](#) may be applied in some circumstances to remove one or more fortnightly periods from the Outcome calculation. Each fortnightly Permissible Break will extend the Outcome Period by one fortnight.

Earnings-Based Outcomes

For Participants on JobSeeker Payment or Youth Allowance (other) with full-time Mutual Obligation Requirements, eligibility for an Outcome Payment is determined based on their earnings during the

Outcome Period. The Department's IT Systems will use the Participant's earnings each fortnight to calculate the amount their income support has reduced by (i.e. the rate reduction). For example, if the Participant's earnings from Employment mean they only receive 30 per cent of their JobSeeker Payment in a fortnight, their rate reduction for that fortnight is 70 per cent.

Earnings information will either be imported from Services Australia's IT system or entered by the Provider. Please refer to the [Lodging an Employment Outcome](#) section for more information.

Hours-Based Outcomes

Outcome Payments are based on the number of hours worked during the Outcome Period for Participants with a Partial Capacity to Work, part-time Mutual Obligation Requirements, aged 55 years and over, receiving Carer Allowance, on other payments (such as Disability Support Pension Recipients) or not receiving income support payments.

For Participants with a Partial Capacity to Work of 0-7 or 8-14 hours per week, a Full Outcome is payable when they work at least 16 hours per fortnight, while a Partial Outcome is payable where they work 10 hours per fortnight on average.

A Participant not on an Income Support Payment must complete an average of 40 hours a fortnight of paid work to trigger a Full Outcome, or an average of 30 hours a fortnight to trigger a Partial Outcome.

For all other hours-based Outcomes, the Participant must work at least 30 hours each fortnight for a Full Outcome, or an average of 20 hours each fortnight for a Partial Outcome.

Hours information will either be imported from Services Australia's IT system, or entered by the Provider. Please refer to the [Lodging an Employment Outcome](#) section for more information.

Outcomes for Participants Not on Income Support

Where a Participant is not receiving an Income Support Payment, Employment Outcomes cannot be tracked using Services Australia data, and all Employment Outcomes must be claimed as [Pay Slip Verified Outcomes](#).

Outcome Requirements

The circumstances applicable for the Participant on the Job Placement Start Date will determine the Outcome requirements as shown below.

Table 5-F: Employment Outcome Requirements

Participant circumstances	Partial Outcome	Full Outcome
Participant on JobSeeker Payment or Youth Allowance (Other)	Average 60% reduction of income support payment per fortnight	100% reduction of income support payment each fortnight
Participant on other eligible allowances	Average 20 hours per fortnight	Minimum 30 hours per fortnight

Participant circumstances	Partial Outcome	Full Outcome
Participant on Disability Support Pension with compulsory requirements	Average 20 hours per fortnight	Minimum 30 hours per fortnight
Participant not on income support payment	Average 30 hours per fortnight	Average 40 hours per fortnight
Participant is a Principal Carer Parent	Average 20 hours per fortnight	Minimum 30 hours per fortnight
Participant has Partial Capacity to Work of 0-14 hours	Average 10 hours per fortnight	Minimum 16 hours per fortnight
Participant has Partial Capacity to Work of 15-22 hours	Average 20 hours per fortnight	Minimum 30 hours per fortnight
Participant has Partial Capacity to Work of 23-29 hours	Average 20 hours per fortnight	Minimum 30 hours per fortnight
Participant aged 55 years and over	Average 20 hours per fortnight	Minimum 30 hours per fortnight
Participants receiving the Carer Allowance supplementary payment*	Average 20 hours per fortnight	Minimum 30 hours per fortnight

*Applies to Job Placement Start Dates on/after 1 April 2025.

Outcomes for Participants undertaking a Full-Time Apprenticeship or Traineeship

For Participants who are undertaking a full-time apprenticeship or traineeship, a Full Outcome is payable provided they remain full-time in the apprenticeship or traineeship for the Outcome Period, regardless of the income earned/hours worked by the Participant.

When the Outcome has finished tracking, if there is sufficient Services Australia data to verify a Full Outcome the Provider may lodge an auto claim without Documentary Evidence just like any other Outcome.

Where the Services Australia data does not support a Full Outcome, and the Participant has remained each week in a full-time apprenticeship or traineeship for the relevant Outcome Period, Providers may use Documentary Evidence to claim a Full Outcome.

In order to claim a Full Outcome using Documentary Evidence, Providers must ensure the Vacancy is created with the Vacancy type of Apprenticeship or Traineeship and the Position Type of 'full-time position'.



The Documentary Evidence must be uploaded at the time the Full Outcome is claimed and must include the following information:

- the name of the Employer;

- the period of Employment; and
- evidence that the Participant remained in the apprenticeship/traineeship on a full-time basis for each week of the relevant Outcome Period.



When lodging the claim, in the 'Outcome verification details' section (in the outcome details screen), at the 'Treat Outcome as' field, the Provider can toggle between two options: 'Normal' or 'Full Time Apprenticeship Agreement.'



The Provider should select 'Full Time Apprenticeship Agreement' and click on the 'Update' button if they wish to claim a Full Outcome using Documentary Evidence. They will then be able to upload the required Documentary Evidence and claim the Full Outcome.

Outcomes for a Significant Increase in Income

In some cases, a Participant may be in Employment they started after Commencement in Workforce Australia Services (including while on the Caseload of the Provider or with another Provider), but is not working enough to achieve a Full Outcome. If the Participant goes on to increase their earnings such that they cause their income support to cease, the Provider can record this as a 'Significant Increase in Income' and begin tracking for 4, 12 and 26 Week Full Outcomes from the date of the increase.

The increase in earnings can be due to the Participant increasing earnings in their existing job or starting work in an additional job.

Significant Increase in Income vacancies can only be paid as Full Outcomes. The Department's IT Systems will not allow Partial Outcomes to be paid for this vacancy type.

Providers are not eligible to claim Employment Outcomes for a Significant Increase in Income where Full Outcomes have previously been claimed for that Employment in the current Period of Unemployment.

The Significant Increase in Income provisions are available for Participants who obtained Employment while Commenced in Workforce Australia Services. For Participants who were already working prior to Commencement in Workforce Australia Services refer to [Outcomes for Pre-existing Employment](#).

Providers may claim a Full Outcome for a Significant Increase in Income in the following specific circumstances:

- The Provider has previously claimed a 12 Week Partial Outcome for a Participant's Employment (in the current Period of Unemployment) and the Participant continues in that Employment with the same employer, increasing their income to a level sufficient to cease income support.
- The Provider has previously claimed a 12 Week Partial Outcome for a Participant's Employment (in the current Period of Unemployment) and the Participant then gains a second job, the combined earnings are sufficient to cease the Participant's income support.
- The Provider has previously entered a Job Seeker Placement Start Date for a Vacancy but no Employment Outcomes were achieved, and the Participant then increases their earnings (with the same Employment or multiple jobs) to cease the Participant's income support.



Enter a Vacancy in the Department's IT Systems and select the 'Significant Increase in Income' vacancy type. Place the Participant into the Vacancy recording the Job Placement Start Date as

the day on which the Significant Increase in Income occurred. For hours-based Participants this is the start of the relevant pay period in which the increase occurred. For earnings-based Participants, this is the pay slip date.



Documentary Evidence of the Participant's Employment earnings for the 4 weeks prior to the Significant Increase in Income must be uploaded at the time of claim. Documentary Evidence should be in the same form as required for Pay Slip Verified Outcome Payments and uploaded to the Department's IT Systems.

While Providers should enter all Job Placements into the Department's IT Systems where possible, if a Vacancy has not previously been entered, the Provider is not required to enter the original Vacancy in the Department's IT Systems before entering a Significant Increase in Income Vacancy and placement.

Significant Increase in Income - Hours-based Participants

Employment Outcomes for a Significant Increase in Income may only be claimed where the Participant's earnings cause their income support to cease. Achievement of work hours alone does not satisfy requirements for an Employment Outcome based on a Significant Increase in Income. The Participant must have a zero rate of income support payment or a 100 per cent rate reduction in every fortnight of the Outcome Period (excluding any Permissible Breaks) in order for it to be payable.

Where a Participant is hours-based, Providers must ensure this requirement has been met prior to claiming the Employment Outcome. This can be done by checking the 'Basic Rate' column and/or the '% Reduction' column on the Outcome Details screen via the outcome tracker. Even if the Department's IT Systems presents a Full Outcome result based on hours worked, the Provider must not claim the Employment Outcome unless the Basic Rate is zero or there is a 100 per cent rate reduction for every fortnight.

Outcomes for Pre-existing Employment

Generally, where a Participant is already undertaking Employment prior to Commencing in Workforce Australia Services (with any provider) this Employment is not eligible to count towards an Employment Outcome.

However, where a Participant increases their work hours or earnings (as relevant for the Participant's circumstances) after Commencing in Workforce Australia Services, an Outcome may be payable where there is a Significant Increase in Pre-existing Employment.

A Significant Increase in Pre-existing Employment may be used to achieve:

- Full Outcomes - the Participant must increase their income earned or hours worked from below a Partial Outcome level to a Full Outcome.
 - For example, a Participant in Employment prior to Commencing in Workforce Australia Services had earnings that would achieve less than a 60 per cent rate reduction, then increases their earnings after Commencing in Workforce Australia Services and is now achieving a 100 per cent rate reduction.
- Partial Outcomes - in addition to meeting the minimum requirements for a Partial Outcome, the Participant must increase their income earned or hours worked from below a Partial Outcome level by at least 40 per cent, i.e. the difference between a Full and Partial Outcome.

- For example, for an earnings-based Outcome, a Participant would need to increase their rate reduction from 20 per cent to 60 per cent, or 40 per cent to 80 per cent.

To determine whether a Significant Increase in Pre-existing Employment has occurred, the Provider must determine the initial earnings or hours that previously applied. This can be measured over either:

- the 4 week period immediately prior to Commencement in Workforce Australia Services, or
- the 4 week period immediately prior to the Significant Increase occurring.

The Participant must increase their earnings or hours as outlined above and maintain the increase over the Outcome Period.

For information on how to calculate a Significant Increase, refer to the [Calculating a Significant Increase in Pre-Existing Employment Supporting Document](#).



Enter a Vacancy in the Department's IT Systems and select the Pre-Existing Employment Vacancy type. The Job Placement Start Date is the date the Significant Increase in Pre-Existing Employment occurred. For hours-based participants this is the start of the relevant pay period in which the increase occurred. For earnings-based participants, this is the pay slip date.



Documentary Evidence of the Participant's Employment earnings/hours for the 4 week prior period must be uploaded to the Department's IT Systems at the time of claim and must be in the same form as required for Pay Slip Verified Outcome Payments.



Where the Provider chooses the 4 week period immediately prior to the Significant Increase, they must also upload evidence that the Participant was employed in the same job immediately prior to Commencement in Workforce Australia Services. This does not need to be pay slips, a statement from the Participant or Employer are also acceptable.

Note: Employment that starts while a Participant is in Broome Employment Services is not considered Pre-existing Employment if the Participant transfers to Workforce Australia Services.

Employment Outcomes for Participation in Self-Employment Assistance

For Participants undertaking Self-Employment Assistance Small Business Coaching, the Department's IT Systems will capture the commencement of the Self-Employment Assistance Small Business Coaching Agreement and will use this information to calculate whether the requirements for 4, 12 and 26 Week Partial Outcomes have been met. Where the requirements have been met, the Department's IT Systems will present the Outcome claim for lodgement by the Provider. The Participant must remain in Small Business Coaching for the duration of the outcome period.

Recurring Employment

Recurring Employment occurs where Employment or Unsubsidised Self-Employment results in more than one Employment Outcome for a Participant with the same Employer during the same Period of Unemployment, even where the Participant is working in a different position.

Recurring Employment only applies to Employment Outcomes achieved under Workforce Australia Services. It does not apply to Employment Outcomes achieved in other employment services, or Employment or Unsubsidised Self-Employment that occurred prior to the Participant's Commencement in Workforce Australia Services (refer to [Outcomes for Pre-Existing Employment](#)).

4 Week Employment Outcomes

Recurring Employment rules are applied slightly differently to 4 Week Outcomes compared to 12 and 26 Week Outcomes. Providers may claim a maximum of four 4 Week Employment Outcome Payments for a Participant over any one 12 month period, regardless of whether that Employment is Recurring or not.

Allowing Providers to claim four 4 Week Outcome Payments recognises:

- short-term jobs with a duration of 4 weeks or more equip Participants with work experience and work habits that enable them to move into sustained Employment in the future, and
- Participants who have had 4 or more job placements have a higher chance of staying long term in a job.

12 Week and 26 Week Employment Outcomes

Providers are not entitled to claim 12 and 26 Week Employment Outcomes for Recurring Employment.

This means that if a Provider has claimed a 12 or 26 Week Employment Outcome for a Participant with an Employer, they cannot claim another 12 or 26 Week Employment Outcome for the Participant with that same Employer in the same Period of Unemployment, unless a [Significant Increase in Income](#) has occurred.

Change of Circumstance during the Outcome Period

Where a Participant moves off an Income Support Payment for Employment-related reasons, the Department's IT Systems will treat this as a 100 per cent rate reduction or achievement of sufficient hours to trigger a Full Outcome. This is usually where a Participant has declared sufficient income to reduce their Income Support Payment to \$0 over repeated fortnights, or by stopping their declarations to Services Australia because they are working and no longer need support. These fortnights will be displayed as System Derived on the Outcome tracker.

Where a Participant moves off Income Support Payment for non-Employment-related reasons, the Outcome should stop tracking and will be made non-payable in the Department's IT Systems. An example of this is the Participant moving to an allowance that is ineligible for Workforce Australia Services, such as Austudy or the Age Pension.

Where a Participant appears to stop receiving Income Support Payments due to an Employment reason but the Provider is aware the Participant is not actually working, such as being overseas or in prison, the Outcome may be considered non-payable and the Provider should not claim. If Providers are unsure whether to claim an Outcome they should seek advice from the Department through Question Manager. Providers may also submit a Manual Claim for a downgrade if they hold the necessary Documentary Evidence for a Partial Outcome for the period the Participant was actually working.

If a Participant transfers to another Provider, or another service such as Workforce Australia Online, Inclusive Employment Australia or the Remote Australia Employment Service, the Outcome will remain payable to the Provider who the Participant was Commenced with on the Job Placement Start Date (provided all other requirements are met).

Variability in Earnings

Participants beginning or returning to work may have reduced earnings due to irregular working hours early in their Employment. The Workforce Australia Services payment structure recognises this and provides flexibility for variability in earnings to achieve an Outcome.

Participants tracking towards a Full Outcome may have up to 2 fortnights of reduced earnings during each of the 12 Week and the 26 Week Periods and still achieve a Full Outcome. A minimum of 85 per cent income support reduction will be allowed for those 2 fortnights. For example, if a Participant achieved a 100 per cent income support reduction for the first 4 fortnights, and a reduction of 85 to 99 per cent in the fifth and sixth fortnights, a Full 12 Week Outcome can be claimed (provided all other requirements are met).

Reduced earnings are not permitted as part of the 4 Week Outcome period, but calculations for the 12 Week Outcome Period will consider any reduced earnings that occurred in the initial 4 Week Outcome Period. For example, if the Participant has a rate reduction of 85 per cent during their second fortnight, the Provider may only claim a Partial 4 Week Outcome, but this will be considered as a Variability in Earnings fortnight when calculating the 12 Week Outcome.

Note: where the Provider has entered a [Permissible Break](#), the Department's IT Systems will not apply variability in earnings for the same Outcome Period.

Permissible Breaks

Where a Participant is tracking towards a Partial or Full Outcome, there may be events or circumstances that interfere with their Employment that are beyond the Participant's or the Provider's control, that prevent an Outcome being achieved (that would otherwise have been available). In these circumstances, a Permissible Break fortnight can be entered in the Outcome Period.

There can only be a maximum of 2 Permissible Breaks lodged across the combined 4, 12 and 26 Week Outcome Period. Therefore, if both Permissible Breaks are used in the 12 Week Period, there are no more Permissible Breaks available for the 26 Week Period, unless the Participant is a Principal Carer (see below).

When a Permissible Break has been entered, the Employment Outcome Period will be extended to exclude the Permissible Break period. For example, a 12 Week Outcome including one Permissible Break fortnight will last for 14 weeks. While using the maximum 2 Permissible Breaks, the 12 Week Outcome will last for 16 weeks.

Permissible Breaks will be Services Australia fortnights for a Participant on income support, or calendar fortnights for a Participant not on income support.

A Permissible Break is available where:

- the break in the Participant's continuous attendance in Employment would result in them not meeting the ordinary requirements of a 4, 12 or 26 Week Partial or Full Outcome, and
- the break is outside the control of the Provider or the Participant, and
- the Participant returns to the same Employment position with the same Employer after the break.

Permissible Breaks are only available for:

- Employer initiated shutdowns, including over the Christmas period,
- breaks due to the Participant's illness or a major personal crisis,
- carer emergencies,
- temporary lack of access to child care (for example, lack of care during school holidays, or a school or child care centre closing unexpectedly),
- declared natural disasters, for example a state of emergency due to natural disaster or a major disaster (as declared by the Australian Government), or
- culturally significant events only for Aboriginal and Torres Strait Islander persons.

If a Participant leaves a job inappropriately or takes unapproved leave, these instances are not considered as Permissible Breaks.

Where a Participant takes approved, paid leave, a Permissible Break is not required as the earnings and hours can continue to be counted towards an Outcome.

Permissible Breaks for Principal Carer Parents

Providers are able to enter 4 additional Permissible Break fortnights for Principal Carer Parents over the long school holiday Christmas/New Year period (provided one of the reasons listed above applies). As with all Permissible Breaks, the Participant must return to the same Employment position with the same Employer following the break. Principal Carer Parents may therefore have a total of 6 Permissible Breaks overall if the Outcome Period includes the long school holiday Christmas/New Year period.

Permissible Breaks in extenuating circumstances

The Department may allow additional Permissible Breaks in response to extenuating circumstances such as natural disasters or health emergencies. The Department will advise the number of additional breaks permitted and timeframes for which they will apply.

Adding a Permissible Break

When entering a Permissible Break, the Provider should be aware that:

- if a Participant was only on a break for 2 days, the Permissible Break will be lodged for the full 2 week period, that is, a full Services Australia fortnight or a full calendar fortnight,
- there can only be a maximum of 2 Permissible Breaks lodged across the combined 4, 12 and 26 Week Outcome Period, and
- for earnings-based Outcomes, Permissible Breaks should be attributed to the Services Australia fortnight where the Participant's pay was impacted by the break, not the fortnight in which the Participant worked less hours/did not work.
- For example, if the Employer shuts down over the Christmas period (from December 25 – January 1) and this impacts the Participant's wages on 8 January, the Permissible Break should be applied to the fortnight that 8 January falls in.
- For hours-based Outcomes, Permissible Breaks should be attributed to the Services Australia fortnight where the Participant worked less hours/did not work.
- For example, if the Participant is sick and cannot work between 7 October and 14 October, the Permissible Break should be applied to the fortnight most aligned with that time period. If the period 7 to 14 October falls evenly across fortnights, the Provider has the option to use 2 Permissible Breaks, noting that no further breaks will be available after that point.

 The Provider must upload Documentary Evidence of the Permissible Break at the time of submitting the claim. Documentary Evidence must contain information provided by the Participant or Employer which confirms:

- the Permissible Break in Employment, including the reason for the Permissible Break,
- the duration of the Permissible Break, including the start and end dates, and
- the Participant is employed in the same position following the Permissible Break.

 All of the above Documentary Evidence must be contained in a signed and dated written statement or in an email from the Employer or Participant.

 The Provider must record the fortnight/s to be covered by the Permissible Break in the Department's IT Systems prior to claiming the relevant Employment Outcome.

(Deed Reference(s): Annexure B2 – Outcomes, Definitions)

Lodging an Employment Outcome

Verification of Outcomes

Once a Participant achieves the requirements for a 4, 12 or 26 Week Outcome, the Department's IT Systems will make it available to claim.

There are 3 ways that Outcomes can be verified – by information from Services Australia, Documentary Evidence (Pay Slip Verified Outcome Payment), or information from the Department's IT Systems in the case of Self-Employment Assistance Participants.

Outcomes verified by Services Australia data

For Participants receiving Income Support, Outcomes are based on the earnings or hours declared to Services Australia by the Participant each fortnight. This information is used by the Department's IT Systems to automatically calculate whether an Outcome is achieved.

The Department's IT Systems will automatically communicate with Services Australia's IT systems to obtain earnings/hours relating to the Participant's Employment and add this to the Outcome tracker. Where earnings or hours are sufficient to pay a Partial or a Full Outcome, the Department's IT Systems will make the Outcome available for the Provider to claim.

 If the Outcome requirements have been met, the Department's IT Systems will present the Employment Outcome as available to be claimed by the Provider.

 Providers do not need to hold Documentary Evidence for Employment Outcomes where the Department's IT Systems are able to use Services Australia data to verify that an Employment Outcome is payable.

 Note: The only exceptions are [Outcomes for Pre-existing Employment](#) and [Outcomes for a Significant Increase in Income](#). In these instances, Documentary Evidence for the 4 week period prior to the increase in Employment earnings/hours must be obtained and uploaded into the Department's IT Systems.

Pay Slip Verified Outcomes

The Provider may submit a claim for an Outcome as a Pay Slip Verified Outcome Payment if the requirements of an Employment Outcome have been met and either the Participant is not on an Income Support Payment, or the Provider considers the data provided by Services Australia does not correctly reflect the number of hours worked or income received by the Participant.

One of the reasons Services Australia data may not correctly reflect the earning or hours worked is if the Participant is not accurately declaring to Services Australia. If this appears to be the case the Provider should ensure the Participant is aware of the importance of declaring correct earnings and hours to Services Australia. Accurate declarations help to ensure the Participant receives the correct amount of Income Support Payments and avoids payment delays, debts or penalties being incurred.

Providers are encouraged to wait 4 weeks after the Outcome Period to claim a Pay Slip Verified Outcome Payment for a 4 Week Outcome Period for Participants on Income Support. This gives the Participant the opportunity to declare their Employment earnings/hours to Services Australia which may enable an Employment Outcome to be calculated automatically by the Department's IT Systems.

Providers may ask Participants for pay slips for the purposes of verifying Employment Outcomes; however, Participants are under no obligation to provide this information. If a Participant does not want to supply pay slips, Providers must not attempt to coerce or pressure the Participant. Providers must not threaten to or apply payment suspensions or demerits under the Targeted Compliance Framework in order to compel Participants to supply pay slips or other evidence of Employment. Additionally, Providers must not contact an Employer directly to ask for evidence without the Participant's permission or consent. The Department will thoroughly investigate any claims of this nature and pursue action under the Breach Management Framework as appropriate.

Lodging a Pay Slip Verified Outcome

Providers need to enter the relevant earnings/hours into the applicable fortnight in the Outcome tracker. This is done by ticking the relevant fortnight and clicking on the 'Add/Edit Variation' button in the Outcome period details section of the screen. The Provider then enters the earnings/hours and clicks on Submit. The Outcome tracker will then display a result taking into account this information.



For earnings-based Outcomes, Participants are required to report their income to Services Australia in the fortnight when they receive it, rather than when it was earned. Providers should enter the Participant's earnings against the relevant Services Australia fortnight in which the pay date falls. For example, a Participant earned \$1,100 over the period 27 November to 10 December and was paid on 12 December. The relevant Services Australia fortnights were:

- 27 November - 10 December
- 11 December - 24 December

The income of \$1,100 should be entered against the Services Australia fortnight of 11 December - 24 December, reflecting when the Participant received the income.



For hours-based Outcomes, Providers should enter the Participant's hours to align with the Services Australia Fortnight in which the Participant worked, not when they received their earnings. Providers must apportion the Participant's hours worked against the Services Australia

fortnights they correspond to, using the information in the Participant's pay slips/payroll summaries.

Providers should first check the number of days in the pay period and work out a daily rate of hours worked. For example, where a Participant has worked 42 hours in a 14 day pay period, this would calculate to a 3-hour daily rate. The Provider should then enter the daily rate to account for each day in the relevant Services Australia fortnight. For example, if 7 days of the pay period fall within the Services Australia fortnight, the Provider would enter 21 hours (7 days x 3-hour daily rate).

Pay Slip Verified Outcomes Documentary Evidence Requirements

Documentary Evidence for Pay Slip Verified Outcomes must be in the form of a pay slip or Employer payroll summary, and must be uploaded into the Department's IT Systems at the time of the claim.

The following information should be included in the pay slip or Employer payroll summary:

- Employer's and Participant's name
- Employer's ABN (if applicable)
- Payment period
- date of payment
- gross and net pay
- if the Participant is paid an hourly rate
- the ordinary hourly rate
- the number of hours worked at that rate
- the total dollar amount of pay at that rate.

Documentary Evidence to verify the Employment Outcome is only required for the fortnight/s in the Outcome Period that cannot be verified by Services Australia data. No Documentary Evidence is required for fortnights where the Provider relies on Services Australia data to verify the Outcome.

A pay slip is a record, generated by an Employer, which satisfies the requirements of the Fair Work Act 2009 and Fair Work Regulations 2009, of the Employer's payment to a Participant in relation to the performance of work.

As per Chapter 3.6.2. of the Workforce Australia - Part A: Universal Guidelines, Tax File Numbers must be redacted from pay slips prior to being uploaded into the Department's IT Systems as Documentary Evidence to support Pay Slip Verified Outcomes.

The Employer payroll summary report must be a printout of the Participant's official payment history, generated by the Participant's Employer, not a spreadsheet/tracking tool implemented or prepared by the Provider.

Deriving information from pay slips

Providers can derive the following information from available pay slips or payroll summaries without being required to seek supplementary information from the Employer:

- hourly rate - where the pay slip or payroll summary shows the number of hours worked and wages earned for that period;
- gross amount - where the pay slip or payroll summary shows the hourly rate and the number of hours worked for that period;

- net amount - where the pay slip or payroll summary shows the gross amount, tax payable and other deductions for that period;
- payment period - where the pay slip or payroll summary shows the payment date and frequency of payment (i.e. fortnightly, weekly etc); and
- date of payment - where the pay slip or payroll summary shows the payment period and the frequency of the payment (i.e. fortnightly, weekly, etc).

Where Providers have derived information from pay slips or payroll summaries, they must be able to demonstrate to the Department how this information was derived on request.



If required, Providers are permitted to derive earnings or hours for a missing pay slip using Year to Date earnings, as long as the relevant information is clearly identifiable from pay slips directly before and after the missing period. For earnings-based outcomes, earnings derived should be attributed based on the Participant's usual pay date, as identified from adjacent pay slips. For hours-based Outcomes, hours associated with a missing pay slip can only be derived where a single hourly rate of pay is reflected in adjacent pay slips. In situations where there is more than one rate of pay (or allowances to consider), hours cannot be derived.

Where the Employer name or ABN pay slip details do not match the information in the Department's IT Systems Vacancy screen, Providers have the option to use an ABN look up function to confirm the Participant's Employer is the same legal entity without confirmation from the Employer. Where this tool has been used, Providers must upload evidence of this when they make a claim.

If any of the above pieces of information are not able to be provided by the Employer on the pay slip/Employer payroll summary, and the information cannot be derived by the Provider, the Provider must provide additional information in the form of an email from the Employer (which can be scanned and uploaded as a PDF). Additional information must be uploaded into the Department's IT Systems at the time of the claim.

Documentary Evidence Requirements – Unsubsidised Self-Employment

For Participants undertaking Unsubsidised Self-Employment, different Documentary Evidence requirements apply for Pay Slip Verified Outcomes. Documentary Evidence must be in the form of:

- sales records, contracts with clients or contracts of employment and a statement from a Certified Practising Accountant or Certified Accountant (for example a Profit and Loss Statement) relating to the Participant's business for the 4, 12 or 26 Week Period,
- signed and dated statement of earnings from an accountant and/or registered bookkeeper for the 4, 12 or 26 Week Period, or
- copy of records from the Australian Taxation Office (ATO) for the 4, 12 or 26 Week Period verifying that the Participant has an income as self-employed.

The records or statements provided must show that the Participant's business has generated sufficient personal income (net of business expenses but include tax) to confirm the National Minimum Wage rate has been achieved, as well as meet Outcome requirements, i.e. the Participant has either:

- worked the required hours each week/fortnight to achieve sufficient hours (such as a record of the Participant's appointments or diary entries) for hours-based Outcomes, or
- earned sufficient income to achieve the necessary rate reduction for earnings-based Outcomes

More than one form of written evidence may be used provided that, collectively, the written evidence contains all of the above information.

Proof of business establishment alone is not sufficient evidence to support an Outcome Payment.

Documentary Evidence requirements for Post-placement Support

Where a Participant is progressing towards an Employment Outcome, Providers are expected to provide Post-placement Support to the Participant, regardless of whether the Participant has been Exited. Post-placement Support should be provided until the Participant has satisfied a 26 Week Employment Outcome or is deemed by the Provider as being unlikely to achieve the relevant Outcome.

Where a Participant declines Post-placement Support, Providers must retain a record of that decision. Acceptable Documentary Evidence could include:

- written correspondence from the Participant (email or letter),
- a file note of a conversation with the Participant, or
- a file note documenting unsuccessful attempts to contact the Participant.

(Deed Reference(s): Clause 119.1)

Manual Claims

The Department's IT Systems include functionality to enable Providers to manually request payment where they are unable to process the claim using standard functionality, but they consider an Outcome may be payable.

For information on how to request a manual claim, the circumstances where it is appropriate and what evidence is required, please refer to the [Manual Claim Provider Advice](#).

Chapter 5A. WorkFoundations

5A.1. Chapter Overview

WorkFoundations is a two-year grant initiative that funds social enterprises and businesses to offer tailored, paid employment placements for Participants facing complex barriers to employment. These Placements include integrated wrap-around services to support Participants in entering or re-entering the workforce.

The program targets individuals who are not yet competitive in the open labour market and require additional support to become job-ready. All WorkFoundations Placements are real jobs, paid at the relevant award or enterprise agreement rate, with legal entitlements including superannuation and leave.

Unlike employment Activities, WorkFoundations Placements are job vacancies, with durations ranging between two weeks (14 days) and up to, but not exceeding, six months (181 days). Participation is voluntary for eligible Participants.

Placements may span across financial years or be completed within a single financial year.

5A.2. Objectives of WorkFoundations

The objectives of WorkFoundations Placements are to fund paid employment vacancies that:

- Support Participants with complex barriers by addressing challenges such as long-term unemployment and limited work experience by helping individuals build work readiness.
- Provide tailored, paid employment placements by offering real-world work experience through paid roles, enabling Participants to develop practical skills and demonstrate their potential to employers.
- Deliver integrated wrap-around services by offering coordinated support, including vocational and non-vocational training, allied health services, and personal development programs, to address individual barriers to employment.
- Foster inclusive employment pathways by partnering with businesses committed to inclusive recruitment and retention practices to create sustainable employment opportunities.

5A.3. Outcomes of WorkFoundations

WorkFoundations is designed to deliver meaningful and measurable outcomes for Participants, WorkFoundations employers, and the broader community. These outcomes reflect the program's commitment to inclusive, supportive, and sustainable paid employment pathways.

WorkFoundations Placements are expected to provide Participants with a range of personal and professional experiences, including:

- Development of foundational employability skills: WorkFoundations Participants will build essential workplace competencies such as communication, time management, teamwork, problem-solving, and adaptability.
- Increased confidence, self-agency, and motivation: Through structured support and real work experience, Participants will gain a stronger sense of self-worth, independence, and belief in their ability to succeed in the workforce.

- Improved understanding of workplace culture and expectations: WorkFoundations Participants will learn about employer expectations, workplace norms, and professional conduct, as well as their rights and responsibilities.
- Clarification of career goals and pathways: Exposure to different roles and industries will help WorkFoundations Participants identify their interests, strengths, and long-term career aspirations, enabling more informed decisions about future employment or training.
- Pathways to sustainable outcomes: Upon completing a WorkFoundations Placement, individuals can transition into ongoing employment, pursue further education or training, or continue receiving tailored support from their Provider to overcome barriers and pursue their employment goals.

5A.4. Program Duration and Structure

WorkFoundations Placements are voluntary, paid employment opportunities of up to six months in duration.

The Department will negotiate with WorkFoundations Employers and approve an Activity Work Plan at the beginning of an agreement or reporting period. The Activity Work Plan details how WorkFoundations Employers will deliver services to Participants and Providers under WorkFoundations Placements.

The four stages of WorkFoundations Placements

WorkFoundations follows a structured four-stage journey to ensure a consistent and supportive experience for each Participant:

Referral: Eligible Participants who are commenced in Transition to Work, Parent Pathways, or Workforce Australia Services can request to be referred into a WorkFoundations Placement vacancy by their Provider.

Placement: Once a Participant agrees to undertake a Placement, they receive a WorkFoundations Participant Handbook outlining:

- placement role and location
- key contacts and support personnel
- details of wrap-around services to be provided
- information on workplace rights and responsibilities
- income declaration and Mutual Obligation Requirements (where applicable)

Commencement: The Participant enters into a formal Employment Agreement with the WorkFoundations Employer and begins their WorkFoundations Placement. Paid work and wrap-around services commence simultaneously. For the duration of the WorkFoundations Placement, the Provider will ensure the Participant's Mutual Obligation Requirements are manually adjusted to zero (where relevant), ensuring full focus on the Placement experience.

Completion and Transition: Approximately two to four weeks before the Placement ends, the WorkFoundations Employer and Participant meet to discuss future pathways. Providers and WorkFoundations Employers should work together to ensure a warm handover during the transition stage to ensure continuity of service. Upon Placement completion, Participants may:

- transition into ongoing employment with the WorkFoundations Employer

- be supported into employment with another organisation, or
- resume engagement with their Provider for further support, training, or job search assistance, or until ongoing employment with the WorkFoundations Employer is arranged.

5A.5. Employer Responsibilities for Ongoing Employment

The responsibility for supporting ongoing employment will differ based on the specific type of WorkFoundations Employer providing the Placement. The Department will conduct regular reviews of employment outcomes to maintain accountability and drive continuous improvement of the program.

The responsibilities for supporting ongoing employment vary depending on the type of organisation delivering the Placement. The two distinct WorkFoundations Employer organisation types are:

5A.5.1. Business Stream

WorkFoundations Employers in the Business Stream must show how completing a Placement leads to an offer of ongoing, sustainable employment within their organisation.

5A.5.2. Social Enterprise Stream

Social enterprises provide Placements and connect with local employers. If they cannot offer ongoing employment directly, they must demonstrate strong links with local employers who can.

5A.6. Role of Workforce Australia Services Providers

Providers play an important role in the Placement process, especially at commencement and completion. At the beginning, they work with WorkFoundations Employers to understand the vacancy, check who is eligible, and explain what support is available. Providers will look at their Caseload, identify suitable WorkFoundations vacancies, manage referrals and help prepare and approve the Participant Handbook. During the Placement, Providers will remain available to help both Participants and WorkFoundations Employers when needed. After the Placement, Providers will support Participants as they resume engagement with servicing or move into an ongoing job.

5A.6.1. Provider Workflow for WorkFoundations Placements

Engaging with WorkFoundations Employers and identifying Participants

WorkFoundations Employers will maintain regular communication with Providers to help them stay informed about the WorkFoundations Program. This ongoing engagement helps Providers monitor their Caseloads and identify Participants who may be eligible and interested in the program.

Introducing the program and arranging interviews

Once a Participant is introduced to the WorkFoundations opportunity and agrees to proceed, Providers must arrange an interview with the WorkFoundations Employer at a mutually convenient time.

Post-Interview decisions and feedback

Following the interview, the Provider and WorkFoundations Employer discuss whether to offer a WorkFoundations Placement. If the Participant is not selected, the Provider must collect feedback to refine future support strategies. If the Placement is confirmed, the Provider must work closely with both the WorkFoundations Employer and the Participant to move forward.

Creating and referring to a Placement vacancy

If the Placement is confirmed and a WorkFoundations Placement vacancy has not yet been created, the Provider will need to initiate one in the Department's IT Systems and refer the Participant to it. The Department's IT Systems will then prompt the creation of the WorkFoundations Participant Handbook.

See the [WorkFoundations Supporting Documents](#) for more information.

Completing the WorkFoundations Participant Handbook

Providers must complete the WorkFoundations Participant Handbook in collaboration with the WorkFoundations Employer. This document includes key details such as Placement information, contact details for the WorkFoundations Employer and Provider, wrap-around services, and any relevant notes.

After both parties approve the Handbook, Providers must update the Participant's status in the Department's IT Systems. At this stage, Providers' active involvement pauses unless additional support is requested during the Placement.

See the [WorkFoundations Supporting Documents](#) for more information.

Concluding the Placement and re-engaging the Participant

At the end of the Placement, including if it concludes earlier than expected, Providers must follow up with the WorkFoundations Employer to gather feedback on the Participant's experience and, if necessary, understand the reasons for early termination. Providers must then update the Participant Handbook and close the Vacancy in the Department's IT Systems.

To complete the process, Providers must schedule a follow-up appointment with the Participant to resume servicing.

5A.6.2. Notifications and tasks

Throughout the duration of a WorkFoundations Placement, WorkFoundations Employers, Providers, and Participants will receive notifications and tasks through Workforce Australia Online. These notifications and tasks are designed to support the review and completion of key actions required for the Placement to begin, progress, and conclude successfully.

See the [WorkFoundations Supporting Documents](#) for more information.

5A.6.3. Participant Engagement

Participation in WorkFoundations is voluntary. When engaging with Participants who may be interested in participating in WorkFoundations, Providers must explain the benefits of the service, including the paid work experience, wrap-around support services and Mutual Obligations Requirements (where applicable) to encourage participation. However, Providers must accept the Participant's decision if they do not wish to participate in a WorkFoundations Placement.

5A.6.4. Wrap-around Support Services

When promoting WorkFoundations Placements, WorkFoundations Employers will inform Providers about the wrap-around supports they offer and may adjust these based on future Participants' needs. Providers must use this information to match suitable Participants from their Caseload.

Acknowledging that each Participant may require targeted services dependent on their personal situation and circumstances, the range of wrap-around services could include:

- developing the Participant's capability to engage in employment through:
 - assistance to access suitable housing and transport and meet food and clothing needs
 - addressing substance misuse or addiction issues
 - developing knowledge around health (including mental health), fitness and hygiene
 - growing their social and psychological wellbeing
 - guiding the development of goals and aspirations
 - building core skills such as language, literacy and numeracy
- assisting the Participant to understand employment-related matters, including:
 - wages, onboarding, workplace rights (educating to understand employer and employee rights), obligations and entitlements including pay conditions and superannuation
 - the reporting requirements of receiving income support whilst being in paid employment
- improving their financial literacy and ability to manage money
- engaging with the Participant during the WorkFoundations Placement through regular check-in and feedback mechanisms (e.g. to identify and facilitate additional development needs)
- collaborating with the Participant to increase their hours of employment and scope of responsibility as they gradually grow capability and capacity for work.

When the wrap-around services that will be offered are agreed to, the Provider will record them in the WorkFoundations Participant Handbook. Once the WorkFoundations Participant Handbook has been approved it is then up to the WorkFoundations Employer to implement the delivery of these wrap-around services to assist the Participant to resolve their barriers to employment and work towards improving their employability.

5A.6.5. Referrals and Eligibility Requirements

During the referral process, Providers will engage with potential Participants to determine eligibility, suitability and commitment to see the WorkFoundations Placement through to completion and towards ongoing employment. Once the eligibility criteria have been determined, Providers must

meet with the Participant to explain the WorkFoundations Placement, including Mutual Obligations Requirements (where applicable), income reporting to Services Australia, and the expectations of the WorkFoundations Placement.

The Participant will then meet with the WorkFoundations Employer to complete an interview to determine suitability. The WorkFoundations Employer will then inform the Participant and Provider of the outcome. If the Participant was successful, the Provider must create the Vacancy in the Department's IT Systems and refer the Participant.

Once referred to the vacancy, the Provider will be able to create the WorkFoundations Participant Handbook in the Department's IT Systems. The Provider must populate the Participant Handbook with the required information and send it to the WorkFoundations Employer to review and approve in the Department's IT Systems.

Once approved by the WorkFoundations Employer, the Participant receives a notification through the Department's IT Systems that a copy of the WorkFoundations Participant Handbook is available.

Eligibility Requirements

All WorkFoundations Participants must meet the below eligibility criteria and be Commenced with a relevant Workforce Australia Services, Transition to Work or Parent Pathways Provider.

Before referring a Participant to a WorkFoundations Placement Vacancy, the Provider must be satisfied that the Participant is eligible by checking the specific requirements outlined below.

Eligible Participants

To be eligible to participate in WorkFoundations, Participants must meet the following minimum eligibility criteria:

- must be Commenced with a Workforce Australia Services, Transition to Work, or Parent Pathways Provider,
- have a minimum of one barrier to employment which they are open to addressing through support,
- have a positive attitude towards understanding their skills, abilities and aptitude for work, as well as undergo employment related testing if required,
- be able to accept an ongoing paid employment opportunity if offered.

For Participants who are Commenced in Workforce Australia Services, there is an additional eligibility requirement of being long-term unemployed. For a WorkFoundations Placement, this is defined as being registered for more than 52 weeks and have 12 months or more of being unemployed and/or no recent work experience.

Eligibility for WorkFoundations may expand to other Participants over time. The department may, under extenuating circumstances, consider approving participation for Participants who do not meet all eligibility requirements. Providers may contact the Department to request approving participation for Participants who do not meet all eligibility requirements. The Department will make a decision based on the information provided by the Provider. Any decision will be final, and no dispute process will be made available.

See the [WorkFoundations Supporting Documents](#) for more information.

Ineligible Participants

Participants who are ineligible to participate in WorkFoundations Placements include those who are registered with:

- Inclusive Employment Australia (delivered by the Department of Social Services),
- Workforce Australia Online Base Services
- Remote Australia Employment Service (delivered by the National Indigenous Australians Agency)
- In addition, people registered with Yarrabah Employment Services, Broome Employment Services or Norfolk Island Employment Support Program are not eligible to participate in WorkFoundations.

See the [WorkFoundations Supporting Documents](#) for more information.

5A.6.6. Participant Referrals to a WorkFoundations Placement Vacancy

Providers must refer eligible Participants to a WorkFoundations Placement flagged Vacancy in the Department's IT Systems. WorkFoundations Employers are responsible for promoting their Placements directly to local Providers. Providers will then review their Caseload to identify suitable Participants and discuss the opportunity during scheduled appointments. Alternatively, if a Participant learns about WorkFoundations independently, they may contact their Provider to assess their eligibility.

Before referring a Participant to a WorkFoundations Placement vacancy, the Provider must ensure the opportunity is appropriate, and likely to support the Participant's progress toward employment. The Provider must confirm that the Participant meets the general eligibility criteria, as well as any specific requirements for the Placement.

In assessing suitability, the Provider must consider the Participant's education, experience, skills, and capacity to undertake the Placement. They must also consider the Participant's strengths, any barriers to participation, and how those barriers may impact their ability to engage. Where possible, the Participant's preferences and employment goals should also be considered, along with any other relevant personal circumstances.

Once a suitable WorkFoundations Placement is identified, the Provider must clearly explain the details to the Participant. This includes the expected start date and the consequences of not commencing on time, the wrap-around services that will be provided and their frequency, and how the Participant will meet their Mutual Obligations during the Placement (where applicable). The Provider must also outline the required frequency of contact, the importance of reporting income to Services Australia, and the available complaints processes.

See the [WorkFoundations Supporting Documents](#) for more information.

5A.6.7. Creating a WorkFoundations Placement Vacancy

Providers are responsible for creating a WorkFoundations-flagged Vacancy in the Department's IT Systems. They must work closely with WorkFoundations Employers to ensure all vacancy details – such as the WorkFoundations Employer name, job description, position attributes, and key contact information – are accurately recorded.

Providers should note, that when WorkFoundations Vacancy flag is selected in the Department's IT Systems, the Outcome will not be tracked using the same features as a standard employment position.

See the [Provider Payments and Vacancies Chapter](#) and [WorkFoundations Supporting Document](#) for more information.

5A.7. WorkFoundations Participant Handbook

The purpose of the WorkFoundations Participant Handbook is to provide eligible Participants with information about their WorkFoundations Placement and Employer. It helps Participants understand what to expect, their rights and responsibilities, and where to find further support.

The WorkFoundations Participant Handbook is the foundation of the WorkFoundations Placement.

The WorkFoundations Participant Handbook is not a legal document and does not replace:

- the Job Plan the Participant has with their Provider
- the Employment Agreement the Participant has with the WorkFoundations Employer.

The WorkFoundations Participant Handbook is developed in consultation with the WorkFoundations Employer and the Participant. It contains key information such as:

- **Placement Overview:** Details about the practical skills and experience the Participant will gain during the Placement.
- **Award wage and entitlements:** Information on payment at award or enterprise agreement rates, including legal entitlements such as superannuation and leave.
- **Tailored Placement:** how the Placement is adapted to suit the Participant's personal circumstances. This includes negotiating work type, schedule, and duration and providing personalised support and wrap-around services to support ongoing employment.
- **Mutual Obligation Requirements:** (where applicable): confirms Participant can meet Mutual Obligation Requirements through participation in a WorkFoundations Placement. This means Participants won't:
 - need to earn points towards Points Based Activation System (PBAS) target
 - be able to bank any points
 - need to meet any Job Search Requirement
 - need to attend compulsory appointments.

If a Provider requests that a Participant complete any of the above obligations, the Participant or WorkFoundations Employer may remind them of the WorkFoundations Placement requirements.

Once all required information has been gathered, the Provider will finalise the WorkFoundations Participant Handbook in the Department's IT Systems. The completed Handbook is then submitted to the WorkFoundations Employer for review. If any revisions are needed, the WorkFoundations Employer will request changes from the Provider, who will update and resubmit the document in the Department's IT Systems.

After the WorkFoundations Employer approves the WorkFoundations Participant Handbook, the Provider is notified. A final version is then shared with the Participant through the Department's IT Systems, along with a notification that it is available in their personal account.

See the [WorkFoundations Supporting Documents](#) and [Job Plan and Mutual Obligation Requirements Chapter](#) for more information.

5A.8. Employment Agreement

Before a Participant begins their WorkFoundations Placement, the Employer ensures they complete all necessary employment documentation. This includes, at a minimum:

- an Employment Agreement outlining the terms and conditions
- superannuation nomination forms
- a Tax File Number Declaration

5A.9. Mutual Obligation Requirements

All Participants who commence a WorkFoundations Placement will meet their Mutual Obligation Requirements (where applicable), including both their Points Target and Job Search Requirement for the duration of the WorkFoundations Placement. This allows Participants to focus fully on the sustainability of their Placement without the need to undertake additional activities, apply for other jobs, or attend Provider appointments.

To support this, Providers must, for the duration of the WorkFoundations Placement:

- set the Participant's PBAS requirements to zero for the length of the Placement (noting that reinstatement can only occur at the end of a reporting period).
- set the Participant's Job Search Requirement to zero for the length of the Placement (noting that reinstatement can only occur at the end of a reporting period).
- not schedule any Appointments with the Participant for the length of the Placement (unless specifically requested by the Participant)

Before making a referral, Providers must discuss the opportunity with the Participant and obtain their agreement. Participation in a WorkFoundations Placement is voluntary and must align with the Participant's work capacity, goals, aspirations, and skills.

At the conclusion of the WorkFoundations Placement – or if it ends early – the Participant is no longer considered to be meeting their Mutual Obligation Requirements. If the WorkFoundations Placement ends early:

- The Provider must update the Department's IT Systems to reflect the end of the WorkFoundations Placement.
- Reductions to requirements must be removed for future reporting periods (they cannot be removed mid-period).
- Mutual Obligations will apply at the Participant's next Points Reporting Period.
- Providers must schedule an Appointment with the Participant to review their circumstances and ensure their Points Target and Job Search Requirements are appropriate and tailored.

See the [WorkFoundations Supporting Documents](#) and the [Targeted Compliance Framework and Mutual Obligation Failures Chapter](#) for more information.

5A.10. Compulsory Appointments

Providers must not schedule compulsory Provider Appointments in the Participant's Electronic Calendar during the WorkFoundations Placement. Participants can attend Provider Appointments on a voluntary basis if they choose.

If a Provider Appointment is inadvertently booked and compliance is raised, Providers must remove any non-compliance events.

See the [Targeted Compliance Framework and Mutual Obligation Failures Chapter](#) and [WorkFoundations Supporting Documents](#) for more information.

5A.11. Targeted Compliance Framework

The Targeted Compliance Framework does not apply to Participants in a WorkFoundations Placement as participation in the Placement will meet Mutual Obligation Requirements for the duration of the Placement. If a Demerit is inappropriately applied for a Participant in a WorkFoundations Placement, Providers should manually remove the Demerit.

For more information, please refer to the [WorkFoundations Supporting Documents](#) and [Targeted Compliance Framework and Mutual Obligation Failures Chapter](#).

5A.12. Funded assistance during WorkFoundations Placement

All costs associated with the WorkFoundations Placement will be covered by the WorkFoundations Employer. This includes funding all items listed within the wrap-around support services section of the WorkFoundations Participant Handbook, which could include clothing (uniforms), travel costs or allied health services, as examples. If there was an agreement for support in place prior to commencement in the WorkFoundations Placement, then this agreement should continue through to completion.

If a Participant requests additional assistance from a Provider during the WorkFoundations Placement, the Provider must review the WorkFoundations Participant Handbook to verify if the support is already funded. If not, the Provider should consult with the WorkFoundations Employer to confirm whether the cost is already being covered. Only after these steps should a decision be made to approve or deny the request in accordance with the relevant Employment Fund criteria and Department processes.

See the [WorkFoundations Supporting Documents](#) for more information.

5A.13. Supporting Participants with Income Reporting

Participants will earn income during their WorkFoundations Placement, which may impact payments from Services Australia. Providers are responsible for supporting Participants in understanding and managing this process.

5A.14. Providing support to a Participant in a WorkFoundations Placement

Once the Participant commences their WorkFoundations Placement, the responsibility for the Participant transitions to the WorkFoundations Employer. The WorkFoundations Employer must support each Participant to fully engage in the Placement.

While the Participant is undertaking a WorkFoundations Placement, Providers must:

- ensure all Mutual Obligation Requirements (where applicable) are removed during the WorkFoundations Placement period
- not schedule Compulsory Appointments and Job Referral tasks (where applicable) during the WorkFoundations Placement period
- receive feedback from the WorkFoundations Employer and Participant on progress and be available to support Participants if they reach out
- contact the Participant to return the Participant to servicing on completion of the WorkFoundations Placement if an on-going employment opportunity is not offered.

5A.15. Monitoring Participant participation

The WorkFoundations Employer is responsible for actively monitoring each Participant's attendance and engagement throughout the Placement. If a Participant fails to attend as outlined in the WorkFoundations Participant Handbook and cannot be contacted, the WorkFoundations Employer must notify the Participant's Provider promptly.

Providers are responsible for taking appropriate action when notified of a Participant's non-attendance or disengagement. If necessary, the WorkFoundations Employer must contact the Provider to request that the WorkFoundations Placement be ended in the Department's IT Systems. The Provider can action this by updating the end date in the WorkFoundations Participant Handbook, which will automatically trigger a notification to both the WorkFoundations Employer and the Participant.



The Provider is required to update the Department's IT Systems when a Participant withdraws from or completes a WorkFoundations Placement. This includes the date the Participant ended the Placement and the Exit reason.

See the [WorkFoundations Supporting Documents](#) for more information

5A.16. Challenging Behaviours

WorkFoundations Employers must promptly notify the Participant's Provider in writing (e.g., via email) of any incidents where a Participant displays challenging behaviour, in accordance with established processes.

Providers must then complete an Incident Report for each such incident, following the appropriate reporting procedures.

See the Servicing Participants with Challenging Behaviours Chapter in the [Part A: Universal Guidelines](#) for more information.

5A.17. Ending the WorkFoundations Placement prior to Completion Date

If a Participant is no longer participating in a WorkFoundations Placement, the WorkFoundations Employer must:

- contact the Provider to request that the WorkFoundations Placement be ended in the Department's IT Systems
- provide this notification in writing (e.g. email) on the same Business Day they are informed
- include any reasons given by the Participant or the reason the WorkFoundations Employer ended the Referral

The Provider is responsible for taking appropriate action when notified of a Participant's withdrawal, non-attendance or disengagement. The Provider can end the WorkFoundations Placement prior to the completion date by updating the end date in the WorkFoundations Participant Handbook, which will automatically trigger a notification to both the Provider and the Participant. The Provider must contact the Participant to schedule a time to discuss the WorkFoundations Placement, outline the reengagement process, and confirm Mutual Obligation Requirements (where applicable).



Where a Participant is no longer participating in the WorkFoundations Placement, the Provider must end the Participant's Placement in the Department's IT Systems by updating the Vacancy and WorkFoundations Participant Handbook and recording an end reason against the WorkFoundations Placement record.

See the [WorkFoundations Supporting Documents](#) for more information.

5A.18. Preparing for Placement Completion and Transition

A key objective of WorkFoundations is to transition Participants into sustainable, ongoing employment following the completion of their WorkFoundations Placement.

Approximately two to four weeks prior to the end of a WorkFoundations Placement, the WorkFoundations Employer and Participant must meet to:

- Review progress and readiness for ongoing employment.
- Discuss potential employment opportunities within the host organisation or externally.
- Review the WorkFoundations Participant Handbook and Employment Agreement if transitioning to a new role.
- Notify the Provider of the outcome and next steps.

If ongoing employment is not secured:

- The Provider must contact the Participant to resume servicing.

Seven days prior to the scheduled WorkFoundations Placement completion date, the Provider and WorkFoundations Employer will both receive a notification confirming the Placement will conclude.



When a WorkFoundations Placement ends, the Provider or Employer must end the Placement in the Department's IT Systems and provide an Exit reason.

See the [WorkFoundations Supporting Documents](#) for more information

5A.19. Provider Progress Payments during the WorkFoundations Placement

Providers may be eligible to receive Progress Payments during a WorkFoundations Placement, provided they meet the requirements outlined in the [Provider Payments and Vacancies Chapter](#).

When using the WorkFoundations flag to create a Vacancy, please note that Outcomes will not be tracked, and the vacancy will not be eligible for Outcome payments. However, Providers can track Outcomes for subsequent vacancies created outside of the WorkFoundations flag, provided they meet the eligibility criteria.

5A.20. Transitioning from Placement completion to ongoing employment

After a Participant successfully completes a WorkFoundations Placement and is offered ongoing employment, the Provider must support their transition by creating a new vacancy in the Department's IT Systems that reflects the ongoing role.

Once the vacancy is created, the Provider must refer the Participant to it and facilitate their continued employment pathway.

See the [WorkFoundations Supporting Documents](#) for more information.

5A.21. Post-Placement Support

Providers must deliver tailored post-Placement support after a Participant completes a WorkFoundations Placement and enters ongoing employment.

5A.22. Provider Payments for subsequent vacancies

Following the successful completion of a WorkFoundations Placement, Providers may be eligible to claim Outcome Payments for subsequent vacancies that are created without the use of the WorkFoundations flag. Eligibility for these payments is contingent upon meeting all relevant criteria as outlined in the [Provider Payments and Vacancies Chapter](#). These subsequent vacancies must represent genuine ongoing employment opportunities and comply with all applicable program requirements to qualify for Outcome Payments.

5A.23. Aggregator Models

For situation where the Employer is using an Aggregator Model to deliver WorkFoundations Placements, there will be a number of additional steps that the Provider will need to include in the vacancy and the Participant Handbook to ensure all involved parties are included in the Placement.

5A.23.1. Creating the Vacancy

Providers will need to create a WorkFoundations flagged Vacancy by entering key details such as the employer, job description, position attributes, and contact information. For an Aggregator Model vacancy, the Provider will need to create the vacancy with the WorkFoundations Employer

(Placement) and add the WorkFoundations Employer (Aggregator) to the additional employer section of the vacancy.

When using the WorkFoundations flag to create a Vacancy, please note that Outcomes will not be tracked, and the vacancy will not be eligible for Outcome payments. However, Providers can track Outcomes for subsequent vacancies created outside of the WorkFoundations flag, provided they meet the eligibility criteria.

See the [WorkFoundations Supporting Documents](#) for more information.

5A.23.2. WorkFoundations Participant Handbook

The Provider must liaise with the WorkFoundations Employer (Aggregator) to create and populate the WorkFoundations Participant Handbook. The WorkFoundations Employer (Aggregator) will need to have spoken to the WorkFoundations Employer (Placement) to ensure they have all the required information.

It will be at the discretion for the WorkFoundations Employer (Aggregator) if they would like the Provider to liaise with the WorkFoundations Employer (Placement) to populate the WorkFoundations Participant Handbook. This will need to be negotiated prior to creating the WorkFoundations Participant Handbook, noting that the Participant Handbook will be sent to the WorkFoundations Employer (Aggregator) as listed as the Employer in the Participant Handbook.

During the creation of the WorkFoundations Participant Handbook, the Provider will need to enter the following for the WorkFoundations Employer (Aggregator) and the WorkFoundations Employer (Placement):

- **Placement details section:** Employer and Address will be the WorkFoundations Employer (Placement)
- **Supervisor details section:** Name, Phone and Email will be the WorkFoundations Employer (Placement)
- **Employer contact details section:** Name, phone and email will be the WorkFoundations Employer (Aggregator)

Once the WorkFoundations Participant Handbook has been created, it will be sent to the WorkFoundations Employer (Aggregator) to review and approve as they hold the responsibility for the grant. It will then be the WorkFoundations Employer (Aggregator) to liaise with the WorkFoundations Employer (Placement) to ensure the information in the WorkFoundations Participant Handbook is correct before approving.

Once the WorkFoundations Participant Handbook has been approved by the WorkFoundations Employer (Aggregator), the WorkFoundations Employer (Aggregator) will need to send a copy of the Participant Handbook to the WorkFoundations Employer (Placement) so they have a copy and can provide a copy to the Participant on commencement of the WorkFoundations Placement.

See the [WorkFoundations Supporting Documents](#) for more information.

5A.24. WorkFoundations performance

The Department will monitor and evaluate the WorkFoundations Employers' delivery of WorkFoundations Placements, focusing on milestones and Key Performance Indicators (KPIs) as

outlined in the Grant Agreement and Activity Work Plan.

Performance monitoring will support continuous improvement through structured feedback and evaluation processes.

Providers' engagement in the WorkFoundations Program may also contribute to overall performance outcomes within the relevant Performance Framework.

Please see the [Provider Performance Framework Chapter](#) for more information.

5A.25. Assurance activities, feedback and evaluations

The WorkFoundations Program maintains quality and integrity through regular assurance activities, including compliance checks and quality reviews.

Providers are encouraged to document success stories, share examples of good practice, and use case studies to support enhanced service delivery. Feedback is collected regularly from Participants, Providers, and WorkFoundations Employers through surveys and stakeholder consultations, helping to ensure the program remains effective and responsive to the needs of those involved.

Regular program evaluations are also conducted to assess impact, identify areas for improvement, and guide future planning.

5A.26. Managing Work Health and Safety

WorkFoundations Employers are responsible for ensuring a safe working environment for all WorkFoundations Participants by complying with all applicable WHS laws, including conducting relevant risk assessments.

If the Provider is notified by the WorkFoundations Employer, or otherwise becomes aware, of any incident involving a WorkFoundations Placement, including:

- (a) any accident, injury or death occurring during, or as a result of, the WorkFoundations Placement, including in relation to a WorkFoundations Participant or a member of the public;
- (b) any incident which relates to a work, health and safety issue; and
- (c) any incident that may negatively impact upon the Department or bring the Provider, the Services or the WorkFoundations program into disrepute,

the Provider must Notify the Department as soon as possible, and on the same day, of becoming aware of the incident.

Chapter 6. Employment Fund

Supporting Documents for this Chapter:

- [Employment Fund Supporting Document](#)
- [Provider Indigenous Mentoring Capability Proposal template](#)
- [WHS Incidents and Insurance Readers Guide](#)

6.1. Chapter Overview

The Employment Fund is a flexible pool of funds available to the Provider to offer support tailored to the needs of Participants, employers, and the local labour market. Each Provider receives credits they can use and then claim Reimbursement for the purchase of goods and services that genuinely support and assist Participants to gain the tools and build the skills and experience they need to get and keep a job.

(Deed Reference(s): Clause 150.1)

6.2. Crediting the Employment Fund

The Provider receives general credits into their Employment Fund notional bank balance at the Site level when a Participant Commences as a new or Transitioned Participant, or when a Participant is transferred to the Provider in accordance with clause 150.4 of the Deed. The amount will be credited once on commencement in Workforce Australia Services. Credit amounts are in line with Annexure B1 – Payments and Employment Fund Credits of the Deed. The Employment Fund notional bank balance will reduce each time the Provider makes a commitment in the Department's IT Systems to purchase goods or services. The Provider must not make commitments in anticipation of future credits.

Where Participants are eligible for support under a Structural Adjustment Program (SAP), the Provider may receive a SAP credit into the Employment Fund notional bank in addition to the general credit (refer to [Structural Adjustments](#) for further information). The Provider can only use SAP credits for Participants assisted through a SAP. When a Provider creates a commitment for these Participants, the Department's IT Systems automatically uses SAP credits first, where available, before using general credits. The Department's IT Systems display the SAP credit balance separately to the general credit balance.

(Deed Reference(s): Clauses 150.2, 150.4, 150.5, 150.7; Annexure B1)

6.2.1. Transferring Credits

The Provider can transfer Employment Fund credits between its individual Sites within and between Employment Regions, and when a Participant transfers to another Workforce Australia Employment Services Provider unless the Department has placed limits on or restricted the Provider's ability to transfer credits.

When a Participant transfers to another Workforce Australia Employment Services Provider, the current and gaining Providers may negotiate and agree to the transfer of any credits.

(Deed Reference(s): Clauses 103.5, 150.6, 150.8)

6.2.2. Credits due to Reduction in Business Share

The Department may restrict the Provider from transferring credits when the Provider's Business Share is being reduced and Participants are being transferred to another Workforce Australia Employment Services Provider.

Where the Provider's Licence ends or is not extended, remaining credits at the relevant Sites will no longer be available.

Where the Provider's Business Share is reduced and only a proportion of Participants are transferred to another Workforce Australia Employment Services Provider, the Provider will retain a proportion of credits at the relevant Sites, as determined by the Department.

A credit in accordance with Annexure B1 – Payments and Employment Fund Credits of the Deed will be allocated to the gaining Provider's Employment Fund notional bank balance for each Participant who transfers and Commences.

For other bulk transfers of Participants, the Department will determine the total amount of credits to be transferred from the reduced or closed Site to the gaining Provider's Site.

(Deed Reference(s): Clause 150.4; Annexure B1)

6.3. Determining who is eligible

All Participants are eligible for assistance. The Provider may claim Reimbursement if the Participant received the goods or services when they were:

- Commenced with the Provider
- Suspended after Commencement with the Provider
- pending after previous Commencement with the Provider
- pending with the Provider and require Certified Interpreter services
- within 183 calendar days after being Exited from the Provider, or
- within 183 calendar days after being transferred from the Provider to another Provider.



The Provider can claim Reimbursement at the Site level for any of their Participants, regardless of the Participant's Site. This includes attributing Participants to an advanced purchase. Refer to [Purchasing Goods or Services in advance](#) for more information on advanced purchases.

Participants concurrently serviced by other programs are also eligible for assistance, as well as Participants that have commenced Small Business Coaching in Self-Employment Assistance. The [Determining what is a Prohibited Purchase](#) section lists the exceptions.

(Deed Reference(s): Clause 150.7)

6.4. Making eligible Purchases

The Provider must first pay for eligible purchases and then claim Reimbursement through the Employment Fund.

An eligible purchase is any purchase that:

- meets the Employment Fund Principles (as set out in the [Employment Fund Principles](#) section)

- is not prohibited (as set out in the [Determining what is a Prohibited Purchase section](#)) and
- satisfies any specific Employment Fund category requirements (as set out in Table 6-B).

There are specific Employment Fund category requirements that apply for certain Employment Fund purchases by the Provider's Own Organisation or Related Entity. These specific requirements are set out in Table 6-B.



The Provider must commit each eligible purchase in the Department's IT Systems and record against the relevant category as listed in Table 6-B..

(Deed Reference(s): Clause 150.7)

6.4.1. The Employment Fund Principles

The Provider must ensure the purchase meets the following Employment Fund Principles before claiming reimbursement for the goods and/or services:

- provides eligible Participants with the work-related tools, skills and experience that correspond with their difficulties in finding and keeping a job in the relevant labour market
- provides value for money
- complies with any and all laws that may apply
- withstands public scrutiny, and
- will not bring the Services, the Provider or the Department into disrepute.

The Provider must also ensure that any purchase of goods and/or services for which the Provider intends on claiming a reimbursement from the Employment Fund is tailored to the individual needs of Participants in order to genuinely assist them to build the experience and skills to get and keep a job.

The Employment Fund is not intended to be used for regular and ongoing costs and the Provider should seek to address, in a sustainable way, any underlying challenges as part of their servicing.

The Provider must not request, require, direct, coerce or pressure Participants to purchase goods and/or services themselves for later reimbursement by the Provider, as this may create additional challenges or unnecessary financial hardship for the Participant.

Consistent with the Workforce Australia Services Service Guarantee, the Provider must make each Participant aware of the supports available through the Employment Fund and consider every request for support by Participants.

Value for Money

Value for Money, in the context of purchasing a good or service to be reimbursed through the Employment Fund, means that the costs of the good or service is reasonable, relative to both the benefits achieved and the cost of alternative supports. This assessment should reflect the proper use of taxpayer funding and align with the Employment Fund principles.

Where there are comparable goods or services of the same kind available in the area in which the relevant Participant resides, and a more expensive good or service is chosen, the Provider must be able to demonstrate prior to claiming reimbursement:

- Comparison was made - the Provider assessed other available alternative goods or services (including those available through other government funding) and determined whether they would achieve the same or better outcome at a lower cost for the Participant
- The purchase was effective - the relevant purchase substantially assisted the Participant to gain the tools and build the skills and experience they need to get and keep a job, and
- The price was fair - the cost charged for the goods or services was commensurate with the market cost of delivering the goods or services in the area in which the Participant resides.

All components of an offering including any service or administrative fees, refund policies or flexible payment schedules and the Participant's servicing needs and servicing history, must contribute to an overall determination of Value for Money. This applies whether the item is claimed on its own or alongside complimentary services. If complimentary services include prohibited items, the main purchase must still meet Value for Money requirements independently.

Value for Money doesn't necessarily mean choosing to fund the cheapest option, nor does it mean choosing the most expensive option if it will not meet the needs of the Participant when taking their specific circumstances into consideration. However, if the Provider selects a more expensive option, the Provider must demonstrate why doing so achieves Value for Money in aspects other than price – for example on the basis of quality, experience or risk.

6.4.2. Determining what is a Prohibited Purchase

The Provider must not claim, and the Department will not pay, a Reimbursement from the Employment Fund in relation to a prohibited purchase.

Where Documentary Evidence for the purchase of goods and/or services includes both a prohibited purchase and an eligible purchase, the Provider may only seek a Reimbursement from the Employment Fund in relation to the eligible purchase.

The goods and/or services listed as prohibited in Table 6-A are excluded from the Employment Fund on the basis that the items:

- do not primarily benefit the Participant
- duplicate services the Provider is already expected to deliver to Participants
- do not meet public expectations around the use of Commonwealth funding and/or
- are available to Participants through alternative means.

Table 6-A: Prohibited Purchases

Topic	Prohibited Purchase
Eligibility	Any goods and/or service purchased prior to the Deed Commencement Date.
	Any goods and/or services incurred before the relevant Participant was participating in Workforce Australia Services.
Core Services	Any services that involve: • identifying a Participant’s servicing needs • finding and connecting a Participant with work placements and employment • contacts with Participants • verification of an Employment Outcome claim • marketing Participants to Employers (also known as reverse marketing) • providing job search assistance to Participants • providing career advice to Participants • identifying a Participant’s Vocational and Non-Vocational barriers, including through the use of assessments • providing mentoring and other similar interventions to Participants, including as part of Post-Placement Support • **non-accredited foundation skills training (i.e. training related to language, literacy and numeracy skills, including listening, speaking, reading, writing, financial literacy, digital literacy and use of mathematical ideas) and/or • **non-accredited employability skills training, (i.e. training related to non-technical, generic skills needed for participating in the workplace, including teamwork, communication, problem solving, decision making, planning and organising, self-management and resilience), other than employability training that is embedded in a broader industry-relevant accredited training course. ** These offerings are available through other funded sources such as Skills for Education and Employment and Employability Skills Training.
Generic Services	Any services that involve:

	• motivational workshops/group sessions, including those delivered by athletes • art therapy programs and/or • holistic or other alternative therapies and interventions.
Provider Costs	Any costs and overheads incurred by the Provider, including travel time, travel costs and administration or processing costs, associated with: • the provision of employment services, which the Provider is required to provide to Participants under the Deed • service delivery to Participants on an outreach basis and/or • the administration of the Employment Fund.
	Any legal fees, disbursements and/or security costs incurred by the Provider.
	Any interest or fees incurred by the Provider in relation to its credit cards, loans and/or bank accounts.
Gift Cards, Vouchers and Incentives	Any gifts, cash and/or incentives provided to Participants or Employers, including payout of loans, credit cards or ‘buy now pay later’ facilities (including interest and fees charged on credit cards and/or loans).
	Any gift cards and/or vouchers provided to Participants for the purchase of goods and services, except for: • phone credit or internet data cards/vouchers under the ‘Communication and Technology’ Employment Fund category (see Table 6-B for further detail) • food vouchers under the ‘Non-Vocational Support’ Employment Fund category (see Table 6-B for further detail) • travel related vouchers under the ‘Relocation Assistance’ Employment Fund category (see Table 6-B for further detail) and/or • petrol vouchers or public transport cards under the ‘Transport’ Employment Fund category (see Table 6-B for further detail).
	The purchase of any goods and/or services for which the Provider and/or its Personnel receives or attracts an incentive.
Assets	The purchase of any asset which will be owned by the Provider and/or its Personnel (including, but not limited to, any IT equipment) and all costs associated with those assets (e.g. accumulation and servicing of assets).
	The purchase of any asset which will be owned by a Participant or Employer that is not used primarily to assist the Participant in accordance with the Employment Fund Principles.

	Any costs associated with hiring, purchasing, running and/or maintaining vehicles owned by the Provider's Own Organisation to transport Participants to a training activity or Employment location.
Activities and Training	The purchase of goods and/or services for which the Provider is entitled to payment from, or has otherwise been funded by, the Commonwealth of Australia (including the Department and other Australian Government agencies), State and Territory Governments and/or local government bodies, including but not limited to: • any costs associated with Work for the Dole or funded through a Work for the Dole activity, other than police checks and transport for Participants undertaking Work for the Dole Placements and non-accredited pre-placement training to Indigenous Participants and Host Organisations with Indigenous Participants undertaking Work for the Dole activities • EST Block 1 fee-for-service payments • any costs covered through the Local Jobs Program, Workforce Specialist Projects, Launch into Work or other government programs • subsidised training amounts, such as through Fee-Free TAFE • any costs paid by a Self-Employment Assistance Provider and • any costs that are directly funded through the Indigenous Skills and Employment Program.
	Non-accredited training, unless specified in Table 6-B.
	Any costs associated with a Non-Government Program delivered by the Provider's Own Organisation or a Related Entity or where the Non-Government Program has not been approved by the Department.
	Any costs associated with job placements, paid work trials, hiring, induction or onboarding costs included as part of a service, project, program or Activity.
Insurance	Any payments, costs or premiums relating to the insurance policies of the Provider, Host Organisations and/or any Employer's worker's compensation or insurance policy payments.
	Any costs that can be claimed or are subject to a claim under the Department's personal accident insurance and combined public and/or product liability insurance policies for Participants undertaking Activities, or under the Provider's insurance policies.

Penalties, Fees, Bonds	Any penalty, fine and/or court fee (e.g. costs associated with participation in any Alcohol Interlock Program or Traffic Offender Intervention Program).
	Charges relating to damage caused by Participants to third party property, including accommodation.
	Rental Bonds.
	Union membership fees.
Assessment Tools	Any vocational assessment tool costs used to identify a Participant's capacity, employment experiences and vocational goals with a view to identifying suitable employment, other than tools used for skills recognition assessments carried out as part of validating overseas qualifications for the Australian context or for the purposes of recognition of prior learning.
	Any non-vocational assessment tool costs which are not prescribed by a doctor and specifically related to identifying a Participant's barriers to employment, or which duplicate the Employment Services Assessment (ESAt).
Ongoing Costs	Ongoing business costs for self-employed Participants, including those who have participated in Self-Employment Assistance.
	Regular or ongoing supports for non-vocational supports, cost of living or housing when they do not also address the underlying barriers.
Relocation Costs	Any relocation assistance provided and/or purchased to assist a Participant: • to relocate overseas • to relocate within Australia where the reason for the relocation is not to take up a job • to relocate to take up a job in another location if the Participant has accepted a job less than 90 minutes away from their current residence • to purchase assets (e.g. whitegoods) • with rental bonds • with ongoing costs (e.g. utilities and school fees) and/or • where the Participant is a member of a couple as defined in 1.1.M.120 of the Guide to Social Security Law, and the other member of the couple has already received relocation assistance themselves for the same relocation.

(Deed Reference(s): Clause 150.7)

6.5. Claiming Reimbursement

The Provider must claim Reimbursement for eligible purchases within **56 calendar days** from the date that the Provider paid the supplier.



The date of service/purchase is also required against each Participant attributed to the Reimbursement. The date will be:

- the date the goods and/or services were given to the Participant,
- the date the Participant attended an appointment, or
- the date the Participant started in the Activity.



The Provider must hold and retain all Documentary Evidence required at the time of claiming Reimbursement. For more information, refer to the [Summary of required Documentary Evidence](#) section.



The Provider must enter the date the supplier was paid for each Reimbursement in the Department's IT Systems (Employment Fund hub>Create commitment).

If the Provider has received a Reimbursement from the Employment Fund in relation to goods and/or services that are subsequently refunded by the supplier for any reason, including where goods and/or services are defective or deficient or have not been delivered, that amount will be an overpayment for the purposes of the Deed. The Provider must Notify the Department immediately and agrees to repay the amount as a debt owing to the Department by requesting a voluntary recovery, including a partial recovery (if applicable).

(Deed Reference(s): Clause 150.10)

6.5.1. Determining the correct GST Treatment

The Department considers that all Reimbursements from the Employment Fund constitute 'consideration for a taxable supply made by a Provider to the Department' in line with the Australian Taxation Office (ATO) Private Ruling 1011478547799.

The relevant taxable supply is the supply of contracted services to Participants as described under the Deed. This means the Provider will need to remit 1/11th of all Reimbursements from the Employment Fund as GST to the ATO.

The explanations below are provided as examples only and do not constitute tax advice. The Provider must obtain its own independent tax advice relevant to its situation.

Reimbursing Goods or Services purchased from a third party supplier

If a Reimbursement is sought from the Employment Fund for a purchase on behalf of a Participant and the purchase includes GST, then the Provider can usually claim an input tax credit for the GST component of the cost of the purchase.

The Department will reimburse the Provider the amount paid, less the input tax credit amount. However, the Department will add GST as the Reimbursement is 'consideration for a taxable supply

made by the Provider to the Department' and therefore the Provider has to remit GST to the ATO in respect to the Reimbursement. This means the GST is taken off (the input tax credit), but then the GST is added on (the GST on the service supplied to the Department). The final Reimbursement is equal to the Provider's original cost for the item.

If the Employment Fund is used to pay for a purchase on behalf of a Participant and the item purchased is GST free, then the Provider cannot claim an input tax credit, as there is no GST component of the purchase.

The Department will reimburse the Provider the amount paid but will add GST as the Reimbursement is a separate taxable supply and the Provider has to remit GST to the ATO in respect to the Reimbursement. This means that nothing is taken off but 10 per cent GST is added. The final Reimbursement is equal to the Provider's original cost plus 10 per cent.

Reimbursing Goods or Services purchased by a Participant

If a Reimbursement is sought from the Employment Fund to pay for goods or services paid for directly by a Participant and the Provider has reimbursed the Participant, then the Provider cannot claim an input tax credit because there has been no purchase.

The Department will reimburse the Provider the amount paid but will add GST as the Reimbursement is a separate taxable supply and the Provider has to remit GST to the ATO in respect to the Reimbursement. This means that nothing is taken off but 10 per cent GST is added. The final Reimbursement is equal to the Provider's original cost plus 10 per cent.

6.6. Purchasing Goods or Services in advance

The Provider can choose to purchase eligible goods or services in advance for items under the Transport category. These purchases are known as advanced purchases. Advanced purchases are used when eligible goods or services are purchased but the Provider is yet to determine which Participant the good or service will assist.



The Provider must enter the quantity of items purchased into the Department's IT Systems.

If the Provider has the required Documentary Evidence as outlined in the [Summary of Required Documentary Evidence](#) section, it can immediately claim Reimbursement for eligible advanced purchases prior to attributing to individual Participants.

The Provider must claim Reimbursement for eligible advanced purchases within 56 calendar days from the date that the Provider paid the supplier.

The Provider must fully attribute advanced purchases within 183 calendar days from the date of Reimbursement.

Where the Provider Site has not fully attributed an advanced purchase, it must not make another advanced purchase for the same assistance type. This does not preclude the Provider from making an advanced purchase for another assistance type (for example the Provider can still make an advanced purchase for bus tickets, under the Assistance Type - Other Transport Costs, even though an advanced purchase for petrol may not have been fully attributed).

6.7. Summary of required Documentary Evidence

The Provider must meet all applicable Documentary Evidence requirements set out in this Chapter, including any requirements applying to certain Employment Fund categories, for the purchase of goods and/or services at the time of claiming Reimbursement. For Documentary Evidence requirements for Wage Subsidies, the Provider must refer to the [Wage Subsidies Chapter](#).



The Provider must hold and retain sufficient items of Documentary Evidence that in combination clearly identifies:

- the details of the supplier (including ABN) (note: if the generic ABN is used, then the ABN is not required),
- the details of the items purchased and/or details of the service delivered, and
- whether the purchase was GST inclusive or GST free.

In addition to the above, if the Provider has paid an external supplier, it must hold and retain sufficient items of Documentary Evidence which show:

- prior payment from the Provider to the supplier which reflects payment in full or a zero -outstanding balance, and
- the date that the supplier was paid.

Suitable items of Documentary Evidence include a remittance advice, record of transaction or a Tax Invoice, receipt, layby docket, internal billing documentation or purchase order. One or more pieces of evidence may be required to demonstrate the Documentary Evidence requirements listed above.

- Where a supplier uses another organisation to collect payments on their behalf (e.g. Australia Post) and the Tax Invoice does not clearly identify the supplier or detail the items to be reimbursed, the Provider must also retain Documentary Evidence which includes this information.
- Where a supplier charges a layby fee or credit card surcharge for the purchase, and the fee or surcharge does not appear on the Tax Invoice, the Provider must also retain Documentary Evidence which includes these additional costs.

The Provider should refer to the [ATO website](#) to determine what is considered a valid Tax Invoice. A Recipient Created Tax Invoice (RCTI) will be considered valid if it contains all the information required of a Tax Invoice (except for ABN if the recipient is not registered for GST). A written agreement between the Supplier and the Recipient does not need to be supplied to the Department.



The Provider must retain additional Documentary Evidence for some categories. These additional requirements are listed in Table 6-B.



The Provider must record the following information in the Department's IT Systems prior to claiming Reimbursement:

- the supplier name and ABN or, if applicable, whether the payment was made to the Provider's Own Organisation or a Related Entity
- whether the purchase was an advanced purchase, and if it is, the number of purchased items
- the total invoice amount and the GST status
- the date the supplier was paid
- the job seeker identification number (JSID) except for advanced purchases that do not require attribution to the individual Participant, and
- the date the goods or service was provided to the Participant.



The Provider must record additional information in the Department's IT Systems for some categories. These additional requirements are listed in Table 6-B.

(Deed Reference(s): Clauses 28.1, 28.2, 28.3)

Attachment 6A. Category Details – System and Documentary Evidence Requirements

Table 6-B: Category Details – System and Documentary Evidence Requirements sets out:

- The Employment Fund categories
- Assistance Types within an Employment Fund category (if applicable)
- Specific requirements in relation to claims for reimbursement for Goods and/or services in each Employment Fund category
- Requirements in relation to the Department's IT Systems, and
- Documentary Evidence requirements

Table 6-B: Category Details - System and Documentary Evidence Requirements

Category	Category details	System and Documentary Evidence requirements
Accredited Training	The Provider may use this category for nationally recognised vocational training if the Accredited Training is: • Delivered by a Registered Training Organisation (RTO) or through an RTO under an auspice relationship, and • on the RTO's Vocational Education and Training (VET) scope of registration as listed on training.gov.au, the national register for training in Australia. Training funded under this category should provide Participants with the work-related skills and experience to overcome difficulties in finding or keeping a job. Vocational training is job-focused and should be appropriate to a specific occupation or industry and reflect the needs of the local labour market. The Provider may also use this category for secondary and tertiary education, although the training organisation and/or course may not be listed on training.gov.au.	In addition to the Documentary Evidence requirements for all purchases detailed in the Summary of required Documentary Evidence section, the Provider must comply with the following additional requirements before a claim for reimbursement is submitted: • Refer the Participant to an Activity in the Department's IT Systems in accordance with the Activity Management Chapter. • Enter the name of the RTO and the relevant course code or unit code as identified on training.gov.au (or the course name if secondary or tertiary education and not listed on training.gov.au) in the Activity details. • Enter the associated Activity into the commitment in the Department's IT Systems. • Hold and retain sufficient items of Documentary Evidence that in combination identify the RTO

	The Determining what is a Prohibited Purchase section lists the exceptions to the use of this category.	and the course code or unit code as listed on training.gov.au (or the course name if secondary or tertiary education and not listed on training.gov.au). • Hold and retain additional Documentary Evidence that demonstrates the auspice relationship between a training organisation which is operating through an RTO, to substantiate the training is nationally recognised. This evidence must align with the requirements of the Australia Skills Quality Authority (ASQA).
Activity Costs	The Provider may use this category for Activity costs including but not limited to: • Risk Assessments • any additional insurance costs (i.e. where the combined insurance coverage of the Department and a Host Organisation is insufficient to cover Participants undertaking an Activity) • costs to enable Participants to participate in an Activity that cannot be recorded against another category • supervision costs when the Supervisor is undertaking the literal supervision of Participants on that Activity and not undertaking other tasks considered under the Deed • eligible costs related to a Non-Government Program, and • Employability Skills Training Block 2 course fee. Any costs related to a Non-Government Program that may be claimed by the Provider must be claimed under the 'Activity Costs' category rather than any other category that may otherwise be applicable.	In addition to the Documentary Evidence requirements for all purchases detailed in the Summary of required Documentary Evidence section, the Provider must comply with the following additional requirements before a claim for reimbursement is submitted: • For Activities, refer the Participant to an Activity in the Department's IT Systems in accordance with the Activity Management Chapter. • Enter the associated Activity or Vacancy into the commitment in the Department's IT Systems. • For supervision costs, hold and retain dated and signed timesheets or other written evidence (e.g. an email) showing the hours completed by the Supervisor in their role as the Supervisor for the Activity. • For a Non-Government Program, hold and retain Documentary Evidence demonstrating the individual program cost per Participant as supplied by the organisation delivering the

	The Determining what is a Prohibited Purchase section lists the exceptions to the use of this category.	program.
Certified Interpreters	The Provider may use this category for certified interpreter services for Participants, including for pending Participants. The Provider can claim the cost of the certified interpreter when an interpreter is arranged and paid for, but the Participant does not attend the scheduled appointment. The Provider can also use this category for the cost of translating important documents such as qualifications, training certificates and transcripts.	Refer to the Summary of required Documentary Evidence section for the Documentary Evidence requirements. There are no additional Documentary Evidence requirements for this category.
Cohort Specific Training (Assistance Types: • Indigenous training • Refugee training)	The Provider may use this category for training for Aboriginal and Torres Strait Islander and Refugee Participants that cannot be claimed under another training category. The training must be: • Culturally appropriate non-accredited pre-placement training for Aboriginal and Torres Strait Islander Participants and/or their Employers or Host Organisations (including Work for the Dole Hosts). For example, foundation or life skills (e.g., time management, how to use public transport, budgeting); vocational pre-employment training to help Indigenous Participants prepare for engagement in the workforce or cultural competency training. ○ When claiming Reimbursement for training delivered by the Provider's Own Organisation or a Related Entity, assistance is limited to a cap of \$1,650 (GST inclusive) per Participant, per financial year. • Post-placement non-accredited Workplace English language training for Refugee Participants, such as English Language and Literacy Training.	In addition to the Documentary Evidence requirements for all purchases detailed in the Summary of required Documentary Evidence section, the Provider must comply with the following additional requirements before a claim for reimbursement is submitted: • Record the assistance type in the commitment to outline the type of purchase.

Communication and Technology (Assistance Types: • Hardware and software packages • Mobile phones • Phone credit and internet data)	The Providers may use this category for costs associated with Communication and Technology, including the purchase of: • phone credit • internet data cards or vouchers • mobile phones, and/or • hardware and software packages (including laptops), The Provider must demonstrate that the good and/or service is required by the Participant to find and keep a job or to participate in training, activities, or other programs. Whilst all requests for assistance should be considered, support through this category is not intended to be regular and ongoing.	In addition to the Documentary Evidence requirements for all purchases detailed in the Summary of required Documentary Evidence section, the Provider must comply with the following additional requirements before a claim for reimbursement is submitted: • Record the assistance type in the commitment to outline the type of purchase. • For vouchers, hold and retain Documentary Evidence demonstrating the Participant received the item.
Non-Vocational Support	The Provider may use this category for costs associated with Non-Vocational Support, including: • Out-of-pocket medical and health related expenses if health issues are inhibiting a Participant’s capacity to find and keep a job. This includes medical consultations, tests prescribed by a medical professional and medicines or aids as directed by a medical professional. • Gap fees for medical costs can only be claimed if not covered by Medicare, private health insurance or other subsidies or programs. • Rent and crisis accommodation when the Provider and Participant can demonstrate they have exhausted all other avenues of assistance. • Food vouchers and the reimbursement of food purchases where a Participant requires additional support. • Other types of costs for support to assist in overcoming barriers that are inhibiting a Participant’s capacity to be	In addition to the Documentary Evidence requirements for all purchases detailed in the Summary of required Documentary Evidence section, the Provider must comply with the following additional requirements before a claim for reimbursement is submitted: • Record the assistance type in the commitment to outline the type of purchase. • For food vouchers, hold and retain Documentary Evidence demonstrating the Participant received the item.

	engaged to find and keep a job, such as utility costs and legal expenses, that cannot be recorded against another category. If a Participant has lodged a claim through the Department's Personal Accident Insurance policy, the Provider must meet additional requirements for claiming Reimbursement for medical and out-of-pocket expenses. Refer to the WHS Incidents and Insurance Readers Guide on the Provider Portal. The Determining what is a Prohibited Purchase section lists the exceptions to the use of this category. Whilst all requests for assistance should be considered, support through this category is not intended to be regular and ongoing.	
Professional Services	The Provider may use this category for costs associated with Professional Services, including: • Prevention, detection and management of mental and substance abuse disorders. • Drug and alcohol counselling and rehabilitation. • Mental health and family counselling. • Anger management. • Personal development for addressing self-esteem and confidence issues. • Vocational rehabilitation for Participants to re-enter Employment after injury or illness. All professional services must be delivered by either a: • Qualified psychologist who is currently registered as a psychologist with the Australian Health Practitioner Regulation Agency (AHPRA).	In addition to the Documentary Evidence requirements for all purchases detailed in the Summary of required Documentary Evidence section, the Provider must comply with the following additional requirements before a claim for reimbursement is submitted: • Enter the following into the commitment in the Department's IT Systems: ○ the specialist type (psychologist or other allied health professional) ○ the session type (individual, group or report preparation) ○ the duration of the session (in minutes) ○ confirmation of whether the Participant attended the appointment. • Create and maintain in the Department's IT Systems a list of the staff members in the Provider's Own Organisation or a Related Entity

	• Qualified allied health professional^[1] who has a degree or graduate diploma relevant to the services they are delivering in either: ○ allied health services or behavioural sciences ○ social work ○ rehabilitation counselling ○ other allied health qualifications. Where the allied health qualification relates to a field that requires professional registration to practise, the allied health professional must be currently registered with the relevant authority. Any services not recognised by Allied Health Professionals Australia, such as Life Coaching or Life Skills Coaching, are not allowable under this category. All professional services can be delivered either in-person, or via video or teleconference. All claims for Reimbursement must only be for either: • the delivery of the actual appointment, or • the preparation of a psychological report (as defined by the Australian Psychological Society^[2]). The Provider must not claim any administrative costs including time taken writing appointment case notes, letters, follow-up, or appointment-related phone calls. In addition, the Provider must not claim any costs associated with the setup and ongoing cost of using video or teleconferencing for the delivery of professional services. The Provider may claim missed appointments but are limited to 3 instances per Participant, per Provider, per financial year.	who will deliver professional services (either psychologists or other allied health professionals). • Hold and retain sufficient items of Documentary Evidence that in combination includes the following for externally delivered professional services: ○ a description of the service delivered, and ○ specify whether the Participant attended the appointment. • Hold and retain sufficient items of Documentary Evidence that in combination includes the following for professional services delivered by the Provider's Own Organisation or a Related Entity: ○ a description of the service delivered ○ identify the specialist type (psychologist or other allied health professional) ○ identify the session type (individual or group) ○ the duration of the service ○ specify whether the Participant attended the appointment Any Professional Services run over multiple days should not be claimed as a single session. Each session should be claimed separately. Maintain a listing for professional services delivered by staff employed by the Provider's Own Organisation or a Related Entity that records the following information:
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	Additional requirements for delivery by staff of Own Organisation or Related Entities. Standard rates apply for professional services delivered by a staff member employed by the Provider's Own Organisation or a Related Entity. The maximum amounts that can be claimed are calculated according to the following rates: • For individual sessions (including preparation of psychological reports) or group sessions attended by up to 5 Participants: ○ \$4.00 per minute (GST inclusive) for services delivered by a qualified allied health professional ○ \$4.33 per minute (GST inclusive) for services delivered by a qualified psychologist. • For group sessions attended by 6 or more Participants: ○ \$0.67 per Participant per minute (GST inclusive) for services delivered by a qualified allied health professional ○ \$0.72 per Participant per minute (GST inclusive) for services delivered by a qualified psychologist. If Participants from the Provider's Caseload make up a portion of the Participants in a group session, the Provider must only claim the prorata amount of the relevant group session standard rate. For example, if the Provider has 2 Participants out of 5 Participants in a one hour group session delivered by a qualified psychologist of a Related Entity, the Provider would claim \$51.96 (GST inclusive) for each Participant (i.e. $\\$4.33 \times 60 = \\259.80, divided by 5 Participants = \$51.96 per Participant per hour).	• the staff member's name • specialist type • qualification details • the authority with whom the staff member is registered (if the qualification of the staff member relates to a field that requires professional registration to practice), and • registration number where applicable.
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	^[1] The Allied Health Professionals Australia website (at www.ahpa.com.au/) has further information on allied health professionals. ^[2] Australian Psychological Society (APS) defines psychological reports as: “A report is a psychological service that is directly requested by the referring agency or client. Thus, reports prepared for clients are usually done so on the basis of explicitly written consent from the client or legal guardian. A report is a structured presentation typically including such components as relevant psychosocial history, history of presenting issues, present condition, test results, option and intervention recommendation. Professional letters to medical or other referral agencies concerning treatment needs of the client are not considered to constitute reports. Note that report preparation time is inclusive of relevant file and document review.” (Definition sourced from APS national schedule of recommended fees and item numbers for psychological services).	
Provider Indigenous Mentoring Capability	The Provider may use this category for expenditure related to the Provider building and increasing their Indigenous mentoring capability. For example: • design or redesign, and implementation of Aboriginal and Torres Strait Islander employment strategy. • hiring a consultant to develop and implement a Reconciliation Action Plan. • training (accredited and non-accredited) to staff who will be providing ongoing mentoring to Indigenous Participants. • development and release of relevant IT Applications (e.g. a Mentoring App).	In addition to the Documentary Evidence requirements for all purchases detailed in the Summary of required Documentary Evidence section, the Provider must comply with the following additional requirements before a claim for reimbursement is submitted: • Enter the good or service being claimed into the commitment in the Department’s IT Systems prior to claiming Reimbursement. • Upload evidence as detailed in the Summary of required Documentary Evidence section in the

	professional development (e.g. attendance at conferences and workshops). The Provider must submit a proposal to the Department for approval. Refer to the Employment Fund – Provider Indigenous Mentoring Capability Proposal template. The Determining what is a Prohibited Purchase section lists the exceptions to the use of this category.	Department's IT Systems prior to claiming Reimbursement.
Relocation Assistance (Assistance Types: Disturbance costs Removalist costs Short-term accommodation Travel costs)	The Provider may use this category for costs associated with Relocation Assistance, including: - Removalist costs - Travel costs - Disturbance costs, and/or - Short-term accommodation. The Provider must demonstrate: - The Participant has accepted a job in another location that is more than 90 minutes away from their current residence. - The Provider has verified the placement details with the Employer. Support, which can be provided before the Participant moves, may include relocation costs for a dependant of a Participant^[3] and should be proportionate to the circumstances. The Determining what is a Prohibited Purchase section lists the exceptions to the use of this category. ^[3] A dependant may include a member of the Participant's household who is a: - dependent child/children under 24 years of age who is:	In addition to the Documentary Evidence requirements for all purchases detailed in the Summary of required Documentary Evidence section, the Provider must comply with the following additional requirements before a claim for reimbursement is submitted: - Refer the Participant to a Vacancy in the Department's IT Systems in accordance with the Provider Payments and Vacancies Chapter. - Enter the associated Vacancy into the commitment in the Department's IT Systems. - Record the assistance type in the commitment to outline the type of purchase. - For travel related vouchers, hold and retain Documentary Evidence demonstrating the Participant received the item. - Where a Participant receives assistance to relocate with a dependent, the Provider must hold and retain a file note outlining the reason for their approval, based on their assessment of the genuine dependency of the relationship.

	○ financially dependent on the relocating Participant; or ○ the dependent child of the partner of the Participant where they are a member of a couple under social security law and the partner is receiving a government payment related to the child or children. • spouse/partner of the Participant who is also receiving an Australian Government income support payment or pension • an elderly parent/s who: ○ has reached Australian Age Pension age; ○ lives in the same residence as the Participant; ○ is dependent on the Participant for day-to-day care; ○ is relocating to reside with the Participant. Where the dependent of the Participant does not meet these requirements, Providers can assess if there is a genuine dependency relationship, for example if the Participant has legal caring responsibilities for an adult child with a disability.	
Transport (Assistance Types: • Driving lessons • Driving licences • Other transport costs • Petrol)	The Provider may use this category for transport-related assistance including: • Driving lessons^[4] for driver's licence classification C (Car) and R (Motorcycle), which is capped at \$8,800 (GST inclusive) per Participant, per Provider, per Period of Unemployment. • Driver's licence test and licence fee for classification C (Car) and R (Motorcycle). • Public and private transport and travel assistance for Participants to attend job search related activities, medical	In addition to the Documentary Evidence requirements for all purchases detailed in the Summary of required Documentary Evidence section, the Provider must comply with the following additional requirements before a claim for reimbursement is submitted: • Record the assistance type in the commitment to outline the type of purchase. • For petrol vouchers or public transport cards, hold and retain Documentary Evidence demonstrating the Participant received the item.

	appointments and health interventions, training, programs (including for Participants undertaking Work for the Dole Placements) or Employment, including: ○ public transport card top-ups ○ petrol cards ○ vehicles including cars or bicycles ○ vehicle registrations and inspections ○ compulsory third party vehicle inspections, and/or ○ ticket and overnight accommodation for a Participant to attend a job interview in another city. ● Costs associated with hiring a bus or other vehicle to transport multiple Participants to a program or Activity (including for Participants undertaking Work for the Dole Placements), Employment, or other employment-related activities (such as a job fair or interview). This does not include driving time or overhead costs. To claim Reimbursement for bus-hire costs, the Provider must hire a bus from an external organisation, community sector organisation or a Related Entity, (i.e. not from the Provider's Own Organisation) and ensure the bus is registered. Where a Participant requires assistance to regain their driver's licence after loss due to driving offences, the Provider may submit one claim for Reimbursement from the Employment Fund for a driver's licence test and/or driver's licence fee per Period of Unemployment for the Participant. Whilst all requests for assistance should be considered, support through this category is not intended to be regular and ongoing (with the exception of driving lessons).	
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	^[4] Each state and territory imposes requirements on a person who provides pre-licence driver training for reward or payment. These requirements include (at a minimum) registration with the state authority and a police check. Many states and territories also require individuals to have completed a Certificate IV or other training program, and to pass a working with children check.	
Wage Subsidies	Refer to the Wage Subsidies Chapter on how to reimburse wage subsidies from the Employment Fund.	Refer to the Wage Subsidies Chapter for further information on system and Documentary Evidence requirements.
Work-Related Items	The Provider may use this category for costs that are directly related to training, participation in programs or Employment that are: • Not a prohibited purchase, and • Cannot be recorded against another category. Examples of Work-Related items that can be purchased under this category include: • Clothing, protective equipment and hygiene purchases, for example: ○ work-related clothing, e.g. business shirts ○ personal protective clothing, such as hi-vis shirts and steel cap boots, where these are not for a Participant to participate in a Work for the Dole activity ○ hygiene packs, and/or ○ basic haircuts. • Tools, books and equipment required by a Participant to find and keep a job, or to participate in training, programs, and/or education.	In addition to the Documentary Evidence requirements for all purchases detailed in the Summary of required Documentary Evidence section, the Provider must comply with the following additional requirements before a claim for reimbursement is submitted: • Enter the purchase type in the Department's IT Systems, outlining the purchase.

	• Pre-employment medical checks. • Working with Children checks. • Working with Vulnerable People checks. • Police checks for Participants, including for Participants undertaking Work for the Dole Placements. • Out-of-pocket expenses for childcare, after-school care or holiday care not covered by Government rebates.	
Work-Related Training and Licensing (Assistance Types: • Licences, tickets and cards • Non-accredited training • Work-related training)	The Provider may use this category for costs associated with Work-Related Training and Licencing, including: • Non-accredited training that focuses on obtaining skills relevant for a particular job, employer or industry, including: ○ software training, such as Excel or MYOB ○ barista training ○ asbestos awareness training ○ manual handling training ○ food safety training ○ role-specific fitness training to meet employment or safety standards. • Work-related licences and certificates, including a: ○ security licence ○ forklift licence ○ light/medium/heavy rigid licence ○ taxi licence/driver accreditation/limousine licence ○ white card (or State/Territory equivalent) ○ working at heights certificate ○ first aid certificate	In addition to the Documentary Evidence requirements for all purchases detailed in the Summary of required Documentary Evidence section, the Provider must comply with the following additional requirements before a claim for reimbursement is submitted: • Record the assistance type in the commitment to outline the type of purchase. • Record the industry relevant to the purchase.

	○ responsible service of alcohol certificate ○ responsible conduct of gambling certificate • Test fees associated with obtaining a work-related licence or certificate. • Any accredited training that is a prerequisite to applying for, or obtaining a work-related licence under this category (noting these can often be packaged into the one price). • Any non-accredited 'refresher' training that is required to maintain a current valid work-related licence. The Determining what is a Prohibited Purchase section lists the exceptions to the use of this category.	
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Chapter 7. Wage Subsidies

Supporting Documents for this Chapter

- [Wage Subsidy Operations Guide](#)
- [Wage Subsidy Payment template](#)
- [Wage Subsidy Calculator](#)

7.1. Chapter Overview

Wage Subsidies are a financial incentive Providers can offer to eligible Employers to encourage them to hire eligible Participants in ongoing jobs by contributing to the initial costs of hiring a new employee.

There are 2 Wage Subsidy types available:

- the Youth Bonus Wage Subsidy, funded from a demand-driven pool, and
- the Workforce Australia Services Wage Subsidy, funded through the Employment Fund.

Unless otherwise specified, all processes in this Chapter apply to both Wage Subsidy types.

Note: from 1 July 2025 a new 'Real Jobs, Real Wages' Wage Subsidy type will appear in the Department's IT Systems. Access to this Wage Subsidy is restricted to Providers working with the Department on the Real Jobs, Real Wages Pilot. Providers must refer to the [Real Jobs, Real Wages Pilot Chapter](#) for further information.

Providers are expected to work directly with Employers to understand their recruitment needs, the needs of the job placement, and to recommend Participants whose skills and experience make them a good fit for the role. As part of these interactions, Providers should develop productive relationships with Employers and offer Wage Subsidies as part of an ongoing program of support to assist disadvantaged Participants into eligible jobs that are decent, safe, appropriately secure, and provide workers with the flexibility to balance their work and personal lives.

Providers are best placed to assess the needs of Participants and Employers in their local labour market and based on this, Providers can decide whether to offer a Wage Subsidy to an Employer. This means a Provider may choose not to offer a Wage Subsidy to an Employer even if all eligibility requirements are met.

In determining whether to offer a Wage Subsidy, Providers must ensure that the following principles are met:

- providing value for money, by ensuring a wage subsidy is used as an intervention to secure a suitable and decent job for an eligible Participant
- compliance with any work, health and safety requirements under the relevant state or territory legislation
- withstanding public scrutiny
- not bringing employment services or the Australian Government into disrepute.

Providers must ensure Employers are aware they are not entitled to receive a Wage Subsidy until such time as the Provider has decided to offer a Wage Subsidy to the Employer and the Employer has entered into a Wage Subsidy Agreement with the Provider via a Wage Subsidy Agreement approved within 28 days of the Participant commencing Employment (see [Head Agreements and Schedules](#)).

7.2. Wage Subsidy Eligibility Requirements

7.2.1. Participant Eligibility

Participant eligibility criteria for the available Wage Subsidies is detailed in Attachment 7A.

The Department's IT Systems will assess a Participant's eligibility for a Wage Subsidy, based on their time spent participating in relevant employment services. Eligibility is determined based on the Job Placement Start Date.

If a Provider determines the Department's IT Systems has incorrectly assessed Participant eligibility, the Provider must contact their Provider Lead to discuss the issue.

As part of confirming a Participant's eligibility, Providers must check if the Participant has an active Wage Subsidy Agreement in place with their organisation that overlaps with any potential new Agreement. Where an overlapping Agreement is identified, Providers must confirm the Employment has ended and then end the existing Agreement in the Department's IT Systems with the correct Employment end date before creating the new Agreement within the 28-day timeframe.

If you identify an overlapping Wage Subsidy Agreement managed by another Provider, you must speak to your Employment Region Lead immediately who can assist with contacting the previous Provider to end the concurrent agreement. Refer to the [Wage Subsidy Operations Guide](#) for further details.

7.2.2. Employer Eligibility

A Wage Subsidy Employer must be a legal entity with a valid ABN which complies with all eligibility requirements under the Wage Subsidy Head Agreement terms and conditions. A Wage Subsidy Employer must also have a verified and active Workforce Australia Online for Business account before they can be offered a Wage Subsidy.

A Wage Subsidy Employer must not be:

- the Provider's Own Organisation
- a Related Entity of the Provider
- a government entity, unless specified below
- a prior employer or host business of the Participant (within the last 2 years)
- a Family Member of the Participant, to ensure there is no real or perceived conflict of interest or unfair advantage
- suspended or excluded from receiving Wage Subsidies
- a labour hire company or group training organisation, except where the requirements below are met, or
- as otherwise advised by the Department.

Labour Hire Companies and Group Training Organisations

A Wage Subsidy Employer can be a labour hire company or a group training organisation, provided the company is paying the Participant's wages and the placement/s with the host business/es meet all eligibility criteria of the Wage Subsidy Placement and Employer.

If a labour hire company or a group training organisation is receiving a Wage Subsidy for an employee, they must disclose:

- to the host business/es that they are receiving a Wage Subsidy for an employee. The Wage Subsidy Employer must retain Documentary Evidence of the disclosure and supply it to the Provider. See [Summary of Documentary Evidence](#) section for details the disclosure must contain.
- to the Provider, prior to being eligible for any Wage Subsidy payments, the ABN of the host business/es the Wage Subsidy Participant was placed with for the duration of the Wage Subsidy Agreement.

Host businesses who subsequently employ a Wage Subsidy Participant on an ongoing basis are not eligible to receive a Wage Subsidy for that Participant, where they hosted the same Participant within the previous 2 years. Likewise, a labour hire company is not eligible for a Wage Subsidy where they place a Participant with a host business who has previously employed the Participant within the past 2 years. See [Not eligible – Prior Employment](#) section for details.

Not eligible – Government Entities

A Wage Subsidy Employer or host business must not be an Australian Government or state or territory government entity.

Similarly, the Employment position cannot be funded by an Australian, state or territory government entity.

Example: A Wage Subsidy Agreement cannot be entered into for a labour hire company which places a Participant in an Australian Government-operated call centre, or a state government-operated manufacturer of ships.

A Wage Subsidy Employer can be a local government entity, provided the Employment position is not funded by an Australian, state or territory government entity.

Providers can use the Australian Government's website ABN Lookup (abr.business.gov.au) to determine if an Employer is a government entity, and/or request proof from the Employer.

Not eligible – Prior employment

An Employer will not be eligible to receive a Wage Subsidy where, prior to the Job Placement Start Date, the Participant has been employed by the Employer (including placements with host businesses via a labour hire company), or any other entities associated with the Employer, within the previous 2 years.

Paid work trials (of up to a maximum of two weeks' duration) and periods of unpaid work (e.g. unpaid trials or voluntary work), whether recorded in the Department's IT Systems or agreed between an Employer and Participant, are not considered prior Employment where they occur immediately prior to a Wage Subsidy Agreement.

Wage Subsidy Placements cannot include periods of unpaid work trials. Providers can use Wage Subsidies for Employment that starts after an unpaid work trial ends, if all other eligibility requirements for the Participant, Employer and Placement are satisfied.

Where a Wage Subsidy Participant commenced Employment up to 14 days earlier than the Job Placement Start Date recorded in the Department's IT Systems, Providers can allow the wage subsidy to proceed, where payroll evidence is provided, and the Participant was eligible on the actual start date of Employment.

Paid work trials that took place earlier than 14 days prior to the Wage Subsidy Agreement start date may be considered prior employment unless the Employer can provide a reasonable explanation for the delay between the paid work trial ending and ongoing, paid employment commencing. Providers can request assistance from the Department (via Question Manager) in assessing evidence where it is not clear whether this explanation can be accepted.



Providers must retain payroll evidence of the Wage Subsidy Placement start date, where it differs from the Job Placement Start Date recorded in the Department's IT Systems. Refer to the [Wage Subsidy Operations Guide](#) for further details on how to apply this approach.

7.2.3. Placement Eligibility

A Wage Subsidy Placement is an Employment position with an eligible Employer that meets all eligibility requirements. The Employment position can be:

- full-time, part-time or casual
- an apprenticeship or traineeship, and/or
- found by the Provider or by the Participant.

A Wage Subsidy Placement must:

- be a sustainable and ongoing position expected to continue indefinitely. This means the Employment is not intended to end when the Wage Subsidy ceases.
- offer at least the required minimum average hours per week which can be averaged over the duration of the Wage Subsidy Agreement to flexibly support Wage Subsidy Participant and Wage Subsidy Employer needs.
- comply with all Employment standards for the Employment position under any Commonwealth, state and/or territory laws, including but not limited to:
 - complying with the [National Employment Standards – Fair Work Act 2009 \(Cth\)](#).
 - complying with the minimum terms and conditions of employment prescribed in any Modern Award that covers or applies to the Wage Subsidy Placement.
 - paying the relevant Wage Subsidy Participant at least the equivalent of the minimum rate prescribed in any Modern Award that covers or applies to the Employment position or, if no Modern Award covers or applies to the Employment position, at least the equivalent of the [National Minimum Wage](#)
- comply with all relevant laws and requirements of any Commonwealth, state, territory or local authority, including work, health and safety legislation
- provide a safe system of work for the Wage Subsidy Participant at all times during the Wage Subsidy Placement
- not displace an existing employee
- not be a commission-based, self-employment or subcontracted position (excluding Placements with labour hire companies or group training organisations)
- not otherwise be an Unsuitable position as defined in the Deed.

7.3. Offering and Negotiating Wage Subsidy Agreements

Providers are responsible for negotiating and managing all elements of a Wage Subsidy Agreement including making payments to Wage Subsidy Employers. Providers must not charge Wage Subsidy Employers to manage Wage Subsidy Agreements.

Providers must ensure Employers are aware of the requirement to approve and manage their Wage Subsidy Agreements online via Workforce Australia Online for Businesses and ensure they have an active account before they commence negotiating a Wage Subsidy Agreement.

In negotiating a Wage Subsidy Agreement with an eligible Employer, Providers must first confirm which Wage Subsidy a Participant is eligible to attract in the Department's IT Systems and that there are no other active Agreements for that Participant.

Any advice to the Employer regarding the Participant's eligibility must be underpinned by advice that the Employer is not guaranteed a Wage Subsidy until the Provider offers a Wage Subsidy Agreement for the Employer to approve. Providers must ensure communication regarding the availability of a Wage Subsidy is clear and must ensure the Employer is provided with an outcome within a reasonable timeframe.

See Table 7-A: Wage Subsidy Types and Participant Eligibility Requirements for further details.

7.3.1. Head Agreements and Schedules

The Wage Subsidy Agreement consists of the general terms and conditions of the Head Agreement and the specific terms relating to the Wage Subsidy Placement, Wage Subsidy Participant, and the Wage Subsidy Period/s set out in the relevant Schedule.

The Wage Subsidy Period means the payment period for a Wage Subsidy, which are instalment payments of the agreed maximum amount.

Providers must enter into a Head Agreement once with each Wage Subsidy Employer, via the Department's IT Systems and the Employer's Workforce Australia Online for Businesses account (refer to the [Wage Subsidy Operations Guide](#) for further information). A Sample Copy of the Head Agreement can be found on the Provider Portal.

Once a Head Agreement has been entered into, a separate Schedule for each new Wage Subsidy Participant is attached to the Head Agreement. Schedules contain the specific details of the Wage Subsidy Placement for each new Wage Subsidy Participant.

Each Schedule the Provider attaches to the Head Agreement will relate to a single Wage Subsidy Placement and will create a separate contract (Wage Subsidy Agreement) between the Provider and the Wage Subsidy Employer in relation to that Wage Subsidy Placement. Both the Head Agreement and the Schedule must be in the form specified by the Department, created in the Department's IT Systems.



Where the Department changes the terms and conditions of the template Head Agreement, the Provider must enter into a new Head Agreement with each Wage Subsidy Employer in accordance with the updated terms and conditions before attaching any new Schedules in respect of Wage Subsidy Placements. This includes having to enter into a new Head Agreement with those Employers with whom the Provider already has a Head Agreement.

7.3.2. Negotiating Terms of the Wage Subsidy

Providers must explain the terms and conditions of the Wage Subsidy Agreement to the Employer to ensure they fully understand their rights and obligations in accepting the Wage Subsidy. This includes explaining the Documentary Evidence required from the Employer to confirm the Employer's compliance with the terms and conditions over the course of the Wage Subsidy Agreement, and that the Employer must advise immediately if the Placement terminates early.

The Provider must consider the Participant's ability to meet a weekly average hour requirement when determining the suitability of the Wage Subsidy Placement for the Participant, including whether they have an Employment Services Assessment and/or assessed Partial Capacity to Work. Participants are eligible to attract a Workforce Australia Services Wage Subsidy where they work the minimum average weekly hours (at least 15) over the duration of the Wage Subsidy Placement agreed between the Provider and Wage Subsidy Employer and meet all other eligibility requirements for the relevant Wage Subsidy. Youth Bonus Wage Subsidy Participants must work a minimum average of 20 hours per week.

The term of a Wage Subsidy Agreement begins (Wage Subsidy Placement start date) on the Job Placement Start Date. The Wage Subsidy Agreement ends on the date agreed by both the Provider and Employer (i.e., between six and 26 weeks following the Wage Subsidy Placement start date, subject to the Wage Subsidy type; see Table 7-A: Wage Subsidy Types and Participant Eligibility Requirements for details), or on the date Employment ceases where a Wage Subsidy Placement terminates earlier than the agreed date.

The Provider must negotiate with the Wage Subsidy Employer a Wage Subsidy Period that works best for the Wage Subsidy Employer's business, subject to the agreed duration of the Wage Subsidy Agreement. A Wage Subsidy Period can be weekly, fortnightly, monthly, quarterly, on completion, or any other timeframe as agreed by the Provider and Wage Subsidy Employer. Wage Subsidy Periods must be recorded on the Schedule. See [Payments to Wage Subsidy Employers](#) section for more information.

Providers should refer Wage Subsidy Employers to the 'Manage Wage Subsidies' help guide (located on the [Workforce Australia website](#)) for details on how to manage their Wage Subsidy Agreements, including submitting Documentary Evidence.



Wage Subsidy Agreements must be created in the Department's IT Systems by the Provider, and approved online by the Wage Subsidy Employer via their Workforce Australia Online for Business account.

- Wage Subsidy Agreements will not be accepted in an offline format. Should the Provider or Wage Subsidy Employer experience difficulties using the Department's IT Systems and/or [Workforce Australia website](#) to approve the Wage Subsidy Agreement, they must contact the Employer Hotline on 13 17 15 prior to the 28-day timeframe expiring.

7.3.3. Time requirements for approving a Wage Subsidy

In line with the policy intent of Wage Subsidies, Providers are expected to commence negotiating a Wage Subsidy Agreement with an eligible Employer prior to the Job Placement Start Date. Providers must ensure that the Wage Subsidy Agreement has been approved by the Employer in the Department's IT Systems within 4 weeks (28 days) of the Wage Subsidy Placement commencing.

Wage Subsidy Agreements will not be approved outside of 28 days from the commencement of Employment, and Providers will not be Reimbursed for any payments made to Employers where there is not an approved Wage Subsidy Agreement in place. Providers must ensure Employers are aware of the 28-day timeframe and the consequences of not meeting it.

Providers are required to have appropriate administrative processes in place to meet the 28-day timeframe and must work with Wage Subsidy Employers to ensure that this timeframe is met. If the Department determines there is evidence (e.g., correspondence and/or a draft Wage Subsidy Agreement in the Department's IT Systems) that the Provider delayed the Employer's approval the

Department may take compliance action against a Provider. This includes but is not limited to delays caused by Providers:

- not confirming the Employer's eligibility prior to offering a Wage Subsidy
- offering a Wage Subsidy to an Employer until well after Employment commenced
- failing to respond to Employer enquiries in a timely manner.

In these cases compliance action may include including directing the Provider to make Wage Subsidy payments to the Wage Subsidy Employer without reimbursement and/or blocking Outcome payments associated with the Employment position.

See [Head Agreements and Schedules](#) section for more information.

7.4. Payments to Wage Subsidy Employers

The Provider must have entered into a Wage Subsidy Agreement with the Wage Subsidy Employer and all terms and conditions of the Wage Subsidy Agreement must be satisfied before the Provider can make a payment to the Wage Subsidy Employer.

Wage Subsidy payments must not exceed 100 per cent of the Participant's wages at any point over the Wage Subsidy Placement period.

 Wage Subsidy Employers must invoice the Provider to receive a Wage Subsidy payment and submit the required Documentary Evidence to support payment (see [Summary of Documentary Evidence](#) section).

 Documentary Evidence from the Wage Subsidy Employer must confirm the Wage Subsidy Participant worked at least the minimum weekly hour requirement averaged over the Wage Subsidy Period being assessed.

7.4.1. Assessing Periods of Leave

Where a Wage Subsidy Participant's hours worked are less than required for the Wage Subsidy Employer to be eligible for payment, documentary evidence must also include all periods of leave taken.

Where a Wage Subsidy Participant requests and has leave approved in accordance with entitlements under a relevant Modern Award or the *National Employment Standards – Fair Work Act 2009 (Cth)*, and the leave is recorded in Documentary Evidence, it can count towards the minimum average hours per week requirement. However, a Wage Subsidy Employer cannot use approved leave to regularly supplement a Wage Subsidy Participant's work hours for the purpose of meeting the minimum average number of hours per week.

Refer to the [Wage Subsidy Operations Guide](#) for further details on considering approved leave when calculating payments to Wage Subsidy Employers.

 Evidence of approved leave (paid or unpaid) must show that the Wage Subsidy Employer agreed to the leave at the time the Wage Subsidy Participant requested it, and either be:

- recorded on the Wage Subsidy Participant's pay slip; or
- on a written declaration from the Employer.

7.4.2. Change of Business Ownership

If a Wage Subsidy Employer changes ownership, the new owner is eligible to claim the remaining Wage Subsidy payment/s, provided all other eligibility requirements are met. The Wage Subsidy Agreement must be novated between the parties before the new owner can claim the remaining Wage Subsidy payment/s.

7.4.3. Calculating Payments for Early Terminations

If a Wage Subsidy Placement terminates early, Providers must calculate any outstanding payments based on the number of weeks the Wage Subsidy Participant worked for the required minimum average hours per week from the Wage Subsidy Placement start date.

If the Wage Subsidy Participant did not work the required minimum average hours per week throughout the Wage Subsidy Placement, the Wage Subsidy Employer will not be eligible to receive the full Wage Subsidy amount.

To work out the Wage Subsidy amount the Wage Subsidy Employer is entitled to, divide the total Wage Subsidy amount by the Wage Subsidy Agreement Term to calculate the weekly rate the Wage Subsidy Employer may be entitled to receive. Then multiply this amount by the number of weeks the Wage Subsidy Participant worked the minimum average number of hours per week.

Examples of how to calculate payments for early termination can be found in the [Wage Subsidy Operations Guide](#).

7.4.4. Wage Subsidy Calculator

The Wage Subsidy Calculator is a tool that assists Providers to calculate the Wage Subsidy amount an Employer is eligible to receive, and the value of the reimbursement the Provider can claim from the Department. Relevant information recorded on the Wage Subsidy Agreement and in the Documentary Evidence, can be entered into the Calculator to confirm:

- the Wage Subsidy Placement meets the required minimum average hours per week over the duration of the Wage Subsidy Agreement, and
- Wage Subsidy payments do not exceed 100 per cent of the Participant's wages at any point over the Wage Subsidy Placement period.

The [Wage Subsidy Calculator](#) can be found on the [Provider Portal](#). Information about how to use the Calculator is located in the [Wage Subsidy Operations Guide](#).

7.4.5. Concurrent Funding

Under the General Terms and Conditions of the Head Agreement, Wage Subsidy Employers are required to notify Providers of any Australian Government or State or Territory government funding they receive for the Wage Subsidy Participant or placement.

Wage Subsidy Employers cannot access Wage Subsidies if they receive funding from other Australian Government, state or territory wage subsidies or similar employment program funding for the same Participant in the same Wage Subsidy Placement.

The Provider must continue to check whether the Wage Subsidy Employer is following the above requirements before making Wage Subsidy payments to the Wage Subsidy Employer.

7.4.6. Wage Subsidy Employers Not Registered for GST

The total maximum amounts of a Wage Subsidy specified in this Guideline are GST inclusive. Where a non-GST registered Wage Subsidy Employer submits a tax invoice for the correct amount of a Wage Subsidy to a Provider, the Provider must pay the Wage Subsidy Employer the amount (GST Exclusive).

When the Provider submits a claim for Reimbursement, the Department will pay the full (GST inclusive) amount. The Provider is responsible for remitting the GST inclusive amount to the Australian Tax Office.

7.5. Claims for Reimbursement

The Provider can only claim a Reimbursement for a Wage Subsidy payment if:

- all terms and conditions of the relevant Deed, this Guideline, the Wage Subsidy Operations Guide (where applicable) and Wage Subsidy Agreement have been met
- they have first made the relevant Wage Subsidy payment out of their own funds to the Wage Subsidy Employer
- the Reimbursement claim is for the same dollar value they paid the Wage Subsidy Employer
- they have sufficient Documentary Evidence to demonstrate the above which must be uploaded at the time of claiming Reimbursement.

7.5.1. Time requirements for claiming a Reimbursement

The Department permits claims for Reimbursement to be rendered:

- after each Wage Subsidy payment is made in accordance with the Wage Subsidy Period/s recorded in the Schedule of the Wage Subsidy Agreement, or
- collectively at the end of the Wage Subsidy Placement.

Providers must submit all claims for Reimbursement no later than 56 days after the end of the Wage Subsidy Placement. This includes where a Wage Subsidy Placement terminates early.

The Wage Subsidy Head Agreement (clause 6) requires Wage Subsidy Employers to notify Providers immediately if the Wage Subsidy Participant's Employment ends prior to the Wage Subsidy Agreement end date. In accordance with this, Providers must ensure that, where a Wage Subsidy Placement has terminated early, the correct Placement end date is recorded in the Department's IT Systems, and that claims for Reimbursement are submitted no later than 56 days from the end of the Wage Subsidy Placement.

Providers are required to have appropriate administrative processes in place to meet the 56 day timeframe. Providers must work with Wage Subsidy Employers to ensure that this timeframe is met. Providers who fail to meet the 56 day timeframe may not be Reimbursed.

Under the Head Agreement, Providers are required to make the final Wage Subsidy payment to the Wage Subsidy Employer where the Employer:

- requests the final Wage Subsidy payment, and
- supplies the required Documentary Evidence for that payment to the Provider within 28 days from the end of the Wage Subsidy Placement.

Providers may choose to make the final Wage Subsidy payment to the Wage Subsidy Employer where they submit the required Documentary Evidence after the 28 day timeframe, if all other

eligibility requirements are met. However, the Provider must claim the Reimbursement from the Department no later than 56 days from the end of the Wage Subsidy Placement.

7.5.2. Managing Employment Fund Credits for Ended Workforce Australia Services Wage Subsidy Agreements

When a Provider creates a Workforce Australia Services Wage Subsidy Agreement, the total Wage Subsidy amount is committed out of the relevant Site's Employment Fund notional bank balance (refer to the Employment Fund Chapter for further information). This commitment is held to ensure there is funding available to Reimburse all Wage Subsidy Agreement commitments.

A Provider should return committed Employment Fund credits to the relevant Site's notional bank balance when:

- a Draft Wage Subsidy Agreement does not proceed to approval, or
- a Wage Subsidy Agreement is ended, and
 - all Reimbursements from the Department for Payments made to the Wage Subsidy Employer have been received, and
 - the Provider is certain that no further claims for Reimbursement will be made against that particular Wage Subsidy Agreement.

By agreeing to a return of Employment Fund credits, the Provider is declaring that they will make no further claims for Reimbursement against that Wage Subsidy Agreement (including manual claims).

Employment Fund credits that are returned cannot be reinstated.



Providers should return credits to the Provider's Site notional bank balance and end Draft Agreements that are no longer required with the reason 'Created in Error'.

Note: the Summary and Value/Duration pages of the WASA01 - Workforce Australia Services Wage Subsidy Agreements Qlik App can help Providers monitor Agreements eligible for a return of credits to the Provider's Site notional bank balance.



The Provider selects 'Return Credits' and confirms selection by selecting 'Yes' when the notification window pops up.

7.5.3. Recovery of Reimbursement Claims Paid

The Department may recover any Reimbursements made to the Provider, where the Department determines, at its absolute discretion that the Wage Subsidy Employer has:

- misused the Wage Subsidy, including, but not limited to, breaching clause 12 of the Head Agreement
- not met the terms and conditions of the Wage Subsidy Agreement
- been suspended and/or excluded by the Department from participating in Wage Subsidies, or
- otherwise engaged in activity that may bring, or could be perceived to bring, the use of Wage Subsidies or the Commonwealth of Australia into disrepute.

The Department may also recover any Reimbursement made to the Provider where the Department determines, at its absolute discretion, that the Provider has not met the requirements of the Deed, this Guideline and/or the Wage Subsidy Operations Guide.

7.6. Managing Wage Subsidy Agreements for Wage Subsidy Participants

7.6.1. Supporting Participants on Wage Subsidies

Providers are expected to provide Post-Placement Support to Wage Subsidy Participants and Wage Subsidy Employers to maximise the success of Wage Subsidy Placements, including after a Wage Subsidy Participant is Suspended or Exited from a Provider's Caseload.

Providers should immediately advise the Department if a Wage Subsidy Participant reports any incidents of inappropriate or unsafe workplace behaviour and follow the appropriate departmental process and protocols.

7.6.2. Managing Wage Subsidy Agreements for Transferred Participants

When a Wage Subsidy Participant transfers to another Provider, the gaining and outgoing Providers must ensure both the Participant and Wage Subsidy Employer continue to be supported.

A Wage Subsidy Agreement must remain with the original Provider if the Participant transfers to another Provider, including if the Provider is exiting the market completely, unless otherwise Directed by the Department.

7.7. Summary of Documentary Evidence

Providers must obtain, upload and retain sufficient Documentary Evidence which demonstrates the Wage Subsidy Participant was Employed by the Wage Subsidy Employer in the Wage Subsidy Placement in accordance with the terms and conditions of the Deed, Guideline, and Wage Subsidy Agreement to process a Wage Subsidy payment to an Employer and to claim Reimbursement from the Department.

7.7.1. Wage Subsidy Agreements

For all Wage Subsidies, a Wage Subsidy Agreement, linking Vacancy, Employer and Placement details, must be entered into the Department's IT Systems and approved via the Wage Subsidy Employer's Workforce Australia Online for Business account.

For Workforce Australia Services Wage Subsidies, the Wage Subsidy Agreement Schedule must also include the agreed:

- duration of the Wage Subsidy Placement
- required minimum average weekly hours, and
- maximum amount of the Wage Subsidy being offered.

The above terms are not negotiable for Youth Bonus Wage Subsidy Agreements and the Department's IT Systems will pre-populate this information.

See Head Agreements and Schedules for more information.

7.7.2. Evidence from Wage Subsidy Employers – Participant Employment

Documentary Evidence must confirm the Wage Subsidy Employer's details (including name and ABN) and the Wage Subsidy Participant's name. Documentary Evidence must include:

- evidence to confirm the Wage Subsidy Participant's Employment which demonstrates the hours worked (including any periods of approved leave taken) and wages paid (including the relevant Award the Participant was paid under) for the entire Wage Subsidy Period, which may be in the form of (but is not limited to):
 - a completed [Wage Subsidy payment template](#) (Refer to the [Wage Subsidy Operations Guide](#)), or
 - pay slips or a printout from the Wage Subsidy Employer's payroll software, or
 - a statutory declaration, email or other correspondence from the Wage Subsidy Employer, and,
- if the Wage Subsidy Employer is a labour hire company or group training organisation:
 - the ABN of the host business/es the Wage Subsidy Participant was placed with throughout the Wage Subsidy Agreement Term. This can be recorded on the [Wage Subsidy payment template](#), provided via email or included in the statutory declaration, and
 - evidence they disclosed to all host businesses the Wage Subsidy Participant is placed with that they were receiving a wage subsidy. This disclosure must include details of the sender and recipient, and demonstrate it was sent during the Wage Subsidy Participant's placement with the host business. Additional details can be found in the [Wage Subsidy Operations Guide](#), and
- where a Wage Subsidy Participant's Employment ends prior to the Wage Subsidy Placement end date, a written statement of the reason why Employment ended.

Providers may request the Employer provides additional Documentary Evidence relating to a Wage Subsidy Placement, Wage Subsidy Participant, and/or Wage Subsidy Agreement. In requesting additional Documentary Evidence the Provider must ensure the Employer understands what evidence will be required, the purpose of the evidence, and the timeframe for providing the evidence, prior to approving the Wage Subsidy Agreement.

The Department can request additional Documentary Evidence from Providers relating to a Wage Subsidy Placement, Wage Subsidy Participant and/or Wage Subsidy Agreement from Providers, to support Program Assurance Activities. If Providers do not have this Documentary Evidence, they can request it from Wage Subsidy Employers, as per the Employer's obligations under the Wage Subsidy Agreement.

7.7.3. Evidence from Provider – Claims for Reimbursement

Providers must ensure Documentary Evidence demonstrates that payment was made to the Wage Subsidy Employer before claiming a Reimbursement. From 1 November 2025 Providers must upload all Documentary Evidence against the Wage Subsidy Agreement via the Reimbursements screen of the Department's IT Systems at the time of claiming Reimbursement.

As per Chapter 3.6.2 of the Workforce Australia - Part A: Universal Guidelines, Tax File Numbers must be redacted from any pay slips prior to being uploaded into the Department's IT Systems as Documentary Evidence to support Wage Subsidy payments.

Documentary Evidence may be in the form of a:

- record of transaction (bank statement or report from the Provider's financial system), or
- tax invoice and corresponding receipt from the Wage Subsidy Employer, or
- tax invoice from the Wage Subsidy Employer and a remittance advice, or
- statutory declaration, email or other correspondence from the Provider.

The Documentary Evidence to support a claim for Reimbursement must confirm:

- the Wage Subsidy Participant's name and JSID,
- the Wage Subsidy Employer's details (including name and ABN),
- the amount of the Wage Subsidy payment, and
- the date the Wage Subsidy payment was made.

While not mandatory, Providers are encouraged to include a copy of their results from the Wage Subsidy Calculator when uploading evidence. Refer to the [Wage Subsidy Operations Guide](#) for instructions on how to obtain these.

Providers are also encouraged to include other relevant evidence (correspondence or file notes) to support payment integrity activities, particularly if there were unusual or complex circumstances that require explanation. Documentary Evidence uploaded will be used to assess Providers' compliance with the Guideline requirements where a claim is selected for Continuous Assessment of Payment Integrity (CAPI) or other program assurance activities. Providers should ensure the evidence uploaded is sufficient for these purposes.

Attachment 7A. Wage Subsidy Types and Participant Eligibility Requirements

The list below reflects how the hierarchy of Wage Subsidies is applied (in descending order) in the Department's IT Systems. A Participant can attract one Wage Subsidy at a time.

Indigenous Australians are eligible immediately on commencement in employment services, excluding Workforce Australia Online. They must be flagged in the Department's IT Systems as Indigenous from registration with Services Australia – Centrelink, or the Department's Job Seeker Classification Instrument.

Table 7-A: Wage Subsidy Types and Participant Eligibility Requirements

Participant Cohort	Eligible	Time in service required	Amount eligible for	Wage Subsidy Placement requirements
Workforce Australia Online Participants	No	Individuals who complete 12 months of continuous participation in Workforce Australia Online will be eligible for wage subsidies on commencement in provider-led employment services**	N/A	N/A
Participants aged 24 years and under, and/or Participants commenced with a Transition to Work Provider	Yes	Eligible for the Youth Bonus Wage Subsidy** (YBWS) after: 12 months in Online Services, on commencement in provider-led employment services, OR - after 6 months continuous provider-led employment services* Participants commenced with a Transition to Work Provider must have Mutual Obligation Requirements and not have exceeded their Period of Service on the Job Placement Start Date.	YBWS offers Employers up to a set amount of \$10,000 (GST inclusive) or 100 per cent of the wages paid to the employee, whichever is the lower amount.	YBWS Wage Subsidy Placements must: - offer at least a minimum average of 20 hours per week, and - run for 26 weeks from the employment placement start date.

Participants aged 25 years and older commenced with Workforce Australia Services and Parents Pathways Providers	Yes	Eligible for the Workforce Australia Services Wage Subsidy (WASWS) after 12 months in Online Services, on commencement in provider-led employment services, OR - after 6 months of continuous provider-led employment services*	Under an WASWS Providers have the flexibility to offer an Employer up to a maximum of \$10,000 (GST inclusive) or 100 per cent of the wages paid to the employee, whichever is the lower amount.	Providers will have the flexibility to determine the WASWS Placement requirements, but the placement must offer: - at least a minimum average of 15 hours per week, and - a minimum of 6 weeks and a maximum of 26 weeks from the employment placement start date.
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Notes:

*The period of continuous provider-based employment services can include participation in Workforce Australia Services, ParentsNext, Transition to Work, Parent Pathways, Inclusive Employment Australia, Remote Australia Employment Services, Disability Employment Services, and the Community Development Program. A Participant's eligibility will not be affected if they Exit and return to the service within an allowable break of 13 weeks.

**Youth Bonus Wage Subsidy – if the Participant loses the wage-subsidised job through no fault of their own within 6 months of starting, they may return to a Provider and immediately be eligible for another YBWS or a Workforce Australia Services Wage Subsidy should their eligibility change.

Chapter 7A. Real Jobs, Real Wages Pilot

Supporting Documents for this Chapter

- [Real Jobs, Real Wages Supporting Document](#)

7A.1. Chapter Overview

This Chapter outlines the intent of the Real Jobs, Real Wages Pilot, the role of key stakeholders in the delivery of the Pilot and who is eligible to receive Services from Providers. Providers should consider a Participant's individual circumstances to determine if participation in the Real Jobs, Real Wages Pilot is appropriate.

7A.2. Real Jobs, Real Wages Pilot

The Real Jobs, Real Wages (RJRW) Pilot will commence on 1 July 2025 for two years and aims to assist approximately 1,500 people. RJRW will help individuals at risk of becoming entrenched in the employment services system, transitioning them into secure work. It is also intended to support the capability of Employers when they hire people with greater challenges to work.

The Pilot will provide an opportunity to trial new approaches to simplifying how Employers access the employment services system, including how they can partner with Providers and the Department to deliver a more streamlined employer servicing offer.

RJRW relies on strong collaboration between Providers, the Department and Employers. The Department will be directly involved in some aspects of the Pilot such as engaging directly with Employers to broker suitable vacancies, discussing financial support available, streamlining engagement between an Employer and multiple Providers or regions, and monitoring post placement support to both Participants and Employers to encourage sustainable, permanent employment.

7A.2.1. The role of Providers

The Department will connect Providers to Department-brokered vacancies.

Providers can choose to participate in the RJRW Pilot. If they do, Providers must:

- collaborate with the Department to support the needs of Employers and Participants
- screen and refer eligible individuals into suitable RJRW placements
- support Participant and Employer pre and post placement needs, and
- manage the financial support payments to Employers by entering into a RJRW Wage Subsidy Agreement.

7A.3. Employer Eligibility

The following organisations are eligible to participate in the RJRW Pilot:

- Small, medium and large Employers,
- Employers in all industries, across the 51 Workforce Australia Employment Regions
- Group Training Organisations (GTOs), or

- Local government entities, provided the Employment position is not funded by a Commonwealth, state or territory government entity

and are a legal entity with a valid ABN, which complies with all eligibility requirements under the RJRW Wage Subsidy Head Agreement terms and conditions.

A RJRW Wage Subsidy Employer can be a GTO, provided the GTO is paying the Participant's wages and the placement/s with the host business/es meet all eligibility criteria of the Wage Subsidy Placement. The GTO must release to the Provider, prior to any Wage Subsidy payments, the ABN of the host business/es the Wage Subsidy Participant was placed with for the duration of the RJRW Wage Subsidy Agreement.

7A.3.1. Not eligible

Organisations not eligible for RJRW include labour hire organisations and Commonwealth, state or territory government entities.

Similarly, the Employment position cannot be funded by a Commonwealth, state or territory government entity. For example, a position in an Australian Government-operated call centres. Labour hire organisation status and potential government positions will be assessed by the Department.

An eligible Employer must also have a verified and active Workforce Australia Online for Business account before they can be offered a Wage Subsidy.

The following additional checks must be made by Providers before entering a Wage Subsidy Agreement. The Employer must not be:

- the Provider's Own Organisation
- a Related Entity of the Provider
- a government entity, unless specified above
- a Family Member of the Participant, to ensure there is no real or perceived conflict of interest or unfair advantage
- suspended or excluded from receiving Wage Subsidies, or
- as otherwise advised by the Department.

7A.4. Department brokering of RJRW opportunities with Employers

The Department will build on existing employer connections and establish new relationships to promote RJRW opportunities to eligible Employers.

The Department will engage directly with Employers to:

- understand their workforce needs and share recruitment and job design practices
- demonstrate how Workforce Australia Services can complement their recruitment practices
- identify suitable vacancies for RJRW placements and foster an understanding of the needs of individuals with challenges to employment
- discuss the availability of the RJRW financial support and how it can assist the recruitment and retention of individuals from the Workforce Australia Services caseload
- highlight available support for individuals and Employers to support permanent employment and

- connect Employers to Providers to refer eligible Participants into RJRW opportunities.

7A.4.1. Potential Employer leads from Providers and other stakeholders

Providers and other stakeholders such as Local Jobs Program Job Coordinators may identify Employers interested in RJRW opportunities. These Employers must be referred to the RJRW team (rjrw@dewr.gov.au) to initiate discussions with Employers with lead time, prior to vacancy creation.

Providers cannot offer a RJRW opportunity and RJRW Wage Subsidy directly to an Employer. Any RJRW vacancy must be brokered and approved by the Department. This allows the Department to monitor the uptake of RJRW opportunities in line with the resources available for the program.

Where a Provider has an existing relationship with an Employer or refers a new Employer to the Department, the Department will include the Provider in relevant discussions about the Employer's participation. The referring Provider will have the first opportunity to meet the recruitment needs of the Employer.

Where the Department determines that an Employer is not eligible, or the vacancy is not suitable for the RJRW pilot, the Department will ask the referring Provider to assist the Employer directly. Providers can then determine what assistance is relevant for the Employer, including other Wage Subsidy types and Employment Fund expenditure.

7A.4.2. Placement Eligibility

The Department will discuss with Employers the benefits of offering secure, permanent work including support and resources for both Participants and Employers to support this goal.

A RJRW placement can be:

- full-time (20 hours or more a week) or part-time (less than 20 hours per week), or
- a full-time or part-time apprenticeship or traineeship.

The full-time and part-time band is intended to provide flexibility for individuals to work varying hours within that band. For example, a Participant may start working 10 hours a week, with the expectation that they will gradually increase their hours to 20 hours a week.

7A.4.3. Apprenticeship and traineeship funding concurrency

If Employers are interested in hiring an apprentice or trainee, the Department will highlight the range of assistance available for Employers. While these positions are eligible for a RJRW placement, RJRW financial support cannot be accessed concurrently with the Australian Apprenticeships Incentive System support. Employers will need to choose which support is best for their needs.

7A.4.4. Casual employment upon commencement

There may be instances where an Employer prefers to initially employ a Participant on a casual basis, to allow them to assess the suitability of the Participant to the role and workplace. This will be considered based on a shared expectation of the Participant being offered permanent work within six months of commencement. The Department will discuss the expectations for permanent work with the Employer before considering starting a Participant on a casual basis.

In general, a RJRW Wage Subsidy Placement must:

- be a sustainable and ongoing position expected to continue indefinitely. This means the Employment is not intended to end when the Wage Subsidy ceases
- offer at least the expected hours per week for the duration of the Wage Subsidy Agreement to flexibly support Wage Subsidy Participant and Wage Subsidy Employer needs
- comply with all Employment standards for the Employment position under any Commonwealth, state and/or territory laws, including but not limited to:
 - complying with the National Employment Standards – Fair Work Act 2009 (Cth).
 - complying with the minimum terms and conditions of employment prescribed in any Modern Award that covers or applies to the Wage Subsidy Placement.
 - paying the relevant Wage Subsidy Participant at least the equivalent of the minimum rate prescribed in any Modern Award that covers or applies to the Employment position or, if no Modern Award covers or applies to the Employment position, at least the equivalent of the National Minimum Wage
- comply with all relevant laws and requirements of any Commonwealth, state, territory or local authority, including work, health and safety legislation
- always provide a safe system of work for the Wage Subsidy Participant during the Wage Subsidy Placement
- not displace an existing employee
- not be a commission-based, self-employment or subcontracted position, and
- not otherwise be an Unsuitable position as defined in the Deed.

7A.4.5. Communication of RJRW opportunities to Providers

After the Department has negotiated RJRW vacancies with an Employer, the Department will communicate these opportunities to Providers. The Department will support Employer engagement with Providers, particularly where they can streamline engagement with multiple Providers or across multiple regions.

The Department will provide details of:

- the Employer including key contacts in the organisation
- vacancy details such as the hours available
- any skills, knowledge or other pre-employment requirements to perform the role
- the RJRW Wage Subsidy for the Employer including any Employer preference for payment frequency
- post placement support desired by the Employer, and
- any other information relevant to support the vacancy.

See the [Real Jobs, Real Wages Supporting Document](#) for more information.

7A.4.6. Communication channels

There are several ways the Department will communicate RJRW opportunities to Providers:

- Directly with a specific Provider at the Employer's request, if there is already an established working relationship or the Provider initially referred the Employer to the Department
- Directly with all Providers in an Employment Region (ER) or via existing channels such as Departmental Provider or ER Leads, or

- via a jobs briefing webinar or similar outlining the requirements of the Employer and vacancies, particularly for multiple positions within one ER or across multiple ERs.

7A.4.7. Pre-employment support for Employers and Participants

The Department will engage with Employers around their workforce recruitment and retention needs. This may include providing advice, resources and sharing best practice on issues such as job design, diverse recruitment strategies and awareness of relevant government assistance. This will promote to Employers how employment services can form part of their workforce solutions.

In promoting RJRW opportunities, the Department will share insights with Employers on some of the common challenges faced by the individuals we are seeking to assist through the RJRW pilot. This will include highlighting the assistance available from Providers to support Participants and Employers to achieve a sustainable employment outcome.

The Department will share with Providers any assistance desired by Employers, including any pre and/or post-employment requirements for Participants.

7A.5. Participant eligibility

To be eligible for a RJRW placement, a Participant must be Commenced in Workforce Australia Services. Providers must only refer Participants that meet the below eligibility criteria for a RJRW placement.

1. A Participant with a Period of Unemployment of 24 months or more is automatically eligible for a RJRW placement.
2. A Participant with a Period of Unemployment of between 12 and 24 months, and where the Provider determines that the Participant:
 - a. is at risk of becoming entrenched in employment services, and
 - b. is suitable for a RJRW Placement, and
 - c. has employment goals that align with the RJRW Placement.



The Department's IT Systems will assess a Participant's Period of Unemployment at the time of the Job Placement Start Date.

If a Provider determines the Department's IT Systems have incorrectly assessed Participant eligibility, the Provider must contact their Provider Lead to discuss the issue. Providers can request that the Department override the Participant's eligibility to allow them to attract a RJRW Wage Subsidy Agreement. See the [Real Jobs, Real Wages Supporting Document](#) for information on how to submit a request.

In recommending a Participant for a RJRW Placement, Providers must first confirm that there are no other active Agreements for that Participant that would prevent a RJRW Wage Subsidy Agreement from being created.

Where an overlapping Agreement is identified, Providers must confirm the Employment has ended and then end the existing Agreement in the Department's IT Systems with the correct Employment end date before creating the new Agreement within the 28-day timeframe.

You must speak to your Employment Region Lead immediately if you identify an overlapping Wage Subsidy Agreement managed by another Provider.

7A.5.1. Priority cohorts

The following cohorts are over-represented in the caseload of people eligible for the RJRW pilot:

- First Nations individuals
- Culturally and Linguistically Diverse (CALD) individuals, and
- mature age women aged 50 years and over.

As such, Providers are strongly encouraged to prioritise RJRW opportunities for these individuals in the first instance.

7A.5.2. Prior employment

Where a Provider identifies that a Participant would benefit from a RJRW Placement, and the Participant has had prior employment with the same Employer within the previous 2 years, the Provider must seek approval from the Department prior to any referral, outlining the circumstances for consideration.

Paid work trials and periods of unpaid work (e.g. unpaid trials or voluntary work), whether recorded in the Department's IT Systems or agreed between an Employer and Participant, are not considered prior Employment.

Wage Subsidy Placements cannot include periods of unpaid work trials. Providers can create RJRW Wage Subsidies for Employment that starts after an unpaid work trial ends, if all other eligibility requirements for the Participant, Employer and Placement are satisfied.

Where a Wage Subsidy Participant commenced Employment up to 14 days earlier than the Job Placement Start Date recorded in the Department's IT Systems, Providers can allow the Wage Subsidy to proceed, where payroll evidence is provided, and the Participant was eligible on the actual start date of Employment.

 Providers must retain payroll evidence of the Wage Subsidy Placement start date, where it differs from the Job Placement Start Date recorded in the Department's IT Systems. Refer to the [Real Jobs, Real Wages Supporting Document](#) for further details on how to apply this approach.

7A.5.3. Provider screening and referral of eligible Participants

The Department will share Department brokered vacancies with Providers. Providers can choose to participate in the RJRW pilot.

If Providers choose to participate in RJRW, they are expected to consider eligible Participants on their caseload who are best suited to the opportunity, that is, their skills, experience and interest make them a good fit for the role. Providers are strongly encouraged to identify individuals in the priority cohorts in the first instance.

Providers should also consider the requirements of the placement including any pre and post placement support to be provided. Where support is desired from the Employment Fund or other

sources of assistance, Providers should consider their readiness and ability to meet these requirements before referring individuals to RJRW placements.

The Provider must consider the Participant's ability to meet the expected weekly working hour requirements when determining the suitability of the Wage Subsidy Placement for the Participant, including whether they have an Employment Services Assessment and/or assessed Partial Capacity to Work.

To meet the policy intent of the RJRW Pilot that employment opportunities align with Participant work capacity, goals, aspirations and skills, participation is voluntary for Participants.

Providers must discuss the opportunity with Participants prior to referral and Participants must agree to the referral being made.

7A.6. Provider vacancy creation

Providers will create a RJRW vacancy. The RJRW vacancy type must be used where the Job Placement is eligible for a RJRW Wage Subsidy. The RJRW vacancy type triggers the RJRW Wage Subsidy Agreement template for Employers.

When the RJRW vacancy type is selected, Outcomes will track with the same features as a Normal position.

Therefore, Providers need to be aware:

- There will be no mandatory Documentary Evidence requirement enforced by the Department's IT Systems for Outcomes associated with the RJRW vacancy type.
- If the Employment is an Apprenticeship or Traineeship, the option to claim a Full Outcome via the system (based on full-time participation) will not be available for Outcomes associated with the RJRW vacancy type. If Providers wish to claim Full Outcomes based on participation in a full-time Apprenticeship or Traineeship they will need to submit a Manual Claim.

Providers should refer to the [Provider Payments and Vacancies Chapter](#) for more detail.

7A.7. Participation in RJRW and Mutual Obligations, Points Based Activation System and Targeted Compliance Framework

Participants who participate in a RJRW placement will meet their Points Requirement, including the Points Target and Job Search Requirement.

Providers must manually reduce both the Points Target and Job Search to zero for the duration of the RJRW placement (up to a maximum of 6 months). If a placement is longer than 6 months, the Provider must confirm with the Participant that they are still participating in the placement and if so, then reduce the Points Target and Job Search to zero for the remainder of the placement.

At the end of the placement, the Points Target and Job Search will revert to usual settings at the commencement of the next reporting period. Where a Participant leaves the placement early, the Provider must end the placement in the Department's IT Systems and remove the reductions in the future reporting periods.

Note: Reductions cannot be removed in the Participant's current reporting period.

Providers must not set Job Referral tasks for Participants in a RJRW placement as participation in the placement will satisfy Mutual Obligation Requirements for the duration of the placement.

Participants in a RJRW placement do not have scheduled compulsory requirements as participation in the placement will satisfy Mutual Obligation Requirements for the duration of the placement.

Providers must also not schedule compulsory Provider Appointments in the Participant's Electronic Calendar during the RJRW placement. Participants can attend Provider Appointments on a voluntary basis if they choose. For more information, please refer to the [Job Plans and Mutual Obligations Chapter](#).

The Targeted Compliance Framework does not apply to Participants in a RJRW placement as participation in the placement will satisfy Mutual Obligation Requirements for the duration of the placement. If a demerit is inappropriately applied for a Participant in a RJRW placement, Providers should [manually remove the demerit](#). For more information, please refer to the [Targeted Compliance Framework and Mutual Obligation Failures Chapter](#).

7A.8. RJRW financial support for Employers and requirements for Providers

The payments available to Employers as part of the RJRW Pilot are intended to support Employers offering ongoing, secure work for people with greater challenges to work, and to support the capability of Employers to create inclusive workplaces.

The financial support for Employers is available via a 12-month (52 week) RJRW Wage Subsidy Agreement and includes a Wage Subsidy and a 12-month Secure Work Payment.

7A.8.1. Wage Subsidy

The RJRW Wage Subsidy is:

- a full payment of \$10,000 (GST inclusive) paid as a Wage Subsidy over the first six months, for employment of 20 hours or more per week, or a full-time apprenticeship or traineeship.
- a partial payment of \$7,000 (GST inclusive) paid as a Wage Subsidy over the first six months, for employment less than 20 hours per week, or a part-time apprenticeship or traineeship.

The eligible payment amount for an Employer is based on the expected regular weekly working hours of the Participant at the time of the Placement commencement.

The RJRW Pilot provides the ability to tailor the RJRW Wage Subsidy milestone payment amounts and timeframe to the needs of Employers. Payments can be made at regular intervals and increments or can be tailored to the needs of the Employer. Options based on a full payment include:

- two payments of \$5,000 at three months and six months (payments at regular intervals), or
- a payment of \$2,000 at 2 months, a payment of \$2,000 at 3 months and final payment of \$6,000 at six months (tailored amounts and timeframe).

Tailored payment arrangements will be reflected in the RJRW Wage Subsidy Agreement.

7A.8.2. 12-month Secure Work Payment

An Employer is eligible for the 12-month Secure Work Payment where the relevant Participant:

- is still employed by the Employer 12-months after the Wage Subsidy Placement Start Date; and
- is employed on a permanent basis (either full-time or part-time).

The RJRW 12-month Secure Work Payment is:

- \$5,000 (GST inclusive) for a Participant who at 12-months is employed by the Employer for 20 hours or more per week or is in a full-time apprenticeship or traineeship.
- \$3,000 (GST inclusive) for a Participant who at 12-months is employed by the Employer for less than 20 hours per week or is in a part-time apprenticeship or traineeship.

Employers are eligible for the full amount of the RJRW Wage Subsidy and the 12-month Secure Work Payment if they meet the conditions for both. However, the total value of the combined Wage Subsidy payments and the 12-month Secure Work Payment (where applicable) for the Placement will not exceed 100 per cent of the relevant Participant's wages at any point over the Wage Subsidy Agreement term.

For example, a Participant commences in the Placement with expected regular hours of 15 a week. The Employer would be eligible for a Wage Subsidy amount of \$7,000 (GST inclusive). At the 12-month point, the Participant is regularly working 25 hours a week and is in permanent employment. The Employer would be eligible for a 12-month Secure Work Payment of \$5,000 (GST inclusive).

7A.9. Negotiating the terms of the RJRW Wage Subsidy

Unless Providers are otherwise advised, the Department will negotiate the RJRW Wage Subsidy terms with the Employer during initial discussions when brokering the RJRW vacancy and collaborate with Providers on the agreed terms where possible. The details and agreed Wage Subsidy arrangements will be communicated to Providers to support the creation of the RJRW Wage Subsidy Agreement.

The Department will provide a central engagement point between an Employer and multiple Providers, where several vacancies are being filled. This may involve the Department brokering the payment amount and frequency for the Wage Subsidy payments. Providers referring Participants to these vacancies, will be requested to implement the RJRW Wage Subsidy arrangements negotiated by the Department as part of managing the RJRW Wage Subsidy Agreement.

In circumstances where the Department brokers a low number of vacancies with an Employer, and only one Provider is involved, the terms of the RJRW Wage Subsidy payments may be left to the Provider to negotiate directly with the Employer.

7A.10. RJRW Wage Subsidy Agreement Requirements

Providers are responsible for managing all elements of a Wage Subsidy Agreement including making payments to Wage Subsidy Employers before claiming Reimbursement. For RJRW this includes managing the RJRW Wage Subsidy Agreement over the full 12 months of the Agreement term. Providers must not charge Wage Subsidy Employers to manage Wage Subsidy Agreements.

For a RJRW Wage Subsidy, Providers must ensure that the following principles are met:

- providing value for money, by ensuring a RJRW Wage Subsidy is used as an intervention to secure a suitable and decent job for an eligible Participant
- compliance with any work, health and safety requirements under the relevant state or territory legislation
- withstanding public scrutiny, and
- not bringing employment services or the Australian Government into disrepute.

Providers must ensure Employers are aware they are not entitled to receive a RJRW Wage Subsidy until such time as the Department has discussed a RJRW Wage Subsidy to the Employer and the Employer has entered into a RJRW Wage Subsidy Agreement with the Provider via Workforce Australia Online.

The RJRW Wage Subsidy Agreement must be approved within 28 days of the Participant commencing Employment.

7A.10.1. Head Agreements and Schedules

Creating Wage Subsidy Agreements

The RJRW Wage Subsidy Agreement consists of the general terms and conditions of the Head Agreement and the specific terms relating to the Wage Subsidy Placement, Wage Subsidy Participant, Wage Subsidy Period/s and the RJRW 12-month Secure Work Payment set out in the relevant Schedule.

The Wage Subsidy Period means the payment period for a Wage Subsidy, which are instalment payments of the agreed maximum amount.

RJRW Wage Subsidy Agreements must be created in the Department's IT Systems by the Provider and approved online by the RJRW Wage Subsidy Employer via their Workforce Australia Online for Business account.



Providers must enter into a RJRW Head Agreement once with each Wage Subsidy Employer, via the Department's IT Systems and the Employer's Workforce Australia Online for Businesses account (refer to the RJRW Supporting Document for further information). A Sample Copy of the Head Agreement can be found on the Provider Portal.



Once a RJRW Head Agreement has been entered into, a separate Schedule for each new RJRW Wage Subsidy Participant is attached to the Head Agreement. Schedules contain the specific details of the Wage Subsidy Placement for each new Wage Subsidy Participant.



Each Schedule the Provider attaches to the RJRW Head Agreement will relate to a single Wage Subsidy Placement and will create a separate contract (RJRW Wage Subsidy Agreement) between the Provider and the Wage Subsidy Employer in relation to that Wage Subsidy Placement. Both the RJRW Head Agreement and the Schedule must be in the form specified by the Department, created in the Department's IT Systems.



Where the Department changes the terms and conditions of the template RJRW Head Agreement, the Provider must enter into a new Head Agreement with each Wage Subsidy Employer in accordance with the updated terms and conditions before attaching any new Schedules in respect of Wage Subsidy Placements. This includes having to enter into a new RJRW

Head Agreement with those Employers with whom the Provider already has a RJRW Head Agreement.

Providers must not create a new RJRW Wage Subsidy Agreement after 1 April 2027, unless otherwise advised by the Department. This is to allow Employers to achieve a 12-month Secure Work Payment, and the Department to reimburse Providers, prior to the end of the Pilot's funding on 30 June 2028.

Explaining Terms of the RJRW Wage Subsidy

Before sending the RJRW Wage Subsidy Agreement to the Employer for approval, Providers must explain the terms and conditions to the Employer to ensure they fully understand their rights and obligations in accepting the RJRW Wage Subsidy Agreement. This includes explaining the Documentary Evidence required from the Employer to confirm the Employer's compliance with the terms and conditions over the course of the RJRW Wage Subsidy Agreement, and that the Employer must advise immediately if the Placement terminates early.

The term of a RJRW Wage Subsidy Agreement begins (Wage Subsidy Placement start date) on the Job Placement Start Date. The RJRW Wage Subsidy Agreement ends on the date agreed by both the Provider and Employer (i.e. 52 weeks following the Wage Subsidy Placement start date, or on the date Employment ceases where a Wage Subsidy Placement terminates earlier than the agreed date).

Wage Subsidy Periods must be recorded on the Schedule. See [Payments to Wage Subsidy Employers](#) section for more information.

Providers should refer Wage Subsidy Employers to the 'Manage Wage Subsidies' help guide (located on the [Workforce Australia website](#)) for details on how to manage their Wage Subsidy Agreements, including submitting Documentary Evidence.

Wage Subsidy Agreements will not be accepted in an offline format. Should the Provider or Wage Subsidy Employer experience difficulties using the Department's IT Systems and/or Workforce Australia website to approve the Wage Subsidy Agreement, they must contact the Employer Hotline on 13 17 15 prior to the 28-day timeframe expiring.

7A.10.2. Time requirements for approving a Wage Subsidy

Providers must ensure that the RJRW Wage Subsidy Agreement has been approved by the Employer in the Department's IT Systems within 4 weeks (28 days) of the Wage Subsidy Placement commencing.

Wage Subsidy Agreements will not be approved outside of 28 days from the commencement of Employment, and Providers will not be Reimbursed for any payments made to Employers where there is not an approved Wage Subsidy Agreement in place. Providers must ensure Employers are aware of the 28-day timeframe and the consequences of not meeting it.

Providers are required to have appropriate administrative processes in place to meet the 28-day timeframe and must work with Wage Subsidy Employers to ensure that this timeframe is met. If the Department determines there is evidence (e.g., correspondence and/or a draft Wage Subsidy Agreement in the Department's IT Systems) that the Provider delayed the Employer's approval the

Department may take compliance action against a Provider. This includes but is not limited to delays caused by Providers:

- not confirming a Participant's eligibility and/or any concurrent Wage Subsidy Agreements prior to recommending them for a Placement
- delaying the creation of a RJRW Wage Subsidy Agreement until well after Employment commenced, or
- failing to respond to Department and/or Employer enquiries in a timely manner.

In these cases, compliance action may include including Directing the Provider to make Wage Subsidy payments to the Wage Subsidy Employer without reimbursement and/or blocking Outcome payments associated with the Employment position.

7A.10.3. Change of Business Ownership

If a Wage Subsidy Employer changes ownership, the new owner is eligible to claim the remaining Wage Subsidy payment/s, provided all other eligibility requirements are met. The RJRW Wage Subsidy Agreement must be novated between the parties before the new owner can claim the remaining Wage Subsidy payment/s.

7A.10.4. Concurrent Funding

Under the General Terms and Conditions of the Head Agreement, Wage Subsidy Employers are required to notify Providers of any Australian Government or State or Territory government funding they receive for the Wage Subsidy Participant or placement.

Wage Subsidy Employers cannot access Wage Subsidies if they receive funding from other Australian Government, state or territory wage subsidies or similar employment program funding for the same Participant in the same RJRW Wage Subsidy Placement.

The Provider should continue to check whether the Wage Subsidy Employer is following the above requirements throughout the RJRW Wage Subsidy Agreement term.

7A.11. Payments to Wage Subsidy Employers

The Provider must have entered into a RJRW Wage Subsidy Agreement with the Wage Subsidy Employer and all terms and conditions of the RJRW Wage Subsidy Agreement must be satisfied before the Provider can make a payment to the Wage Subsidy Employer.

Real Jobs, Real Wages Wage Subsidy payments must not exceed 100 per cent of the Participant's wages at any point over the Wage Subsidy Placement period.



Wage Subsidy Employers must invoice the Provider to receive a Wage Subsidy payment and submit the required Documentary Evidence to support payment (see [Summary of Documentary Evidence](#) section).

7A.11.1. Calculating Payments for Early Terminations

If a Wage Subsidy Placement terminates prior to the Wage Subsidy Placement End Date, Providers must pay an adjusted amount of the Wage Subsidy payment for the period worked. The adjusted amount must be calculated by:

- paying the amount due at the next Wage Subsidy Milestone date, or
- paying Employers 100 per cent of wages earned up to the Participant's departure date, whichever applies.

All adjustments must be documented and approved in line with program integrity requirements.

Documentary Evidence must show the Participant earned 100 per cent or more of Wage Subsidy Payment amount over the period worked.

7A.11.2. Calculating Partial Schedule Payments

If a Participant earns lower than expected wages due to working fewer hours because of difficulties managing the transition to employment or due to their identified barriers at any Wage Subsidy Milestone date, Providers must pay an adjusted Wage Subsidy Payment for that period. The adjusted amount must be calculated by:

- paying the amount due at the next Wage Subsidy Milestone date, or
- paying Employers 100 percent of wages earned up to the Participant's departure date, whichever applies.

The initial payment may be reduced, with the difference redistributed across remaining payments. This approach helps manage risk while maintaining the total subsidy amount.

A payment may be withheld until the Participant's wages earned align with the agreed payment milestone/s. This ensures payments reflect actual progress.

All adjustments must be documented and approved in line with program integrity requirements.

Documentary Evidence must show the Participant earned 100 per cent or more of Wage Subsidy Payment amount paid over the period worked.

7A.11.3. Wage Subsidy Employers Not Registered for GST

The total maximum amounts of a Wage Subsidy specified in this Guideline are GST inclusive. Where a non-GST registered Wage Subsidy Employer submits a tax invoice for the correct amount of a Wage Subsidy to a Provider, the Provider must pay the Wage Subsidy Employer the amount (GST Exclusive).

When the Provider submits a claim for Reimbursement, the Department will pay the full (GST inclusive) amount. The Provider is responsible for remitting the GST inclusive amount to the Australian Tax Office.

7A.11.4. Documentary Evidence required from Employers

Documentary Evidence must confirm the RJRW Wage Subsidy Employer's details (including name and ABN) and the Wage Subsidy Participant's name.

Providers must obtain, upload and retain sufficient Documentary Evidence which demonstrates the Wage Subsidy Participant was employed by the Wage Subsidy Employer in the Wage Subsidy Placement in accordance with the terms and conditions of the Deed, Guideline, and RJRW Wage Subsidy Agreement to process a Wage Subsidy payment to an Employer and to claim Reimbursement from the Department.

RJRW Wage Subsidy



Documentary Evidence must include:

- evidence to confirm the RJRW Wage Subsidy Participant's Employment which demonstrates the regular working hours and wages paid for period nearest to the Wage Subsidy reimbursement point, which may be in the form of (but is not limited to):
 - a completed Wage Subsidy payment template (Refer to the refer to the [RJRW Supporting Document](#) for further information)
 - pay slips or a printout from the Wage Subsidy Employer's payroll software
 - a statutory declaration, email or other correspondence from the Wage Subsidy Employer, or
 - where a Wage Subsidy Participant's Employment ends prior to the Wage Subsidy Placement end date, a written statement of the reason why Employment ended.

Documentary Evidence must show the Participant earned more than 100 per cent of the Wage Subsidy amount at each payment point.

RJRW 12-month Secure Work Payment



Documentary Evidence must include:

- evidence to confirm the Wage Subsidy Participant's Employment which demonstrates the regular working hours for the period nearest to the 12-month point, AND
- the permanent status of their employment, which may be in the form of (but is not limited to):
 - a copy of an employment contract with the permanent work status and regular weekly hours
 - a completed Wage Subsidy payment template (Refer to the RJRW Supporting Document for further information)
 - pay slips or a printout from the Wage Subsidy Employer's payroll software, or
 - a statutory declaration, email or other correspondence from the Wage Subsidy Employer.

Providers may request the Employer provides additional Documentary Evidence relating to a RJRW Wage Subsidy Placement, RJRW Wage Subsidy Participant, and/or RJRW Wage Subsidy Agreement. In requesting additional Documentary Evidence, the Provider must ensure the Employer understands what evidence will be required, the purpose of the evidence, and the timeframe for providing the evidence, prior to approving the Wage Subsidy Agreement.

The Department will work with Employers and Providers in the RJRW Pilot to identify appropriate mechanisms to reduce administrative burden around Documentary Evidence.

7A.11.5. Provider Claims for Reimbursement

The Provider can only claim a Reimbursement for a Wage Subsidy payment if:

- all terms and conditions of the relevant Deed, this Guideline, the Real Jobs, Real Wages Supporting Document (where applicable) and RJRW Wage Subsidy Agreement have been met

- they have first made the relevant Wage Subsidy payment out of their own funds to the Wage Subsidy Employer
- the Reimbursement claim is for the same dollar value they paid the Wage Subsidy Employer, and
- they have sufficient Documentary Evidence to demonstrate the above which must be uploaded at the time of claiming Reimbursement.

7A.11.6. Time requirements for claiming a Reimbursement

Providers must submit all claims for Reimbursement no later than 56 days after the end of the Wage Subsidy Placement. This includes where a Wage Subsidy Placement terminates early.

For RJRW, Providers are encouraged to submit all claims for Reimbursement of Wage Subsidy payments within 56 days of the six-month Wage Subsidy period. The Wage Subsidy Agreement will remain active for 12 months, while a Participant remains in the job, to allow for reimbursement of the 12-month Secure Work Payment.

The Wage Subsidy Head Agreement requires Wage Subsidy Employers to notify Providers immediately if the Wage Subsidy Participant's Employment ends prior to the Wage Subsidy Agreement end date. In accordance with this, Providers must ensure that, where a Wage Subsidy Placement has terminated early, the correct Placement end date is recorded in the Department's IT Systems, and that claims for Reimbursement are submitted no later than 56 days from the end of the Wage Subsidy Placement.

Under the Head Agreement, Providers are required to make the final Wage Subsidy payment and the 12-month Secure Work Payment (where applicable) to the Wage Subsidy Employer where the Employer:

- requests the final Wage Subsidy and 12-month Secure Work Payment, and
- supplies the required Documentary Evidence for that payment to the Provider within 28 days from the end of the Wage Subsidy Placement.

Providers may choose to make the final Wage Subsidy payment and the 12-month Secure Work Payment (where applicable) to the Wage Subsidy Employer where they submit the required Documentary Evidence after the 28-day timeframe, if all other eligibility requirements are met. However, the Provider must claim the Reimbursement from the Department no later than 56 days from the end of the Wage Subsidy Placement.

7A.11.7. Recovery of Reimbursement Claims Paid

The Department may recover any Reimbursements made to the Provider, where the Department determines, at its absolute discretion that the Wage Subsidy Employer has:

- misused the RJRW Wage Subsidy, including, but not limited to, breaching clause 17 of the Head Agreement
- not met the terms and conditions of the RJRW Wage Subsidy Agreement
- been suspended and/or excluded by the Department from participating in Wage Subsidies, or
- otherwise engaged in activity that may bring, or could be perceived to bring, the use of RJRW Wage Subsidies or the Commonwealth of Australia into disrepute.

The Department may also recover any Reimbursement made to the Provider where the Department determines, at its absolute discretion, that the Provider has not met the requirements of the Deed, this Guideline and/or the [Real Jobs, Real Wages Supporting Document](#).

7A.11.8. Documentary Evidence from Provider

Providers must ensure Documentary Evidence demonstrates that payment was made to the Wage Subsidy Employer before claiming a Reimbursement. From 1 November 2025, Providers must upload all Documentary Evidence against the Wage Subsidy Agreement via the Reimbursements screen of the Department's IT Systems at the time of claiming Reimbursement.

As per the Privacy Chapter of the Workforce Australia - Part A: Universal Guidelines, Tax File Numbers must be redacted from any pay slips prior to being uploaded into the Department's IT Systems as Documentary Evidence to support Wage Subsidy payments.

Documentary Evidence may be in the form of a:

- record of transaction (bank statement or report from the Provider's financial system)
- tax invoice and corresponding receipt from the RJRW Wage Subsidy Employer
- tax invoice from the RJRW Wage Subsidy Employer and a remittance advice, or
- statutory declaration, email or other correspondence from the Provider.

The Documentary Evidence to support a claim for Reimbursement must confirm:

- the RJRW Wage Subsidy Participant's name and JSID
- the RJRW Wage Subsidy Employer's details (including name and ABN)
- the amount of the RJRW Wage Subsidy payment, and
- the date the RJRW Wage Subsidy payment was made.

Providers are also encouraged to include other relevant evidence (correspondence or file notes) to support payment integrity activities, particularly if there were unusual or complex circumstances that require explanation.

The Department can request additional Documentary Evidence from Providers relating to a RJRW Wage Subsidy Placement, RJRW Wage Subsidy Participant and/or RJRW Wage Subsidy Agreement from Providers, to support Program Assurance Activities. If Providers do not have this Documentary Evidence, they can request it from Wage Subsidy Employers, as per the Employer's obligations under the RJRW Wage Subsidy Agreement.

7A.12. Post placement support

Both the Department and Providers are responsible for post placement support for Participants and Employers. The level of post placement support is expected to vary according to the needs of the Participants and Employers.

Providers are expected to collaborate with the Department to provide post-placement support to Participants and Employers to maximise the success of RJRW Placements across the full 12 months of the Placement, including after a Participant is Suspended or Exited from a Provider's Caseload.

Providers should immediately advise the Department if a Participant reports any incidents of inappropriate or unsafe workplace behaviour and follow the appropriate departmental process and protocols.

7A.13. Provider Outcome payments

Providers may be eligible for Progress and Outcome Payments, where they comply with the requirements specified in the [Provider Payments and Vacancies Chapter](#).

When the RJRW vacancy type is selected, Outcomes will track with the same features as a Normal position. Therefore, Providers need to be aware:

- There will be no mandatory Documentary Evidence requirement enforced by the Department's IT Systems for Outcomes associated with the RJRW vacancy type.
- If the Employment is an Apprenticeship or Traineeship, the option to claim a Full Outcome via the system (based on full-time participation) will not be available for Outcomes associated with the RJRW vacancy type. If Providers wish to claim Full Outcomes based on participation in a full-time Apprenticeship or Traineeship they will need to submit a Manual Claim.

Please see the [Provider Payments and Vacancies Chapter](#) for more information.

7A.14. Engagement with continuous feedback and evaluation process

The RJRW Pilot will have a focus on continuous improvement. Providers are encouraged to collaborate with the Department to continually improve the experience for both Employers and Participants. This may be in the form of ongoing direct engagement with the Department or through surveys or other channels.

The RJRW Pilot will also have a formal evaluation, and the views of Providers will be incorporated into this process.

Chapter 8. Disability Support Pension Recipients (Compulsory Participation Requirements)

Supporting Documents for this Chapter:

- [Job Plan template for Disability Support Pension Recipients with Compulsory Requirements](#)
- [Workforce Australia Job Plan codes and requirements, by Participant Type](#)

8.1. Chapter Overview

This Chapter advises Providers of their responsibilities to Disability Support Pension Recipients (Compulsory Participation Requirements) (DSP recipients). These Participants are required to be engaged and participating in at least one compulsory activity to improve their employment prospects and increase their participation in paid work. This compulsory activity may include participation in Workforce Australia Services and will depend on an individual's circumstance.

DSP recipients without compulsory participation requirements are only eligible for the Online Base Service.

(Deed Reference(s): Clauses 139 and 141)

8.2. DSP recipient referrals to Workforce Australia Services

In most cases, DSP recipients who are under the age of 35 years with a work capacity of 8 or more hours per week (without a child under 6 years) will have compulsory participation requirements.

Services Australia will undertake an assessment of the DSP recipient's circumstances through:

- the application of the Job Seeker Snapshot, and/or
- an Employment Services Assessment (ESAt) or Job Capacity Assessment (JCA).

Based on the outcome of the assessment the DSP recipient may be referred to Workforce Australia Services.

Services Australia will book an appointment for the DSP recipient with a Workforce Australia Employment Services Provider and notify the DSP recipient of the appointment details.

8.2.1. Can people intending to claim DSP who are undertaking Program of Support receive Workforce Australia Services?

People intending to claim DSP who are undertaking a Program of Support (not eligible for Inclusive Employment Australia or the Remote Australia Employment Service) may be eligible for online or provider-led services while they undertake their Program of Support requirement if they are in receipt of an eligible income support payment. If not, they are only eligible for the Online Base Service.

8.3. Servicing

8.3.1. Initial Interview

All eligible Participants must receive an Initial Interview. When preparing for all Appointments, including the Initial Interview, Providers must consider any Site accessibility or other particular requirements of the DSP recipient and ensure these requirements are appropriately addressed. This consideration is based on details in the DSP recipient's record in the Department's IT Systems.

(Deed Reference(s): Clause 106.2(b)(ii))

8.3.2. Job Plans for DSP recipients

The Job Plan for DSP recipients is a Participation Plan for the purposes of Social Security Law.

Providers must negotiate and approve a Job Plan for DSP recipients at the Initial Interview. The Job Plan must be regularly reviewed and updated as necessary to take into consideration the individual's circumstances.

DSP recipients are not subject to a Points Requirement through the Points Based Activity System (PBAS) and must not have *PA09 Points Based Requirements* included in their Job Plan. Instead, they are required to have a Job Plan which contains at least one compulsory work-focused Activity and may also contain additional compulsory or voluntary Activities.

The process for creating or updating Job Plans for DSP recipients differs from the workflow for a Participant (Mutual Obligations). [See KB0017450 Job Plan – Creating, Updating and Finalising a Job Plan for DSP Recipients.](#)

Examples of Activities and interventions which may be included in a Job Plan for a DSP recipient are listed below.

Note: The Activities included should be based on the DSP recipient's individual barriers and circumstances.

- ET53 - Apprenticeship/Traineeship (Compulsory (C), Voluntary (V))
- ET59 – Study Part-Time or Full-Time (C,V)
- ET64 – Work Preparation (C,V)
- WE11 – Voluntary Work (C,V)
- WE12 – Work for the Dole (C,V)
- NV02 – Counselling (V)

Note: DSP recipients are not required to undertake Work for the Dole, or other agreed Activities, unless the Activity is included as their one compulsory item in their Job Plan.

Where a DSP recipient advises that they are claiming or receiving mobility allowance, the Provider must ensure that the Job Plan contains:

- to enable payment of the higher rate of allowance:
 - JS05 - 'Job Search with a Disability – Activity Tested' (C), or
- to enable payment of the standard rate of allowance, at least one of the following codes:
 - JS04 - Job Search Contacts (V)

- JS07 - Research and Prepare Applications (C,V)
- JS09 - Job Search monthly (C,V)
- JS10 - Job Interviews(C,V)
- ET64 - Work Preparation (C,V).

DSP recipients must enter into a Job Plan and must comply with the compulsory Appointments and Activities detailed in their Job Plan.

Where they fail to do so, the Provider must consider any change to circumstances before reporting non-compliance for DSP recipients to Services Australia. See the [Compliance section of this Chapter](#).

(Deed Reference(s): Clause 139, 141, 146)

8.3.3. Commencement

DSP recipients are automatically Commenced once the Provider records attendance at the Initial Interview and the DSP recipient has an approved Job Plan with the Provider.

It is the responsibility of DSP recipients to meet their compulsory participation requirements. However, it is important that Providers provide appropriate assistance, depending on the DSP recipient's circumstances and issues, to ensure they are able to maintain their attendance and participation at scheduled Appointments and activities.

8.3.4. Change of Circumstances

If a DSP recipient is unable to meet their compulsory participation requirements due to their circumstances the Provider should review the DSP recipient's Job Seeker Snapshot and conduct a Change of Circumstances Reassessment if it needs updating. The Provider can suggest to the DSP recipient that they discuss any changes of circumstances with Services Australia following the Change of Circumstances Reassessment if appropriate.

If, as a result of an ESAt, a DSP recipient with compulsory participation requirements is referred to Inclusive Employment Australia, the Provider must continue to deliver Services until the DSP recipient has commenced in Inclusive Employment Australia. Once they have commenced in Inclusive Employment Australia, the DSP recipient will be Exited from Services.

8.3.5. DSP recipients with compulsory participation requirements are not required to undertake Work for the Dole

DSP recipients with compulsory participation requirements are not required to undertake a Work for the Dole activity unless this is an agreed activity in their Job Plan. DSP recipients with compulsory participation requirements may be referred to other activities or Complementary Programs such as Voluntary Work, Observational Work Experience, Education and training courses or other Government programs where it is agreed in their Job Plan.

8.3.6. Compliance

DSP recipients must participate in the compulsory activities detailed in their Job Plan in return for Income Support Payments. Providers are responsible for monitoring the attendance and

engagement of DSP recipients in these activities as well as attendance at Appointments and attendance and engagement in compulsory activities.

Where a DSP recipient does not attend an Appointment with their Provider, the Provider must attempt to contact the DSP recipient on the day of non-attendance.

Where a DSP recipient does not attend an activity on a particular day or days, the Provider must attempt to contact the DSP recipient on the same Business Day that they become aware of the non-attendance.

Where contact can be made with the DSP recipient, the Provider must discuss the non-attendance with the DSP recipient and consider whether the DSP recipient has a reasonable excuse for the non-attendance.

Where contact cannot be made with the DSP recipient, Providers can decide whether it is appropriate to report the non-attendance to Services Australia. Providers must consider certain factors to ascertain whether the DSP recipient had a reasonable excuse, including the DSP recipient's:

- personal circumstances,
- system-recorded vulnerability indicators (if any),
- recent compliance history, and
- any other information the Provider believes is relevant.

Services Australia will investigate and determine what impact, if any, this should have on the DSP recipient's Income Support Payment.

The Provider should book another Appointment for the DSP recipient to attend following the submission of the report to Services Australia.

Where the Provider chooses not to report the non-compliance, they must use another engagement strategy to ensure the DSP recipient meets their compulsory participation requirements at the next available opportunity.

(Deed Reference(s): Clause 146)



The Provider must complete and submit a Disability Support Pension Activity Report to Services Australia through the Department's IT Systems where the Provider assesses that no reasonable excuse exists and they choose to report it. To do this, navigate to the 'create compliance' page in the Department's IT Systems, select the report and complete and submit. This must be submitted within 10 Business Days of the incident date.

8.4. Suspensions and Exits

8.4.1. Caseload Suspensions



Note: In this Caseload Suspensions section, the term Suspension has the meaning outlined in Attachment 1 – Definitions of the Workforce Australia Services Deed of Standing Offer 2022-2028. Suspension means a period of time as specified in the Department's IT Systems, during which a Participant is not obliged to participate in Workforce Australia Services – in effect they are 'suspended from the caseload'. The use of the word Suspension in this part, does not relate to the suspension of an Income Support Payment under the Targeted Compliance Framework.

DSP recipients with compulsory participation requirements can be Suspended from Service where:

- Services Australia applies an Exemption, or
- they have a temporary reduced work capacity of less than 8 hours per week.

Services Australia can grant temporary incapacity exemptions for DSP recipients with compulsory participation requirements for up to two years based on the medical practitioner's advice on the medical certificate. For further information see '[Getting a medical certificate](#)' on Services Australia's Website.

The Provider must provide Services if a Suspended DSP recipient with compulsory participation requirements wishes to voluntarily participate in Services. See KB0017166 - [Employment Systems Task Cards - Workforce Australia - Caseload - Adding a volunteer period for a participant](#).

Providers must resume delivery of services where a Suspension ends.

(Deed Reference(s): Clause 115, 116, 117)

8.4.2. Exits

A DSP recipient may be Exited from Services where they:

- are no longer in receipt of Income Support Payments, or are granted an Income Support Payment without compulsory requirements, or
- are no longer subject to compulsory participation requirements (for example, they turn 35 years of age or are reassessed by Services Australia as having a work capacity of 0-7 hours), or
- are undertaking a compulsory activity agreed with Services Australia that is not Workforce Australia Services, or they have commenced in Inclusive Employment Australia or RAES.

(Deed Reference(s): Clause 118)

Chapter 9. Pre-Release Prisoner initiative

9.1. Chapter Overview

Under the Australian Government's Pre-Release Prisoner initiative (the PRP initiative), Workforce Australia Services are available to people in custody to support them prior to release.

The PRP initiative provides wrap around support and assists people to build their vocational and non-vocational skills while in custody to decrease their likelihood of re-offending. These educational or employment activities may include work or training that leads or may lead to employment.

This Chapter explains the requirements for Providers when delivering this initiative.

9.2. Eligibility

To be eligible to Directly Register for Workforce Australia Services under the PRP initiative, people in custody must be:

- Within 12 months from their earliest possible release date,
- approved by corrective services or youth justice case managers,
- aged 15 years and over, and
- referred to a Workforce Australia Employment Services Provider by state or territory corrective or youth justice services.

People eligible for the PRP initiative are eligible Participants for Workforce Australia Services even while they are not on an Income Support Payment. People registered in PRP 'remain in legal custody' and do not qualify for any payment administered by Services Australia (see *Social Security Act 1991*, s 1158 23(5)).

9.3. Engage with corrective or youth justice services

Providers should establish links with corrective or youth justice services, so they are ready to receive referrals.

9.4. Referral and Registration of people in custody

Referrals are made by corrective and youth justice services. Refer to [Pre-Release Prisoner in the Direct Registration Chapter](#) for information on referrals and Direct Registration.

Once a person is referred to a Provider for the PRP initiative, the Provider must Directly Register them if eligible. For more information refer to the [Direct Registration](#) Chapter.

9.4.1. Apply the Pre-Release Prisoner indicator



Providers must apply the 'Pre-Release Prisoner' (PRP) special client type indicator to the Pre-Release Prisoner's Record in the Department's IT Systems when registering them.

9.4.2. If a Provider finds a person in custody is not eligible

If a person is referred to a Provider and does not meet PRP initiative eligibility criteria, the Provider must not Directly Register them and should advise the relevant state or territory corrective or youth justice service accordingly.

9.5. Servicing

People in custody receive the same level of Services that are available to any other Workforce Australia Participant.

Providers must deliver high quality case management based on the person's circumstances and servicing needs. Servicing needs may include wrap around supports, such as training, education and other activities that may support a person to achieve employment. What supports are required are identified with the person and their corrective services or youth justice case manager. Supports and services provided must not duplicate services being accessed through corrective or youth justice managed or delivered services.

People in custody do not have Mutual Obligation Requirements.

9.5.1. Employment Services Assessment (ESAt)

If an ESAt is required, the Provider should notify the appropriate corrective or youth justice services case manager that the person in custody requires a referral. Such notifications should be done through a communications protocol agreed between the Provider and corrective or youth justice services. Corrective or youth justice services need to be involved in the process and approve the referral for an ESAt. Refer to [Referring Participants for an Employment Services Assessment](#) section for further information.

Medical evidence can be faxed to Service's Australia National Business Gateway on 1300 786 102. Providers faxing medical evidence to the National Business Gateway must ensure that all documents:

- can be clearly read
- include the person's name, address (preferably post release) and Customer Reference Number (CRN), and
- are clearly identified as PRP medical evidence for an ESAt

Where fax is not available, or medical evidence needs to be provided quickly, the Provider can email medical records to the Services Australia Focus Response Team at FOCUS.RESPONSE.TEAM@servicesaustralia.gov.au.

Following completion of the ESAt by Services Australia, the Provider must destroy the person's medical records. The person's medical records are retained on the secure Services Australia IT system.

Refer to [Medical Evidence needed for the ESAt referral](#) section for details.

ESAts resulting in referral to a different Service

If the outcome of an ESAt recommends a different employment service, the Provider must not action the Referral.

The Provider should notify the Department of the recommendation. The Department will seek permission from the corrective or youth justice service for the recommended services and, if permission is granted, arrange for the person to be connected to the recommended services.

9.5.2. Using the Employment Fund

Providers may use the Employment Fund to assist people in custody registered for the PRP initiative.

Providers use their discretion in accessing the Employment Fund on behalf of people they are servicing. For more information refer to Employment Fund Chapter.

9.6. Release from custody

9.6.1. Income support assessment

People in custody who are soon to be released, including those who have recently been released from custody are assessed by Services Australia to determine their Income Support Payment entitlements and employment services eligibility.

9.6.2. Ceasing to be eligible for the PRP initiative

The Department removes the PRP special client type indicator after the person's release, if they are in receipt of an allowance. Where possible, Providers are encouraged to remove the flag as soon as they become aware the person has been released from custody.

People who have been released from custody are no longer eligible for Services under the PRP initiative.

Former people in custody who were registered to the PRP initiative who seek income support after release will be referred to the appropriate employment service by Services Australia.

Chapter 10. Retrenched Workers

10.1. Chapter Overview

The Department works with Commonwealth agencies, state, territory and local governments and regional stakeholders, including Workforce Australia Providers, to support people, employers and communities impacted by structural adjustment events. This may include business closures, company restructures and insolvency appointments.

This Chapter outlines how Providers register and deliver services to retrenched workers (and their partners) when they have lost their job, or if they are facing job loss, due to their employer making their position redundant.

A retrenched worker and/or their eligible partner can access employment services by:

- directly registering through the [Early Access initiative](#),
- directly registering in a specified [Structural Adjustment Program \(SAP\)](#); or,
- Services Australia referral, if receiving income support payments.

10.2. Early Access initiative

Through the Early Access initiative, retrenched workers and their partners are eligible Participants of Workforce Australia Services, regardless of whether they are in receipt of income support payments.

Retrenched workers and their partners can directly be registered for employment services when the worker receives notification from their employer they are expected to be retrenched within the next 3 months, or when they have been retrenched within the last 6 months.

Further information and resources for retrenched workers can be found on the Department's [What's Next](#) website.

To find out more about servicing retrenched workers under the Early Access initiative, Providers can undertake a course in the [Learning Centre](#) or contact their Provider Lead.

10.3. Structural Adjustment Programs

A Structural Adjustment Program (SAP) is a tailored workforce transition solution that may be implemented in exceptional circumstances, at the Department's discretion.

A SAP may:

- be implemented to assist retrenched workers (and their eligible partners) who are impacted by a significant structural adjustment event, such as a business closure, restructure, or insolvency.
- encompass a range of supports and services in instances where they are not otherwise available, or the capacity of existing services is exceeded.

A retrenched worker (and/or their eligible partner) can only be registered under one retrenched worker program. A SAP takes priority over Early Access as it offers a higher level of support.

There are currently no SAPs in place.

Guidance on registering and servicing Participants in any new SAPs will be issued to Providers as required. Guidance materials will outline any additional services available to SAP participants.

10.4. Assessing eligibility

Providers are expected to assess the eligibility of a retrenched worker or their partner, who will provide evidence of the retrenchment, including the expected retrenchment date or time frame.



Evidence of retrenchment can include:

- a termination letter
- certificate of separation
- notification of pending retrenchment
- other documentation, including payslips or a statutory declaration



Eligibility criteria for partners of retrenched workers:

- Partners of retrenched workers must satisfy the Provider that they are looking for work or looking for more work.
- Participants registering as a partner will be in a relationship if they are legally married; in a registered relationship; or in a de facto relationship.
- Evidence of partnership can include at least one of the following:
 - marriage certificate or evidence that the relationship has been declared to any relevant government bodies (for example: Centrelink or the Australian Taxation Office)
 - current evidence of living together (for example: lease or mortgage documents, council rate notices, utility bills)
 - evidence of joint financial obligations (for example: insurance policies, joint bank account statements).

Retrenched workers and their partners:

- are not required to apply for, or already be in receipt of, income support prior to accessing Workforce Australia Services.
- may be still employed when they register and start receiving assistance.
- may be referred to Workforce Australia Services by Services Australia, regardless of their eligibility for income support.

10.5. Registering Participants in a Structural Adjustment Program



Providers must Directly Register eligible Participants and select the Early Access Special Placement flag (or the specific SAP Special Placement flag, if applicable), in the "Special Client Type" field on the Participant's record.



If the Participant is referred from Services Australia or the NCSL, Providers must confirm the status of the Participant's registration and select the relevant Special Placement flag, as outlined above.

Providers may have Participants on their Caseload who were registered under a previous SAP. In these cases, the Participant's record in the Department's IT Systems will display a Special Placement Flag indicating their SAP.

Providers can refer to the [Direct Registration Task Card](#) for instructions on how to Direct Register Participants under Early Access (or a SAP, if relevant).

Providers can refer Participants to Services Australia for financial assistance, independent of Directly Registering them for employment services.

(Deed Reference(s): Clause 102.1 (b))

10.6. Servicing Early Access (and SAP) Participants

The Provider must conduct an Initial Interview for each SAP Participant in accordance with the Deed. At the Initial Interview, the Providers should explain to the Participant the Services they will receive.

Participants will generally not have Mutual Obligation Requirements on Commencement under Early Access or a SAP, as they are not required to be receiving income support payments to be eligible for employment services.

Any Participants in receipt of Income Support Payments will be subject to the same Mutual Obligation requirements as other recipients, including having an approved Job Plan.

Once the Participant is Commenced, the Provider must deliver Services to the Participant as an eligible Participant in accordance with the Deed, as well as per specific SAP Guidelines (if applicable), until they Exit Workforce Australia Services.

The Provider may ask the Participant to complete the Job Seeker Snapshot, to gain a comprehensive understanding of their circumstances and the type of assistance they need.

(Deed Reference(s): Chapter B2)

Chapter 11. Job Plan and Mutual Obligation Requirements

Supporting Documents for this Chapter:

- [Job Plan template for Participants with Mutual Obligation Requirements](#)
- [Job Plan template for Voluntary Participants \(eligible for Mobility Allowance\)](#)
- [Workforce Australia Job Plan codes and requirements, by Participant Type](#)
- [Labour market credits in Workforce Australia Provider fact sheet](#)
- [Points values for tasks and Activities in the PBAS Provider fact sheet](#)
- [Reporting tasks in PBAS Provider fact sheet](#)
- [Reporting Activities in PBAS Provider fact sheet](#)

11.1. Chapter Overview

This Chapter explains Providers' requirements relating to Job Plans and Mutual Obligation Requirements, including meeting a Points Requirement through the Points Based Activation System (PBAS).

Participants generally have Mutual Obligation Requirements in return for receiving Income Support Payments from Services Australia.

A Participant's Job Plan outlines their Mutual Obligation Requirements. Providers need to ensure that Participants with Mutual Obligation Requirements have a Job Plan in place at all times and that Participants understand their Mutual Obligation Requirements.

In a Participant's Job Plan, meeting a Points Requirement, which includes a Points Target and Job Search Requirement, is one of the core Mutual Obligation Requirements for a Participant. The maximum Points Requirement to meet each month is 100 points and this can be reduced based on a Participant's personal circumstances and local labour market conditions. Under the PBAS, Participants have flexibility and choice as to how they meet their Points Requirement. Participants can undertake tasks and Activities, including any Job Search Requirement to gain points to meet their Points Requirement, each month.

11.2. What is a Job Plan?

A Participant's commitment to participate in employment services in return for receiving an Income Support Payment is agreed through a Job Plan.

For the purposes of Social Security Law, a Job Plan is called an 'employment pathway plan' for Participants receiving participation payments and a 'participation plan' for Disability Support Pension Recipients (Compulsory Participation Requirements). Refer to [Job Plans for DSP recipients](#).

The Job Plan outlines what the Participant must do to participate in employment services, called their Mutual Obligation Requirements, which include:

- meeting a Points Requirement (including any Job Search Requirement) as displayed on their homepage, or as advised by their Provider, and reporting tasks and Activities through their homepage, or to their Provider
 - the homepage can be accessed by the Participant logging into their online account on the Workforce Australia website or app
- attending and acting appropriately during any compulsory Appointments (i.e., Appointments with their Provider or Appointments with third parties, of which the Participant is notified)

- following up on job referrals and opportunities the Participant is referred to by the Provider
- attending and acting appropriately during a job interview/s
- accepting any offer of a suitable job and not voluntarily leaving a suitable job
- taking responsibility to accurately record or report attendance at their requirements
- participating in a Mandatory Activity Requirement on the dates and times notified.

Providers must discuss the contents of the Job Plan with the Participant to ensure they understand what they are agreeing to do and the potential consequences of not agreeing to enter into the Job Plan or failing to meet their Mutual Obligation Requirements as outlined in the Job Plan.

Requirements that are not suitable for the person must not be approved. In determining requirements that are suitable, Providers must consider the person's capacity to comply with requirements, the person's needs and any other matters the Provider or person considers relevant.

Providers must also consider the employment pathway plan matters outlined in Social Security Law. These are:

- the person's education, experience, skills and age;
- the impact of any disability, illness, mental condition or physical condition of the person on the person's ability to work, to look for work or to participate in training activities;
- the state of the labour market and the transport or other options available to the person in accessing that market;
- the participation opportunities available to the person;
- the family and caring responsibilities of the person;
- the length of travel time required to comply with requirements in an employment pathway plan;
- the financial costs (such as travel costs) of complying with requirements in an employment pathway plan, and the person's capacity to pay for such costs.

(Deed Reference(s): Clause 106, 107, 108, 139, 141)

11.2.1. Explaining the Job Plan to the Participant

As part of the Initial Interview, the Provider must explain to the Participant:

- the purpose of the Job Plan
- their Mutual Obligation Requirements outlined in the Job Plan, including meeting a Points Requirement if they have one.

The Provider must ensure the Participant is aware of:

- the section entitled 'Information You Need to Know' in the Job Plan
- their rights and responsibilities under the Job Plan, including 'think time' to consider the Job Plan before agreeing to it
- particular circumstances that may result in adjustment to the Participant's Mutual Obligation Requirements, including the Points Requirement (as shown on their homepage or advised by the Provider), as detailed in these Guidelines and on the Department's website
- how to contact the Provider to give prior notice, or if unable to meet certain Mutual Obligation Requirements, and the consequences of not giving prior notice if the Participant is able to do so
- the consequences of failing to meet their Mutual Obligation Requirements as outlined in the Job Plan, including the Points Requirements
- their right to appeal decisions and where they can find assistance to do this

- how information is handled under privacy legislation and Social Security Law, and
- the Service Guarantee.

Explaining the Points Requirement

For Participants who have a Points Requirement, the Provider must ensure that the Participant understands that they must meet their Points Requirement which can be met through a variety of tasks and Activities using the PBAS.

- The Participant must meet a specified Points Target each month that is displayed on their homepage or as advised by their Provider, i.e., the number of points they must report to meet their Mutual Obligation Requirements
- The Participant must also complete a Job Search Requirement each month i.e. the number of Job Searches that they must report to meet their Mutual Obligation Requirements.
- If a Participant does not meet both their Points Target and Job Search requirement each month, they will not meet their Points Requirement
- The Participant must complete or attend tasks or Activities to earn points, for example 80 points of tasks and Activities and 20 points for 4 Job Searches to meet a Points Requirement of 100 points
- The Participant's Points Target will be tailored to recognise the Participant's personal circumstances and/or local labour market conditions
- The Participant's Points Reporting Period ends on the same day each month, and this date is displayed on their homepage, or is advised by the Provider
- If the Participant does not report sufficient points to meet their Points Target and achieve their Job Search Requirement by the end of their Points Reporting Period, the Participant may be subject to compliance action under the Targeted Compliance Framework (TCF). Refer to the [Targeted Compliance Framework and Mutual Obligations Failures](#) Chapter for further information
- The Participant reports the completion of tasks and attendance at Activities on their homepage or to the Provider
- The Participant can contact the Provider if they are unable to report their participation or attendance at an Activity and the Provider will report on their behalf
- If the Participant cannot meet their Points Target or Job Search Requirement, or has a change in circumstances, they must immediately advise their Provider and their Provider can adjust their requirements.

Note: The “Points values for task and Activities in the Points Based Activation System” fact sheet is available to provide to Participants in the Initial Appointment to assist in identifying suitable tasks and Activities to support their employment journey.

(Deed Reference(s): Clause 106, 107, 108, 109, 110, 138)

Interpreters, nominees and support persons

When a Participant requests, or if the Provider considers it appropriate, the Participant can bring a support person with them to review their Job Plan, including an interpreter.

Providers are required to use an interpreter to ensure that a Participant with language or hearing barriers understands their Mutual Obligation Requirements before they agree to the Job Plan.

Where a Participant has court appointed nominee arrangements in place due to an inability to manage their own affairs, for example with state and territory guardianship/financial management

orders in place, the nominee should be involved in the agreement of the Job Plan to ensure appropriate requirements for the Participant.

The Provider may also need to work with a Humanitarian Settlement Program Case Manager, who may accompany some humanitarian entrant (refugee) Participants. A Humanitarian Settlement Program Case Manager can provide advice on appropriate Employment strategies and Activities suitable to the Participant.

Note: A Humanitarian Settlement Program Case Manager is not an interpreter.

A Participant in full-time residential or intensive drug and alcohol treatment or rehabilitation should have an authorised correspondence nominee. The nominee will receive all of the correspondence and notifications sent from the Provider to the Participant.

(Deed Reference(s): Clause 16)

11.3. Creating a Job Plan

Provider and Services Australia employees have been delegated certain powers under Social Security Law including the power to require a Participant to enter into a Job Plan and to approve or update it.

At the Initial Interview, a Provider must create a Job Plan with each Participant with Mutual Obligation Requirements, including new Participants who do not have a Job Plan and Participants that have transferred from other Providers or from Workforce Australia Online to a Provider.

The following requirements are pre-populated into the Job Plan and cannot be removed. All Participants with Mutual Obligation Requirements must agree to and understand that they must undertake these requirements.

Table 11-A: Non-removable Job Plan codes

Job Plan code	Job Plan requirement (non-removeable)	Description
PA09	Points Requirement	The Participant is required to meet the Points Target (including any Job Search Requirement) displayed on their homepage, or as advised by their Provider, each Points Reporting Period. They must do this by accurately reporting their tasks and Activities through their homepage or to their Provider. Where the Participant is capable of and agrees to accurately report their own attendance at their requirements (i.e., agrees to a Job Plan with the PA03 - Personal responsibility requirement), they must record their tasks and Activities through their homepage. Where the Participant is unable to regularly report their tasks and Activities through their homepage (and agrees to a Job Plan without the PA03 - Personal responsibility requirement) the Participant will report their tasks and Activities to their Provider. The Provider must record these in the Department's IT Systems and help the

		Participant to manage their progress against their Points Target and Job Search Requirement. Refer also to Table 11-B below. In setting the Points Requirement, Providers must consider the factors and personal circumstances that may impact on a Participant's ability to comply with their Mutual Obligation Requirements, as specified in these Guidelines and the Social Security Law. For further information on setting requirements see Tailoring a Participant's Mutual Obligation Requirements.
JS13	Accept and retain suitable paid work	The Participant is required to accept any offer of suitable paid work and must not leave suitable paid work voluntarily.
PA12	Actioning job referrals and opportunities	The Participant is required to follow up on any job opportunities they are referred to by their Provider. This may include applying for specific jobs, accepting a job interview, contacting an Employer to arrange and accept a job interview and providing personal details to support a job opportunity.
JS10	Job interviews	The Participant is required to attend and act appropriately at job interviews (i.e., those that they are referred to by their Provider).
AI16	Compulsory notified Appointments	The Participant is required to attend and act appropriately during any compulsory Appointments. This includes Appointments with their Provider, or with third parties (e.g., meeting with a Work for the Dole supervisor to discuss an Activity).

The following requirement (PA03 – Personal responsibility) is pre-populated into the Job Plan; however, the Provider must remove it if it is not appropriate for a Participant, such as a lack of digital skills, no access to a computer and/or internet. If this requirement is kept in the Job Plan, the Participant must agree to and understand that they must undertake this requirement.

Table 11-B: Removeable Job Plan codes

Job Plan code	Job Plan requirement (removeable)	Description
PA03	Personal responsibility	The Participant is required to accurately record or report their attendance at their requirements. The Participant is required to accurately report their attendance on their homepage, by close of business on the day of the requirement, at the following compulsory requirements in their Job Plan:

		• third party Appointments (Note: Providers will be responsible for recording attendance at Provider appointments) • Provider scheduled job interviews • the Mandatory Activity (where applicable). The Participant is also required to accurately report the completion of tasks and confirmation of attendance at Activities through their homepage to gain points through the PBAS. To demonstrate personal responsibility, the Participant must be able to self-manage their requirements online, via their homepage, in the manner described above. PA03 is included in all new Job Plans by default. Where a Participant is identified by the Provider as lacking the ability to accurately report their own attendance and/or self-manage their participation online, this requirement must be removed. See Determining if a Participant can accurately record and report their participation online.
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The following requirements can be added into the Job Plan by the Provider, when required.

Table 11-C: Addable Job Plan codes

Job Plan code	Job Plan requirement (addable)	Description
PA15	Mandatory Activity Requirement (Work for the Dole)	Work for the Dole must be added to the Job Plan when the Provider determines that the Participant is required to undertake this requirement in accordance with the Guidelines. Once included in the Job Plan, failure to attend or behave appropriately may result in compliance action under the TCF. For more information refer to Activation and Mandatory Activity Requirement.
JS05	Job Search with a Disability – Activity Tested	Where a Participant advises the Provider that they are claiming or receiving the higher rate of mobility allowance, the Provider must ensure that the Participant’s Job Plan contains this requirement in order to trigger the higher rate of mobility allowance. Note: The standard rate of mobility allowance is triggered by having an approved Job Plan containing the Points Requirement (PA09).

Note: Under Workforce Australia Services, assistance codes are not included in a Participant's Job Plan. Providers can connect a Participant's identified barriers to the Points Based Requirement (PA09) item code and barriers can be addressed through participation in PBAS Activities.

(Deed Reference(s): Clause 106, 107, 108, 109, 110, 142, 143)

11.3.1. Determining if a Participant can accurately record and report their participation online

Participants should report their participation online, and manage their Mutual Obligation Requirements online, if they are able to do so.

In determining whether a Participant can self-manage their participation online, the Provider must consider whether a Participant is:

- capable of planning, managing, and reporting their Mutual Obligation Requirements, including if experiencing a short-term crisis
- able to use the online service themselves, or with appropriate support, by navigating to their homepage and reporting the tasks they have completed or reporting attendance at Activities.

This would include if the Participant has:

- connected their myGov profile to their Workforce Australia account or is willing to do so
- an ability to:
 - log on to the Workforce Australia website and/or app
 - view their homepage
 - report their own participation and tasks online to receive points during their Points Reporting Period.
- reliable access to technology such as a computer or smartphone and connection to the internet that would allow them to plan, undertake and record their participation
- an understanding of:
 - what they need to report and where they can find information on how to report points
 - what to do and who to contact if their circumstances may prevent them from meeting their Mutual Obligation Requirements in their Job Plan or monthly Points Requirement
 - the consequences of not reporting their Mutual Obligation Requirements by the notified date or not meeting their Points Target and Job Search Requirement by the end of their Points Reporting Period.

If a Participant is not capable of navigating and reporting online, the Provider must remove this requirement from their Job Plan and work with the Participant to improve their capability to accurately report and record their attendance and completion of requirements.

When the PA03 Personal responsibility requirement has been removed from the Job Plan, it is then the Provider's responsibility to record the Participant's participation against each of the Mutual Obligation Requirements scheduled in their Electronic Calendar by close of business on the day of the scheduled requirement. This includes reporting the completion of a task or attendance at an Activity.

Note: Where the PA03 Personal responsibility requirement has been removed from a Job Plan, Providers will receive reminder notifications via the Workforce Australia Online platform for

Providers under “Site tasks” at 15 and 5 days prior to the end of a Participant's Points Reporting Period to follow up and to report their requirements on behalf of the Participant. For guidance on reporting PBAS points, see the [KB0017339 - Employment - Systems Task Cards - PBAS – Reporting Points, Activities, Tasks and Job Search on Behalf of a Participant](#).

Note: Participants without the PA03 Personal responsibility requirement in their Job Plan are still required to be available to assist their Provider in confirming and recording their attendance at compulsory requirements.

When the Participant is capable of accurately recording and reporting their own attendance at their requirements, the Provider should update the Job Plan to add this requirement back into the Job Plan.

If the PA03 Personal responsibility requirement is included in the Job Plan, Participants agree to self-report and must record and report their attendance at tasks and Activities. The Provider must also monitor the Participant's daily attendance at compulsory Appointments, job interviews or the Mandatory Activity in their Job Plan to ensure attendance results are recorded in Department's IT Systems by close of business on the day of the requirement. If Providers observe Participants with PA03 Personal responsibility requirements are not routinely recording their own attendance, Providers should review whether the Participant is capable of accurately recording and reporting their own attendance at their requirements.

If an attendance result has not been recorded by close of business on the day of a third party Appointment, job interview or a Mandatory Activity, the Participant's payment may be put on hold.

Note: Participants without the PA03 Personal responsibility requirement in their Job Plan are still required to be available to assist their Provider in confirming and recording their attendance at these compulsory requirements.

When the Participant is capable of accurately recording and reporting their own attendance at their requirements, the Provider should update the Job Plan to add this requirement back into the Job Plan.

For further information on reporting tasks and Activities for a Participant, see [Meeting the Points Requirement](#).



For guidance on creating a Job Plan in the Department's IT Systems refer to [the Department's training resources](#).

(Deed Reference(s): Clause 110, 140, 143)

11.4. Review and Agreement of the Job Plan

Once the Job Plan has been created in the Department's IT Systems, the Provider must provide it to the Participant for their review and agreement.

Once the Job Plan is agreed and approved in the Department's IT Systems, the Participant is Commenced with the Provider. The Participant can agree to their Job Plan online, in person or over the phone.

The Provider is required to formally notify the Participant that they must agree to their Job Plan and advise them of the consequences of failing to do so. A script is available on the Department's IT Systems for the Provider to read to the Participant and includes a compliance warning that is

required to be given to Participants on potential consequences if they do not agree to the Job Plan within 2 Business Days.

The Participant can have up to 2 Business Days 'think time' to consider the requirements in the Job Plan and to agree to their Job Plan. Providers should tell the Participant that they can use this time to discuss the terms of the Job Plan with a third party if they wish.

Participants who do not enter into a Job Plan after 2 Business Days 'think time' will have 5 Business Days resolution time to address the failure by either agreeing to their Job Plan or providing a Valid Reason for the failure to avoid having their Income Support Payment suspended. If the Participant does not agree or provide a Valid Reason, their payment is suspended after resolution time.

For further information see the 'When a Participant commits a Mutual Obligation Failure' section of the [Targeted Compliance Framework and Mutual Obligation Failures Chapter](#).

(Deed Reference(s): Clause 108)

11.4.1. Participants agreeing to the Job Plan online

If a Participant has a Workforce Australia Online account, Providers can send a Job Plan to the Participant to review and agree to online through the Workforce Australia website or mobile app.

The Provider should inform the Participant that the Job Plan has been sent to their homepage for agreement. The 2 Business Days of 'think time' will commence at this point.

If a Participant has not agreed to their Job Plan by the end of those 2 Business Days, they will be notified that their payment will be suspended in 5 Business Days if they do not agree to their Job Plan.

When the Participant agrees to the Job Plan, the Job Plan status will automatically be set to 'approved' in the Department's IT Systems.

If a Participant cannot agree to a Job Plan online because they live in an area with unreliable connectivity or other similar reasons, the Provider needs to inform the Participant that they are required to agree to the Job Plan in person or over the phone.

(Deed Reference(s): Clause 108)

11.4.2. Participants agreeing to the Job Plan in person or over the phone

Job Plans can be agreed to by the Participant in person or over the phone when in contact with the Provider, including where the Participant does not have an online account.

The Provider is able to finalise and approve the Job Plan in the Department's IT Systems by confirming the Participant has read, understood and agreed to the Job Plan and the date the Job Plan was agreed.

Where approving in person, the Provider may print out a hard copy of the Job Plan for the Participant to read. Where approving over the phone, the Provider must read out the Job Plan requirements to the Participant.

The Provider must also always read out the notification scripts available in the Department's IT Systems.

These scripts include a compliance warning advising the Participant of the consequences of not agreeing to the Job Plan within 2 Business Days.

If a Participant accepts 'think time', Providers need to arrange and book a Provider Appointment for the Participant to occur in 2 Business Days so that the Participant can agree the Job Plan over the phone or in-person.

Once the Job Plan has been agreed and approved in the Department's IT Systems, the Participant will be able to access it from their homepage.



For guidance on sending a Job Plan to a Participant through the Department's IT Systems and for approving a Job Plan in the Department's IT Systems see the Knowledge Base Article KB0017291 [Job Plan - Creating, updating or withdrawing a Job Plan](#), or refer to the [Department's training resources](#).

11.5. Updating a Job Plan

A Job Plan must be reviewed and updated when the Participant:

- has a change in circumstances
- is required to undertake Work for the Dole as their Mandatory Activity Requirement and the Job Plan code PA15 – Mandatory Activity is added to the Job Plan and updated again when the Activity has been completed and it needs to be removed from the Job Plan
- requires PA03 – Personal responsibility to be added to or removed from their Job Plan to reflect the Participant's capability to self-manage their reporting
- has a Capability Interview or Capability Assessment where it is identified that there are errors in compulsory requirements, or the Participant is not capable of meeting their requirements based on their circumstances
- moves between Workforce Australia Online and Workforce Australia Services or changes Providers in Workforce Australia Services.

Note: Where a Participant that is Fully Meeting their Mutual Obligation Requirements has a Job Plan with Services Australia, the Provider should not negotiate a new Job Plan. Refer to the [Participants who are Fully Meeting their Mutual Obligation Requirements section](#) for details.

Every time the Job Plan is updated, Providers need to discuss the requirements with the Participant to ensure that they understand the changes that have been made.

The Participant must agree to the updated Job Plan either online, in person or over the phone and the Participant can have up to 2 Business Days 'think time' to consider the updated Job Plan.

If a Participant accepts 'think time', Providers need to arrange and book a Provider Appointment for the Participant to occur in 2 Business Days so that the Participant can agree the Job Plan over the phone or in-person.

Note: A Job Plan can only be updated if there is no compliance outstanding. If compliance action is outstanding, the Department's IT Systems will not permit the Job Plan to be updated and the Provider will be redirected to the compliance screen in the Department's IT Systems to resolve the non-compliance first.



For guidance on updating a Job Plan in the Department's IT Systems see the Knowledge Base Article KB0017291 [Job Plan – Creating, updating or withdrawing a Job Plan](#) task card, or refer to the [Department's training resources](#).

(Deed Reference(s): Clause 106, 107, 109, 143)

11.6. Arrangements for Participants (Voluntary)

Participants (Voluntary), including those who have been Directly Registered, are generally not required to enter into a Job Plan and do not have Mutual Obligation Requirements under Social Security Law. They do not use the PBAS and are not subject to the TCF. These participants will generally choose to undertake Activities, with the assistance of their Provider, in order to increase their capacity and opportunity to participate in and gain paid work.

In accordance with the Deed and these Guidelines, after Commencing the Participant (Voluntary), the Provider must discuss and determine suitable Activities that the Participant (Voluntary) will participate in during their Volunteer Period, or while otherwise commenced as a Participant (Voluntary).



The Provider must record in the Electronic Calendar on behalf of the Participant relevant details of those Activities, including Activity placement details and the Participant's subsequent attendance and completion of those Activities.



The Provider should record in the Department's IT Systems details of other assistance provided to the Participant (Voluntary), including matching them to suitable Vacancies and providing them assistance with applying for suitable jobs.

Where a Participant (Voluntary) advises the Provider that they are claiming or receiving (the higher or standard rate of) mobility allowance, the Provider must negotiate and approve with the Participant a voluntary Job Plan containing a suitable voluntary Activity. This plan is a voluntary agreement and is not a Job Plan as defined under Social Security Law.

Inclusion of the JS06 - 'Job Search with a Disability – Non-Activity Tested' (Voluntary) Activity in an approved voluntary Job Plan will enable payment of the higher rate of allowance. Under JS06, the Participant (Voluntary) agrees to look for work of more than 15 hours per week, at or above the relevant minimum wage.

Inclusion of the Activity JS04 - Job Search Contacts (Voluntary) will enable payment of the standard rate of allowance. Under JS04, the Participant (Voluntary) agrees to contact a certain number of Employers each fortnight. The Provider should enter a number greater than one that is agreed by the Participant and reflects the Participant's circumstances.

The Provider should support a Participant (Voluntary) who is claiming or receiving mobility allowance to look for work as appropriate by monitoring the relevant Job Search Activity.



The Provider must manage and record in the Electronic Calendar the voluntary Activity participation of those claiming or receiving mobility allowance as for other Participants (Voluntary), as specified in the Deed and Guidelines.

(Deed Reference(s): Clause 116)

11.7. Mutual Obligation Requirements

A Participant's Mutual Obligation Requirements must reflect their individual circumstances, be able to be met by the Participant, and are affected by factors such as a Participant's education, experience, skills and age, health, assessed work capacity, if they have primary responsibility for the care of a child, the financial costs (such as travel costs) of complying with the requirements in an employment pathway plan, and the person's capacity to pay for such costs, and any other personal circumstances that may impact their ability to meet their requirements or participate in Services.

Participants must meet **both** their Points Target and Job Search Requirement to meet their monthly Reporting Period requirement. If a Participant fails to meet one of these requirements, they will not meet their Points Requirement for that Reporting Period.

A Participant's Mutual Obligation Requirements must be tailored to the Participant which could include:

- adjusting the Participant's Points Target and Job Search Requirement
- scheduling Appointments or Activities to better suit the Participant
- tailoring Appointment arrangements such as holding Appointments by telephone or video call.

The maximum Points Requirement a Participant is required to meet each month is 100 points which generally includes 4 job searches equal to 20 points. If there are no adjustments to the Points Target or Job Search Requirement due to the Participant's personal circumstances and labour market conditions, the default target is set in the Department's IT Systems at 100 points (including 4 job searches) each Reporting Period.

(Deed Reference(s): Clause 105, 139)

11.7.1. Participants exempt from Mutual Obligation Requirements

If a Participant is temporarily unable to meet their Mutual Obligation Requirements, Services Australia may grant an Exemption for a specified period. This recognises the family and personal circumstances that Participants sometimes face.

The types of Exemptions that may be applied include, but are not limited to, the following situations:

- temporary medical incapacity
- pre and postnatal
- caring for children with a disability or other special family circumstances
- domestic violence
- newly arrived refugee within the first 13 weeks of entry to Australia
- other special family circumstances including if a:
 - Principal Carer Parent is a registered and active foster carer or providing foster care temporarily in an emergency, or on a respite, basis
 - parent is home schooling or facilitating distance education for one or more of the children or secondary pupil children for whom they are the principal carer or main supporter
 - Principal Carer Parent is caring for a family of 4 or more children aged 18 years or under
 - Principal Carer is a relative but not a parent of a child and the child is living with the Principal Carer in accordance with a family law order, or
 - Principal Carer is a relative but not a parent of a child (kin child) and the Principal Carer is caring for the wellbeing of that kin child in accordance with a document accepted by the state/territory that is responsible for the wellbeing of children.
- other special circumstances, including:
 - major personal disruption to the Participant's home
 - major personal crisis (including homelessness)
 - affected by declared natural disaster (for example, bushfires, flooding, or cyclone)
 - volunteering during a state or national emergency

- temporary caring responsibilities
- undertaking jury duty
- community service order for more than 20 hours per week
- attending a Defence Force Reserves training camp overseas
- being a newly protected witness or a newly arrived refugee (after the first 13 weeks but within their first 12 months on income support), or
- undertaking Indigenous cultural business.

If a Provider believes that the Participant does not have the capacity to meet their Mutual Obligation Requirements, the Participant must be advised to contact Services Australia to test their eligibility for an Exemption, on their normal payment phone line. If a Participant has applied for an Exemption and Services Australia is assessing that application, a Provider can reduce the Points Target and Job Search Requirement to zero while waiting for the Exemption to be granted.

From 1 January 2025 Services Australia can grant temporary incapacity Exemptions for up to two years based on the medical practitioner's advice on the medical certificate. For further information see ['Getting a medical certificate'](#) on Services Australia website.

Participants who are granted an Exemption will be Suspended from a Provider's caseload for the duration of the Exemption period. However, these Participants may voluntarily choose to continue engaging in employment services as a Participant (Voluntary). If a suspended Participant opts to participate voluntarily, the Provider is required to deliver the appropriate services. For guidance on how to record a volunteer period, refer to KB0017166 - [Employment Systems Task Cards - Workforce Australia - Activities - Adding a volunteer period for a participant](#).

Some Participants with longer-term Exemptions may be Exited from a Provider's caseload. Refer to [When are Participants Exited?](#) for further information on Exits.

Note: Some Participants considering an application for a Disability Support Pension may need to demonstrate that they have actively participated in a program of support to be eligible for the Disability Support Pension. Providers should advise these Participants that periods of Exemption will not count as participation in a program of support.

Note: Where an Exemption is applied for part of a Points Reporting Period, the Participant's Points Target will be pro-rated and an automatic reduction will be applied in the Department's IT Systems to reduce the Points Target and the Job Search Requirement. Providers can make further adjustments to the Points Target and the Job Search Requirement at any time during a period, or until the Exemption is granted. Similarly, if the Exemption is denied, Providers can still make manual adjustments to tailor the Points Target and Job Search Requirement to the circumstances of the Participant.

Note: Exemptions available for a Disability Support Pension Recipient (Compulsory Participation Requirements) may differ from exemptions for a Participant (Mutual Obligations). Further information on the exemptions available to a Disability Support Pension Recipient (Compulsory Participation Requirements) can be found at [3.6.1.120 Participation requirement exemptions for DSP recipients | Social Security Guide](#).

Participants subject to family and domestic violence

If a Participant discloses family and domestic violence, or a Provider has concerns that a Participant is experiencing, at risk or a survivor of family and domestic violence, Providers must discuss support

options and services available to them and offer referrals. This includes support provided by a Services Australia social worker and national or state-based organisations that offer advice and information about family and domestic violence.

Participants must consent to a referral to a Services Australia social worker or other services. If a Participant does not consent to a referral, Providers must provide them with contact information to support options and services to enable the Participant to contact services directly. If providing written information, Providers must ensure with the Participant that it is safe to do so. If Providers have concerns for a Participant's safety, or the safety of their children, and the Participant declines support, these concerns must be escalated with supervisors.

Providers must also consider whether concerns for the safety of children require reporting in line with state and territory requirements, and should refer to the [Commonwealth Child Safety Framework section in the Part A Guidelines: Operational Requirements Chapter](#) for more information, links and resources.

Providers notified of family and domestic violence as the reason for a Participant not meeting their Mutual Obligation Requirements must consider this in their assessment of whether or not the Participant had a Valid Reason.

If a Participant applies to Services Australia for an Exemption because they are subject to, or a survivor of family and domestic violence, Services Australia will assess whether an Exemption is granted and the appropriate length of the Exemption from their Mutual Obligation Requirements.

If a Participant has applied for an Exemption and Services Australia is assessing that application a Provider can reduce the Points Target and Job Search Requirement while the Exemption is being assessed.

Newly arrived refugees

Newly arrived refugees who volunteer to participate in provider-led services within their first 12 months on income support, should not have a Points Target or Job Search Requirements as they are not compellable. Newly arrived refugees are usually managed by Services Australia however they can be referred as a volunteer to participate in services offered by the Provider.

11.7.2. Participants who are Fully Meeting their Mutual Obligation Requirements

Some Participants are considered Fully Meeting their Mutual Obligation Requirements through sufficient participation in certain activities such as paid work, approved study, Voluntary Work or a combination of these.

Participants who are Fully Meeting their Mutual Obligation Requirements through an approved activity:

- will be suspended on their Provider's caseload,
- are not required to undertake any job search or participate in any additional activities,
- can elect to participate voluntarily with their Provider, and
- will be Exited, if participation in the approved activity will continue for 13 weeks or more (unless they elect to participate voluntarily with their employment services provider).

If the Participant has confirmed their engagement in an approved Fully Meeting activity but have not yet commenced, they will still have to participate in their Mutual Obligation Requirements (such as Job Search and attending Provider appointments if applicable) until they commence the Fully Meeting activity.

Providers should discuss the activities a Participant is doing and where a Participant is Fully Meeting through participation in certain approved activities or combination of activities, a Provider is expected to record the Participant as Fully Meeting their Mutual Obligation Requirements in the Department's IT Systems. See KB0017243 - [Employment Systems Task Cards - Workforce Australia - Activities - Recording Participants as Fully Meeting Mutual Obligations](#).

Services Australia can record a Participant as Fully Meeting their Requirements in most circumstances. This does not apply where the Participant is studying. Study in short term approved Education or training course(s) must be assessed by a Provider to Fully Meet Requirements.

Providers should only refer a Participant to Services Australia for assessment of Fully Meeting Requirements in limited circumstances. This includes situations where the Participant is undertaking paid work in the form of self-employment, or where the Participant is an early school leaver undertaking paid work as their sole activity, or where there is a system limitation.

Once either the Provider or Services Australia confirms the Participant is Fully Meeting their requirements and this activity is recorded in the Department's IT Systems, the Participant will be suspended on the Provider's Caseload and become Centrelink Managed.

If the Participant is expected to continue Fully Meeting their Requirements for 13 weeks or more they will receive a notification advising they will be exited from employment services in two weeks.

If the Participant wishes to remain with their employment service provider voluntarily, they may contact the Provider to request continued support. The Provider must then add a volunteer period to the Participant's record. For instructions on adding a volunteer period refer to KB0017166 [Workforce Australia – Caseload – Adding a volunteer period for a participant](#).

Note: If a Participant that is Fully Meeting their Mutual Obligation Requirements has a Job Plan with Services Australia, the Provider should not negotiate a new Job Plan. The Job Plan with Services Australia remains valid while the Participant continues Fully Meeting their Mutual Obligation Requirements. If the Job Plan with Services Australia expires and the Participant is still undertaking the Activity, they should be referred to Services Australia for the Job Plan to be updated.

A Participant Fully Meeting their Mutual Obligation Requirements may elect to participate voluntarily in Services as a Participant (Voluntary) while they are Suspended or Exited. See the [Commencements, Transfers, Suspensions and Exits Chapter](#) for more information on Participants voluntarily participating in Services.

If a Participant ceases Fully Meeting their Mutual Obligation Requirements, the Provider must resume delivery of Services. This would include engaging with the Participant to ensure they understand their Mutual Obligation Requirements and discuss appropriate tasks and Activities that the Participant can undertake to meet their Points Requirement.

Note: If a Participant is undertaking intensive drug and alcohol treatment or rehabilitation (such as full-time residential program) they are considered as meeting their Mutual Obligation Requirements and are not required to complete additional requirements (see [Participants who are meeting their Points Requirement](#) and [Tailoring a Participant's Mutual Obligation Requirements](#)).

For further information on the different cohorts of Participants and when they are Fully Meeting their Mutual Obligation Requirements see [Attachment 11A](#).

Voluntary Work Approval Process for Fully Meeting requirements

Under current policy only Provider Sourced Voluntary Work and voluntary work approved by Services Australia can contribute to a participant Fully Meeting their requirements. Participant Sourced Voluntary Work is not an eligible activity type for this purpose – unless it is approved (see below). Participant Sourced Voluntary Work should also not be created as an activity in the Department's IT Systems and is reported by Participants directly through their PBAS Reporting processes.

Both Employment Services Providers and Services Australia can approve voluntary work for Participants for the purpose of Fully Meeting their requirements.

If a person undertaking Participant Sourced Voluntary Work is eligible to use voluntary work participation to Fully Meet their requirements, then the Provider has the following options:

- Assist the Participant in accessing the Voluntary Work approval form on the Services Australia website for the Participant and voluntary work organisation to complete and submit the form to seek approval from Services Australia for the Voluntary Work placement, or
- Determine if the placement would be suitable as a Provider Sourced Voluntary Work and undertake the relevant steps to create Provider Sourced Voluntary Work placement (where the Provider deems this an appropriate activity for the Participant). See the Voluntary Work Chapter for more information on Provider Sourced Voluntary Work.
- Review the Participant Sourced Voluntary Work and determine whether it is suitable to meet the requirements outlined in the Guideline to Fully Meet their requirements. If so, the Provider should work with the Participant to assist them in Fully Meeting their requirements by creating a Provider Sourced Voluntary Work placement. See the Voluntary Work Chapter for more information on Provider Sourced Voluntary Work.

Note: When creating a Provider Sourced Voluntary Work placement for a Participant who will be Fully Meeting their requirements through voluntary work or a combination of activities that includes voluntary work, the Provider must ensure the duration of the placement in the Department's IT Systems does not exceed 364 days.

(Deed Reference(s): Clause 115, 116, 117)

11.7.3. Participants who are meeting their Points Requirement

Some Participants can meet their Points Requirement in the PBAS for the relevant Points Reporting Period through sufficient participation in certain tasks and Activities. These Participants remain on the Provider's caseload and continue to be serviced by the Provider while undertaking the tasks or Activities. They will also be required to undertake other Mutual Obligation Requirements outlined in their Job Plan.

Participants undertaking the following Activities will meet their Points Requirement if they undertake the Activity for their entire Points Reporting Period (4-week period).

- Local Jobs Program (high intensity level)
- Launch into Work
- Skills for Education and Employment

- Adult Migrant English Program (over 15 hours per week)
- Workforce Specialist Projects (high intensity level)
- Self-Employment Assistance Small Business training (up to 8 weeks – see note below)

Note: A Participant's Job Search Requirement will be automatically reduced to zero for the entire Points Reporting Period when the Participant reports their first attendance or weekly participation at one of these Activities in the Points Reporting Period.

Note: If a Participant stops undertaking one of these Activities during their Points Reporting Period they will earn points for the weeks attended but may not meet their Points Requirement for the entire Points Reporting Period. Providers are required to review the Participant's circumstances and consider supporting them in alternative activities to meet their Points Requirement or reduce their Points Requirement for the reporting period.

Note: Participants undertaking Self-Employment Assistance Small Business training are considered to be meeting their Mutual Obligation Requirements for a period of up to 8 weeks while they are undertaking this Activity. These Participants are therefore not required to undertake any additional Activities, such as attending Provider Appointments.

Other Activities that can meet a Participant's Points Requirement include:

- Participants undertaking, for more than 15 hours per week, an eligible Education and training short course that will improve their employment prospects – refer to the [Education and Training Chapter](#) for further guidance on determining approved courses
- Early School Leavers undertaking Education and training, or a combination of Education and training and part-time work, for the required hours per week (25 hours; or 15 hours for Principal Carer Parents or those with a Partial Capacity to Work of 15-29 hours per week)
- Participants undertaking full-time residential or intensive drug and alcohol treatment or rehabilitation
- Participants undertaking a Defence Force Reserves training camp (or 15 hours per week of Reserve service for a Principal Carer Parent)
- Participants who relocate for a job with relocation assistance through the Employment Fund.

Participants who:

- undertake full-time residential or intensive drug and alcohol treatment or rehabilitation, or
- undertake a Defence Force Reserves training camp, or
- relocate for a job,

are considered to be meeting their Points Requirement for the relevant Points Reporting Period regardless of the duration of the Activity. They do not have to be undertaking the Activity for the entire Points Reporting Period (4-week period).

Note: If participation in one of these Activities falls over two (or more) Points Reporting Periods, the Participant will meet their Points Requirement for each of those Points Reporting Periods.



Providers must reduce the Job Search Requirement to zero in the Department's IT Systems for Participants who are meeting their Points Requirement through participation in the following Activities:

- Early School Leavers undertaking Education and training, or a combination of Education and training and part-time work, for the required hours per week (25 hours; or 15 hours for Principal Carer Parents or those with a Partial Capacity to Work of 15-29 hours per week)



These Participants will meet their Points Requirement through participation, but a manual adjustment to reduce the Job Search Requirement is required. Further information in respect of Early School Leavers is set out below.



Providers will need to reduce the Points Target and Job Search Requirement to zero for Participants meeting their Points Requirement through participation in the following Activities:

- Participants undertaking full-time residential or intensive drug and alcohol treatment or rehabilitation
- Participants undertaking a Defence Force Reserves training camp (or 15 hours per week of Reserve service for a Principal Carer Parent)
- where the Participant relocates for a job with relocation assistance through the Employment Fund.

Example 1: A Participant undertaking an approved eligible accredited or non-accredited Education and training course for **more than** 15 hours per week will earn 80 points over the 4 week Points Reporting Period. Providers must reduce the Points Target by 20 points for a Points Target of 100 points, or a value of 10 points for a Points Target of 90 points, as well as reduce the Job Search Requirement to zero, using the Job Search reduction category 'undertaking full time course' for the period of study. For Participants with a Points Target below 80 points, the Provider is only required to reduce the Job Search Requirement to zero and the Participant will earn points to meet their Points Target.

Example 2: If a Participant is in full-time residential or intensive drug and alcohol treatment or rehabilitation for 1.5 weeks of the Points Reporting Period, or is undertaking a Defence Force Reserves training camp that runs for 2 weeks during a Points Reporting Period, the Participant will be considered to be meeting their Points Requirement for that entire Points Reporting Period and the Provider must reduce the Points Target **and** Job Search Requirement to zero.

Study and Training

Participants undertaking, for more than 15 hours per week, an approved eligible accredited or non-accredited Education and training course that will improve their employment prospects – refer to the [Education and Training Chapter](#) for further guidance on determining approved courses.

Generally, Providers will adjust the Points Target and Job Search Requirement by applying a personal circumstances credit. This allows Participants to meet their Points Requirement by reporting any points earned for undertaking the approved eligible Education and training short courses.

Note: Participants undertaking an eligible approved accredited or non-accredited Education and training course for more than 15 hours per week must have their Points Target adjusted and Job Search Requirement reduced to zero.



Providers must reduce the Points Target by 20 points if the Points Target is set at 100 **and** reduce the Job Search Requirement to zero in the Department's IT Systems for Participants who are meeting their Points Requirement through participation.

11.7.4. Tailoring a Participant's Mutual Obligation Requirements

Participants with Mutual Obligation Requirements (including the Points Target and Job Search Requirement) must be tailored to the Participant's circumstances, which could include assessed work capacity, caring responsibilities, and age.

Mutual Obligation Requirements for Principal Carer Parents

A Principal Carer Parent's family and caring responsibilities must be considered when setting Mutual Obligation Requirements, including setting their Points Target. At the start of each Points Reporting Period, Participant's Points Target will be reduced automatically by 40 points in the Department's IT Systems for a Principal Carer Parent with a child aged 6 years or over, in recognition of their ongoing family and caring responsibilities.

Note: For any Principal Carer Parent participants with a child under 6 years old who are receiving an income support payment other than Parenting Payment will require Providers to manually add a points reduction of 40 points in the Department's IT Systems for each Points Reporting Period whilst the child is in care and has not turned 6.



Providers must manually reduce the points target by 40 points for any Principal Carer Parent with a child under 6. This can be done for six months at a time until the child turns 6. Providers should use the reduction type 'Principal Carer Parent' for the manual reduction in the Department's IT Systems.

Providers should also consider tailoring the Job Search Requirement each reporting period to ensure that it is reasonable with the Participant's caring responsibilities.

Providers can use their discretion to further tailor a Participant's Points Requirement dependent on the Participant's circumstances, noting these Participants may have more onerous caring responsibilities than those with school age children. Providers should do this in discussion with the Participant and communicate any changes clearly.

Note: Providers also have flexibility to apply manual reductions of any amount for any Participant who has short-term caring responsibilities.

During school terms, face-to-face Provider Appointments and participation in Activities should be scheduled during school hours (generally between 9.00 am to 3.00 pm) unless otherwise agreed to by the Principal Carer Parent. Providers must not cause Participants to feel pressured to agree to requirements which would result in minors being left unsupervised.

Providers will still be able to set requirements at times outside school hours, including weekends. However, Providers must discuss this with the Principal Carer Parent to ensure they are available at that time and record the Principal Carer Parent's availability in the Department's IT Systems. This information will be attached to the requirement.

If a Principal Carer Parent is unable to obtain suitable childcare during the school holiday period, the Provider should work with the Participant and consider alternative arrangements to support the Participant in meeting their Mutual Obligation Requirements.

Example: While Principal Carer Parents are not required to attend face-to-face Appointments with their Provider during school holidays, they may engage with their Provider through other means, such as by telephone or virtually via FaceTime etc.

A Principal Carer Parent can Fully Meet their Mutual Obligation Requirements through sufficient participation in certain Activities. See [Participants who are Fully Meeting their Mutual Obligation Requirements](#) for further details.

Mutual Obligation Requirements for Participants with a Partial Capacity to Work (PCW) or temporary reduced work capacity (TRWC)

Participants assessed by Services Australia as having a PCW or TRWC of 15-29 hours per week must have their work capacity considered when setting Mutual Obligation Requirements, including setting their Points Target. At the start of each Points Reporting Period, a Participant's Points Target will be reduced automatically by 40 points in the Department's IT Systems to recognise a PCW. For TRWC Participants, the Points Target must be manually reduced by the Provider.

These Participants will be required to attend Provider Appointments, where notified.

Participants with an assessed PCW or TRWC of 15-29 hours per week can fully meet their Mutual Obligation Requirements through sufficient participation in certain tasks and Activities. See [Participants who are Fully Meeting their Mutual Obligation Requirements](#) for further details.

The Department's IT Systems will determine the work capacity for Mutual Obligation Requirements based on information contained on the Participation Profile, from the higher of the Participant's 'Baseline' or 'With Intervention' work capacity in their ESAt or JCA. See KB0013247 [Employment - Digital Solutions Support - Temporary Reduced Capacity to Work \(TRWC\) and Partial Capacity to Work \(PCW\) Suspensions](#) for further details.

Participants with a PCW or TRWC of 0-14 hours per week will be managed by Services Australia and be required to attend quarterly interviews with Services Australia. The Participant does not need to be connected to a Provider but can volunteer to receive assistance.



For Participants with a TRWC, Providers must manually reduce their Points Target by 40 points and consider tailoring the Job Search Requirements in the Department's IT Systems.

Mutual Obligation Requirements for mature age Participants

For Participants aged 55 years and over, their age must be considered when setting Mutual Obligation Requirements, including setting their Points Target. At the start of each Points Reporting Period, a Participant's Points Target will be reduced automatically by 40 points in the Department's IT Systems to recognise their age.

These Participants will be required to attend Provider Appointments, where notified.

Participants aged 55 years and over can meet their full-time Mutual Obligation Requirements through sufficient participation in certain tasks and Activities. See [Participants who are Fully Meeting their Mutual Obligation Requirements](#) for further details.

Mutual Obligation Requirements for Participants receiving Carer Allowance

From 1 April 2025, Participants who are in receipt of Carer Allowance will receive a reduction of their Points Target. At the start of each Points Reporting Period, a Participant's Points Target will be reduced automatically by 40 points in the Department's IT Systems to recognise their caring responsibilities. Providers are still required to consider if other reductions are appropriate.

For Participants who are not in receipt of Carer Allowance, but still have caring responsibilities, Providers should consider any personal circumstances that may impact their ability to meet their Mutual Obligation Requirements and reduce their Points Target and Job Search Requirement accordingly.

Carer Allowance recipients can fully meet their Mutual Obligation Requirements through sufficient participation in certain tasks and Activities. See [Participants who are Fully Meeting their Mutual Obligation Requirements](#) for further details.

Note: Providers can check the Department's IT Systems on the Manage Reductions screen which will show if the Participant is receiving a Carer Allowance reduction.

Mutual Obligation Requirements for Early School Leavers

An Early School Leaver is a person who receives Youth Allowance (other), is under 22 years of age and has not completed Year 12, the final year of secondary school or an equivalent Australian Qualifications Framework Certificate III level or above.

Until they turn 22 years of age or, if sooner, attain Year 12 or an equivalent qualification, Early School Leavers are generally required to participate in:

- Education or training, including Certificate I and II level courses, for the required hours; or
- a combination of Education and training, and paid work for the required hours; or
- other approved Activities for the required hours and completing any Job Search Requirement.

The required hours are:

- 25 hours per week or
- 15 hours per week for Principal Carer Parents and those with a PCW of 15 to 29 hours per week.

An Early School Leaver who is placed in an approved Education or training course(s) by their Provider, and who undertake that Education and training alone, or in combination with paid work, for the required hours should meet their Points Target through that participation alone, without needing to meet the Job Search Requirement.

Early School Leavers who are also a Principal Carer Parent, in receipt of Carer Allowance or have a PCW of 15 to 29 hours per week can Fully Meet their Mutual Obligation Requirements by undertaking 30 hours per fortnight of paid work, approved Education or training and/voluntary work.

The Provider should closely consider the Early School Leaver's circumstances, including being a Principal Carer Parent or having a PCW of 15 to 29 hours per week, and reduce their Points Target appropriately.

An Early School Leaver's participation for the required hours in Education and training, a combination of Education and training and paid work, or other approved activities should enable them to meet their Points Target.

The Provider must ensure that the Job Search Requirement has been reduced to zero for each reporting period in which the Early School Leaver is meeting their requirements through Education or training, or a combination of Education and training and paid work.

Only Services Australia can verify a Year 12 or equivalent qualification to determine whether a young person is no longer an Early School Leaver.

Once an Early School Leaver turns 22 years of age or, if sooner, has completed Year 12 or an equivalent qualification, they will no longer be an Early School Leaver. They will be subject to the Mutual Obligation Requirements that apply to other Participants.

Early School Leavers Fully Meeting through paid work alone will not be suspended from employment services due to a system limitation. Eligible Participants will require Services Australia to record the Fully Meeting activity (recorded as Youth activities).

 If a Participant advises that they have completed Year 12 or an equivalent qualification, Providers should encourage them to upload evidence of this to Services Australia via their [Centrelink online account - Services Australia](#). Further guidance on how to do this can be found at: [What you can do with your Centrelink online account - Centrelink online account - Services Australia](#).

 If a Participant does not have a Centrelink online account, refer to the [Contact us - Accessing our services - Services Australia](#) page on the Services Australia website for alternative ways the Participant can provide this information.

(Deed Reference(s): Clause 111, 116)

Mutual Obligation Requirements for Participants undertaking drug or alcohol treatment or rehabilitation in a residential program

If a Provider identifies or becomes aware that a Participant's ongoing capability to meet their Mutual Obligation Requirements is reduced due to a drug or alcohol dependency, the Provider should discuss this with the Participant to identify rehabilitation options that would assist the Participant to address their dependence.

Participants undertaking intensive drug and alcohol treatment or rehabilitation (such as a full-time residential program) are considered as Fully Meeting their Mutual Obligation Requirements and are not required to complete additional requirements. Providers must ensure that no other requirements, such as Provider Appointments or job interviews are scheduled while the Participant is in residential rehabilitation.

Staff of residential programs and intensive treatment programs have an Implied Authority to act on behalf of an individual attending their facility. The Provider must be satisfied they are speaking with a staff member of the residential program and appropriately record the information in the Department's IT Systems.

Verbal notification of commencement into the treatment program and release is sufficient. Participants or treatment facilities are not required to provide written evidence of their participation in treatment programs.

If the Participant is undertaking alcohol or other drug dependency treatment (such as counselling sessions) or is already doing so when they enter Workforce Australia Services or transfers from another Provider, the Provider must schedule it in the Participant's Electronic Calendar and notify the Participant. Note: This does not apply for full-time rehabilitation treatment.

The Provider should record any information regarding the Participant's participation (or refusal to participate) in treatment services in the Capability Management Tool (CMT), in the Department's IT Systems.

The following circumstances should be recorded in the CMT as appropriate:

- the Participant has accepted and is currently participating in services
- services are not available in the Participant's area of residence
- there is a waiting list to participate in treatment
- the Participant has refused to participate in treatment.



Providers must reduce both the Points Target and the Job Search Requirement to zero for each Points Reporting Period where a Participant is participating in full-time or intensive drug or alcohol treatment in a residential program.

(Deed reference: Clause 137, 139, 140)

Mutual Obligation Requirements for Participants undertaking paid work (including self-employment)

Participants can undertake paid part-time or casual Employment, including freelance and irregular work, at any stage and are generally required to accept any suitable work, including casual or part-time work, that is offered to them.

In line with the Social Security Guide, for any hours of Employment to count towards a Participant's Mutual Obligation Requirements, that employment must be for an appropriate level of remuneration and meet the sufficient work test.

Where Participants have paid work that accrues annual leave (permanent full time or part time) and are able to take that annual leave, the period of annual leave is considered as paid work for that number of hours and also can be reported for paid work hours to accrue points.

Note:: Participants that undertake paid casual work or on a contract that does not accrue annual leave, cannot report leave as paid work for points and will therefore be required to undertake other Activities to meet their requirements.

Participants engaged in paid work, including self-employment, must report their paid work to both Workforce Australia (via the PBAS) and to Services Australia. These are two separate reporting requirements and reporting to one, does not satisfy the requirement to report to the other. Further information on freelance and irregular work can be found in the [Mutual Obligations, freelancers and self-employed workers factsheet](#).

Calculating hours of paid work to report points

Depending on how a Participant is paid, they may need to calculate how many hours of work are counted towards their Mutual Obligation Requirements under the sufficient work test. If a Participant reports paid work to count towards their Mutual Obligation Requirements, it is important to note that a job search requirement may still apply.

If the income received is at least (or above) the applicable legal hourly rate (usually the National Minimum Wage or applicable occupation award wage), the Participant's total hours of Employment for a period can be reported. Participants must record their hours via the 'Earn and Report points' page through their Workforce Australia account to earn points towards their monthly Points Target.

If the income a Participant receives works out to be less than the National Minimum Wage or applicable occupation award wage (for example, where a Participant is self-employed), the number

of hours which count towards a Participant's Mutual Obligation Requirements can be calculated under the sufficient work test. This is done by dividing the income received by the legal hourly rate.

Further information on the sufficient work test can be found at [3.11.3.20 Employment | Social Security Guide \(dss.gov.au\)](#).



Providers can enter paid work hours on behalf of Participants.

Note: At the end of the Points Reporting Period, the Department's IT Systems will round up the total paid work hours and attribute the appropriate number of points earned. For more information please refer to [Points values for tasks and Activities in PBAS Participant factsheet](#).

11.7.5. Reporting 60 hours of paid work

Participants in Workforce Australia Services who have reported 60 hours or more of paid work in a monthly Points Reporting Period (equivalent to 30 hours per fortnight) and have confirmed in the Department's IT Systems that work will be ongoing for more than two Points Reporting Periods, will not have compliance applied for non-attendance at Provider Appointments.

The Department's IT Systems will automatically prevent the application of compliance for non-attendance at Provider Appointments for the next two Points Reporting Periods. However, requirements like attending Capability Interviews, completing Job Search or meeting their Points Target will remain unchanged and compliance may be applied. For more information, refer to [Reporting 60 hours of Paid Work - Provider Fact Sheet](#).



Where the Provider is reporting paid work hours on behalf of a Participant they must complete the 60 hour paid work declaration. See [Employment Systems Task Cards - Workforce Australia - Compliance – Completing the 60-Hour Paid Work Declaration and Non-Compellable Appointments](#).



Providers must record the reason for reinstating compellable Appointments, as well as details of any Participant discussions and contact attempts, in the comments section of the Department's IT Systems.

Mutual Obligation Requirements for pregnant Participants

Providers must consider a pregnant Participant's personal circumstances when setting their Mutual Obligation Requirements. Pregnant Participants:

- from 3 months before their due date, will not have a Job Search Requirement and Providers must manually adjust the Job Search Requirement to zero in the Department's IT Systems. Providers should consider adjusting their Points Target taking the pregnancy and other personal circumstances into account. During this time, Providers cannot compel these Participants to accept job offers or referrals to job interviews. These Participants can be required to attend Provider Appointments up to 6 weeks before the expected due date, where notified.
- from 6 weeks before the expected due date and until 6 weeks following the birth of the child, will have an Exemption from all of their Mutual Obligation Requirements.
- may also have an Exemption from all their Mutual Obligation Requirements if it would be unreasonable to expect them to comply or if a Services Australia delegate is satisfied in all the circumstances that the Participant should not be required to comply.

Mutual Obligation Requirements for Real Jobs, Real Wages (RJRW) Pilot

Participants who participate in a RJRW placement will meet their Points Requirement, including the Points Target and Job Search Requirement.



Providers must manually reduce both the Points Target and Job Search to zero for the duration of the RJRW placement (up to a maximum of 6 months). If a placement is longer than 6 months, the Provider must confirm with the Participant that they are still participating in the placement and if so, then reduce the Points Target and Job Search to zero for the remainder of the placement.

At the end of the placement, the Points Target and Job Search will revert to usual settings at the commencement of the next reporting period. Where a Participant leaves the placement early, the Provider must end the placement in the Department's IT Systems and remove the reductions in the future reporting periods.

Note: reductions cannot be removed in the Participant's current reporting period.

For additional information on the RJRW Pilot refer to [the Real Jobs Real Wages Pilot Chapter](#).

Mutual Obligation Requirements for WorkFoundations

Participants who participate in a WorkFoundations placement will meet their Points Requirement, including the Points Target and Job Search Requirement for the duration of the placement.



Providers must manually reduce both the Points Target and Job Search to zero for the duration of the WorkFoundations placement.

At the end of the placement, the Points Target and Job Search will revert to usual settings at the commencement of the next reporting period. Where a Participant leaves the placement early, the Provider must end the placement in the Department's IT Systems and remove the reductions in the future reporting periods.

Note: Reductions cannot be removed in the Participant's current reporting period.

For additional information on the WorkFoundations refer to the [WorkFoundations Chapter](#).

Tailoring the Points Requirement to reflect a Participant's circumstances

Under Workforce Australia, the Points Requirement, which includes the Points Target and Job Search Requirement, must be tailored to recognise the Participant's personal circumstances and/or local labour market conditions. It is important to take into consideration all factors that might impact a Participant's ability to meet their Points Target and Job Search Requirement. Consideration of the impact for the Participant to meet their requirements for the current and next reporting period is crucial.

Example 1: If a Provider applies a 30 point reduction, the Points Target will be reduced from 100 points to 70 points. This does not include any automatic reductions.

Example 2: A Participant is aged 60 years old with a disability. The Provider can apply a points reduction in addition to the automated 40-point mature age personal circumstances reduction. Providers can apply a reduction in 5-point increments. If they applied a reduction of 20 points for the disability, the Participant's Points Target would reduce by a total of 60 points.

Example 3: A Participant discloses they have low literacy skills and other barriers to employment. The Provider decides to apply a points reduction of 30 points to recognise their level of literacy skills. The reduction is applied for two reporting periods to allow the Participant to work towards addressing their barriers. The Provider also reduces the Participant's Job Search target for the same period.

Example 4: A Participant that is a Principal Carer Parent will receive an automatic 40-point reduction to their Points Target. The Participant also lives in a region identified by the Department as being a difficult labour market, but an automatic reduction has not occurred. The Provider can apply at least a 20 point reduction or more, depending on the Participant's circumstances and reduce the Job Search target from 4 to 3, 2 or 1. The Participant would then have a Points Target of 40 and a reduced Job Search target.

Automatic reductions to the Points Target

At the start of each Points Reporting Period, reductions will be automatically applied in the Department's IT Systems to tailor the Points Target to recognise the following circumstances:

- Participants residing in employment regions with poor or below average labour market conditions, as set out in the '[Labour Market Credits in Workforce Australia](#)' fact sheet.
- A total of 40 points for one or more of the following personal circumstances:
 - Partial Work Capacity (15-29 hours per week)
 - Principal Carer Parent with a child aged 6 years or over
 - Mature Aged (55+ years)
 - Receiving Carer Allowance.

Note: Participants residing on the boundary of an Employment Region listed in the 'Labour Market Credits in Workforce Australia' fact sheet or do not reside in an Employment Region listed can have their Points Target manually tailored to recognise the local labour market conditions in the area they reside in by applying a points reduction. Points targets must be appropriate for individual circumstances.

Note: Providers must manually reduce the Points Target and Job Search Requirement for TRWC Participants.

Note: Automatic reductions are applied once per Points Reporting Period and Participants can only receive a maximum of one automatic labour market reduction and one automatic personal circumstances reduction. In instances where a Provider has manually applied a reduction for one or more of the above circumstances, an automatic reduction will not be applied in the Department's IT Systems.

Note: Where a Participant's circumstances change during a Points Reporting Period, such as where a Participant turns 55 part-way through their Points Reporting Period, Carer Allowance or a Partial Work Capacity is granted part-way through the Points Reporting Period, the reduction to the Points Target will be applied in the same Points Reporting Period.

Manually tailoring the Points Requirement

In consultation with the Participant, the Provider must consider the Participant's personal circumstances and local labour market conditions to appropriately tailor requirements, including both the Points Target and Job Search Requirement.

Consistent with section 40F of the *Social Security (Administration) Act 1999*, Providers must consider the circumstances listed below and, where applicable, apply credits accordingly:

- The Participant's education, experience, skills and age.
- The impact of any disability, illness, mental condition or physical condition of the Participant on their ability to work, to look for work or to participate in training activities.
- The state of the labour market (regardless of whether the Participant is in an Employment Region which is automatically eligible for a labour market credit).
- Their transport or other options available to the Participant in accessing that labour market.
- The participation opportunities available to the Participant.
- The family and caring responsibilities of the Participant.
- The length of travel time required to comply with requirements in their Job Plan.
- The financial costs (such as travel costs) of complying with requirements, and the Participant's capacity to pay for such costs.

Providers must also consider the Participant's needs and their capacity to comply with the requirements, as well as any other matters the Provider or Participant considers relevant. These may include (but are not limited to):

- TRWC
- Community service orders for less than 20 hours per week (noting that Participants cannot meet their Points Requirement by undertaking a community service order unless Services Australia have applied an Exemption)
- Homelessness and/or emergency housing
- Drug and/or alcohol dependency
- Other barriers to employment
- Observance of cultural or religious beliefs.

Providers can reduce a Participant's Points Requirement as needed due to the personal circumstances of the Participant. Providers should also refer to [Participants exempt from Mutual Obligation Requirements](#) for Exemptions that may be applied by Services Australia. Where a Participant's circumstances are such that they may be temporarily unable to meet any requirements, Providers should encourage the Participant to contact Services Australia to discuss an Exemption.

Reductions are to be applied in 5 point increments and can be applied in any amount to reflect the Participant's circumstances and capacity to comply with the requirements. Providers should record the reasons for tailoring the Participant's Points Requirements within the comments section of the Department's IT Systems.

Reductions can be applied to a single Points Reporting Period or set to apply for consecutive Points Reporting Periods totalling up to 6 months (i.e., up to 6 consecutive Points Reporting Periods). The Points Requirement can only be set at a higher level in the next Points Reporting Period.

Note: The Points Target and Job Search Requirement should only be reduced to zero for short periods of time (with the exception of circumstances outlined in these Guidelines such as Full-time residential rehabilitation). If a Participant's circumstances could result in a longer period, the Participant should be encouraged to contact Services Australia for consideration of an Exemption.



Providers will be prompted in the Department's IT Systems when reducing the Points Target, to consider whether a reduction to the Job Search Requirement is required, or appropriate.

The Provider can apply a reduction at any time during a Points Reporting Period if an adjustment to the Points Requirement is required to reflect a Participant's change in circumstances.

Note: Before applying reductions to more than one Points Reporting Period, Providers should take into consideration any future automatic credits the Participant will receive.

Examples:

- 60 points for a mature age Participant with a disability.
- 30 points for a Participant aged 45+ years with other barriers to employment.
- 50 points for a Principal Carer Parent with a temporary illness during the Points Reporting Period.
- 15 points for a Participant that has to spend 3 days of the Points Reporting Period travelling to attend a cultural ceremony.

When setting the Points Target and Job Search Requirement, the Provider should review any barriers identified through an ESAt or JCA. The Job Seeker Snapshot and Capability Management Tool may also help identify personal issues affecting a Participant's capacity and opportunity to gain employment.

Note: Where a Provider reduces the Points Target to zero for any reason, the Job Search Requirement will not be automatically reduced in the Department's IT Systems. This must be manually reduced by the Provider if required. If the Job Search Requirement is not reduced in the Department's IT Systems and the Participant is not able to meet their requirements, the Participant will not meet their requirements and may be subject to the Targeted Compliance Framework. It is important that Providers consider both the Points Target and the Job Search Requirement when reducing a Participant's requirements.

For guidance on how to reduce the Points Requirement in the Department's IT Systems refer to the [KB0017317 - Employment - Systems Task Cards - PBAS – Tailoring a Participant's Points Target and Job Search Requirement](#).

Note: Before applying reductions to more than one Points Reporting Period, Providers should take into consideration, any future automatic reductions the Participant will receive.



For guidance on how to tailor the Points Requirement in the Department's IT Systems refer to the [Department's training resources](#).



The Provider must record the reason/s for the reduction of the Points Requirement in the Department's IT Systems.

Note: Community Service Orders are not to be entered into the Department's IT Systems as Voluntary Work. Providers should use the 'Community Service' reduction reason when applying a Points reduction or Job Search Requirements reduction for this circumstance. Providers should work with the Participant to ensure that the mandatory requirements set out in the Community Service Order does not conflict with the Participant's ability to meet their Mutual Obligation Requirements.

Reducing the Job Search Requirement

Under the PBAS, the Job Search Requirement is the total number of Job Search efforts that a Participant must submit during their Points Reporting Period to meet their Points Requirement. This is in addition to meeting their Points Target.

When setting a Participant's Points Requirement, Providers must also consider their personal circumstances and adjust the Job Search Requirement accordingly. Providers can reduce this requirement to 3, 2, one or zero Job Searches each Points Reporting Period.

Providers can reduce the Job Search Requirement for circumstances such as:

- poor or below average labour market
- barriers to employment
- significant caring responsibilities
- short term family or other emergency
- experiencing domestic violence
- homelessness and/or emergency housing
- Early School Leavers undertaking appropriate Activities
- undertaking an approved course for language, literary and numeracy issues
- undertaking full-time residential drug or alcohol treatment or rehabilitation.

Note: When the Job Search Requirement is reduced for any reason, the overall Points Target will not automatically reduce in the Department's IT Systems, and vice versa. The Participant can choose how they earn the points to meet their Points Requirement, by completing tasks or participating in other Activities.



Providers will be prompted in the Department's IT Systems when reducing the Job Search Requirement, whether a reduction to the Points Target is also required, or appropriate.

For the circumstances where the Provider should reduce the Job Search Requirement to zero, such as where a Participant is engaged in Education and training or other Activities which meet their Points Target – refer to [Participants who are meeting their Points Requirement](#).

Example: A Participant receives a labour market credit of 20 points and a personal circumstances reduction of 40 points for a Principal Carer Parent with a child 6 years or over, and the Provider reduces the Job Search Requirement to zero due to significant caring responsibilities and a below average labour market. The Participant would be required to report 40 points in the Points Reporting Period but complete no Job Search efforts to meet their Points Requirement.

The Job Search Requirement can be reduced for a single Points Reporting Period or set to apply for consecutive Points Reporting Periods totalling up to 6 months (i.e., up to 6 consecutive Points Reporting Periods).

When reducing the Job Search Requirement, Providers should also consider the Participant's ability to meet their Points Target, taking into account their personal circumstances and the availability of Activities in the area.



For guidance on how to reduce the Job Search Requirement in the Department's IT Systems see the [KB0017317 - Employment - Systems Task Cards - PBAS – Tailoring a Participant's Points Target and Job Search Requirement](#), or refer to the [Department's training resources](#).



The Provider must record the reason for reducing the Job Search Requirement in the Department's IT Systems.

(Deed Reference(s): Clause 89, 138)

Tailoring the Points Target and Job Search Requirement to action the outcome of a Capability Interview or Capability Assessment

If the outcome of a Capability Interview or Capability Assessment is that the Participant is not capable of meeting their requirements, the Provider must review the Job Plan and tailor the Points Target and/or the Job Search Requirement to ensure they are suitable for the Participant and appropriately reflect the Participant's circumstances.

For further information on actioning the outcomes of a Capability Interview or Capability Assessment, see the [Targeted Compliance Framework and Mutual Obligation Failures Chapter](#).

(Deed Reference(s): Clause 145)

11.7.6. Meeting the Points Requirement

The Participant meets their Points Requirement by the end of their Points Reporting Period by having undertaken and reported sufficient tasks and Activities.

The Provider must encourage the Participant to own their pathway to employment and take responsibility for meeting their Points Requirement each Points Reporting Period. The Provider must support and provide appropriate assistance to the Participant to ensure they are reporting their participation in their tasks and Activities.

The Participant can choose the tasks and Activities that they will undertake to meet their Points Requirement. However, the Provider must work with the Participant to identify a Participant's strengths as well as any barriers they may have to finding Employment and use this information to discuss appropriate tasks and Activities for the Participant. Any vocational and non-vocational Activities are to be tailored to address the Participant's individual needs and work capacity.

Note: Providers must consider whether the commute from the Participant's place of residence to attend the appointment or Activity is safe and beneficial to the Participant, and reasonable for their circumstances. The travel time should also be proportionate to the duration and type of Activity.

Participants who have a minimum Job Search Requirement (of 4, 3, 2 or one Job Searches) cannot meet their Points Requirement if they do not complete that number of Job Search efforts in that Points Reporting Period, even if they report more points from other tasks and Activities.

For Participants who are Principal Carer Parents or who have a PCW, reasonable travel must not exceed 60 minutes in one direction.

For Participants who are not Principal Carer Parents or who do not have a PCW, reasonable travel should not exceed 90 minutes in one direction.

Travel time refers to the actual time spent in transit, from the place of residence to the Activity location, and must be calculated using the method of travel that is most reliable and accessible to the Participant.

For Principal Carer Parents, travel time must also take into account the time to travel to and from childcare. Additionally, travel for Participant with a PCW should not aggravate or be unreasonably difficult due to their illness, injury or disability.

The Provider should also consider any information captured in the Capability Management Tool, Job Seeker Snapshot, any ESAt or, any current transition plan identified in the Department's IT Systems, to help identify appropriate tasks and Activities for the Participant.

Note: If a Participant is undertaking paid work (but not enough to fully meet their Mutual Obligation Requirements) and can record their participation online, the Provider should consider the Participant's suitability for Workforce Australia Online and request through the NCSL that the Participant be referred to Workforce Australia Online if the Provider assesses the Participant as suitable. See the [Eligibility and Referral Chapter](#) for information.

The Provider must engage in conversations with the Participant if they are not meeting their Points Requirement and/or if they are not attending their Activities, to identify the reason/s for the non-compliance. If a Participant does not engage in one approved activation Activity or one or more Provider assessed activation Activities by the activation point, they may be required to complete a Mandatory Activity. See the [Activation and Mandatory Activity Requirement](#) section for further information.

(Deed Reference(s): Clause 89, 110, 120)

Completing the Job Search Requirement

Generally, most Participants will need to complete a Job Search Requirement of 4 Job Searches (20 points) to meet their Points Requirement. Providers can reduce the Job Search Requirement to 3, 2, one, or zero, based on the Participant's circumstances.

Job Search efforts include instances of looking for suitable employment and count towards a Participant's Mutual Obligation Requirements.

A Job Search effort is worth 5 points – see the [‘Points values for tasks and Activities in the PBAS’ Provider fact sheet](#).

For the purposes of Social Security Law and meeting Job Search Requirements under PBAS, a Participant is considered to have undertaken a Job Search effort if the Participant makes contact with another person or body in relation to, and for the purpose of, obtaining paid work with the other person or the body:

- Whether or not the contact is in relation to particular paid work; and
- Whether or not the other person or the body has advertised any paid work.

The definition of contact includes:

- contacting an Employer by telephone, in writing, or in person
- submitting a written or online application, including a resume
- acting on a referral to a job.

Note Under the PBAS, interviews do not count towards a Participant's Job Search Requirement. Participants will earn points separately for attending an interview.

Participants who are freelance workers or self-employed can declare Job Search efforts that count toward the Points Requirement for contacting a potential Employer or person for the purposes of obtaining any suitable paid work opportunities related to their field of self-employment.

This can include project based work or short-term contracts such as:

- applying for a grant
- submitting a portfolio for a creative arts project
- contacting a potential client about their advertisement for web design work
- contacting the owner of a local venue for a music gig.

See the [Irregular and Freelance work fact sheet](#) and the [Job Search Quality assessment user guide](#) for more information on Irregular and Freelance work.

Note: The Job Search Requirement is set at 4 Job Search efforts each Points Reporting Period. However, Participants can undertake more than 4 Job Search efforts in a Points Reporting Period and can meet their Points Requirement through Job Search alone if appropriate for that individual.

Example: A Participant with a Points Target of 100 could complete 20 Job Search efforts and meet their Points Requirement for that Points Reporting Period. These can be reported one by one, or in a bulk upload by the Participant or by the Provider on behalf of the Participant.

See the [KB0017317 - Employment - Systems Task Cards - PBAS – Tailoring a Participant's Points Target and Job Search Requirement](#) for more information on reducing the minimum Job Search Requirement.

Note: At the activation points, Participants who have undertaken only Job Search may have a Mandatory Activity Requirement if they have not been placed into an alternative Activity. See [Activation and Mandatory Activity Requirement](#) for further information, including a list of approved activation Activities.

(Deed Reference(s): Clause 139, 142)

Activities for Participants with reduced requirements

Participants can choose to do more than their assessed capacity and participate in a full-time Activity to meet their Points Requirement, however the total hours of all requirements and Activities undertaken by the Participant must also be appropriate.

Before the Participant starts the Activity, the Provider must discuss the requirements of the Activity with the Participant and ensure that the Participant has the capacity to meet the requirement.

A Participant cannot participate in a Mandatory Activity (Work for the Dole) that exceeds their assessed capacity.

Points values for tasks and Activities

All tasks and Activities are assigned a points value, with more intensive Activities attracting more points. The points value assigned is based on the level of engagement and commitment required to complete the task or Activity and the strength of the link to paid work.

In certain circumstances, the Provider can add an activity bonus to increase the points value Participants receive for undertaking certain tasks or Activities, based on the requirements of the specific task or Activity and/or the Participant's personal circumstances.

Refer to the ['Points values for tasks and Activities in the PBAS provider fact sheet'](#) on the Provider Portal or the [Workforce Australia – PBAS – Adding a Personal Circumstance \(Activity Bonus\) for a Participant IT task card](#) for more information.

Reporting tasks and Activities to earn points

Participants are responsible for reporting the completion of their tasks and their attendance at Activities where personal responsibility is included in their Job Plan (Job Plan requirement PA03 – Personal responsibility).

For tasks, the Participant must report each completed task by using the Workforce Australia website or app. In some cases, reporting the task will be by adding it to their profile. For example, gaining a work-related licence or qualification. Once the Participant reports the task, the Department's IT Systems will automatically allocate the relevant points to the Participant.



Providers can also create and edit a profile on behalf of a Participant with their consent. The Department's IT Systems will automatically allocate the relevant points for the Participant.

For Activities, the Participant will earn points following the reporting of their attendance at that Activity by using the Workforce Australia website or app. At some Activities, the Participant may be able to report their attendance by scanning a QR code made available to them at the Activity.

- When an Activity is scheduled in the Participant's Electronic Calendar by the Provider, the Participant will report their attendance at that Activity on the day the Activity was scheduled. Points will be awarded when the Participant reports their attendance at the first day of the Activity each week.
- When an Activity is not scheduled in the Participant's Electronic Calendar, the Participant will report their participation in the Activity weekly.

Note: While points are awarded following attendance of at least one day in a scheduled Activity, Participants are required to attend every day of the Activity. If a Participant is not attending their Activity and fully engaged in that Activity, this could result in the need for a Mandatory Activity to be undertaken by the Participant. The Provider must discuss any non-attendance at Activities with the Participant to find out the reason/s for non-attendance. Refer to the ['Reporting Activities in PBAS Provider Fact Sheet'](#) on the Provider Portal for more information on when an Activity is scheduled or not scheduled in the Participant's Electronic Calendar.

Note: Points for compulsory Provider Appointments - for Participants to receive 10 points for attending compulsory Provider Appointments, a Participant needs an approved Job Plan and the Provider is required to result the attendance in the Participant's Electronic Calendar by the end of the same Business Day. The Department's IT Systems will automatically apply the points. However, if the Provider does not result the attendance by the end of the same business day, the points will not be applied automatically, the Provider can manually apply the points in the Participant's record.

Providers must inform the Participant that they will be able to view the points for attending the compulsory appointments in their Workforce Australia account. If the Provider incorrectly marks the Appointment as attended, points will still be applied. Refer to the ['Points values for tasks and Activities in PBAS provider fact sheet'](#) on the Provider Portal and the [KB0017339 - Employment - Systems Task Cards - PBAS – Reporting Points, Activities, Tasks and Job Search on Behalf of a Participant](#) for more information.

Note: Where the Provider determines that a Participant has declared that they have completed a task or Activity and reported incorrectly, the Provider is unable to remove the associated points in the Department's IT Systems. In these instances, the Provider must contact the Participant, remind them of their obligations under their Job Plan to accurately report the completion of eligible tasks and activities and educate the Participant on how to report correctly to attract eligible points.

Note: Participants undertaking a Mandatory Activity (Work for the Dole) must report their attendance by using the Workforce Australia website, mobile app or to their Provider, by close of business on the day the Activity was scheduled in their Electronic Calendar. If no result is recorded by close of business on that day, the Department's IT Systems will raise a compliance event.

Refer to the '[Reporting tasks in PBAS Provider fact sheet](#)' and the '[Reporting Activities in PBAS Provider fact sheet](#)' on the Provider Portal for more information on when an Activity is scheduled or not scheduled in the Participant's Electronic Calendar.



For guidance on how to report tasks and Activities in the Department's IT Systems refer to the [Department's training resources](#).

(Deed Reference(s): Clause 120, 143)

Participant can earn points for tasks completed during an Activity

A Participant can report the completion of a task and earn points for that task if it was undertaken while participating in another Activity.

Example: Getting a forklift licence while participating in Work for the Dole can be reported as a task completed by the Participant during their Points Reporting Period. This would be in addition to the points earned from attending the Activity.

Reporting tasks and Activities for a Participant

Sometimes a Provider must report the completion of tasks or attendance at Activities in the Department's IT Systems on a Participant's behalf when a Participant says they cannot do it themselves. This could include:

- where the Participant cannot self-manage their own reporting requirements and the Provider must do it for them
- during the initial Points Reporting Period to assist the Participant, if the Participant has not yet learnt how to do it, or
- where the Participant has damaged or lost their device or has connectivity issues and cannot report online.

In such cases, the Provider must report these tasks and Activities on the Participant's behalf by close of business on the day they are advised by the Participant.



Providers must select the 'Add Points' button on the participation screen when reporting a task or Activity on behalf of a Participant.



For guidance on how to report tasks and Activities in the Department's IT Systems refer to the Department's training resources, including the '[Reporting tasks in PBAS](#)' Provider fact sheet and '[Reporting activities in PBAS](#)' Provider fact sheet on the Provider Portal, and the [KB0017339 - Employment - Systems Task Cards - PBAS – Reporting Points, Activities, Tasks and Job Search on Behalf of a Participant](#) for more information.



Job Search efforts submitted by the Provider on behalf of the Participant must be reviewed for quality at the time of upload. When submitting the Job Search efforts, Providers must only attribute points for those Job Search efforts which have been determined as satisfactory. Providers must advise the Participant if additional Job Search efforts are required to meet their requirements. As Job Search efforts submitted by the Provider on behalf of the Participant must be reviewed for quality at the time of upload, the Department will assume that any Job Searches uploaded by the Provider that have accrued points, have been deemed satisfactory by the Provider.

(Deed reference: Clause 89, 120)

Assessing the quality of a Participant's Job Search efforts

Note: A Points Period Assessment of Job Search Quality must only be conducted once a Participant has commenced on the Provider's Caseload. Participants pending transfer from Online Services are not to have their Job Search Efforts assessed, even if a Point Period Assessment is triggered.

Providers are required to review the quality of Job Search efforts submitted by the Participants commenced on their caseload who have a Points Requirement, as follows:

- Providers must assess the quality of all Job Searches submitted by their organisation on behalf of the Participant, at the time of upload. Only satisfactory Job Searches are to be uploaded to the Department's IT Systems and the associated points applied towards the Participant's Job Search and Points Requirements.

Note: if Job Searches are not of quality, or there is insufficient evidence to support each individual Job Search, they must not be uploaded, and points must not be applied. Providers must discuss with the Participant and explain they will have to submit additional Job Search efforts to the Provider before the end of their reporting period.

- Providers must assess the quality of all Job Searches submitted by their Participants at the end of each Points Reporting Period in the Department's IT Systems. This process is called the Points Period Assessment and applies to all Participants who have submitted sufficient Job Searches to meet their Points Requirement (which includes their Job Search Requirement). The Points Period Assessment involves:
 - undertaking a factual and holistic assessment of the quality of all Participant submitted Job Searches and marking them as 'satisfactory' or 'unsatisfactory' in the Department's IT Systems. At a minimum, the date the Job Search occurred, the job title and the employer's name must be recorded to enable the assessment to be conducted and to satisfy the mandatory requirements for submitting Job Search efforts.
 - correctly identifying why any Job Search efforts have been assessed as unsatisfactory, including any failure of the holistic review.
 - leaving detailed comments to evidence how any quality issues identified in the factual and holistic assessment have, or will be, addressed. Refer to the Job Search Quality Assessment User Guide for instruction on the minimum requirements for leaving comments for both unsatisfactory and satisfactory Job Search efforts.
 - submitting the completed points periods assessment no later than 5 Business Days after the Participant's Points Reporting Period has closed.
- Note:** The Department's IT Systems recognise any national and statewide public holidays based on the state or territory of the Provider's Sites the Participant is serviced by.
- Providers must review the quality of re-engagement Job Searches as part of general servicing and address any issues identified at the Participant's next appointment. Re-engagement Job Searches cannot be assessed as part of the Points Period Assessment process.

More information on adequate Job Search can be found at [3.11.1.30 Adequate job search | Social Security Guide](#).

Assessing suitable work

To satisfy Mutual Obligation Requirements, Participants in receipt of any participation payment must be actively seeking and willing to accept any offer of suitable paid work in a variety of fields.

In assessing whether work is considered suitable, a wide range of factors should be considered, such as the Participant's:

- age
- mobility
- qualifications
- language proficiency (principal carer parents with limited language proficiency may limit their job search to areas where advanced communication skills are not essential)
- work history, AND
- geographical location.

Work may be unsuitable for a Participant if it:

- involves skills, experience or qualifications that the person does not have, and appropriate training will not be provided by the employer
- is above the job seeker's assessed work capacity within the next 2 years with intervention
- may aggravate a pre-existing illness, disability or injury, and medical evidence has been provided
- involves health or safety risks, and would contravene an occupational health and safety law
- the job seeker is a principal carer parent of a child or children and appropriate care and supervision of the child/ren is not available during the hours the person would be required to work
- is under terms and conditions that are less than the legal minimum set out in the relevant statute, award or agreement
- involves a commute from home to work that would be unreasonably difficult
- involves enlistment in the Defence Force or the Reserve Forces
- requires the person to change residence, or
- in the delegate's opinion, is unsuitable for any other reason.

These considerations are relevant when:

- Assessing Job Search efforts
- Setting Job Referral tasks
- Referring Participants to specific roles
- Assessing Work Refusal Failures.

Completing a factual and holistic review to determine the quality of Job Search efforts

To determine if a Participant's Job Search efforts are of sufficient quality, the Provider must undertake a factual and holistic review of all Job Searches undertaken by their Participants.

The factual review refers to the assessment of objective information relating to each individual Job Search effort, such as confirming that the Participant is suitably qualified for the role and that the job was applied for in the relevant reporting period. Similarly, the factual review considers any other factors relevant to assessing whether a person has undertaken a quality Job Search effort. For example, a deliberately unreadable or poor-quality application cannot be considered a satisfactory Job Search effort.

A holistic review considers the variety of the Participant's Job Search efforts overall to establish if they are maximising their opportunities to secure employment. When conducting the holistic review, the Provider must consider whether the jobs applied for:

- are at levels of seniority or remuneration that are suitable for the Participant

- are in a variety of fields and occupations that the Participant is qualified for or has experience in, and if that work is suitable for the Participant
- used a variety of methods to contact potential Employers.

Note: While the above criteria must be considered when assessing the Job Search efforts, a Participant does not need to meet each criterion in every Points Reporting Period. To assess the appropriateness of Job Search variety, Providers must consider the Participant's unique circumstances holistically, including the labour market conditions they are operating within, and the Job Search efforts the Participant has submitted over time.

Leaving comments in support of the Job Search quality review

Where a Job Search effort is assessed as unsatisfactory, the Provider must deliver feedback and educate the Participant on how to improve their Job Search efforts to achieve the required quality. A summary of that conversation must be recorded in the Department's IT Systems as part of the Points Period Assessment. If the Provider has been unable to make contact with the Participant, they must record the feedback they intend to deliver at the next successful contact. This discussion may include, but is not limited to:

- discussing the reason(s) why any Job Search efforts were found to be unsatisfactory
- discussing what tailored support is available to help the Participant improve their future Job Search efforts
- encouraging the Participant to diversify their Job Search efforts and establishing a target if appropriate, or alternatively, to focus their Job Search efforts to the particular field in which they are qualified (rather than in a variety of fields and occupations) for an appropriate period of time
- discussing the consequences of submitting Job Search efforts that are not of satisfactory quality and the application of the Targeted Compliance Framework.

Where the Provider has identified issues with a Job Search effort but has decided to mark the Job Search as satisfactory, the Provider should leave comments in the Points Period Assessment substantiating this decision and outlining how the quality issue was, or will be discussed, with the Participant. This will provide departmental assessors with insight into the Provider's reasoning for not marking the Job Search as unsatisfactory, should the job search effort be sampled for review under the Department's Job Search quality assessment.

Note:

- Only Job Searches submitted by Participants can be assessed as satisfactory or unsatisfactory under the Points Period Assessment process.
- Job Searches submitted by Providers are not able to be assessed as satisfactory or unsatisfactory as part of the Points Period Assessment process. The quality of these Job Searches must be assessed by the Provider at the time of upload.
- Provider uploaded Job Search efforts should still be considered when conducting the Points Period Assessment to establish if the variety of Job Search efforts overall, is suitable.

For detailed guidance on how to assess Job Search Quality as part of the Points Period Assessment, refer to the [Job Search Quality Assessment User Guide](#), the [KB0017323 - Workforce Australia - PBAS - Assessing Job Search Quality in the Points Period Assessment Task Card](#) and the [Social Security Guide \(Adequate job search 3.11.1.30\)](#).

The Points Reporting Period

Each Participant will have their own Points Reporting Period. For most Participants, their Points Reporting Period commences on the day that they agree to their first Job Plan during their Period of Unemployment.

Example: If a Participant agrees to their Job Plan and commences in Services on 17 January, their Points Reporting Period will commence from this day and will end on 16 February. Their next Points Reporting Period will commence on 17 February.

Participants will be sent reminders about reporting their participation via SMS or email and inbox at 15 calendar days before the end of their Points Reporting Period, and again at 5 calendar days before the end of their Points Reporting Period.

Providers reporting on behalf of Participants (without a PA03 code in the Job Plan and not on track to meet their points requirements) will be reminded via the Open Task, referred to as a Site task in the Department's IT Systems 15 calendar days before the end of their Points Reporting Period, and again at 5 calendar days before the end of their Points Reporting Period. Providers are expected to follow up with the Participants and action prior to the end of the Participant's Points Reporting Period or they will not meet their requirements for that Points Reporting Period.

Suspension or Exemption lifted during a Points Reporting Period

The current Points Reporting Period will be set to 'no longer required', if a Participant has a Suspension or Exemption from Services applied during a Points Reporting Period and the Suspension or Exemption:

- ends within the last 5 calendar days of the Participant's current Points Reporting Period, or
- extends beyond the end of the current Points Reporting Period.

When a Participant has a Suspension from Services or an Exemption applied within a Points Reporting Period and it ends within the same Points Reporting Period, the Points Target and Job Search Requirement will be pro-rated automatically in the Department's IT Systems. An exception to this will be when the Suspension or Exemption ends in the last 5 calendar days as outlined above.

When a Participant starts a Points Reporting Period with a Suspension or an Exemption, but it ends during the Points Reporting Period, the Participant's Points Target will be pro-rated in the Department's IT Systems for the remainder of that Points Reporting Period.

Note: Any Job Searches submitted by the Participant during a pro-rated Points Reporting Period must still be assessed for quality by Providers. The relevant Points Period Assessment must be submitted within 5 Business Days of the end of the Points Reporting Period, regardless of whether the Participant is Suspended during the period when the Points Period Assessment is due.

If a Participant becomes exempt or is suspended within the 5 Business Day assessment period, the Provider is still required to submit the Points Period Assessment.



If the Participant is unable to meet the Points Target and they have a Valid Reason, the Provider must record a Valid Reason in the Department's IT Systems for the Participant for that Points Reporting Period.

See the [Commencements, Transfers, Suspensions and Exits Chapter](#) for more information on Suspensions.

11.7.7. Setting Job Referral tasks

Job Referral tasks can connect Participants with suitable work. Where the Provider identifies a job opportunity for the Participant, the Provider must set a Job Referral task for the Participant to action. Specific Job Referral tasks a Provider can set include:

- Apply for a specific job
- Accept a job interview
- Contact an employer to arrange and accept a job interview
- Provide personal details to support a job opportunity.

Providers must ensure that all Job Referral tasks that a Participant is required to do, are recorded in the Department's IT Systems.

Note: Providers must not set a Job Referral task for Participants to update their resume. The Department expects that as part of general servicing Providers are assisting Participants in updating their resume.

All information Providers enter in the Department's IT Systems in relation to the Job Referral task must be accurate and complete. The Participant must be formally notified, with reasonable notice, of each Job Referral task that they have been set.

Providers are expected to ensure Participants are only set Job Referral tasks that are suitable and tailored to their personal circumstances and that they are able to successfully undertake by the due date.

11.7.8. Scheduling Mutual Obligation Requirements in the Participant's Electronic Calendar

The Provider is required to record details of, and schedule each compulsory requirement in the Participant's Electronic Calendar, including:

- compulsory Appointments
- Mandatory Activities
- Provider-scheduled job interviews.

Where a Participant has regular commitments such as paid work, caring commitments or medical appointments, Providers must record these as a Personal Event on behalf of the Participant into the Participant's Electronic Calendar. Where a Participant is in paid work, Providers must ensure that any scheduled requirements do not conflict with the Participant's hours of paid work, including any reasonable travel times to and from work. This ensures the paid work is taken into account when scheduling other requirements and supports transparency in ensuring Provider staff and the Participant can clearly see what the Participant is doing to meet their Mutual Obligations Requirements.

To schedule a compulsory requirement in the Participant's Electronic Calendar, the Job Plan code that corresponds to that requirement must be included in the Participant's current, signed Job Plan.

Refer to [Creating a Job Plan](#) for more information on the Job Plan and Job Plan codes.

Scheduling compulsory requirements

The Provider must ensure that each day of each compulsory requirement is scheduled in the Participant's Electronic Calendar and populated with:

- the name or description of the requirement
- the start time
- break times, where relevant
- the end time
- the location of the requirement, including any special instructions to locate a venue (e.g., located on battle-axe block), and
- the name of any third-party provider or training organisation.

When the Provider schedules the requirement in the Participant's Electronic Calendar and formally notifies the Participant, the requirement will then appear in the Participant's Electronic Calendar.

(Deed Reference(s): Clause 104, 105)

Compulsory requirements must not be scheduled after the requirement start time and then resulted as Did Not Attend Invalid.

Providers must not schedule a Provider Appointment or other Mutual Obligation Requirement in order to request a pay slip or other proof of employment from a Participant. Providers may request a Participant to supply a pay slip or other proof to confirm their commencement in employment or ongoing employment; however, Participants are under no obligation to supply evidence of employment. It is never appropriate for a Provider to set a Mutual Obligation Requirement or use or threaten to use the Targeted Compliance Framework in order to obtain proof of employment from a Participant. For more information on alternative ways to verify Employment Outcomes, please see [Employment Outcome Payments](#).

Issuing formal notification to the Participant

Provider employees are delegated powers by the Department's Secretary under Social Security Law to notify Participants of their Mutual Obligation Requirements.

Note: The requirement to formally notify a Participant receiving Income Support Payments also applies to Disability Support Recipients (Compulsory Requirements).

The Provider is required to formally notify the Participant of every compulsory requirement in their Job Plan. The Provider must explain how to meet each requirement, as well as the consequences of not doing so.

When the Provider schedules a requirement in the Participant's Electronic Calendar, the Department's IT Systems will automatically create and record the selected notification type to be issued. If a requirement is re-scheduled, the Provider must formally notify the Participant of the new requirement.

Formal notification always includes:

- the reason for the Appointment, if the requirement is an Appointment
- whether the requirement is for the purpose of re-engagement
- the date and start time of the requirement
- the location or address of the requirement

- if the Participant is required to record their own attendance, and if so, the consequences of not doing so
- whether the Participant will require evidence to record their own attendance
- that the Participant must contact their Provider beforehand if they become aware of an Acceptable Reason preventing them from being able to attend or complete the requirement, to inform the Provider of that reason
- the possible consequences for the Participant if they do not meet their requirement
- a statement that the notification is a Notice under Social Security Law
- that the Participant must complete their requirement in return for their Income Support Payment.

The Provider must issue a Participant formal notification within the appropriate timeframe before the requirement is scheduled to occur. If reasonable notice timeframes are not met, the Electronic Calendar will not allow a requirement to be booked unless the Provider is in direct contact with the Participant and they have agreed to attend this requirement and the Provider records this.

Note: For more information on Formal Notifications, refer to the Servicing, Requirements and Engagement section in the [Targeted Compliance Framework Reference Guide](#).

Personal Events

Personal Events are a way of communicating a period when a Participant has a personal commitment which could prevent them from attending a requirement. Personal Events can be created by the Provider or the Participant for anytime between 6 am and 9 pm, and can be booked recurringly, up to 8 weeks in advance. Participants may only create Personal Events where a Mutual Obligation Requirement is not already scheduled.

Providers must, as part of ongoing servicing, discuss Personal Events with their Participants. This includes encouraging, and assisting where necessary, the Participant to create Personal Events in their Calendar. It is a requirement of the Deed that Providers ensure that known Personal Events for paid work are scheduled in the Participant's calendar.

(Deed Reference(s): Clause 104)

Confirmed Personal Events

Participants are required to include information about their personal commitment when creating a Personal Event in their Calendar. The Provider must regularly review Personal Events and either confirm the Participant's Personal Events or leave them unconfirmed. When deciding to confirm a Personal Event, the Provider should also consider the nature of the Personal Event and the Participant's personal situation. The Provider must advise the Participant that even though they have confirmed the Personal Event, Mutual Obligation Requirements can still be scheduled for that time.

If the Provider confirms a Personal Event, they cannot 'unconfirm' the event, and must then discuss any future clashes with the Participant before booking requirements over the confirmed event. Where a Participant has recorded a potential Personal Event, Providers should discuss the Participant's availability and the details of that commitment at the next available opportunity.

Example:

Jo has just secured work starting next week. They are working a five hour shift each Monday, Wednesday and Friday. This is a recurring Personal Event.

At their next appointment, Jo discusses this new work with their Provider, explaining that they will not be available during those days or times.

Together, they create Personal Events for those days and times in the Calendar. Their Provider confirms the Personal Events and shows Jo how to create new ones in case their work hours change.

Jo has given prior notice of their inability to attend requirements at that time. Creating Personal Events ensures that their Provider knows not to book future requirements during these days and times.

(Deed Reference(s): Clause 104)

Unconfirmed Personal Events

If a Provider considers that a Personal Event entered by a Participant is not appropriate, for example:

- it is not aligned with what the Provider knows about the Participant's circumstances,
- more information is required, or
- there is an entry that is not appropriate or suitable, and would inhibit the Participant's ability to attend a Mutual Obligation Requirement at that time,

the Provider must attempt to contact the Participant to discuss. If contact is not established, the Provider should leave it unconfirmed. When contact is established or at the next Provider Appointment the Provider must discuss the unconfirmed Personal Event. Based upon that discussion, if appropriate the Provider can then confirm the Personal Event. The Provider must advise the Participant that even though they have confirmed the Personal Event, Mutual Obligation Requirements can still be scheduled for that time.

(Deed Reference(s): Clause 104)

Conflicting Requirements – booking requirements over Personal Events

Generally, Providers should not book a conflicting requirement over a confirmed or unconfirmed Personal Event, but where it is essential that a conflicting requirement be booked, the Participant must be contacted first and justification for the refusal to acknowledge a Participant's pre-existing commitment must be entered into the Department's IT Systems under the comment section. Providers must formally notify the Participant of the requirement, ensuring they can make other arrangements for the Personal Event created. The exception to this is when the Provider is aware that the Personal Event is for paid work. Participants must not be required or asked to give up or reschedule paid work to meet requirements.

If a Personal Event has been created incorrectly or in error by the Participant, Providers should discuss this with the Participant and advise them that they will not confirm the Personal Event and that other requirements can be scheduled during this time.

Providers are reminded that if the engagement is not a compellable Mutual Obligation Requirement, for example, a job club or resume development workshop, these must not be scheduled to occur at the Personal Event time.

(Deed Reference(s): Clause 104)



Providers need to manage the conflicting requirement in the Participant's Electronic Calendar and must record the reason for scheduling the requirement at this day/time in the Department's IT Systems in the comments section.

(Deed Reference(s): Clause 104)

Scheduling a Provider Appointment

The Provider must ensure that the Provider's Electronic Calendar has the availability for an Appointment within the next 2 Business Days.

When booking a Provider Appointment for a Participant, the Provider needs to select the correct Appointment type, schedule the Appointment in the Electronic Calendar and formally notify the Participant. If a Participant has an Appointment with their Provider, the Provider must deliver a Contact on the date and time of the Appointment as recorded in the Participant's Electronic Calendar.

There are 4 types of Appointments:

1. Initial Appointment
2. Contact Appointment
3. re-engagement Appointment, and
4. Capability Interview Appointment.

Providers must not schedule Appointments on weekends unless they have contractual agreements to do so. Appointments must only occur during operating hours.

Appointments must be conducted at the Provider's premises, or another agreed suitable location. Appointments must be held at locations that are accessible, appropriate and safe for Participants, children and Provider staff. Providers must not conduct Appointments or other Contacts at a Participant's home under any circumstances.

Appointments must not be booked after the scheduled start time for the Appointment (retrospective booking).

At each Contact Appointment, Providers must discuss the Participant's personal circumstances and how these may impact their ability to meet their Mutual Obligation Requirements. Contact details must also be confirmed at each Appointment and updated in the Department's IT Systems where required. Providers should also confirm whether the Participant has linked their Workforce Australia account to their myGov account. If they have not, Providers are expected to assist the Participant to complete this connection.

Providers must also update the Capability Management Tool with any newly disclosed barriers and circumstances.

Note: For more information on the CMT refer to the Tools to Assist in Supporting Participants section in the [Targeted Compliance Framework Reference Guide](#).

(Deed Reference(s): Clause 102, 104, 105)

Scheduling a Third-Party Appointment

As part of their Mutual Obligation Requirements, Participants may be required to attend Third-Party Appointments. These appointments are not undertaken by Providers (though potentially may

include a service delivered by the Provider organisation) and can either be voluntary or compellable. The types of Third-Party Appointments that can be scheduled are:

Compellable

- Meet with your Work for the Dole Supervisor.
- Meet with your activity supervisor.
- Attend an activity induction session.
- Attend an education/training course information session.
- Attend an education/training course assessment.
- Attend an employer information session.
- Attend an information session for an Employability Skills Training course.
- Attend a Language, Literacy and Numeracy assessment to determine eligibility for services.
- Attend a pre-employment workplace assessment.
- Attend a pre-employment medical assessment.

Voluntary

- Meet with your Career Transition Assistance Provider.
- Attend a medical/allied health professional assessment to determine eligibility for services.
- Attend a medical/allied health professional appointment.

Participants are responsible for recording or reporting their attendance at Third-Party Appointments and must do so before close of business that same day. If the Participant is unable to record their own attendance, they are responsible for reporting their attendance to their Provider or being available to take a call from their Provider to confirm their attendance. The Provider must then record the attendance on the Participant's behalf.

If a Participant does not attend a Third-Party Appointment, or the Provider becomes aware that the Participant behaved inappropriately during the appointment, the Provider must attempt to contact the Participant to discuss this. Further information on contact attempts is outlined in [Participant Contact](#).

Third Party Appointments must be scheduled in the Participant's Electronic Calendar, and the Participant must be formally notified of the requirement to attend. If a Third-Party Appointment is to be scheduled as recurring, Providers must leave comments in the Department's IT Systems detailing the reason for the recurrence.

For further guidance on scheduling Third-Party Appointments see [KB0017147 – Employment Systems Task Cards – Workforce Australia – Calendar – Schedule a Third-Party Appointment](#).

Scheduling job interviews

Provider-sourced job interviews need to be scheduled in the Participant's Electronic Calendar and the Participant must be formally notified of the requirement to attend. Participants taking personal responsibility to record their own attendance must do so for job interviews.

When the Provider becomes aware that a Participant has an upcoming job interview, the Provider must schedule it in the Participant's Electronic Calendar. This is required where the Provider has the relevant information and details to schedule the job interview and appropriate time to notify the Participant prior to the day of the job interview.

(Deed Reference(s): Clause 104)

Scheduling an informal Activity

Informal Activities or workshops are organised by the Provider and can be delivered by the Provider, or by an external Host Organisation. Informal Activities are intended to assist Participants to build employability skills that can include (but are not limited to) job search clubs, résumé writing workshops and interview preparation training.

The delivery of an informal Activity does not require the Provider to enter into an agreement with a Host Organisation, or to undertake a formal risk assessment prior to the Participant commencing into the Activity. Providers must however, ensure that any Activity a Participant is placed in has a safe system of work in place.

For guidance on scheduling an informal Activity, see the Department's training resources, including the ['Reporting Activities in PBAS' Provider fact sheet](#) on the Provider Portal and the [KB0017146 - Employment - Systems Task Cards - Activities – Adding an Informal Activity](#).

11.7.9. Participants can bank additional reported points

If a Participant exceeds their Points Target for their current Points Reporting Period, the additional points may be banked and used towards the Points Target of their next Points Reporting Period. The Department's IT Systems will attribute the banked points at the start of the next Points Reporting Period.

Participants can only bank up to half of their Points Target at any time.

Example: If a Participant's Points Target at the start of their Points Reporting Period is 80, they can bank:

- 30 points for the next Points Reporting Period if they gain 110 points, or
- 40 points for the next Points Reporting Period if they gain 120 points or more.

Note: If the Participant's Points Target is reduced during their current Points Reporting Period, due to a Provider credit, the Participant will still be able to bank 40 points. The total of points able to be banked cannot change during a Points Reporting Period.

Note: Banked points will round up to the nearest 5 points.

Example: If a Participant's Points Target is 75, they can bank half of their Points Target, which is 37.5. In this instance, the total of points able to be banked will be rounded up to 40 points.

11.7.10. Participants who do not meet their Mutual Obligation Requirements

The TCF applies to Participants who fail to meet their Mutual Obligation Requirements including those outlined in their Job Plan and on their homepage. This includes not meeting their Points Requirement in a Points Reporting Period or submitting Job Search efforts that are not of a satisfactory quality. A failure to meet Mutual Obligation Requirements is a Mutual Obligation Failure. For further information on the application of the TCF, see the [Targeted Compliance Framework and Mutual Obligation Failures Chapter](#).

(Deed Reference(s): Clause 145)

11.8. Activation and Mandatory Activity Requirement

The purpose of activation is to encourage Participants to engage in Activities to develop skills and improve employment prospects.

Activation requirements can be satisfied at any point in time. That is why early engagement in Activities, education or work both increases the likelihood a Participant will secure ongoing work and also satisfies activation prior to the activation point. Providers should support Participants to meet their activation requirements.

The Provider is responsible for:

- advising Participants of the Mandatory Activity Requirement
- considering a Participant's capacity and capability to undertake Activities for their activation requirement. This includes assessing the Participant's barriers and whether they are unable to undertake Activities or can only undertake fewer than the required activation requirement hours
- assessing and agreeing in negotiation with the Participant a range of suitable and safe Activities that will support the Participant to find and maintain suitable employment
- supporting and monitoring Participants when undertaking Activities that count towards meeting their activation requirement
- after the activation point, continuing to request Participants to select an appropriate Activity. The Provider must then refer Participants to the Mandatory Activity (only if eligible) if Participants do not meaningfully engage in other Activities
- managing Participants in accordance with the Targeted Compliance Framework where Participants are undertaking the Mandatory Activity.

11.8.1. Activation point

Activation points are used to identify if a Participant:

- is engaged in Activities, paid work, education or training, or
- needs to complete a Mandatory Activity.

Participants' first activation point will occur at either 3 or 6 months:

- 3 months from the date of commencement in Workforce Australia Services if the Participant is transferred from Workforce Australia Online following a Period of Registration of 12 months or more, or
- 6 months from the date of initial commencement in Workforce Australia Services for all other Participants.

Subsequent activation points are either 6-months after:

- their last activation point, or
- the date they last met their activation requirement,

whichever is the latest.

11.8.2. Meeting the activation requirement

Prior to the activation point Participants can meet their activation requirement by participating in:

- an approved activation Activity (i.e. completing at least 80% of), or
- one or more Provider-assessed activation Activities (any combination of Activities).

After the activation point Participants can meet their activation requirement by either:

- continuing in an Approved Activation Activity or Provider-assessed activation Activities,
- commencing in and participating in an Approved Activation Activity or Provider-assessed Activities, or
- completing Work for the Dole as the Mandatory Activity.

Circumstances where an approved or Provider-assessed Activity may be more appropriate than the Mandatory Activity, include where:

- the Activity is more suitable and/or beneficial for the Participant,
- the Participant is not eligible to participate in a Work for the Dole activity, e.g. under 18 years old,
- the Participant cannot be required to do Work for the Dole, or
- the Participant has commenced in a Mandatory Activity and the Provider assesses that it is not suitable.

Activation requirement - checking participation/completion.

Providers should continually monitor and assess Participants' engagement in Activities.

In addition, at 4 weeks prior to a Participant's activation point, the Provider must assess whether the Participant has met their activation requirement by checking their attendance history at Approved or Provider-assessed Activities and confirm this through the Department's IT Systems. A successful completion reason for the Activity must be entered. This can also be confirmed in the Department's IT Systems earlier when the Participant meets the requirement.

At the same time (4 weeks prior to a Participant's activation point), if a Participant has not met their activation requirement or doesn't have an existing referral or commencement to an Activity, the Department's IT Systems will:

- send notifications to the Participant about their upcoming activation requirement, and
- create an Open Task advising the Provider to assess and place the Participant in an approved activation Activity, Provider-assessed activation Activity or Mandatory Activity. These Open Tasks will be shown in the Provider's in-tray.

The notifications and Open Task will remain until Participants either successfully complete a relevant Activity or Providers assess successful engagement with Activities and mark a Participant as having met their activation requirement in the Department's IT Systems.

If a Participant has not met the activation requirement the Provider can re-assess the Participant's needs and circumstances and determine if the Participant has undertaken Activities to the extent of their capacity considering individual circumstances and barriers. In this case the Provider can update the activation requirement as 'met'.

If the Participant has exceptional circumstances that prevents them from undertaking Activities, the Provider may update the activation requirement as 'met' in the Department's IT Systems and record a file note to detail the reasons why the Participant was unable to meet the activation requirement.

Where Progress Payments are primarily dependent on completion of approved activation Activities or interventions, the evidence uploaded by Providers when claiming Progress Payments can be used by the Provider in considering whether the activation requirement has been met. For more information on Progress Payments, see [Progress Payments](#) section.

Mandatory Activity

Work for the Dole is the only Mandatory Activity for Participants in Workforce Australia Services. This means that the [Targeted Compliance Framework](#) applies to non-attendance at Work for the Dole, but only when Participants have reached the activation point and continue not to engage in an Approved activation Activity or Provider-Assessed activation Activity.

The TCF cannot be applied to any other Activity, including Work for the Dole where participation is not as the Mandatory Activity e.g. prior to the Activation Point.

Participants can only be referred to Work for the Dole where eligible. For more information see the [Mandatory Activity – Work for the Dole](#) section.

Approved Activation Activities

Participation in one of the Activities below will meet the activation requirement:

- Adult Migrant English Program (AMEP)
- Career Transition Assistance (CTA)
- Employability Skills Training (EST)
- Education and training (accredited training courses) with a course duration of at least 4 weeks
- Self-Employment Assistance (SEA) Small Business Training
- Skills for Education and Employment (SEE)
- Voluntary attendance at Work for the Dole (WfD)

The Department's IT Systems will confirm the activation requirement has been met when the Participant has:

- attended at least 80% of a [Career Transition Assistance](#) or [Employability Skills Training](#) Course; or
- completed the Activity and an exit reason has been entered such as 'successful completion of Activity' or 'found employment'.

Otherwise, Providers will need to assess whether Participants have met their activation requirement by attending at least 75 hours of the Activity by checking their attendance history and points earned during the period in the Department's IT Systems.

The examples below show when a Participant may, or may not, meet their activation requirement through approved activation Activities and don't need to complete a Mandatory Activity.

Example 1:

A Participant was enrolled in a CTA Course which involves attendance of 75 hours over 8 weeks. The Participant attended 60 hours which is equivalent to 80% of the entire course, therefore the Participant is considered to have met the activation requirement (and does not have to complete a Mandatory Activity Requirement).

Example 2:

A Participant was enrolled in an EST Course which required them to attend 15 hours per week for 5 weeks or 75 hours in total. The Participant did not attend 2 weeks of the training; therefore, they have not met the participation requirement of at least 80% needed for meeting the activation requirement. The Provider should refer the

Participant to the Mandatory Activity (Work for the Dole if they are eligible and can be required to participate in Work for the Dole on a compulsory basis).

Example 3:

A Participant was attending an Activity with a long duration (over 6 months e.g. SEA or SEE). Providers should confirm via a direct contact with the Activity provider if the Participant has been engaged in that Activity and if so, the Participant has met the activation requirement (and does not have to complete a Mandatory Activity Requirement).

Provider-assessed activation Activities

Participants can meet the activation requirement (and not require a Mandatory Activity) if they engage in one or more of Provider-assessed activation Activities for a minimum of 75 hours across at least 2 Points Reporting Periods before they reach the Activation Point.

List of Provider-assessed activation Activities

- approved activation Activities (when a Participant has not met the 80% participation/completion requirement)
- Australian Defence Force Reserves
- Non-vocational assistance and interventions, such as counselling, self-help or support groups
- Education and training (non-accredited training courses or accredited training courses where the course duration is less than 4 weeks)
- Local Jobs Program
- Launch into Work
- Non-Government Programs
- Observational Work Experience
- other government programs
- paid work
- Self-Employment Assistance - Exploring Self-Employment Workshops
- Voluntary Work (Participant or Provider sourced)
- Workforce Specialist Projects

Providers must review and confirm the Participant's attendance at the Provider-assessed activation Activities throughout the relevant 3- or 6-month Period of Service to the activation point. This can be done by checking with Host Organisations, activity attendance history, as well as checking the Participant's Points Based Activation System (PBAS) points earned for Activities during the period in the Department's IT Systems.

Further information on the eligibility and participation requirements for Activities can be found in relevant Activity Chapters in these Guidelines (e.g., Launch into Work).

The examples below show when a Participant is taking part in in Provider-assessed activation Activities and does not need to complete a Mandatory Activity:

Example 1:

A Participant has undertaken the following Activities over the 6 month period from Commencement to their activation point:

- 2 weeks of an EST Course (80% of the EST Course was not completed)
- 8 weeks of regular 2 hourly Drug & Alcohol treatment/rehabilitation sessions, and
- 10 hours of paid work in one week.

Even though the Participant did not meet the activation requirement by attending 80% of the EST course, the Provider assessed the Participant as meeting the activation requirement as they were actively participating in Activities that improved their employability. A Mandatory Activity Requirement was not required.

Example 2:

A Participant undertaking a non-accredited training course attended 10 hours a week throughout the semester (18 weeks over 6 months). The Provider confirmed the Participant's attendance through reviewing the Participant's PBAS points earned for the period. The Participant attended more than the minimum 75 hours over at least 2 reporting periods therefore, the Participant met the activation requirement. A Mandatory Activity was not required.



Providers must record in the Department's IT Systems that the Participant has met the activation requirement.

11.8.3. Activation requirement not met

Where a Participant has not met the activation requirement, the Provider must contact the Participant to:

- ensure the Participant understands the activation requirements,
- confirm that they can continue with any approved activation Activity in which they are already enrolled in, or the Provider-assessed activation Activity (e.g. paid work) to meet the activation requirement, or
- arrange for the Participant to undertake the Mandatory Activity (unless the requirement is waived) or enrol the Participant in a different approved or Provider-assessed Activity.

Providers must not refer Participants to the Mandatory Activity if they are presently engaged in residential or full-time drug and alcohol treatment or rehabilitation at the time. These Participants are considered to have met their activation requirement by participating in a Provider-assessed activation Activity.

(Deed Reference(s): Clauses 142.1 (a)(i) and 142.1 (a)(ii))

Mandatory Activity - Work for the Dole

Participants who fail to meet the required participation in Activities, are required to commence in Work for the Dole as the Mandatory Activity within 4 weeks of the activation point. Participants must complete 8 weeks of Work for the Dole to meet the activation requirement.

Work for the Dole is the only Mandatory Activity that can be undertaken to meet the Mandatory Activity Requirement. See the [Work for the Dole Chapter](#) for more information.

Where the Participant is required to undertake a Mandatory Activity, the Provider must contact the Participant to:

- ensure that the Participant understands the activation requirement and the Mandatory Activity Requirement with the Participant,

- update the Participant's Job Plan by adding the Mandatory Activity Requirement (PA15) and refer the Participant to a Work for the Dole Activity (only where the Participant can be required to participate in Work for the Dole on a compulsory basis. Further information is provided below),
 - remove the Mandatory Activity Requirement (PA15) from the Job Plan following the successful completion of the Work for the Dole activity, and
- Note:** The Mandatory Activity (PA15) cannot and must not be added to the Job Plan before the Participant has reached their activation point.
- ensure the Participant understands:
 - how to report details of their participation in, and completion of, the Mandatory Activity, and
 - the consequences of failure to participate in the Mandatory Activity. See the [Targeted Compliance Framework Mutual Obligation Failure Chapter](#) for more information.

Providers should note the following:

- Under Social Security Law, Participants cannot be required to participate in Work for the Dole if they are on a part rate of income support (whether due to their income, their parents' or their partner's), or if they are aged 60 and over. Work for the Dole must not be used as a mandatory requirement in these cases (it may still be a voluntary requirement).
- Participants under 18 years of age are not eligible for Work for the Dole.
- If a Participant has Work for the Dole as a mandatory requirement in their Job Plan and their circumstances change so that they are no longer able to have this as a requirement (e.g., they turn 60 or start declaring income), or if they become engaged in residential or full-time drug and alcohol treatment or rehabilitation, Work for the Dole must immediately be removed as a compulsory requirement from their Job Plan.



Providers must record the mandatory Work for the Dole activity in the Participant's Job Plan as a compulsory Activity (PA15), in the Department's IT Systems. The Mandatory Activity code (PA15) must be removed from the Participants Job Plan when the Activity has been completed.



When a Participant meets their Mandatory Activity Requirement by completing the mandatory Work for the Dole activity, the Provider must update the Department's IT Systems.

See earlier in this Chapter for further information on recording a compulsory Activity in a Job Plan.

(Deed Reference(s): Clauses 142.1 and 142.2)

11.8.4. Record Keeping



Providers should ensure they adhere with Documentary Evidence requirements for each Activity, as outlined in relevant Activity Chapters.

(Deed Reference(s): Clause 120.12)

Attachment 11A. Cohorts Fully Meeting their Mutual Obligation Requirements

This guide provides information on when Participants can be recorded as Fully Meeting their Mutual Obligation Requirements as referred to in [Participants who are Fully Meeting their Mutual Obligation Requirements](#).

Further information on Fully Meeting Mutual Obligation Requirements can be found at [Social Security Guide | Mutual Obligation Requirements \(dss.gov.au\)](#).

Participant Cohort	How to Fully Meet Mutual Obligation Requirements
Mature age Participants (55-59 years)	If in their first 12 months of receiving Income Support Payments. By undertaking: 30 hours per fortnight of approved study and/or paid work (including self-employment), or - Voluntary Work combined with at least 15 hours of approved study and/or paid work (including self-employment), for 30 hours per fortnight. After receiving Income Support Payments 12 months or more (or receiving Parenting Payment for any duration). By undertaking: 30 hours per fortnight of approved study, paid work (including self-employment) or Voluntary Work, in any combination.
Mature age Participants (60 years and over)	By undertaking: 30 hours per fortnight of approved study, paid work (including self-employment) or Voluntary Work, in any combination.
Principal Carer Parents (youngest child is under 16 years of age)	By undertaking: 30 hours per fortnight of approved study and/or paid work (including self-employment), or - Voluntary Work combined with at least 15 hours of approved study and/or paid work (including self-employment), for 30 hours per fortnight. Principal Carer Parents receiving PES, and undertaking 30 hours per fortnight of study, including bachelor degree courses, are also taken to be Fully Meeting their requirements.

Participants with Partial Capacity to Work (15-29 hours per week)	By undertaking: • 30 hours per fortnight of approved study and/or paid work (including self-employment), or • Voluntary Work combined with at least 15 hours of approved study and/or paid work (including self-employment), for 30 hours per fortnight.
Participants in receipt of a Carer Allowance	By undertaking: • 30 hours per fortnight of approved study and paid work (including self-employment), or • Voluntary Work combined with at least 15 hours of approved study and/or paid work (including self-employment), for 30 hours per fortnight.
70 hours combined work and study (Workforce Australia participants only)	By undertaking: • 70 hours per fortnight of paid work (including self-employment) and approved study combined.

Chapter 12. Targeted Compliance Framework and Mutual Obligation Failures

Supporting Documents for this Chapter:

- [‘Compliance Action No Longer Appropriate’ reason options](#)
- [Resolution Time, Demerit, Payment Suspension and Payment Restoration Triggers](#)
- [Manual Demerit removal options](#)
- [Reporting 60 hours of Paid Work - Provider Fact Sheet](#)
- [‘Re-engagement Not Required’ reason options](#)
- [‘Rescheduled’, ‘No-Longer Required’ and ‘Requirement no longer needs to be met’ reason options](#)
- [‘Unable to Re-engage Within 2 Business Days’ reason options](#)
- [Valid Reason assessment options](#)

12.1. Chapter Overview

This Chapter:

- provides information about the Targeted Compliance Framework (TCF) and outlines how it applies to Participants in Workforce Australia Services.
- describes what happens when Participants commit Mutual Obligation Failures and Work Refusal Failures and how Providers are to respond. This includes guidance on impacts for new Participants to employment services, assessing reasons for failures and ensuring the accurate and timely reporting of outcomes against Participant’s Mutual Obligation Requirements.
- provides information about Capability Interviews and Capability Assessments and related processes. These capability reviews are key components of the TCF that provide safeguards for Participants to determine whether their Job Plan and Mutual Obligation Requirements are suitable.
- explains the Provider’s obligations under the Deed.
- provides information on the pause of Mutual Obligation Requirements under exceptional circumstances.

12.2. Targeted Compliance Framework

The Secretary of the Department (the ‘Employment Secretary’ under Social Security Law) took a decision on 5 and 6 March 2025 to pause some parts of the TCF, while legal and IT assurance reviews are underway.

Formal responsibility for administering the TCF sits with the Employment Secretary. Various decisions and functions have been delegated to officers of the Department, Services Australia, and Personnel engaged by Providers. As such, the Department and Providers are jointly responsible for administering this framework in accordance with the systems and guidelines developed by the Department.

In taking these decisions, the Secretary has considered her current level of confidence in how the system, and decision-making processes within the system, are operating and the impact of these decisions on Participants. Of critical importance is that people

subject to the TCF are often our most vulnerable, including those who are homeless, First Nations people and people with disability.

While this is being resolved, Participants will not have their payments:

- reduced for persistently failing to meet their mutual obligations requirements (as applied under 42AF(2)(c) of the *Social Security (Administration Act) 1999* (the Act);
- cancelled for failing to meet their mutual obligations requirements (as applied under 42AF(2)(d)) of the Act;
- cancelled or have a 4-week time preclusion period applied (not being able to apply for or receive a social security payment) for an 'unemployment failure' (as defined in 42AE and applied under 42AH of the Act); and
- cancelled where a person has not complied with a 'reconnection requirement' within 4 weeks after being notified of that requirement (as applied under 42AM of the Act).

The information below has been updated to reflect these decisions.

For further information on the specifics of these recent decisions, please see the DEWR website: [Assuring the integrity of the Targeted Compliance Framework](#).

The TCF is designed to encourage Participants to engage with their Provider, take personal responsibility for managing and meeting their Mutual Obligation Requirements, actively look for work and improve their employment prospects. Participants commit Mutual Obligation Failures when they fail to comply with their Mutual Obligation Requirements.

Under the TCF, a Participant's Income Support Payment may be:

- suspended if they commit a Mutual Obligation Failure
- suspended and/or cancelled if they commit a Work Refusal Failure (that is, they refuse or fail to accept an offer of suitable employment, subject to certain exceptions).

12.2.1. Provider Obligations

The Provider's main obligations relating to the TCF are set out in Chapter B4 – Participant Requirements and Compliance of the Deed. In summary, the TCF obligations of the Provider include:

- assessing a Participant's capability to record/report their own participation (and reviewing their capability as required). For more information on how to assess a Participant's capability to self-report their participation and how to record this in the Department's IT Systems, refer to [Determining if a Participant can accurately record and report their participation online](#)
- making sure the Participant's Mutual Obligations Requirements and Points Requirement (including Job Search Requirement, where applicable) are suitable and tailored to their personal circumstances and commitments (see the [Job Plan and Mutual Obligation Requirements Chapter](#) for more information)
- actively monitoring and recording each Participant's compliance with their Mutual Obligation Requirements
- timely and accurate recording in the Department's IT Systems when a Participant has committed a [Mutual Obligation Failure](#) or [Work Refusal Failure](#).

Training

Provider staff must successfully complete all mandatory TCF training identified on [the Targeted Compliance Framework page, on the Learning Centre](#), at least every 12 months.

(Deed Reference(s); Clauses 56.3, 97.1)

12.2.2. The 3 zones of the Targeted Compliance Framework

The TCF comprises 3 zones for Participants:

- Green Zone
- Warning Zone
- Penalty Zone.

The key things that determine if a Participant moves from one zone to another are:

- they accrue a Demerit when a Mutual Obligation Failure is applied
- how many Demerits they accrue in a particular period
- the outcomes of any [Capability Assessments](#).

IMPORTANT NOTE: Although the Penalty Zone is still reflected in the Department's IT Systems, the application of financial penalties in the Penalty Zone of the TCF has been paused. Payment suspensions for missed requirements may continue to apply. See [Penalty Zone](#) below for more information.

For a diagram illustrating the 3 zones in the TCF, see [Attachment 12A – Overview of the Targeted Compliance Framework](#).

The Green Zone

All new Participants begin in the Green Zone when they commence in employment services. They remain in this zone as long as they do not commit any Mutual Obligation Failures without a Valid Reason.

Following a Capability Assessment with Services Australia, the Participant is moved back to the Green Zone by the Department with their Demerits reset to zero.⁵

The Warning Zone

When a Participant in the Green Zone accrues a Demerit, they move into the Warning Zone.

Moving into the Warning Zone helps to reinforce the importance of meeting Mutual Obligation Requirements and discourages Participants from committing any further Mutual Obligation Failures.

Each Demerit lasts for 6 active months, after which it automatically expires in the Department's IT Systems.

The term '6 active months' generally means 182 days, but the period is prolonged for any time the Participant is in a penalty period or has an Exemption (up to a maximum of 12 months).

⁵ Refer to the [Targeted Compliance Framework section](#) for information on the pause of some decisions.

Participants are required to participate in capability reviews once they have accrued 3 and 5 Demerits in a 6 active month period:

- at 3 Demerits, they will attend a Capability Interview with their Provider. The outcome of a Capability Interview determines whether the Participant will remain in the Warning Zone or go back to the Green Zone with their Demerits reset to zero.
- at 5 Demerits, they will participate in a Capability Assessment with Services Australia. Following the Capability Assessment, the Participant will go back to the Green Zone with their Demerits reset to zero.

At any time, a Participant may also be fast-tracked to the relevant capability review if they commit a [‘fast-track’ Mutual Obligation Failure](#).

While in the Warning Zone a Participant may have a Payment Suspension applied until a Reconnection requirement is met (see [Reconnection Requirements](#) below).

The Penalty Zone

The Penalty Zone is still reflected in the Department’s IT Systems, however the application of financial penalties in the Penalty Zone of the TCF has been paused.

After the fifth demerit, Participants will still undergo a Capability Assessment with Services Australia.

This is an important check to ensure a Participant is able to meet the requirements of their Job Plan and is given an opportunity to provide any other information relevant to their participation.

If a Participant is found to be capable of meeting their Mutual Obligation Requirements at the Capability Assessment, as the Penalty Zone no longer applies, they will be returned to the Green Zone by the Department (this will occur overnight), and their Jobs Plan will continue to apply. Providers should not report non-compliance to Services Australia for Participants who are being returned to the Green Zone.

12.2.3. Recording participation by close of business

Providers must schedule Engagements in each Participant’s Electronic Calendar. Providers must schedule all Mutual Obligation Requirements, except the Participant's requirement to:

- report adequate Points Requirements, including Job Search efforts
- enter into a Job Plan, or
- action a Job Referral task or job opportunity.

Providers must confirm and/or record participation against each Mutual Obligation Requirement scheduled in a Participant’s Electronic Calendar. Providers must do this no later than close of business on the day that the Mutual Obligation Requirement is scheduled to occur in the Participant’s Electronic Calendar. Failure to do so could result in incorrect suspension of a Participant’s Income Support Payment.

With the exception of reporting attendance at a Provider Appointment, if an outcome is not recorded by close of business on the same day the requirement was scheduled, the Department’s IT Systems will automatically suspend the Participant’s Income Support Payment after 5 Business Days.

If, within that 5 Business Day period, the Participant:

- makes contact with their Provider to report their participation or
- gives a Valid Reason for the Mutual Obligation Failure, or
- meets a Reconnection Requirement, and
- this is recorded in the Department's IT Systems,

the Participant's Income Support Payment will not be affected.

Although a Participant does not necessarily accrue a Demerit for failing to record their participation against a Mutual Obligation Requirement, they may accrue a Demerit if they did not attend or participate in the Mutual Obligation Requirement, including if they failed to give prior notice to their Provider of their inability to meet the requirement when it was reasonable to expect them to do so.

See the [Resolution Time, Demerit, Payment Suspension and Payment Restoration Triggers supporting document](#) for information on the circumstances in which a Participant will accrue a Demerit.

(Deed Reference(s): Clauses 104.3, 104.4, 104.5, 105.1, 140, 143 and 144, and Section B2.6)

12.2.4. Committing Mutual Obligation Failures

Where a Participant commits a Mutual Obligation Failure, their Income Support Payment may be suspended, and they accrue a Demerit if they do not have a Valid Reason.

The term 'Mutual Obligation Failure' has the same meaning as 'mutual obligation failure' in section 42AC of the *Social Security (Administration) Act 1999*.

A Participant will commit a Mutual Obligation Failure if they:

- fail to enter into a Job Plan
- fail to attend, or be punctual for, an appointment that they are required to attend
- fail to attend, be punctual for, or participate in an Activity that they are required to attend
- fail to comply with their Points Requirement each Points Reporting Period
- act in an inappropriate manner:
 - during an appointment that they are required to attend, or
 - while participating in an Activity that they are required to attend
- intentionally act in a manner that could reasonably foreseeably result in an offer of paid work not being made to them
- fail to:
 - attend and participate appropriately at a job interview, or
 - act on a job referral or job opportunity when requested to do so by their Provider.

(Deed Reference(s): Clauses 138, 139, 140, 145 and 146)

Note: Providers must not use or threaten to use the TCF to request pay slips or other proof of employment from a Participant. Providers may request that a Participant supply pay slips or other proof of employment, but Participants are under no obligation to supply evidence of employment.

Missed Requirements that do not result in a Mutual Obligation Failure

All Participants new to employment services will not have compliance applied the first time they do not meet their Mutual Obligation Requirement. Instead, they will be given a warning. The

Department's IT Systems will identify those new to employment services and, when a Did Not Attend - Invalid (DNAI) or Unsatisfactory Assessment is recorded, will send a warning via their preferred notification method. This warning reminds them:

- where they can find information about their requirements,
- to contact their Provider if they are having difficulty understanding or meeting their requirements, or they require a referral to support services and
- that on this occasion no compliance action will be taken in relation to their payment.

If a Participant makes contact with the Provider within 5 Business Days of the non-compliance event date to discuss their reason for not meeting the requirement, and a Valid Reason is accepted for the Mutual Obligation Failure, the Provider will be able to reset the warning. Resetting the warning will enable the Participant to receive the warning for their next eligible failure. For more information see [KB0017631 - IT Task Card – Compliance - Resetting the Compliance Warning](#).

Where contact is made with the Participant after 5 Business Days, and you accept the Valid Reason for not meeting the requirement, Providers must submit a request within 28 calendar days of the non-compliance event date through Question Manager to have the warning reset.

However, where a Participant new to employment services does not attend their Initial Appointment with their Provider or behaves in such a way the Appointment cannot be completed or does not agree to a Job Plan, compliance action will apply.

Participants who fail to meet their first Points Requirement will still receive the "Light Touch" Reconnection for their next Points Based Failure. For more information see [Light Touch Reconnection for a Points Based Failure](#).

Participants who advise they are undertaking 60 hours paid work in a Points Reporting Period (equivalent to 30 hours per fortnight) will generally not have compliance action applied for non-attendance at a Provider Appointment. Providers must not schedule compellable Provider Appointments at times they know a Participant is undertaking paid work.

See [Reporting 60 hours of paid work](#) and [Targeted Compliance Framework Reference Guide](#).

Fast-track Mutual Obligation Failures

Particular types of Mutual Obligation Failures are referred to as 'fast-track' Mutual Obligation Failures because they can result in a Participant having a Capability Interview or Capability Assessment more quickly than would otherwise be the case.

Fast-track Mutual Obligation Failures apply to all Participants who have an obligation to look for work.

A fast-track Mutual Obligation Failure occurs when a Participant:

- fails to attend or participate appropriately at a scheduled job interview, or
- fails to act on a job referral or job opportunity when requested to do so by their Provider.

If a Participant has:

- fewer than 3 Demerits when they incur a Demerit for a fast-track Mutual Obligation Failure, the Department's IT Systems will automatically increase the number of Demerits to 3, or

- either 3 or 4 Demerits when they commit a fast-track Mutual Obligation Failure, the Department's IT Systems will automatically increase the number of Demerits to 5.

Prior notice and Acceptable Reasons

If a Participant notifies the Provider, before the scheduled start time for a Mutual Obligation Requirement, that the Participant is unable to comply with their Mutual Obligation Requirement, the Provider must then assess whether the Participant's reason for being unable to comply with the Mutual Obligation Requirement is an Acceptable Reason.

Providers must consider the necessity of scheduling a requirement over any confirmed Personal Events in the Calendar because a Personal Event is considered prior notice of a Participant's inability to attend requirements (see [Scheduling Mutual Obligation Requirements in the Participant's Electronic Calendar](#)).

In some limited circumstances, the Provider may need to schedule a requirement for the same time as a Participant's confirmed and scheduled Personal Event. In this case the Provider must discuss with the Participant whether it is appropriate to record the Mutual Obligation Requirement. The Provider must ensure the Participant has been sufficiently notified and is able to make other arrangements for the Personal Event. Finally, the Provider will be required to record the reason for their assessment that it was appropriate to book the requirement over the event. Participants must not be asked to give up paid work to meet requirements.

The Provider must determine a Participant has an Acceptable Reason if:

- the Participant notified the Provider, before the scheduled start time for a Mutual Obligation Requirement, that the Participant is unable to meet the Mutual Obligation Requirement; and
- the Provider is satisfied that the Participant has a Valid Reason for being unable to meet the Mutual Obligation Requirement.

Note: If the Participant missed a requirement in the past, this is a decision on whether they had a Valid Reason. If the Participant can't meet a requirement in the future, this is a decision on whether they have an Acceptable Reason. The nature of the Acceptable Reason is determined using the same considerations as for Valid Reason.

Note: a person notifying that they will be working at the time of a requirement is generally considered an Acceptable Reason.

In determining a Valid Reason, the Provider must be satisfied that the reason given by the Participant:

- would directly prevent the Participant from meeting the Mutual Obligation Requirement at the time the Mutual Obligation Requirement is scheduled to occur
- would be considered to be reasonable by a member of the general public
- aligns with the Participant's personal circumstances as known by the Provider, and
- could not have reasonably been given prior to their inability to meet the requirement.

See the [Valid Reason assessment options supporting document](#), for guidance on what reasons can be accepted or not accepted as a Valid Reason.

The exception to the above is discussed below in [Drug and Alcohol Dependency or Misuse](#).

If the Provider is satisfied that the Participant has an Acceptable Reason, they must reschedule or remove the scheduled Mutual Obligation Requirement from the Electronic Calendar.

Rescheduling means that the Provider moves the relevant Engagement to another day and/or time in the Electronic Calendar. Providers must formally notify the Participant of the details of their new date and/or time of the Engagement and the consequences of not meeting the relevant Mutual Obligation Requirement.

Removing means that the Provider records in the Department's IT Systems that the relevant Engagement is 'No Longer Required'. The Provider must notify the relevant Participant as soon as the provider has done this to ensure there is no confusion.



Where a Provider has a Deed obligation to reschedule or remove a Mutual Obligation Requirement, the Provider must select 'No Longer Required' or 'Rescheduled' (as appropriate) in relation to the Mutual Obligation Requirement in the Participant's Electronic Calendar. This will either remove the Mutual Obligation Requirement from the Participant's Electronic Calendar or allow the Mutual Obligation Requirement to be rescheduled in the Participant's Electronic Calendar.

If the Mutual Obligation Requirement in question is a requirement to attend a job interview or act on a job opportunity the Provider must select 'No Longer Required' and also select from the drop-down menu the description of the relevant Acceptable Reason which is most similar to the Participant's Acceptable Reason as they described it to the Provider.

If the Participant provides an Acceptable Reason for not being able to meet their monthly Points Requirement, the provider should select 'No Longer Required' and also select from the drop-down menu the description of the relevant Acceptable Reason which is most similar to the Participant's Acceptable Reason as they described it to the Provider.

A full list of these drop-down menu options can be found in the ['Rescheduled', 'No-Longer Required' and 'Requirement no longer needs to be met' reason options supporting document](#).

If the Provider is not satisfied that the Participant has an Acceptable Reason for being unable to satisfy the future Mutual Obligation Requirement, the Provider must tell the Participant why. The Provider must then remind the Participant that they are still expected to meet this Mutual Obligation Requirement and must remind them about the potential consequences of non-compliance. The Provider must provide support and information to assist the Participant to meet their Mutual Obligation Requirement. If the Participant then does not meet their Mutual Obligation Requirement, the Provider must comply with the obligations set out in the [Assessing Valid Reasons](#) section.

(Deed Reference(s): Clause 144 and Section B4.3)

Misconduct—Acting in an inappropriate manner

Particular types of Mutual Obligation Failures are referred to as 'misconduct' in the Department's IT Systems. The circumstances in which the Provider must select 'misconduct' are described in the [When the Participant does not have a Valid Reason](#) section.

Misconduct refers to:

- inappropriate behaviour by the Participant:

- during an Appointment they were notified about and required to attend as part of their Mutual Obligation Requirements, or
- while participating in an Activity they were notified about and required to undertake as part of their Mutual Obligation Requirements, or
- behaviour by a Participant, during a job interview, that could, or did, result in an offer of Employment not being made.

A Provider must determine that a Participant's behaviour involved 'misconduct' in the circumstances described above when the Participant's behaviour during the relevant appointment, Activity or job interview:

- was within the Participant's control
- prevented the purpose of the relevant appointment, Activity or job interview from being met, and
- would be judged by a reasonable person as being inappropriate in the circumstances.

This behaviour may include:

- dressing in a way that is clearly inappropriate for the relevant appointment, Activity or job interview
- using offensive language during the relevant appointment, Activity or job interview
- showing an obvious lack of interest in the relevant appointment, Activity or job interview to the extent that it prevents participation
- exaggerating the severity of an existing injury or illness to avoid fully participating in the relevant appointment, Activity or job interview
- leaving the relevant appointment, Activity or job interview before its completion.

Behaviour that appears to be inappropriate but is out of the Participant's control must not be determined by a Provider to be misconduct. For example, a Participant may act in an inappropriate manner because they:

- do not have appropriate clothes to wear to the relevant appointment, Activity or job interview
- are affected by a significant personal crisis
- are affected by a medical condition.

12.2.5. Participant contact

Contact attempt required on same Business Day

The Provider must attempt to contact the Participant on the same Business Day they become aware that the Participant has missed a Mutual Obligation Requirement (except in the specific circumstances outlined in [Contact attempt not required](#)).

Where the Provider is able to make contact with the Participant, the Provider must discuss the reasons for the missed requirement so they can determine whether a Mutual Obligation Failure has actually occurred, and if so whether they have a Valid Reason.

Where the Provider establishes a Valid Reason for non-compliance, a Mutual Obligation Failure must not be reported in the Department's IT Systems.

If the Provider cannot establish a Valid Reason for the non-compliance the Provider must determine if a [Reconnection Requirement](#) should be set for the Participant.

Where the Reconnection Requirement is a Capability Interview, the Provider must schedule a Capability Interview in accordance with the processes detailed in the Scheduling a Capability Interview section.

See [Assessing Valid Reasons](#) and the [Valid Reason assessment options supporting document](#) for more information on Valid Reasons.

(Deed Reference(s): Clauses 138, 139, 140, 145.1 and 146)

Contact attempt not required

The Provider is not required to contact the Participant if a Mutual Obligation Failure has occurred because the Participant:

- failed to report sufficient tasks to meet their Points Target and/or Job Search Requirement by the end of their Points Reporting Period, or
- failed to enter into a Job Plan after being notified to do so.

In these instances, the Provider should wait for the Participant to make contact.

In most instances for these failures, the Department's IT Systems apply a confirmed Demerit and set the Reconnection Requirement for the Participant. Where a Capability Interview is required, the Provider must wait for the Participant to make contact and schedule the Capability Interview as the Reconnection Requirement. For more information see [Capability Interviews](#).

(Deed Reference(s): Clause 145)

Contact attempt not successful

When the Provider attempts to contact the Participant in accordance with the above obligation and the attempt is not successful, the Provider must record they are not in contact with the Participant and select 'Did Not Attend—Invalid' for attendance-based failures, or 'Unsatisfactory' for assessment-based failures in relation to the relevant Mutual Obligation Requirement. Doing so will create a pending Demerit on the Participant's record and the Participant's Income Support Payment will be automatically suspended in 5 Business Days if the Participant does not make contact or does not meet a Reconnection Requirement (where the Participant does not have a Valid Reason).

If the Provider is contacted by the Participant to discuss the Mutual Obligation Failure, the Provider must discuss with the Participant their reasons for the Mutual Obligation Failure, assess whether the Participant has a Valid Reason, comply with the obligations set out in [Assessing Valid Reasons](#), and if the Provider:

- assesses that the Participant has a Valid Reason, record in the Department's IT Systems that the Participant has a Valid Reason and comply with the obligations set out in [When the Participant has a Valid Reason](#), or
- assesses that the Participant does not have a Valid Reason, set an appropriate Reconnection Requirement for the Participant in accordance with [Reconnection Requirements](#).

See the [Resolution Time, Demerit, Payment Suspension and Payment Restoration Triggers supporting document](#).

Five Business Day Resolution Time

The purpose of Resolution Time is to allow Participants 5 Business Days to contact their Provider, to discuss and—when possible—resolve the Mutual Obligation Failure, before a Participant's payment is impacted.

During the 5 Business Days Resolution Time, the Provider must be available to engage with Participants who make contact to discuss the Mutual Obligation Failure.

During this discussion, the Provider must determine whether the Participant has a Valid Reason for the Mutual Obligation Failure and must immediately record this assessment in the Department's IT Systems. As a result of this assessment:

- If the Provider records the Participant has a Valid Reason, the payment suspension will be avoided.
- If the Provider records the Participant does not have a Valid Reason, the Participant must meet a Reconnection Requirement to avoid payment suspension.

See [Assessing Valid Reasons](#) and [Reconnection Requirements](#).

Notifications to Participants of Mutual Obligation Failures

When the Provider records in the Department's IT Systems that a Participant has committed a Mutual Obligation Failure, the Department's IT Systems sends the Participant a notification on the Provider's behalf to advise them:

- it appears they have failed to meet a Mutual Obligation Requirement
- to contact their Provider as soon as possible, and
- their Income Support Payment may be suspended after 5 Business Days have passed if they take no further action.

The automatic notification only occurs if the Participant has SMS or email details recorded in the Department's IT Systems for automatic notification.

If the Participant does not have SMS or email details recorded in the Department's IT Systems for automated notification, the Provider must send the notice prepared by the Department's IT Systems to the Participant's postal address on the same day the Provider records in the Department's IT Systems that the Participant has committed a Mutual Obligation Failure.

(Deed Reference(s): Clause 115, sections B4.2 and B4.3)

Five Business Days Resolution Time have passed since the Provider recorded the Mutual Obligation Failure in the Department's IT Systems

If the Participant does not resolve the non-compliance within 5 Business Days by providing a Valid Reason or meeting a Reconnection Requirement, the Department's IT Systems will automatically suspend the Participant's Income Support Payment once 5 Business Days have passed.

When the Participant's Income Support Payment is suspended, the Department's IT Systems sends them a notification advising:

- that their Income Support Payment is suspended
- why their Income Support Payment is suspended

- what they must do for the Income Support Payment suspension to be lifted, and
- to contact their Provider as soon as possible.

If the Participant does not have SMS or email details recorded in the Department's IT Systems for automated notification, the Provider must send the notice prepared by the Department's IT Systems to the Participant's postal address on the same day on which that 5 Business Day timeframe ends.

A Participant's Income Support Payment will normally remain suspended until they meet a Reconnection Requirement or until the Provider records a Valid Reason in the Department's IT Systems. Income Support Payments will be cancelled by Services Australia if the Participant fails to meet a Reconnection Requirement within 28 calendar days of it being notified to the Participant.

(Deed Reference(s): Clause 115, sections B4.2 and B4.3)

12.2.6. Assessing Valid Reasons

As referred to in [Contact attempt required on same Business Day](#) and [Contact attempt not successful](#), Providers must assess whether a Participant has a Valid Reason for a Mutual Obligation Failure. If the Provider records in the Department's IT Systems that the Participant:

- has a Valid Reason for a Mutual Obligation Failure, the pending Demerit on their record relating to that Mutual Obligation Failure will be removed, or
- does not have a Valid Reason, the Demerit will be confirmed.

See the [Resolution Time, Demerit, Payment Suspension and Payment Restoration Triggers supporting document](#) for information on the circumstances in which a Demerit (pending confirmation) will be confirmed or removed from the Participant's record.

A Provider must determine the Participant has a Valid Reason for a Mutual Obligation Failure when the Provider is satisfied that the reason the Participant provided:

- directly prevented the Participant from meeting the Mutual Obligation Requirement at the relevant time that the Mutual Obligation Failure occurred
- would be considered to be reasonable by a member of the general public, and
- aligns with their personal circumstances as known by the Provider.

The exception to the above is discussed below under [Drug and alcohol dependency or misuse](#).

(Deed Reference(s): Clauses 138, 144 and 145)

Drug and alcohol dependency or misuse

There are limits on the circumstances in which a Provider can determine that a Participant's drug or alcohol misuse or dependency is an Acceptable Reason or a Valid Reason for a Mutual Obligation Failure.

Acceptable and Valid Reason determinations are discussed in [Prior Notice and Acceptable reasons](#) and [Assessing Valid Reasons](#).

Subject to those Sections, the first time a Participant cites drug or alcohol misuse or dependency as the reason they are not able to meet an upcoming Mutual Obligation Requirement or have committed a Mutual Obligation Failure, the Provider may determine this is an Acceptable Reason or a Valid Reason, respectively.

If the Provider determines that a Participant's drug or alcohol misuse or dependency is an Acceptable Reason or a Valid Reason, the Provider must identify and source an available and appropriate treatment program and must encourage the Participant to participate in that program. Participation in treatment services to address drug or alcohol misuse or dependency may reduce other Mutual Obligation Requirements. See [Mutual Obligation Requirements](#) for more information on setting Mutual Obligation Requirements.

If a Participant cites drug or alcohol misuse or dependency as the reason they are not able to meet an upcoming Mutual Obligation Requirement or have committed a Mutual Obligation Failure, the Provider must not determine this is an Acceptable Reason or a Valid Reason (as relevant) if:

- the Provider previously determined that the Participant's drug or alcohol misuse or dependency was an Acceptable Reason or a Valid Reason, so the relevant upcoming Mutual Obligation Failure was rescheduled or the relevant Mutual Obligation Failure did not result in a Demerit
- the Provider referred the Participant to available and appropriate treatment to address the drug or alcohol misuse or dependency
- the Participant refused or deliberately failed to participate in the treatment, and

unless one of the following exceptions applies:

- the treatment that the Participant was referred to was not available or appropriate for the Participant
- the Participant was genuinely unable to participate in the treatment
- the Participant agreed to participate in the treatment but, despite taking all reasonable steps to commence the treatment, the treatment did not commence, or
- before the Participant was referred to the treatment, the Participant had:
 - completed the same type of treatment as the treatment they were referred to, or
 - completed treatment that was substantially similar to the treatment they were referred to and, in the opinion of an appropriately qualified medical professional, the Participant would not benefit from further treatment of the same kind as the type of treatment already completed by the person.

(Deed Reference(s): Clause 137, 145)

When the Participant has a Valid Reason



On the day the Provider determines a Participant has a Valid Reason for a Mutual Obligation Failure, the Provider must record this assessment in the Department's IT Systems.

The way the Provider must record this assessment differs, depending on the type of Mutual Obligation Failure that the Participant has committed. The steps the Provider must take, depending on the type of Mutual Obligation Failure with a Valid Reason, are described below.

By recording a reason that is Valid, the Provider is:

- removing the need for any re-engagement requirement associated with the Mutual Obligation Failure
- finalising the Mutual Obligation Failure to prevent the Participant's Income Support Payment being affected
- lifting the Participant's payment suspension if the Participant's Income Support Payment is suspended, and

- removing the pending Demerit from the Participant's record.



When the Provider records that the Participant has a Valid Reason, the Provider must also select from the drop-down menu the description of the relevant Valid Reason.

A list of Valid Reason drop-down menu options can be found in the [Valid Reason' assessment options supporting document](#). An item not being included in drop-down menus does not necessarily mean that it is not a Valid Reason and the Provider should choose the option that is most similar to the reason given by the Participant.

Providers should also note, that in the Department's IT Systems:

- 'reasons accepted' refers to the reasons that the Provider determines are Valid Reasons, and
- 'reasons not accepted' refers to the reasons that the Provider determines are not Valid Reasons.

Failures against requirements that are in the Participant's Electronic Calendar (including failure to attend a Mandatory Activity)



On the day the Provider determines a Participant has a Valid Reason for a Mutual Obligation Failure:

- If the Provider has not already recorded an attendance result in relation to the relevant Mutual Obligation Requirement—the Provider must select 'Did Not Attend—Valid'.
- If the Provider has already recorded 'Did Not Attend—Invalid' or 'Misconduct' in relation to the relevant Mutual Obligation Requirement—the Provider must select 'Yes' in response to the question of whether they accept the Participant's given reason.

(Deed Reference(s): Clause 139, 142, 145)

Failures to meet monthly Points Requirement

Failures to meet Points Requirement are automatically created and confirmed by the Department's IT Systems.



On the day the Provider determines a Participant has a Valid Reason for a Mutual Obligation Failure due to the Participant's failure to meet their Points Requirement, the Provider must select 'Yes' on the Outstanding Non-Compliance screen in the Department's IT Systems to indicate the Participant's reason for not meeting their Points Requirement has been accepted. The system will prompt Providers to record the reason the Participant provided.

(Deed Reference(s): Clauses 110, 138, 145)

Failures to enter into a Job Plan

Refer to [Creating a Job Plan](#) for more information about Participant requirements to enter into a Job Plan.



On the day the Provider determines a Participant has a Valid Reason for a Mutual Obligation Failure due to the Participant failing to enter into a Job Plan:

- the Provider must select 'Yes' on the Outstanding Non-Compliance screen in the Department's IT Systems to indicate the Participant's reason for failing to enter into a Job Plan has been accepted. The system will prompt the Provider to record the reason the Participant provided.

- Once the Provider has recorded that the Participant has a Valid Reason, the Provider must then create a Provider Appointment for the Participant to attend within 2 Business Days after the day the Provider has recorded their assessment. If the Participant attends the Provider Appointment, the Provider must discuss the Job Plan with the Participant. If the Participant does not attend the Provider Appointment to discuss the Job Plan, this is a Mutual Obligation Failure, and the Provider must comply with their usual obligations regarding Mutual Obligation Failures.

(Deed Reference(s): Clauses 107, 108, 145)

Failures to act on a Job Referral task or job opportunity

Refer to [Creating a Job Plan](#) for more information about Participant requirements to act on a Job Referral task or job opportunity.



On the day the Provider determines that a Participant has a Valid Reason for a Mutual Obligation Failure due to a failure to act on a Job Referral task or job opportunity when requested to do so by the Provider, the Provider must select 'Unsatisfactory—Valid' on the Outstanding Non-Compliance screen in the Department's IT Systems to indicate the Participant's reason for failing to act on a job opportunity has been accepted.

(Deed Reference(s): section B4.3)

When the Participant does not have a Valid Reason



On the day the Provider determines a Participant does not have a Valid Reason for a Mutual Obligation Failure, the Provider must record this assessment in the Department's IT Systems.

The way the Provider records this differs depending on the type of Mutual Obligation Failure the Participant has committed.

When the Provider records this information, they must also select from the drop-down menu a description of the reason the Participant has given that they have determined was not Valid. Where the exact reason is not in the drop-down menu, the Provider should select the option which is most similar to the reason the Participant described.

By recording the Participant's reason is not a Valid Reason, the Provider is confirming the relevant Demerit on the Participant's record.

A list of these drop-down menu options can be found at [Valid Reason assessment options supporting document](#). Providers should also note, that in the Department's IT Systems:

- 'reasons accepted' refers to reasons that the Provider determines are Valid Reasons
- 'reasons not accepted' refers to reasons that the Provider determines are not Valid Reasons.

On the day the Provider determines a Participant does not have a Valid Reason for failing to meet a Mutual Obligation Requirement, the Provider must also explain the following to the Participant:

- why their given reason was not a Valid Reason,
- their Income Support Payment will be suspended following Resolution Time unless the Participant is able to meet a Reconnection Requirement during Resolution Time,
- how this decision will be displayed on the 'Participant's Compliance Status Indicator' on the online Dashboard including the number of Demerits the Participant has accrued,
- the importance of meeting all Mutual Obligation Requirements,

- what and when the Participant's Reconnection Requirement will be.

By reinforcing the consequences of failing to meet Mutual Obligation Requirements, Participants are encouraged to meet their Mutual Obligation Requirements in the future and remain engaged with their Providers.

Failures against requirements that are in the Participant's Electronic Calendar (including failure to attend a Mandatory Activity)

Where a Participant commits a Mutual Obligation Failure by failing to meet a Mutual Obligation Requirement that is scheduled in the Participant's Electronic Calendar, the Provider must undertake the system steps referred to below by close of business on the day the Provider determines the Participant does not have Valid Reason for the Mutual Obligation Failure.



If the Provider:

- has not already recorded an attendance result in relation to the relevant Mutual Obligation Requirement—the Provider must select 'Did Not Attend—Invalid'.
- has already recorded 'Did Not Attend—Invalid' or 'Misconduct' in relation to the relevant Mutual Obligation Requirement—the Provider must select 'No' in response to the question of whether they accept the Participant's given reason. The system will prompt Providers to record the reason the participant provided.

(Deed Reference(s): Clause 139, 142, 145)

Failures to meet a Points Requirement

Failures to meet Points Requirements are automatically created and confirmed in the Department's IT Systems.



On the day that the Provider determines that a Participant does not have a Valid Reason for a Mutual Obligation Failure due to the Participant failing to meet their Points Requirement, the Provider must select 'No' on the Outstanding Non-Compliance screen in the Department's IT Systems to indicate that the Participant's reason for not meeting their Points Requirement has not been accepted. The system will prompt Providers to record the reason the Participant provided.

Participants who fail to meet their Points Requirement without a Valid Reason will be required to meet a Reconnection Requirement to make up the missed points by undertaking Job Search. See [Reconnection Requirement for failing to meet Points Requirement](#) for more information.

Failures to enter into a Job Plan

Refer to [Creating a Job Plan](#) for more information about Participant requirements to enter into a Job Plan.



On the day that the Provider determines that a Participant does not have a Valid Reason for a Mutual Obligation Failure due to the Participant failing to enter into a Job Plan, the Provider must select 'No' on the Outstanding Non-Compliance screen in the Department's IT Systems to indicate that the Participant's reason for failing to enter into a Job Plan has not been accepted. The system will prompt Providers to record the reason the Participant provided.

Failures to act on a Job Referral task or job opportunity

Refer to [Creating a Job Plan](#) for more information about Participant requirements to act on a job referral or job opportunity.



On the day that the Provider determines that a Participant does not have a Valid Reason for a Mutual Obligation Failure due to a failure to act on a job opportunity when requested to do so by the Provider, the Provider must select 'Unsatisfactory—Invalid' on the Outstanding Non-Compliance screen in the Department's IT Systems to indicate that the Participant's reason for failing to act on a job opportunity has not been accepted. The system will prompt Providers to record the reason the Participant provided.

Manually removing Demerits

Providers must remove Demerits in the following circumstances:

- the Demerit was recorded in respect of a Mutual Obligation Failure by a Participant who was subsequently found to have had a Valid Reason for committing the Mutual Obligation Failure, or
- the Demerit was recorded in error.



When removing the Demerit, the Provider must record the reason for the removal in the Department's IT Systems. A full list of these drop-down menu options can be found in the [Manual Demerit removal options supporting document](#).

(Deed Reference(s): Clause 145.4)

12.2.7. Participants cannot appeal Demerit decisions under Social Security Law

All Participants have the right to ask for a review of a decision made under Social Security Law and, in most cases, to appeal the decision to a tribunal or court. This includes decisions to suspend a Participant's Income Support Payment as a result of non-compliance.

Demerit decisions are not decisions under Social Security Law and so Participants cannot appeal or ask for a formal review of any decisions on Demerits. However, Participants may dispute Demerit decisions.

Disputing a Demerit decision by contacting the National Customer Service Line

A new complaints service was launched on 31 October 2024 to help Australians who use employment services to raise concerns more easily and effectively. This new service forms part of the "Strengthening the Integrity of Employment Services" measure announced in the 2024-25 Federal Budget.

The strengthened service delivers a user-centred approach to complaints management, focusing on creating an accessible, transparent, and responsive service that prioritises the needs of Participants.

Complaints with a major or serious impact on users are referred immediately to a new complaints management team for investigation.

Where an investigation is needed, complaints are investigated by the new complaints management team and complainants are kept informed and provided with a comprehensive statement of the outcome of their complaint.

If a Participant is dissatisfied with a Demerit decision, they can first discuss the decision with their Provider. If they still wish to dispute the decision after this discussion, or if they do not feel comfortable discussing this with their Provider, they can contact the National Customer Service Line (NCSL).

By contacting the NCSL to dispute a Demerit decision, the Participant will in effect make a Workforce Australia Services-related complaint. If required and appropriate, the Provider must action complaints that are referred to them by the NCSL or the Complaints Management Team. This may include reviewing the Demerit decision-making process, any Valid Reason assessments or information that has been recorded on the Department's IT Systems.

12.2.8. Reconnection Requirements

Note: 'Reconnection Requirements' are referred to as 're-engagement requirements' in the Department's IT Systems and in some reference materials.

A Reconnection Requirement is what a Participant must do to prevent their Income Support Payment from being suspended during the 5 Business Days Resolution Time or to restore their payment once suspended. Usually, the Reconnection Requirement will be the Mutual Obligation Requirement that the Participant failed to meet.

Reconnection Requirements are set:

- **By Providers:** When contact with a Participant occurs to discuss their reasons for a Mutual Obligation Failure, and the Provider assesses they do not have a Valid Reason and records the assessment in the Department's IT Systems (as described in [Assessing Valid Reasons](#)), the Provider must set a Reconnection Requirement for the Participant.
- **Automatically:** The Department's IT Systems will automatically set the Reconnection Requirement when the Participant has failed to:
 - meet their Points Requirement (the Participant fails to do or report sufficient tasks or activities to meet their Points Target and/or Job Search Requirement by the end of their Points Reporting Period), or
 - enter into a Job Plan.

Where the Department's IT Systems automatically set a Reconnection Requirement for a Participant as described above, the Provider does not need to do this.

If the Participant's Income Support Payment has been suspended, they must meet a Reconnection Requirement in order to have their Income Support Payment suspension lifted.

See the [Resolution Time, Demerit, Payment Suspension and Payment Restoration Triggers supporting document](#) for information on the circumstances in which:

- a Participant's Income Support Payment is suspended
- the suspension of a Participant's Income Support Payment is lifted.

Note that if set, a Reconnection Requirement is a Mutual Obligation Requirement. This means that, among other things the Provider must comply with the Deed:

- when recording Reconnection Requirements in a Participant's Electronic Calendar
- in relation to rescheduling or removing a Reconnection Requirement from a Participant's Electronic Calendar.

See [Reconnection Requirements — No Longer Required](#).

(Deed Reference(s): Clauses 140 and 145)

12.2.9. Reconnection Requirements for attendance-based failures during Resolution Time

If the Participant makes contact during Resolution Time for an attendance-based failure and the Provider is satisfied that a Reconnection Requirement is not necessary, the Provider must record "Re-engagement not required – non-compliance discussed", unless the missed requirement was an Initial Appointment, or unless the Reconnection Requirement is a Capability Interview or Capability Assessment. In these cases, the Reconnection Requirement should not be finalised as "Re-engagement not required – non-compliance discussed".

If the purpose of the missed requirement cannot be achieved during a Reconnection Requirement (for example to discuss Job Search), a new requirement can be booked and the Participant notified to attend.

In instances where the Participant has demonstrated continued patterns of disengagement, or if the Provider considers that re-engagement is required, the Provider can set a Re-engagement Requirement to occur in accordance with [Setting a Reconnection Requirement](#).

If a Provider sets a Reconnection Requirement for an attendance-based failure during Resolution Time, they must record the reason in the comment section of the Department's IT Systems.

12.2.10. Setting a Reconnection Requirement

When setting a Reconnection Requirement, the Provider must follow the prompts in the Department's IT Systems and notify the Participant of the Reconnection Requirement. The Department's IT Systems will specify the type of Reconnection Requirement which the Provider must set for the purposes of complying with their Deed obligation. Refer to [Notifications to Participants of Mutual Obligation Failures](#) for information on notifying Participants within the appropriate timeframe.

The Provider must schedule any attendance-based Reconnection Requirements in the Participant's Electronic Calendar to occur within 2 Business Days following the day of the contact between the Participant and their Provider to discuss the relevant Mutual Obligation Failure. The exception to this is if the Participant has a Valid Reason for not being able to meet the Reconnection Requirement within the 2 Business Day timeframe as discussed below in [Valid Reason to not meet Reconnection Requirement within 2 Business Days](#).

(Deed Reference(s): Clauses 120, 140 and 145)

Reconnection Requirement for failing to meet Points Requirement

To meet a Reconnection Requirement for failing to meet the Points Requirement, the Participant must complete Job Search to the value of the Points Requirement that was not previously met.

Example: Where a Participant has a Points Target of 80 points, but has only earned 65 points, the Participant must complete 3 Job Searches (5 points per Job Search = 15 points) (15 points + 65 points = previous Points Target of 80 points).



When the Provider or Participant reports the Participant's re-engagement Job Search efforts, the Department's IT Systems will automatically allocate these points first to offset the Participants Job Search re-engagement requirement.

Participants must complete the required number of Job Searches to either:

- avoid payment suspension within the 5-day Resolution Time; or
- have their payment suspension lifted if Resolution Time has passed.

See the [Job Plan and Mutual Obligation Requirements Chapter](#) for details on Job Search and reporting Job Search on behalf of a Participant.

Light Touch Reconnection for a Points Based Failure

All Participants are offered a "Light Touch" Reconnection when they have their first Points Based failure.

The system will identify when a Participant is eligible for Light Touch Reconnection and the Reconnection Requirement will be automatically set to 'Light Touch', unless the Reconnection Requirement is to attend a Capability Interview or Capability Assessment.

Participants will have a Reconnection Requirement to agree to a declaration to confirm their understanding of their Points Requirements. Participants will not need to make up the points they missed. A Participant's Income Support Payment will be suspended following the 5 Business Day resolution time, if the Participant does not agree to this declaration.

Any Participant who is unable to agree to this online declaration themselves must contact their Provider to arrange for them to agree to the declaration.

To support this process, Providers must:

- have a conversation, using the Light Declaration Script in the Department's IT Systems, with the Participant to ensure the Participant understands their Points Requirement, and the consequence of not meeting their Points Requirements in the future; and
- update the system on the Participant's behalf.

Note: Providers should also use this conversation to ensure the Participant's Points Requirement is appropriately tailored to their personal circumstances. For more information, see [Tailoring the Points Requirement to reflect a Participant's circumstances](#).

When a Participant agrees that they understand the script, Providers should update the system as described below. There is no further action for the Provider.



To finalise the Reconnection Requirement on behalf of the Participant, the Provider needs to select reason 'Compliance Action No Longer Required' and select the option 'Light Touch Re-engagement used – non-compliance discussed'.

If a Participant does not understand the script or does not agree, Providers should update the system as described in the 'system step' above and set a Provider Appointment to occur within the next 10 days (if one has not already been scheduled).

At this appointment, the Provider should work with the Participant to ensure they understand their Points Requirement and to help them to understand and plan what tasks they will undertake to meet their Points Requirement each month. This may also involve helping the Participant to upload these to their Dashboard and / or to enter Job Search efforts on the Participant's behalf.

Multiple Mutual Obligation Failures before contact

When a Participant commits multiple Mutual Obligation Failures before there is a contact with their Provider to discuss those Mutual Obligation Failures:

- only one Reconnection Requirement can be set, and
- the Provider must advise the Participant they only have to meet one Reconnection Requirement.

Valid Reason to not meet Reconnection Requirement within 2 Business Days

Where the re-engagement requirement is to attend an appointment, Capability Interview or Capability Assessment, the Provider must consider whether the Participant has a Valid Reason for being unable to meet their Reconnection Requirement within 2 Business Days following that contact.



If the Provider considers that the Participant does have a Valid Reason, the Provider must select 'Unable to Re-engage Within 2 Business Days' on the Outstanding Non-Compliance screen in the Department's IT Systems. If the Participant's Income Support Payment is suspended, this will lift the Participant's Income Support Payment suspension and remove the need for a Reconnection Requirement.

For the purposes of the above, a Provider must determine that the Participant has a Valid Reason for being unable to meet their Reconnection Requirement within 2 Business Days in line with [Assessing Valid Reasons](#).



If the Provider selects 'Unable to Re-engage Within 2 Business Days' as described above, the Provider must also select from the drop-down menu a description of the relevant Valid Reason that is most similar to the Participant's Valid Reason as they described it to the Provider.

A full list of these drop-down menu options can be found in the [Unable to Re-engage Within 2 Business Days' reason options supporting document](#).

Provider not able to arrange or deliver the Reconnection Requirement within 2 Business Days

In limited circumstances, a Provider may not be able to arrange or deliver the attendance-based Reconnection Requirement within 2 Business Days as described above.



If that is the case, the Provider must select 'Re-engagement Not Required' on the Outstanding Non-Compliance screen. When selecting 'Re-engagement Not Required' as described above, the Provider must also select from the drop-down menu the description of the relevant reason which is most similar to the actual reason.

A full list of these drop-down menu options can be found in the [Re-engagement Not Required' reason options supporting document](#).

If the Participant's Income Support Payment is suspended, this will lift the payment suspension and remove the need for a Reconnection Requirement.

Compliance action no longer appropriate

Once a Participant's Reconnection Requirement has been set, unexpected circumstances may make it inappropriate to expect them to meet a Reconnection Requirement and/or to maintain their payment suspension.



If that is the case, the Provider must record 'Compliance action no longer appropriate' on the Outstanding Non-Compliance screen.

- When selecting 'Compliance action no longer appropriate' as described above, the Provider must also select from the drop-down menu the description of the relevant reason which is most similar to the actual reason.
- A list of these drop-down menu options can be found in the [Compliance Action No Longer Appropriate' reason options supporting document](#).

If the Participant's Income Support Payment is suspended, this will lift the payment suspension and remove the need for a Reconnection Requirement.

Failure to meet a Reconnection Requirement



If the Provider becomes aware that a Participant has failed to meet a Reconnection Requirement, the Provider must attempt to contact the Participant on the same Business Day. If the Provider:

- attempts to contact the Participant on that day but is unsuccessful, the Provider must record they are not in contact with the Participant and select 'Did Not Attend—Invalid' in relation to the Reconnection Requirement in the Participant's Electronic Calendar. In this case:
 - if the Participant's Income Support Payment is not yet suspended, it will be suspended when the 5 Business Days Resolution Time following the original failure expires, or
 - if the Participant's Income Support Payment is suspended, the payment will remain suspended until the Reconnection Requirement is met.
- is able to contact the Participant on that day, the Provider must discuss the Participant's reasons for not meeting the Reconnection Requirement and assess if the Participant had a Valid Reason.

For the purposes of the above, a Provider must determine that the Participant had a Valid Reason for being unable to meet their Reconnection Requirement when they are satisfied that the Participant's reason meets the requirements as set out in [Assessing Valid Reasons](#).



If the Participant had a Valid Reason, the Provider must select 'Did Not Attend—Valid' in relation to the Reconnection Requirement in the Participant's Electronic Calendar. If the Participant's Income Support Payment is suspended, this will lift the payment suspension as the Participant will be taken to have met the Reconnection Requirement (as they have a Valid Reason). However, the Provider must set a Mutual Obligation Requirement for the Participant:

- to occur within 2 Business Days after the day on which the Provider determines that the Participant has a Valid Reason for not meeting the Reconnection Requirement
- that is the same type as the Mutual Obligation Requirement the Participant failed to meet originally.



If the Participant did not have a Valid Reason, the Provider must select 'Did Not Attend—Invalid' in relation to the Reconnection Requirement in the Participant's Electronic Calendar. In this case:

- if the Participant's Income Support Payment is not yet suspended, it will be suspended if the Participant does not meet another Reconnection Requirement within 2 Business Days following the date of the original Reconnection Requirement, or
- if the Participant's Income Support Payment is suspended, the payment will remain suspended, and the Provider must reschedule the Reconnection Requirement.

12.2.11. Record Keeping



Depending on the Mutual Obligation Failure that the Participant has committed, in addition to the evidence recorded in the Department's IT Systems, the Provider must retain Documentary Evidence which is not retained on the Department's IT Systems. This would include:

- where the Mutual Obligation Failure is a failure to attend a job interview or act on a job opportunity, a copy of any manually prepared and prior notification of the requirement to attend the job interview or act on the job opportunity,
- where the Mutual Obligation Failure is a failure to attend an appointment, a copy of the manually prepared and prior notification of the requirement to attend the appointment,
- where the Mutual Obligation Failure is a failure to meeting a monthly Points Requirement, including Job Search Requirement, a hard copy of any relevant fully or partially completed Job Searches, and
- where the Mutual Obligation Failure is acting in an inappropriate manner during an appointment or while participating in an Activity, details of the job/Employer and/or details of the relevant incident, including dates, the parties involved and what occurred.

12.3. Capability Interviews

12.3.1. The purpose of a Capability Interview

The purpose of the Capability Interview is to determine whether a Participant's Job Plan and Mutual Obligation Requirements are suitable for the Participant. Mutual Obligation Requirements are suitable for a Participant if they are appropriate to the Participant's circumstances and the Participant is capable of meeting them.

The outcome of the Capability Interview will determine whether the Participant continues in the Warning Zone or whether they are returned to the Green Zone with their Demerits reset to zero. The Department's IT Systems will determine the outcome of the Capability Interview based on the information that the Provider records in the Department's IT Systems in relation to the Capability Interview. For more information on what the Provider must record in the Department's IT Systems regarding Capability Interviews, see the [Preparing to conduct a Capability Interview](#) and [Conducting the Capability Interview](#) sections.

A Participant will:

- return to the Green Zone with their Demerits reset to zero if the outcome of the Capability Interview is that their Job Plan and Mutual Obligation Requirements are not suitable (i.e. the Mutual Obligation Requirements are not appropriate to the Participant's circumstances or the Participant is not capable of meeting them), or

- continue in the Warning Zone if the outcome of the Capability Interview is that their Job Plan and Mutual Obligation Requirements are suitable for the Participant (i.e. the Mutual Obligation Requirements are appropriate to the Participant's circumstances and the Participant is capable of meeting them).

(Deed Reference(s): Clauses 104, 105, 107, 138, 145)

12.3.2. When a Capability Interview is triggered

The Providers must conduct a Capability Interview when the Department's IT Systems specify that the Participant's Reconnection Requirement is a Capability Interview.

Broadly speaking, this will occur when the Participant has, in 6 active months accrued 3 Demerits or a Demerit for a 'fast-track' Mutual Obligation Failure. See [Fast-Track Mutual Obligation Failures](#) for more information.

The outcome of any Capability Interview or Capability Assessment which has been conducted in relation to the Participant in the previous 60 calendar days will also influence whether a Provider must conduct a Capability Interview. Subject to certain exceptions, if the previous capability review outcome is that the Participant's Mutual Obligation Requirements are suitable, then a further Capability Interview is not required. These exceptions include when a Participant moves to a different employment program (e.g. from Inclusive Employment Australia to Workforce Australia Services) and the Department's IT Systems indicate a new Capability Interview is required.

When the Department's IT Systems specify that the Participant's Reconnection Requirement is a Capability Interview:

- a Capability Interview is said to be 'triggered', and
- the Department's IT Systems will identify that the Capability Interview is 'outstanding'.

The Department's IT Systems will identify that a Capability Interview is 'outstanding' until it is finalised.



The Capability Interview will be finalised when the Provider selects 'submit' in the Department's IT Systems after completing the pre-interview questions, and recording all the relevant information during the Capability Interview (as discussed below in [Preparing to conduct a Capability Interview](#) and [Conducting the Capability Interview](#)).

When a Participant accrues a Demerit that triggers a Capability Interview, their Income Support Payment will be suspended until the Participant participates in the Capability Interview and the Capability Interview is finalised. Exceptions to this are discussed below under [Circumstances where a Capability Interview cannot be delivered within 2 Business Days](#).

Where the Department's IT Systems identify that a Capability Interview is 'outstanding' (as referred to above), the Participant will not be able to accrue any further Demerits until they attend a Capability Interview and that Capability Interview is finalised.

(Deed Reference(s): Clause 145)

12.3.3. Capability Interviews resulted as 'No Longer Required' but are still outstanding

In some circumstances, where the Department's IT Systems identify that a Capability Interview is 'outstanding', the Capability Interview will be shown to be 'No Longer Required'. This will happen where, after the Capability Interview is triggered, but before it is finalised, the Participant:

- transfers from the Provider to another Provider, including transfers to and from Provider-led Services, or
- is granted an Exemption.

Even though the Capability Interview is shown as 'No longer Required', the Capability Interview must still be undertaken:

- when the Participant transfers to a new Provider, the new Provider must conduct the Capability Interview, and
- when the Participant returns to servicing after an Exemption, the current Provider must conduct the Capability Interview.

In these cases, the Participant must participate in a Capability Interview before their new Job Plan can be negotiated with them. The Department's IT Systems will continue to identify that the Capability Interview is 'outstanding' until the Capability Interview is finalised.

The timeframe within which the 'No longer Required' Capability Interview must be conducted is discussed below under [When the Participant is transferred to another Provider or they are returning to service after an Exemption](#).

12.3.4. Scheduling a Capability Interview

When scheduling a Capability Interview in the Participant's Electronic Calendar, the Provider must be in direct contact with the Participant. This direct contact ensures that the Participant receives formal notification of the Capability Interview within a reasonable timeframe.

Usually, when a Provider is scheduling the Capability Interview, the Provider must schedule it to occur within 2 Business Days after the Participant accrues the relevant Demerit. This usual timeframe is referred to in this Guideline as the 'standard 2 Business Days timeframe'. Exceptions to the standard 2 Business Days timeframe are discussed below under [Circumstances where a Capability Interview cannot be delivered within 2 Business Days](#).

Providers must ensure the scheduled Capability Interview is of sufficient length to allow for a thorough review of the Participant's personal circumstances and have a detailed discussion. The recommended time for a Capability Interview is between 45 and 60 minutes.

Providers must also ensure that as with all other compulsory appointments, efforts are made to avoid clashes with any Personal Events in the Calendar. Participants must be able to prioritise commitments such as paid work. See [Scheduling Mutual Obligations Requirements in the Participant's Electronic Calendar](#).

When scheduling the Capability Interview, the Provider must ensure that they explain to the Participant:

- the purpose of the Capability Interview

- the reason they must participate in a Capability Interview (either because they accrued 3 Demerits or because they committed a fast-track Mutual Obligation Failure).

(Deed Reference(s): Clause 145)

12.3.5. Circumstances where a Capability Interview does not need to be delivered face-to-face

Unless otherwise directed by the Department, Providers must conduct Capability Interviews face-to-face in accordance with the [Face-to-face Service Delivery section in the Part A: Universal Guidelines](#), except in allowable circumstances.

Allowable circumstances are limited to circumstances listed in the [Face-to-face Service Delivery section of the Part A: Universal Guidelines](#), under the heading 'Reasonable in the circumstances to be conducted in a face-to-face format'. Providers must consider a Participant's personal circumstances when scheduling Capability Interviews.

Where a Provider determines face-to-face servicing is not appropriate for a Capability Interview, they may conduct the Capability Interview via telephone or videoconference so that it is delivered within the standard 2 Business Days timeframe.



When scheduling the Capability Interview to be delivered via phone or videoconference, the Provider must record their reasons in the Department's IT Systems and update their reasons as circumstances change.

(Deed Reference(s): Clauses 105.3, 145.2)

12.3.6. Circumstances where a Capability Interview does not need to be delivered within 2 Business Days

If the Participant has an Acceptable Reason

A Participant may notify the Provider, before the end of the standard 2 Business Days timeframe, that they are unable to attend the Capability Interview within that timeframe. The Provider must then assess whether the Participant's reason for not being able to attend the Capability Interview within that timeframe is an Acceptable Reason.

For the purposes of the above, the Provider must determine that a Participant has an Acceptable Reason for being unable to attend the Capability Interview within the standard 2 Business Days timeframe:

- the Participant notified the Provider, before the end of the standard 2 Business Days timeframe, that the Participant is unable to attend the Capability Interview, and
- the Provider is satisfied that the Participant has a Valid Reason for being unable to attend the Capability Interview within the standard 2 Business Days timeframe.

A Provider must determine the Participant has a Valid Reason if they are satisfied that the reason meets the requirements as outlined in [Prior Notice and Acceptable Reasons](#).

If the Provider determines a Participant has an Acceptable Reason for being unable to attend the Capability Interview within the standard 2 Business Days timeframe as discussed above, the Provider must schedule the Capability Interview to occur within 12 Business Days after the standard 2

Business Days timeframe. Broadly speaking, this means that the Provider must schedule the Capability Interview within 14 Business Days after the Participant accrues the Demerit that triggers the Capability Interview.



In this case, Providers must select 'unable to re-engage within 2 Business Days' in the Department's IT Systems. The Department's IT Systems will then prompt the Provider to schedule the Capability Interview within that 14 Business Day timeframe. This will lift the Participant's Income Support Payment suspension, but the requirement to attend the Capability Interview will still be outstanding on the Participant's record.

If the Provider selects 'unable to re-engage within 2 Business Days' in the Department's IT Systems as referred to above, the Provider must also select from the drop-down menu a description of the relevant Valid Reason that is most similar to the Participant's Valid Reason as they described it to the Provider.

A full list of the reasons that appear in the drop-down menu can be found in the [Unable to re-engage within 2 Business Days' reason options supporting document](#).

If the Participant does not have an Acceptable Reason

If the Provider assesses that the Participant's reason is not an Acceptable Reason as discussed above, the Provider must schedule the Capability Interview within the standard 2 Business Days timeframe. The Provider must then tell the Participant why their reason is not an Acceptable Reason, inform them that they are still expected to attend the Capability Interview and remind them their Income Support Payment suspension will not be lifted until they do so.

When part-time or outreach services prevent delivery of the Capability Interview within 2 Business Days

If part-time or outreach services prevent the Provider from delivering the Capability Interview face-to-face within the standard 2 Business Days timeframe, but the Provider has determined the Capability Interview must be conducted face-to-face (e.g. because it is unsuitable to deliver the Capability Interview via telephone or videoconference or no allowable circumstance exists), the Provider must then schedule the Capability Interview to occur as soon as possible after the standard 2 Business Days timeframe. In any event, the Provider must schedule the Capability interview to occur within 12 Business Days after the standard 2 Business Days timeframe. Broadly speaking, this means that the Provider must schedule the Capability Interview within 14 Business Days after the Participant accrues the Demerit that triggers the Capability Interview.



In these cases, Providers must select 're-engagement not required' in the Department's IT Systems. This will lift the Participant's Income Support Payment suspension, but the requirement to attend the Capability Interview will still be outstanding on the Participant's record.

The Provider must record the reason why 're-engagement is not required' in the Department's IT Systems. The only drop-down menu option is 'Part-time/outreach services'.

The Provider must then manually schedule the Capability Interview in the Participant's Electronic Calendar.

When the Participant is transferred to another Provider or they are returning to service after an Exemption

A Provider does not need to conduct the Capability Interview within the standard 2 Business Days timeframe where, after the Capability Interview is triggered, but before it is finalised, the Participant:

- transfers from their current Provider to another Provider or Other Service, or
- is granted an Exemption.

When the Participant transfers to another Provider, that new Provider must conduct the Capability Interview at the Participant's Initial Interview.

When the Participant returns to servicing after an Exemption, the Provider must conduct the Capability Interview within 14 Business Days after the Participant returns.

Reporting Work Refusal Failures before the Capability Interview is finalised

Providers must still create Work Refusal Failure reports in accordance with their Deed obligations, regardless of whether the Participant has an outstanding Capability Interview in the Department's IT Systems.

(Deed Reference(s): Clauses 138, 140, 145)

For more information, see [Work Refusal Failures](#).

If a Participant fails to attend their Capability Interview

As a Capability Interview is a type of Reconnection Requirement the Provider must take the action required when a Participant fails to meet a Reconnection Requirement. See [Reconnection Requirements](#).

12.3.7. Preparing to conduct a Capability Interview

The Provider must prepare for the Capability Interview by familiarising themselves with the information recorded in the Department's IT Systems about the Participant by reviewing:

- the Participant's current Assessments (including their Job Seeker Snapshot and any ESAt, — to familiarise themselves with the Participant's personal circumstances
- the Capability Management Tool (CMT)—for information on barriers that may be affecting the Participant's ability to meet their Mutual Obligation Requirements
- the Job Seeker Profile—to familiarise themselves with the Participant's basic information history and current circumstances, and
- the Participant's current Job Plan and Mutual Obligation Requirements to determine:
 - whether the Participant's Mutual Obligation Requirements are up-to-date and appropriate based on their known and recorded personal circumstances
 - if their Points Target and Job Search Requirements are appropriate for their known and recorded personal circumstances and in line with Policy
 - if the requirements do not include excessive hours in a Mandatory Activity/ies.

In determining these things, the Provider must consider the relevant requirements outlined in the [Job Plan and Mutual Obligation Requirements Chapter](#).

The Provider must be well prepared and have all relevant information to hand both prior to completing the Pre-Interview Questions, conducting the Capability Interview and during the Capability Interview itself.

For more information regarding the Capability Interview, see the Capability Interview Best Practice Guide, on the Provider Portal.

Pre-interview Questions



Prior to the Capability Interview, the Provider must accurately complete the pre-interview questions in the Department's IT Systems. The Provider can access the pre-interview questions in the Department's IT Systems by selecting the relevant Capability Interview listed on the Non-Compliance History screen.

The pre-interview questions are used to determine if the Participant's Job Plan and Mutual Obligation Requirements are appropriate to the Participant's circumstances and the Participant is capable of meeting them.

Providers must not consider voluntary requirements when completing the questions.

When answering the pre-interview questions, Providers must only use the information that is known about the Participant and has been recorded in the Department's IT Systems prior to the Capability Interview being triggered.

12.3.8. Conducting the Capability Interview

When conducting the Capability Interview, Providers must always consider the importance of Participants' privacy and confidentiality. Capability Interviews should be conducted in a private setting that enables Participants to disclose personal circumstances safely and honestly.

Delivery by a different staff member

While it is not a requirement, it is strongly recommended the staff member who delivers the Capability Interview is someone other than the staff member who entered into and approved the relevant Participant's Job Plan or set and manage their Mutual Obligation Requirements. This is because the Participant may disclose new information to another staff member which they had not previously disclosed to their usual consultant (i.e. the staff member who would usually enter into and approve the relevant Participant's Job Plan or set and manages their Mutual Obligation Requirements).

Site resourcing may restrict this practice, for example. In this situation, it is acceptable for the same staff member who entered into and approved the relevant Participant's new Job Plan to also conduct the Capability Interview.

Getting started

An interpreter must be provided when requested by the Participant and it is appropriate to the Participant's circumstance. The Provider must first advise the Participant that the Capability

Interview is being undertaken due to their Mutual Obligation Failure(s). The Provider must explain the purpose and potential outcomes of the Capability Interview, including that:

- the Participant's Mutual Obligation Requirements may require renegotiating, and
- the Participant will either return to the Green Zone or continue in the Warning Zone, depending on the outcome of the Capability Interview.

The focus of the Capability Interview is to:

- ensure the Participant understands their Mutual Obligation Requirements and the consequences of not meeting them
- ensure the Participant's Mutual Obligation Requirements are appropriate for their circumstances, and
- identify any undisclosed barriers preventing the Participant from meeting their Mutual Obligation Requirements.

The Provider must ensure the Participant is aware their Provider is seeking to better understand the reasons why they have not been meeting their Mutual Obligation Requirements.

Providers must advise Participants that:

- it is important they disclose any personal circumstances that may be affecting their ability to comply with their Mutual Obligation Requirements (so the Provider can set Mutual Obligation Requirements appropriately)
- if needed, the Participant will be provided with assistance to help them meet their Mutual Obligation Requirements or their Mutual Obligation Requirements may be adjusted
- the Participant may require and receive different services as a result of the Capability Interview
- they may be referred to Services Australia for an Employment Services Assessment (ESAt).

The Provider must ask the Participant if they have any concerns or questions before starting the Capability Interview, and they should address these where possible.

(Deed Reference(s): Clauses 138, 140, 143, 144 and 145)

Capability Interview discussion

During the Capability Interview, the Provider must discuss and consider holistically the following with the Participant:

- the Participant's understanding of their Mutual Obligation Requirements and what they must do to meet them. This may require a detailed discussion to ascertain the Participant's level of understanding of the requirements of their Job Plan and what they must do to avoid compliance action
- the reasons behind the Participant's recent Mutual Obligation Failure(s) and any factors that may be affecting the Participant's capacity to meet their Mutual Obligation Requirements
- whether alternative Mutual Obligation Requirements may be more appropriate for the Participant
- any undisclosed barriers that might be preventing the Participant from meeting their Mutual Obligation Requirements
- any support or assistance identified that might better help the Participant meet their Mutual Obligation Requirements

- if applicable, the quality of their Job Search efforts
- if applicable, what the Participant will do to increase their chances of finding Employment
- if applicable, the Participant's attempts to find and keep suitable Employment, including their long-term employment goals, and
- anything else of relevance to the Participant's capability to meet their Mutual Obligation Requirements.

Providers should note that the Capability Interview is not an opportunity to review the circumstances under which each Demerit was accrued or to review the decision-making process for each Demerit decision.



During the Capability Interview discussion with the Participant, the Provider must accurately answer all the Capability Interview questions that can be accessed on the Non-Compliance History screen in the Department's IT Systems. The Provider must also accurately record additional information relating to those questions where they are prompted to do so by the Department's IT Systems.

The Provider must finalise the Capability Interview in the Department's IT Systems while the Participant is still in attendance at the Capability Interview appointment, or while the Participant is still in contact where the Capability Interview was delivered via phone or videoconference.

If the Participant attended the Capability Interview appointment but did not participate for the duration of the appointment, Providers must complete the Capability Interview based on what is recorded in the Department's IT Systems about the Participant and then ensure to finalise the Capability Interview in the Department's IT Systems the same day.

(Deed Reference(s): Clauses 138, 140, 141, 143, 144 and 145)

Updating the Job Seeker Snapshot

The Job Seeker Snapshot is a questionnaire which includes questions used to determine the Participant's JSCI score and helps to identify if the Participant requires an ESAt.

During each Capability Interview, the Provider must:

- review the Job Seeker Snapshot, and
- if the Job Seeker Snapshot does not accurately reflect the current circumstances of the Participant as disclosed during the Capability Interview, update the Job Seeker Snapshot with the Participant's newly disclosed information.

See [How to conduct the Job Seeker Snapshot](#) for further information.

Referring the Participant for an Employment Services Assessment after updating the Job Seeker Snapshot

Services Australia conducts an ESAt to determine if a Participant has a long-term reduced work capacity or is eligible for Inclusive Employment Australia.

Generally, Providers cannot book another ESAt Appointment for a Participant unless a recommendation for one is identified during a Capability Interview.

See [Referring Participants for an Employment Services Assessment](#) for further information.

Where the Job Seeker Snapshot results in an ESAt being required and a referral to Services Australia is made within the Capability Interview, the Capability Interview will not be finalised by the Department's IT Systems until the ESAt appointment is booked. The outcome of the Capability Interview will be 'newly disclosed information' (meaning the Participant's Mutual Obligation Requirements and or Job Plan is not suitable), and the Participant will return to the Green Zone with their Demerits reset to zero.

Services Australia will notify the Provider of the outcome of the ESAt via the noticeboard in the Department's IT Systems and will upload any newly disclosed vulnerabilities and barriers into the CMT for the Provider to action.

While awaiting the outcome of an ESAt, Participants are still required to meet Mutual Obligation Requirements that are appropriate to their circumstances and any newly disclosed information, but they cannot accrue further Demerits for Mutual Obligation Failures.

Using the Capability Management Tool

Providers must use the CMT during the Capability Interview.

Providers can access the CMT in the Department's IT Systems. The CMT is used to record, review and manage information on Participant's personal circumstances that may be affecting their capacity to meet their Mutual Obligation Requirements. The CMT consolidates information collected from the Capability Interview discussion and any past ESAts or Capability Assessments.

Based on the discussion with the Participant during the Capability Interview, the Provider must use the CMT to accurately record information regarding all identified barriers or vulnerabilities affecting the Participant's ability to meet their Mutual Obligation Requirements and find employment, including how these are or are not being addressed.

Note: For more information on the CMT refer to the [Targeted Compliance Framework Reference Guide](#).

(Deed Reference(s): Clauses 140 and 145)

12.3.9. Actioning the outcomes of the Capability Interview

As noted above, the Department's IT Systems will determine the outcome of the Capability Interview. The outcome is based on the information that the Provider records in the Department's IT Systems in relation to the Capability Interview, so it is important to ensure it is accurate.

The Department's IT Systems will display one of the following outcomes of a Capability Interview. The possible outcomes displayed in the Department's IT Systems are that the Participant is:

- Capable
- Not Capable due to errors in compellable requirements
- Not Capable of meeting current requirements due to ongoing circumstances
- Not Capable due to newly disclosed information, or
- Not Capable due to a change in service eligibility or stream
- Each of these outcomes is discussed in further detail below.

Once the Department's IT Systems have determined the outcome of the Capability Interview, the Provider must explain this outcome to the Participant while they are still in attendance/in contact. The Provider must ensure that the Participant understands what the Capability Interview outcome means and what will happen next.

If the result of the Capability Interview is that the Participant's Job Plan and compellable requirements are not suitable, meaning that the Mutual Obligation Requirements specified in the Job Plan need to be negotiated and updated so they are suitable for the Participant, refer to [Tailoring the Points Requirement to reflect a Participant's circumstances](#), for information on how to tailor the Points Target and/or the Job Search Requirement of a Participant.

Capable

If the outcome of the Capability Interview is that the Participant's Job Plan and compellable requirements are suitable for the Participant (i.e. the Mutual Obligation Requirements are appropriate to the Participant's circumstances and the Participant is capable of meeting them), they will continue in the Warning Zone with 3 Demerits once the Capability Interview is finalised.

Because the Job Plan is suitable for the Participant, the Mutual Obligation Requirements specified in the Participant's Job Plan do not need to be updated.

Provider action

- Advise the Participant that their Job Plan and Mutual Obligation Requirements have been assessed as being suitable for them.
- Advise the Participant, if they continue to commit Mutual Obligation Failures without a Valid Reason, this may result in a Capability Assessment with Services Australia.
- The Provider must explain to the Participant their Mutual Obligation Requirements and the consequences of non-compliance.

Not Capable due to errors in compellable requirements

If the outcome of the Capability Interview is that there are errors in the Participant's Mutual Obligation Requirements, the Participant is returned to the Green Zone with their Demerits reset to zero.

Provider action

- The Provider must discuss the Participant's requirements with them, renegotiate and update the Participant's Job Plan and compellable requirements so that they are suitable
- This should be undertaken as soon as the Capability Interview outcome has been determined by the Department's IT Systems, or if this is not possible within 10 Business Days following the finalisation of the Capability Interview.
- The Provider must then explain to the Participant their Mutual Obligation Requirements and the consequences of non-compliance.

Note: Until the Job Plan has been discussed and agreed, the Participant cannot accrue further Demerits. If the Participant has compellable requirements recorded outside of the Job Plan which require updating in the system (i.e. Points Requirement and/or Job Search Requirement and/or Activity placement details for the Mandatory Activity), then the Provider must action these changes,

and the Participant must agree to the updated Job Plan. Once the Participant has agreed to their new Job Plan, this will flag in the system that Mutual Obligation Requirements are appropriate and the Participant will be able to accrue Demerits against those requirements.

(Deed Reference(s): Clauses 106.2, 107, 108, 109, 110, 145.2)

Not Capable of meeting current requirements due to ongoing circumstances

If the outcome of the Capability Interview is the Participant is not capable of meeting their current compellable requirements due to ongoing circumstances, the Participant is returned to the Green Zone with their Demerits reset to zero.

Provider action

- The Provider must discuss the Participant's requirements with them, renegotiate and update the Participant's Job Plan and compellable requirements so that they are suitable.
- This should be undertaken as soon as the Capability Interview outcome has been determined by the Department's IT Systems, or if this is not possible within 10 Business Days following the finalisation of the Capability Interview.
- The Provider must then explain to the Participant their Mutual Obligation Requirements and the consequences of non-compliance.

Note: Until the Job Plan has been discussed and agreed, the Participant cannot accrue further Demerits. If the Participant has compellable requirements recorded outside of the Job Plan which require updating in the system (i.e. Points Requirement and/or Job Search Requirement and/or Activity placement details for the Mandatory Activity), then the Provider must action these changes, and also reapprove the Job Plan. Once the Participant has agreed to their new Job Plan, this will flag in the system that Mutual Obligation Requirements are appropriate and the Participant will be able to accrue Demerits against those requirements.

(Deed Reference(s): Clauses 106.2, 107, 108, 109, 110, 145.2)

Not Capable due to newly disclosed information

If the outcome of the Capability Interview is that the Participant disclosed new information which directly impacted them at the time they accrued Demerits the Participant is returned to the Green Zone with their Demerits reset to zero.

Provider action

- The Provider must consider if Mutual Obligation Requirements remain appropriate to the Participant's circumstances and the Participant is capable of meeting them.
- If not, the Provider is strongly encouraged to discuss and, when agreed, update the Participant's Job Plan so that it is suitable.
- If the Job Plan is not suitable and not updated as part of the Capability Interview, the Provider must discuss with the Participant and update the Job Plan (so that the Mutual Obligation Requirements specified in the Job Plan are appropriate to the Participant's circumstances and the Participant is capable of meeting them) within 10 Business Days following the finalisation of the Capability Interview.
- The Provider must explain to the Participant their Mutual Obligation Requirements and the consequences of non-compliance.

For more information on Eligibility criteria, Referrals and other employment services, refer to the [Eligibility and Referral Chapter](#).

(Deed Reference(s): Clauses 106.2, 107, 108, 109, 110, 145.2)

Not Capable due to a change in service eligibility or stream

If the outcome of the Capability Interview is the Participant is not capable due to a change in service eligibility or stream) this means the Participant is not capable of meeting their Mutual Obligation Requirements specified in their Job Plan. The Participant is returned to the Green Zone with their Demerits reset to zero.

Provider action

- Advise the Participant that their level of servicing or program eligibility has changed as a result of an updated JSCI score - or as a result of the finalisation of an ESAt.
- The Provider must discuss and when agreed, update the Participant's Job Plan so that it is suitable.
- The Provider is strongly encouraged to negotiate and update the Job Plan as part of the Capability Interview once the outcome has been determined by the Department's IT Systems.
- If the Job Plan is not updated as part of the Capability Interview, the Provider must negotiate and update the Job Plan within 10 Business Days following the finalisation of the Capability Interview.
- The Provider must explain to the Participant their Mutual Obligation Requirements and the consequences of non-compliance.

(Deed Reference(s): Clauses 106.2, 107, 108, 109, 110, 145.2)

12.4. Capability Assessment

Capability Assessments are a key component of the TCF and are conducted by Services Australia. They are further protection for the most vulnerable Participants and provides another opportunity for Participants to disclose issues that may be affecting their ability to meet their Mutual Obligation Requirements.

The purpose of the Capability Assessment is to determine whether a Participant's Mutual Obligation Requirements are suitable for the Participant. Mutual Obligation Requirements are suitable for a Participant if they are appropriate to the Participant's circumstances and the Participant is capable of meeting the requirements.

Even though Providers do not conduct Capability Assessments, Providers still have Deed obligations in relation to Capability Assessments.

Irrespective of the outcome, following a Capability Assessment, the Participant is returned to the Green Zone by the Department with their Demerits reset to zero.

(Deed Reference(s): Clause 145.3)

12.4.1. When a Capability Assessment is triggered

Services Australia conducts a Capability Assessment when the Participant has:

- completed a Capability Interview that resulted in an outcome of "Capable", and
- in 6 active months, accrued 5 Demerits or a Demerit for a 'fast-track' Mutual Obligation Failure when they already have 3 Demerits.

When the circumstances described above occur:

- the Department's IT Systems will identify that the Participant's Reconnection Requirement for their most recent Mutual Obligation Failure is a Capability Assessment, and
- the Capability Assessment is said to be 'triggered'.

When a Capability Assessment is triggered, the Department's IT Systems will display the re-engagement notification script the Provider must read to the Participant. This notification informs the Participant that they must contact Services Australia to participate in a Capability Assessment as their re-engagement requirement.

Participants will be unable to report to Services Australia for their next fortnightly Income Support Payment until they contact Services Australia to undertake the Capability Assessment.

No further Demerits until the Capability Assessment is finalised

Participants will not accrue any further Demerits until they have completed their Capability Assessment and that Capability Assessment is finalised in the Department's IT Systems.

After triggering the Capability Assessment, Participants might commit further Mutual Obligation Failures before the Capability Assessment has been finalised in the Department's IT Systems. In these cases, the Participant will not accrue Demerits, but their Income Support Payment may still be suspended to encourage the Participant to reconnect with their Provider.

Work Refusal Failure before the Capability Assessment is finalised

Providers must still comply with their Deed obligations relating to Work Refusal Failures, regardless of whether the Capability Assessment is finalised in the Department's IT Systems.

For more information, see [Work Refusal Failures](#).

(Deed Reference(s): Clause 145.3)

12.4.2. Delivery of the Capability Assessment and recording outcomes

Services Australia will notify Providers of Capability Assessment outcomes via a noticeboard message on the Department's IT Systems. Services Australia will record the outcome of the Capability Assessment and will provide information in the Participant's record on what Mutual Obligation Requirements are inappropriate and that the Provider must renegotiate with the Participant.

(Deed Reference(s): Clause 145.3)

12.4.3. Actioning the outcomes of a Capability Assessment

Once Services Australia has finalised the Capability Assessment in the Department's IT Systems, the Participant is moved back to the Green Zone by the Department.

The possible outcomes of a Capability Assessment are that the Participant is:

- Capable

- Not Capable due to errors in compellable requirements
- Not Capable of meeting current requirements due to ongoing circumstances
- Not Capable due to newly disclosed information, or
- Not Capable due to a change in service eligibility or stream

To ensure the Participant does not experience payment suspension or accrue Demerits for requirements that they are not capable of meeting, when a Participant is found Not Capable, their Mutual Obligation Requirements must generally be updated to address the nature of the outcome. Following an outcome of Not Capable, the Participant cannot accrue further Demerits, until the Job Plan is updated and agreed.

Providers can view the Capability Assessment outcomes on the Targeted Compliance Framework History Screen in the Department's IT Systems. Each of the above outcomes are discussed in further detail below.

Capable

If the outcome of the Capability Assessment is that the Participant's Mutual Obligation Requirements are suitable for the Participant, they will be found Capable and move into the Penalty Zone. The Department will then move the Participant from the Penalty Zone back to the Green Zone.

Because the Mutual Obligation Requirements are suitable for the Participant, they do not need to be updated.

The Provider must advise the Participant that their compellable requirements have been assessed as being appropriate to the Participant's circumstances and the Participant is capable of meeting them.

The Provider must explain to the Participant their Mutual Obligation Requirements in their Job Plan and the consequences of non-compliance.

The Provider must review the CMT for the Participant as Services Australia may have identified issues that the Provider will need to consider when renegotiating the Participant's Mutual Obligation Requirements in the future.

Not Capable

If the outcome of the Capability Assessment is that the Participant is Not Capable, irrespective of the reason, the Provider must:

- review the CMT for service recommendations recorded by Services Australia, and must consider those recommendations before renegotiating the Participant's Mutual Obligation Requirements.
- In consultation with the Participant, the Provider must update the Job Plan so that it is suitable within 10 Business Days following the finalisation of the Capability Assessment (including making any necessary adjustments to the Participants Points Target and/or Job Search Requirements).
- The Provider must explain to the Participant their Mutual Obligation Requirements and the consequences of non-compliance.

If the Participant is found Not Capable due to a change in service eligibility or stream, the Provider must also advise the Participant that their level of servicing or program eligibility has changed as a result of an updated JSCI score or as a result of the finalisation of an ESAt.

(Deed Reference(s): Clauses 106.2, 107, 108, 109, 110, 145.3)

For more information on Eligibility criteria, Referrals and other employment services, refer to the [Eligibility and Referral Chapter](#).

(Deed Reference(s): Clauses 106.2, 107, 108, 109, 110, 145.3)

12.5. Work Refusal Failures

A Participant commits a Work Refusal Failure if they refuse or fail to accept an offer of suitable Employment. Participants may have their Income Support Payment suspended for a Work Refusal Failure

When the Provider creates a Work Refusal Failure report, the report will be sent through the Department's IT Systems to Services Australia. Services Australia will determine whether the Participant has a Reasonable Excuse for the Work Refusal Failure.

If Services Australia determines a Participant has committed a Work Refusal Failure without a Reasonable Excuse, the Participant's Income Support Payment may be cancelled and it cannot be paid for 4 weeks. Participants can reapply for payment at any time after their payment has been cancelled but they will not receive Income Support Payment again until they have served their preclusion period.

Work Refusal Failures reinforce the principle that Income Support Payments for Participants should only be available to those who are genuine in their efforts to move into paid work.

Providers must comply with their Deed obligations relating to apparent Work Refusal Failures regardless of which zone the relevant Participant is in.

12.5.1. Identifying a Work Refusal Failure

Providers have obligations under the Deed when they become aware (e.g. an Employer notifies the Provider or the Provider receives information from the Department) that a Participant has apparently committed a Work Refusal Failure.

When the Provider is in contact with the Participant (as referred to in [Reporting a Work Refusal Failure](#)), the Provider must discuss the circumstances of an apparent Work Refusal Failure with the Participant and must consider whether the Participant has refused or failed to accept an offer of Employment.

If, after discussing the circumstances of an apparent Work Refusal Failure with the Participant, the Provider assesses that:

- the Participant has not received an offer of Employment (e.g. they attended an interview, but were not offered the position), the Provider must not determine that the Participant committed a Work Refusal Failure; or
- the Participant has refused or failed to accept an offer of Employment, the Provider must then assess whether the Employment offered was suitable for the Participant. Providers

must consider the following factors when making this assessment, as any one of these factors would make the work unsuitable:

- the Participant lacks the particular skills, experience or qualifications that are needed to perform the work and no training will be provided by the Employer
- there is medical evidence that the Participant has an illness, disability or injury that would be aggravated by the conditions in which the work would be performed
- the Participant is the principal carer, and does not have access to appropriate care and supervision for the children at the times when the Participant would be required to undertake the work (which includes reasonable amounts of time that would be needed for the Participant to travel between home and the work)
- the Participant is the principal carer, or the Participant has a partial capacity to work, and the work hours are greater than 15 hours per week
- performing the work in the conditions in which the work would be performed would constitute a risk to health or safety and would contravene a law of the Commonwealth, a State or a Territory relating to occupational health and safety
- the terms and conditions for the work would be less generous than the applicable statutory conditions
- commuting between the Participant's home and the place of work would be unreasonably difficult [that is, it would require the Participant to spend more than 90 minutes each way in commuting time (or 60 minutes each way for principal carers or those with a partial capacity to work, see below), using the mode of transport normally available to the Participant]
- the work requires the Participant to change residence, in most cases
- the Participant has a verifiable and legitimate objection to the work on moral, cultural or religious grounds (for example, there is evidence that the Participant adheres to a particular set of moral, ethical or religious values and aspects of the work would be inconsistent with those values)
- the work would require the Participant to enlist in the Defence Force or the Reserves, or
- the Participant has a partial capacity to work, or is a principal carer and one or more of the following applies:
 - the duration of the journey between the Participant's home and the place of work would normally exceed 60 minutes
 - the Participant would be financially worse off as a result of undertaking the work, by comparison with not undertaking the work, considering:
 - the financial cost to the Participant in providing appropriate care and supervision for one or more children, for whom the Participant is the principal carer, at the times when the Participant would be required to undertake the work
 - the financial cost of travel that would be incurred by the Participant in undertaking the work,
 - the reduction in income support, additional tax paid or impact on public housing, or
 - the financial benefit for the Participant of undertaking the work would be marginal because of the financial cost to the Participant in providing appropriate care and supervision for one or more children, for whom the

Participant is the principal carer, at the times when the Participant would be required to undertake the work.

(Deed Reference(s): Clauses 138.1 (d), 140.1 (a), 145.1)

12.5.2. Reporting a Work Refusal Failure

Following the discussion with the Participant, the Provider must consider whether the Participant has committed a Work Refusal Failure. See [Identifying a Work Refusal Failure](#).

Timeframe to report a Work Refusal Failure

The Work Refusal Failure report must be created and finalised within 10 Business Days of the incident date (described in further detail below).

If this does not occur (e.g. where the Provider does not become aware of an apparent Work Refusal Failure until after 10 Business Days have passed since the incident date), the Department's IT Systems will not allow the Work Refusal Failure report to be finalised, meaning the Work Refusal Failure will not be reported to Services Australia.

The incident date is the date on which the Participant:

- refused an offer of suitable Employment. For example, if a Participant was offered a job at an interview and refused that offer:
 - on the day of the interview, the incident date is the date of the interview
 - 3 days after the interview, the incident date is the date that is 3 days after the interview, or
- failed to accept an offer of suitable Employment, for example:
 - if the Participant was given 14 days to accept the offer and did not do so, the incident date is the 14th day (unless the Participant actively refuses the job on an earlier day), or
 - if, when the offer was made, the Participant agreed a start date with the potential Employer, but did not commence work on that date, the incident date is the date the Participant was due to start.

(Deed Reference(s): Clauses 138.1 (d), 140.1 (a), 145.1)

The steps that the Provider must take when they become aware that a Participant has apparently committed a Work Refusal Failure are described below.

Contact attempt is successful on the same Business Day

Provider considers that the Participant committed a Work Refusal Failure

If, after contacting the Participant on the same Business Day as becoming aware of the apparent Work Refusal failure and discussing the circumstances of the apparent failure, the Provider considers the Participant has committed a Work Refusal Failure (see [Identifying a Work Refusal Failure](#)), the Provider must create a Work Refusal Failure report, for investigation by Services Australia.



The Provider must create and finalise the Work Refusal Failure report by undertaking the following steps in the Department's IT Systems:

- selecting 'create compliance'

- selecting the appropriate Event Type from the drop-down menu:
 - select 'job seeker failed to accept suitable job' where the Provider considers that the Participant refused or failed to accept an offer of suitable Employment, other than by failing to commence work on the start date agreed with the potential Employer, or
 - select 'job seeker failed to commence suitable job' where the Provider considers that the Participant refused or failed to accept an offer of suitable Employment by failing to commence work on the start date agreed with the potential Employer
- recording the incident date (discussed above)
- answering 'yes' to the question of whether they are in contact with the Participant
- selecting a reason from the 'Reasons not accepted' column of the drop-down menu that will appear. The Provider must select the reason that most closely aligns with the reason the Participant gave as to why they refused or failed to accept the offer of suitable Employment. A full list of these drop-down menu options can be found in the [Work Refusal Failure reason options supporting document](#),
 - otherwise accurately answering the questions that will be automatically generated, and
 - selecting 'create', which will finalise the Work Refusal Failure report and send it to Services Australia. Services Australia will assess whether the Participant had a Reasonable Excuse for the Work Refusal Failure, which will determine whether the Participant's Income Support Payment is cancelled.

By creating and finalising the Work Refusal Failure report as described above, the Provider is confirming they consider the Participant has committed a Work Refusal Failure.

(Deed Reference(s): Clauses 138.1 (d), 140.1 (a), 145.1)

Provider considers that the Participant has not committed a Work Refusal Failure

No further action is required if the Provider:

- was in contact with the Participant on the Business Day on which the Provider became aware of an apparent Work Refusal Failure, and
- after discussing the circumstances of the apparent Work Refusal Failure with the Participant, considers the Participant has not committed a Work Refusal Failure (see the discussion under the heading 'Identifying a Work Refusal Failure' above).

Provider considers that the Participant has been non-compliant but the TCF cannot be applied

If the Provider considers that the Participant has committed a Work Refusal Failure (see [Identifying a Work Refusal Failure](#)) but the TCF cannot be applied (for example, where 10 Business Days have passed since the incident date), the Provider should discuss the matter when next in contact with the Participant and provide guidance on accepting and commencing suitable employment. During this discussion, Providers should also consider referring the Participant to activities to build or improve employability or similar appropriate activities.

12.5.3. Contact attempt is not successful on the same Business Day

When the Provider becomes aware that a Participant has apparently committed a Work Refusal Failure but is unable to contact the Participant on the same Business Day, the Provider must undertake the steps described below.



On the Business Day that the Provider becomes aware of the apparent Work Refusal failure, the Provider must create the Work Refusal Failure report by undertaking the following steps in the Department's IT Systems:

- selecting 'create compliance'
- selecting the Event Type from the drop-down menu that will appear as follows:
 - select 'job seeker failed to accept a suitable job' where the Provider considers that the Participant has apparently refused or failed to accept an offer of suitable Employment, other than by failing to commence work on the start date agreed with the potential Employer, or
 - select 'job seeker failed to commence suitable job' where the Provider considers that the Participant has apparently refused or failed to accept an offer of suitable Employment by failing to commence work on the start date agreed with the potential Employer
- recording the incident date (discussed above)
- answering 'no' to the question of whether they are in contact with the Participant
- accurately answering the questions that will be automatically generated, and
- selecting 'create'. This will create a draft Work Refusal Failure report.

In any zone, the Participant will receive notification advising that they appear to have committed an apparent Work Refusal Failure, that they must contact their Provider as soon as possible, and their payment may be suspended after 5 Business Days if they take no further action. If the Participant does not make contact with their Provider within 5 Business Days, the Department's IT Systems will automatically suspend the Participant's Income Support Payment and the Participant will receive notification that their Income Support Payment has been suspended and to contact their Provider.

In any zone, the Participant's Reconnection Requirement is to make contact with their Provider to discuss the apparent Work Refusal Failure. If the Participant's Income Support Payment has been suspended, the suspension will be lifted once they make contact with their Provider and their Provider finalises the Work Refusal Failure report (as discussed immediately below).

(Deed Reference(s): Clauses 138.1 (d), 140.1 (a), 145.1)

When there is contact with the Participant

Where there is contact with the Participant after the Business Day on which the Provider became aware of the apparent Work Refusal Failure, the Provider must update the draft Work Refusal Failure report (referred to above).



The Provider must update and finalise the Work Refusal Failure report by undertaking the following steps in the Department's IT Systems:

- selecting the edit option in the draft Work Refusal Failure report (By doing so, the Provider is confirming that they are in contact with the Participant), and either:

- if the Provider considers the Participant committed a Work Refusal Failure (see the discussion under the heading 'Identifying a Work Refusal Failure' above):
 - selecting 'No' in response to the question of whether they accepted the reason given by the Participant. By doing so, the Provider is confirming that they have determined that the Participant has committed a Work Refusal Failure
 - selecting a reason from the 'Reasons not accepted' column of the drop-down menu that will appear. The Provider must select the reason that most closely aligns with the reason that the Participant gave as to why they refused or failed to accept the offer of suitable Employment. A full list of these drop-down menu options can be found in the [Work Refusal Failure reasons supporting document](#), and
 - selecting 'submit', which will send the Work Refusal Failure report to Services Australia. Services Australia will assess whether the Participant had a Reasonable Excuse for the Work Refusal Failure, which will determine whether the Participant's Income Support Payment is cancelled,

OR

- if the Provider considers the Participant did not commit a Work Refusal Failure (see the discussion under [Identifying a Work Refusal Failure](#)):
 - selecting 'Yes' in response to the question of whether they accepted the reason given by the Participant. By doing so, the Provider is confirming that they have determined that the Participant has not committed a Work Refusal Failure
 - selecting a reason from the 'Reasons accepted' column of the drop-down menu that will appear. The Provider must select the reason that most closely aligns with the reason that the Participant gave as to why they did not refuse or fail to accept an offer of suitable Employment. A full list of these drop-down menu options can be found at [Work Refusal Failure reasons supporting document](#), and
 - selecting 'submit', which will close the report (i.e. the report will not be sent to Services Australia for investigation).

If the Participant's Income Support Payment has been suspended, this suspension is lifted when the Provider selects 'submit'.

If the Participant does not contact their Provider within 28 calendar days of their payment suspension date, their Income Support Payment will automatically be cancelled.

(Deed Reference(s): Clauses 138.1 (d), 140.1 (a), 145.1)

12.5.4. Unemployment Failures

Although the IT system functionality is available for Providers to report Unemployment Failures, Providers must not submit Unemployment Failures to Services Australia.

Where Providers identify that a Participant may have committed an Unemployment Failure (that is, become aware that a Participant voluntarily left a suitable job or was dismissed for misconduct), the Provider should discuss with the Participant their reasons for leaving the job, or whether there was misconduct, at the next Provider appointment.

12.5.5. Identifying Work Refusal Failures for Transition to Work Participants

If a Transition to Work Provider assesses that a Transition to Work Participant has committed a Work Refusal Failure, they must refer the Participant to a Workforce Australia Provider. The Transition to Work Provider must:

- explain the impact of the failure to the Participant
- exit the Participant from Transition to Work and refer the Participant to a Workforce Australia Provider, and
- provide electronic evidence to the Workforce Australia Provider that supports the Transition to Work Provider's assessment that the Participant has committed a Work Refusal Failure.

The Workforce Australia Provider must then comply with their Deed obligations in relation to that Participant, including those relating to Work Refusal Failures.

12.6. Pause of Mutual Obligation Requirements

The Department pauses Mutual Obligation Requirements when exceptional circumstances are identified that would impact Participants' ability to meet (or report) their Mutual Obligation Requirements, or Providers' ability to deliver employment services. Exceptional circumstances may include:

- natural disasters
- major IT system outages
- other significant events such as a pandemic.

When a pause of Mutual Obligation Requirements is in place, the TCF does not apply. Participants can still engage if it is safe and they wish to do so, but there are no compliance consequences if they do not. Providers must not apply compliance actions during a pause, as all Mutual Obligation Requirements become voluntary during this time.

Where the circumstance is at a localised level such as power outages or public transport disruptions, a pause of Mutual Obligations may not be required. In these cases, Providers should manage any potential impacts on Participants.

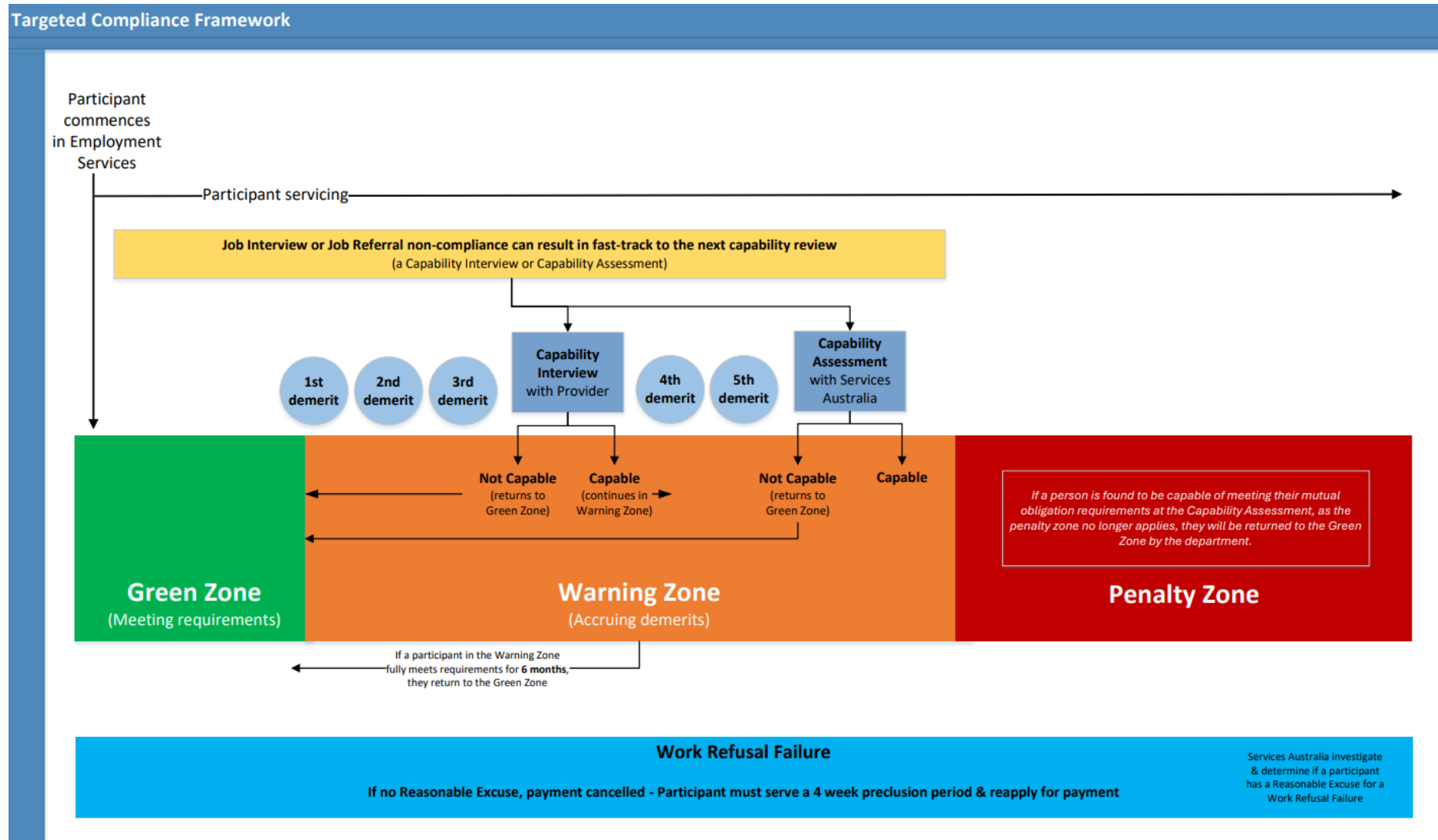
Where appropriate, this may include:

- Adjusting requirements for affected Participants.
- Rescheduling Provider Appointments or recording that a Participant is no longer required to attend.

- Setting Points Reporting Periods and Job Search Reporting Periods to No Longer Required (NLR).
- Recording that a Participant is no longer required to attend a job interview or complete a Job Referral task.
- Ensuring Participants are given sufficient time before recording a non-attendance result.
- Considering if further support referrals are required.

Note: For more information on the Pause of Mutual Obligation Requirements, refer to the [Targeted Compliance Framework Reference Guide](#).

Attachment 12A. Overview of the Targeted Compliance Framework



Chapter 13. Activity Management

Supporting Documents for this Chapter:

- [WHS Incidents and Insurance Readers Guide – Providers](#)
- [WHS Incidents and Insurance Readers Guide – Participants](#)
- [Workforce Australia Services Activities Information Sheet](#)
- [Risk Assessment Example Template \(optional\)](#)
- [Competent Person Register Example Template \(optional\)](#)

13.1. Chapter Overview

Participating in Activities helps Participants to improve their skills and motivation so they can find and keep Employment. Activities can also develop a Participant's ability to take directions from a Supervisor, work independently, communicate effectively, and work as part of a team.

This Chapter outlines the requirements for the Provider when setting up and managing Activities, which may also apply to other activities that do not have specific requirements in the Deed. Additional information on specific Activities can be found in relevant Activity Chapters.

The Provider is strongly encouraged to innovate and deliver activities that support diverse pathways to Employment. The Provider is able to develop and deliver custom activities tailored to Participants' needs in addition to the formal Activities detailed in these Guidelines.

Note: Participants are also able to arrange and report on some self-initiated activities and tasks.

13.2. Identifying suitable Activities for Participants

Activities can generally be undertaken at any time where the Provider and Participant agree that the Activity will address the Participant's Vocational Barriers and/or Non-vocational Barriers, and improve their work readiness and progress towards Employment.

In identifying suitable Activities, the Provider must consider how the Activity will address the Participant's Vocational Barriers and/or Non-vocational Barriers, improve their work readiness and help support the Participant to progress towards Employment, and is appropriate for the Participant's individual circumstances and work capacity.

The Provider must ensure that Participants are provided with a choice of Activities, except when they are referred to an Activity for:

- their Mandatory Activity Requirement, or
- a Reconnection Requirement.

Refer to [Reconnection Requirements](#) and the [Mandatory Activity Requirement](#) for more information.

The Provider must not arrange any Activity for any Participant to participate in, or refer any Participant to any Activity, where the Activity may involve:

- the Participant undertaking any Services that the Provider is contracted to deliver under the Deed or any Head Licence, or any other contract or arrangement between the Provider and the Department or another Government department or agency;

- an illegal activity or the Participant undertaking tasks that the Participant is not permitted to do under the law (e.g. a task can only be undertaken by a licensed person and the Participant does not hold that licence)
- the Participant undertaking tasks or working for any:
 - organisation owned or controlled by the Participant; or
 - Family Member of the Participant
- the participant displacing an existing employee of the Host Organisation or undertaking work that would reduce an existing employee's hours of work (full-time, casual, or part-time), including reducing an existing employee's customary overtime;
- the Participant undertaking tasks associated with the sex industry or involving nudity (including retail or hospitality positions);
- the Participant undertaking tasks directly involving gambling; and/or
- in the case of any Specified Activity, the Participant undertaking tasks in the Participant's own home.

Information on any specific eligibility criteria for Activities is contained in relevant Activity Chapters.

(Deed Reference(s): Clauses 120)

13.3. Arranging Activities

-  The Provider is reminded of the importance of complying with its obligations relating to work health and safety set out in Chapter B3.2 of the Deed, and must ensure that Activities do not proceed where work health and safety issues cannot be addressed.

As early as possible and for the duration of a Participant's Period of Registration, the Provider must arrange Activities for Participants according to their individual needs, including referral to Complementary Programs, other non-vocational interventions, Education, training and other opportunities.

-  For guidance on establishing and managing Activities in the Department's IT Systems please refer to the Department's training resources.

The Provider is responsible for supporting Participants to undertake Activities that count towards their Points Target and help them to meet their Points Requirements and any other Mutual Obligation Requirements.

The Provider may refer Participants to Activities arranged by the Department or Workforce Specialists and may also arrange a broad range of other activities. Examples of other activities the Provider may consider arranging include job search clubs, parenting courses, group information sessions, résumé writing sessions and interview preparation sessions. More information on the requirements for these activities to count towards Points Based Activation System (PBAS) is available in [Job Plan and Mutual Obligations Requirements Chapter](#).

Further information on the Provider responsibilities in relation to arranging Activities is located in the Deed and in the relevant Chapter for each Activity type.

(Deed Reference(s): Clauses 107.3, 111.1, 120)

13.4. Collaboration with other providers and community organisations

The Provider should seek to develop and maintain effective relationships with Complementary Program providers and Other Service Providers in its Employment Region(s) so as to ensure the successful delivery of programs and Activities.

The Provider must also engage with other organisations and services in its Employment Region(s) to ensure delivery of a comprehensive range of activities and support for Participants that address their Vocational Barriers and Non-vocational Barriers. This includes, but is not limited to, engaging with private and community-based service providers, education and training institutions, healthcare organisations and local governments.

(Deed Reference(s): Clauses 90.1 and 120.4)

13.5. Engaging with Host Organisations

- ✚ The Provider must ensure Host Organisations meet all Host Organisation eligibility and work health and safety requirements.

The Provider should seek to engage with a range of businesses, other employment services providers and community organisations to arrange Activities that prepare Participants to meet Employers' needs.

Some Specified Activities arranged by the Provider are hosted by a Host Organisation, including:

- Observational Work Experience
- Provider Sourced Voluntary Work
- Work for the Dole
- Non-Government Programs

The term Host Organisation specifically excludes the following:

- an Employability Skills Training (EST) Provider in relation to its delivery of an EST Course
- a Career Transition Assistance (CTA) Provider in relation to its delivery of a CTA Course
- a Local Jobs Program Activity Host in relation to its delivery of a Local Jobs Program Activity
- a Launch into Work Organisation in relation to its delivery of a Launch into Work Placement
- a Workforce Australia - Workforce Specialist in relation to its delivery of a Workforce Specialist Project
- a Skills for Education and Employment (SEE) Provider in relation to its delivery of a SEE Training Course.

13.5.1. Eligible Host Organisations

The Provider must **not** arrange, or refer any Participant to, any Activity that is hosted by a Host Organisation that:

- Does not have a valid ABN
- has engaged in any illegal operations or promotes or condones any form of unlawful conduct
- has been or is associated with the sex industry
- promotes or condones gambling that the Department deems inappropriate

- promotes or condones any form of violence, self-harm or suicide
- promotes or condones any form of discrimination, including on the grounds of race, ethnic group, language, sex, religion or disability; and/or
- provides any other service or conducts themselves in a manner that is likely to bring the Participant, the Provider or the Department into disrepute.

If the Provider suspects or becomes aware that a Host Organisation has engaged in any conduct described in the list above, the Provider must:

- ensure that no Participant commences participating in, or continues to participate in, any Activity that the Host Organisation hosts;
- Notify the Department immediately and provide information as requested by the Department, and
- if requested by the Department, cease or vary the Activity

The types of organisations which can be a Host Organisation for a particular Activity type and any additional eligibility requirements are provided in the relevant Activity specific Chapter.

Eligible Host Organisations can host more than one Observational Work Experience Placement, Work for the Dole Project, Work for the Dole Placement and/or Voluntary Work Placement concurrently where they meet the requirements for each relevant Activity type.

13.5.2. Host Organisation Agreements

The aim of Host Organisation Agreements between the Provider and a Host Organisation (and, where applicable, the Participant) is to assist all parties to understand their rights and obligations in relation to the provision of, and participation in, Activities.

The Provider must arrange the following Activities under a Host Organisation Agreement:

- Observational Work Experience
- Provider Sourced Voluntary Work
- Work for the Dole.

For the Activities listed above, the Provider must discuss with the Host Organisation, and document in the relevant Host Organisation Agreement, all the Host Organisation's obligations, regarding the relevant Activity.

The obligations that the Provider must impose on the Host Organisation in relation to a particular Activity will depend on the type of Activity in question and the provisions of the relevant template Host Organisation Agreement issued by the Department in relation to that type of Activity. The Provider should ensure that the obligations imposed on the Host Organisation under any Host Organisation Agreement are sufficient to enable the Provider to comply with its obligations under the relevant Head Licence. The Provider retains the risk of any non-compliance with any of its Head Licence obligations, regardless of the terms of any Host Organisation Agreement. To assist the Provider to comply with its obligations under its Head Licence, the Provider must ensure that each Host Organisation Agreement includes the following (at a minimum):

- details of the proposed Activity that the Host Organisation must provide, including details of the tasks that will be undertaken by Participants while participating in the Activity;
- details of how the Host Organisation will support and accommodate varying Participants' needs and capabilities (including work restrictions);

- details of the Supervision that the Host Organisation must provide while Participants are participating in the relevant Activity;
- details of training and induction that must be provided to Participants before they commence participation in the relevant Activity and/or before they commence undertaking particular tasks as part of their Participation in the relevant Activity (and which party will be providing the training and induction);
- where any of the Participants participating in the relevant Activity require their attendance to be recorded in the Department's IT Systems in order to meet their Mutual Obligation Requirements, details of the Host Organisation's obligations regarding the recording and reporting to the Provider of the Participant's attendance at, and participation in, the relevant Activity; and
- details of the Host Organisation's obligations in relation to work health and safety and incident reporting.

Note: Where the Provider replaces another Workforce Australia Employment Services Provider who negotiated and executed a Host Organisation Agreement, a novation to the relevant Host Organisation Agreement, or a new Host Organisation Agreement may be required if the Specified Activity is to continue. The Department will issue Transition Advice for each occurrence where a Provider is replaced by another Provider.



Host Organisation Agreement templates for individual Activities can be found on the Provider Portal or generated via the Department's IT Systems where relevant.

The Host Organisation Agreement must be signed by all relevant parties before the Participant commences in the Activity.



The Provider must retain evidence (either hard copy or soft copy) of Host Organisation Agreements and any other required Documentary Evidence.

13.5.3. Misuse of programs

If the Provider suspects or becomes aware that a Host Organisation has breached a Host Organisation Agreement, the Provider must immediately Notify the Department and provide information about the relevant breach as requested by the Department.

Where the Department determines that a Host Organisation has engaged in any conduct described above in [Eligible Host Organisations](#), the Department may give a direction to the Provider that the Provider must not arrange, and/or must not refer any Participants to, any Activities hosted by that Host Organisation. If the Department gives such a direction, the Provider must immediately comply with the direction.

13.6. Referrals and Commencement of an Activity

When identifying appropriate Activities for a Participant, the Provider must ensure the Activity is suitable and safe, will assist the Participant to progress towards Employment and accounts for the Participant's individual circumstances and capacity.

The Provider must not refer a Participant to an Activity unless the Provider has first:

- confirmed that the Participant is eligible to participate in the Activity, noting that certain Activities have particular eligibility requirements. Information on any specific eligibility

criteria for a particular Activity is contained in the relevant Chapter below relating to that Activity;

- confirmed that the Activity is appropriate for the Participant, taking into account the individual needs and circumstances of the Participant, including:
 - the Participant's education, experience, skills and age;
 - the Participant's capacity to undertake the Activity;
 - the Participant's strengths, as well as any barriers they have, to participating in the Activity;
 - the impact of any disability, illness, physical or mental health condition or other non-vocational issue that the Participant has, including drug and alcohol dependency, on the Participant's ability to participate in the Activity;
 - any Risk Assessment;
 - the Participant's preferences and employment goals, where possible; and
 - any other matters that the Provider considers relevant to the Participant's circumstances;
- explained to the Participant when to commence participating in the Activity, and the consequences of not commencing the Activity on time;
- explained to the Participant the frequency of the Contact that the Participant must have with the Provider while they are participating in the Activity; and
- advised the Participant where they can access the WHS Incidents and Insurance Readers Guide – Participants for Work Health and Safety guidance.

For Mandatory Activity referrals into Work for the Dole, the Provider must, in consultation with the Participant, update a Participant's Job Plan with information about the selected Activity. Further information on the Job Plan can be found in the [Job Plan and Mutual Obligations Requirements Chapter](#).



The Provider must record details of each Activity in the Department's IT Systems, including: details of the Participants referred to or placed in the Activity; and the required hours of participation for each Participant.

13.6.1. Setting up Activities in the Department's IT Systems



For guidance on establishing, scheduling and managing Activities in the Department's IT Systems please refer to the Department's training resources.

13.7. Managing participation in an Activity

The Provider must support each Participant to fully engage in any Activity they choose or to which they are referred.

While the Participant is undertaking an Activity, this includes the Provider:

- complying with its work health and safety obligations. For Specified Activities this includes the Provider or Host Organisation ensuring the provision of training, equipment and clothing and the Provider checking the availability of appropriate facilities (such as toilets and access to drinking water) at the Specified Activity location
- complying with its obligations in relation to providing or ensuring adequate and appropriate Supervision so that relevant Participants are undertaking appropriate tasks and operating in a healthy and safe environment;

- meeting with or contacting the Participant to obtain feedback on their progress, and check whether the Participant has any complaints or safety concerns regarding the Activity, or any WHS incidents to report;
- ensuring that the Participant is benefiting from the Activity, enhancing their Employment prospects and is not being exploited;
- minimising disruptions where a Participant is attending an Activity (e.g. arranging Provider appointments outside Activity times where possible); and
- monitoring the Participant's progress, attendance, behaviour and satisfaction with the Activity.

(Deed Reference(s): Clauses 79.6, 120.6, 121, 122, 123 and 124)

13.7.1. Transport to and from Activities

Participants will generally be expected to source their own transport to and from an Activity. However, the Provider must arrange transportation for a Participant to and from an Activity in where:

- the Participant does not have access to a vehicle or does not have a driver's licence, and alternative transport options such as public transport are not available;
- the Activity is at an isolated location;
- access to the Activity is along an unsealed road or track; or
- the Activity has a residential or overnight accommodation component.

If Providers are transporting Participants to or from an Activity, this must be included in the Risk Assessment of the Activity.

13.7.2. Recording and Monitoring Attendance at Activities

Information regarding attendance recording and monitoring requirements is available in the [Job Plan and Mutual Obligations Requirements Chapter](#). Some individual Activities have specific requirements regarding attendance. Please refer to individual Activity Chapters for more information where relevant.

13.7.3. Assistance with Activity Costs

Providers may be able to seek reimbursement for some eligible Activity costs through the Employment Fund. Work for the Dole Payments are also available for Work for the Dole Activities and are designed to offset the running costs of a Work for the Dole Activity for the Provider and the Host Organisation. Refer to the Employment Fund Chapter for more information.

13.8. Completion of Activities



The Provider must record a range of details when a Participant completes an Activity in the Department's IT Systems.

At the completion of a Participant's participation in an Activity, the Provider must record the following information in the Department's IT Systems:

- the reason the Participant ceased participating in the Activity (completion exit reason);
- the last date on which the Participant participated in the Activity (end date); and

- the number of hours the Participant participated in the Activity, where relevant.

The above process is not required where a Participant on the Provider's Caseload completes an CTA or EST Activity. Refer to the [Employability Skills Training](#) or [Career Transition Assistance](#) Chapters for further information on the role of the Provider.

13.9. Managing work health and safety for Activities

The Provider must at all times ensure that the Services are carried out in a safe manner, including ensuring that all Participants are in a safe environment when participating in Activities (including Specified Activities and any other activities that the Provider has arranged or referred a Participant to). In addition, the Provider must:

- in carrying out its obligations under the Deed and any Head Licence; and
- ensure that its Personnel, Subcontractors, Third Party IT Vendors and agents, in carrying out activities related to the Deed and any Head Licence, comply with all relevant laws and requirements of any Commonwealth, state, territory or local authority, including the WHS Laws.

The Provider is required to ensure that each Participant is aware of the process to lodge a complaint or voice safety concerns about an Activity. Where the Provider becomes aware of safety concerns, including those raised by a Participant, that cannot be addressed, the Provider must ensure that the Participant immediately ceases participation in the Activity.

(Deed Reference(s): Clauses 79.6, 120.6 and 120.10)

13.9.1. Ensuring Work Health and Safety measures are in place

Before arranging, or referring any Participant to an Activity, the Provider must confirm:

- that the Activity is not prohibited under relevant state and territory laws;
- its delivery is permitted under the Deed and any Head Licence, and any Guidelines;
- the Host Organisation, where relevant, is complying with all work health and safety requirements in the relevant state and territory; and
- its delivery is in line with any advice provided by local authorities.

Example: Host Organisations must have COVID-Safe plans (or similar) in place in accordance with the requirements specified by the relevant state or territory.

The Provider must take all reasonable steps to minimise the likelihood of injury to Participants and any other people at any location at which an Activity is being conducted.

Depending on the Activity, support may be available to assist Participants with costs related to engaging in an approved Activity through the Employment Fund, such as personal protective equipment. Refer to the [Employment Fund Chapter](#) for further information.

The Provider must consult, coordinate and cooperate as appropriate with relevant parties including but not limited to the Department, Host Organisations, Launch into Work Organisations and LJP Activity Hosts to ensure that any work health and safety issues in relation to an Activity are appropriately managed.

(Deed Reference(s): Clause 79.6)

13.9.2. Managing work health and safety on Specified Activities

The Provider must, in accordance with the Deed, any Head Licence and these Guidelines, meet their obligations to ensure work health and safety measures are in place for Specified Activities.

Specified Activities are:

- Launch into Work Placements
- Local Jobs Program Activity if advised by the Department that the Local Jobs Program Activity is a Specified Activity
- Observational Work Experience Placements
- Non-Government Programs
- Provider Sourced Voluntary Work
- Work for the Dole Placements
- Work for the Dole Projects.

The Provider must ensure that there is a safe system of work in place for each Specified Activity, both prior to the commencement of and throughout the Specified Activity, including, where a Host Organisation is engaged by the Provider, that the relevant Host Organisation is complying with all work health and safety requirements in the jurisdiction in which the Specified Activity occurs.

The Provider must take all reasonable steps to minimise the likelihood of injury to Participants and any other people at any location at which a Specified Activity is being conducted.

(Deed Reference(s): Clause 121.1)

13.9.3. Conducting Risk Assessments for Specified Activities

The Provider must meet their Deed, Head Licence and Guideline obligations with regards to Risk Assessments for Specified Activities. This includes Specified Activities where the Provider is the Host Organisation.

- ✚ The Provider must ensure that Activity Risk Assessments and Participant Risk Assessments are undertaken by Competent Persons, updated as necessary and meet relevant laws and departmental policies and procedures on work health and safety. If the Provider does not itself have a Competent Person, it must engage a Competent Person for this purpose.

There are 2 types of Risk Assessment that must be conducted in relation to a Specified Activity:

- Activity Risk Assessment - a risk assessment in relation to a potential or actual Specified Activity, which is undertaken and/or updated in accordance with any Guidelines (including these Guidelines).
- Participant Risk Assessment - a risk assessment in relation to each Participant's involvement in a Specified Activity, which is undertaken and/or updated in accordance with any Guidelines (including these Guidelines).

Note: Where the term Risk Assessment is used, it refers to the Activity Risk Assessment and a Participant Risk Assessment. The Competent Person arranged by the Provider to undertake the Risk Assessments may document an Activity Risk Assessment and a Participant Risk Assessment in a single document, so long as all requirements specified in these Guidelines in relation to the documentation of both Risk Assessments are met.

The purpose of the Risk Assessment process is to:

- determine whether an Activity is suitable to proceed, before the Provider refers any Participants to the Activity;
- identify potential risks associated with the tasks that will be undertaken by Participants while they are participating in the Activity; and
- identify if the Activity is suitable for the relevant Participant(s) who is referred to the Activity, including identifying any risks that may arise from a Participant's personal circumstances.

The Provider must ensure a Competent Person conducts and documents the Risk Assessment before a Specified Activity commences.

Activity Risk Assessment

The Provider must, in accordance with any Guidelines (including these Guidelines) undertake an Activity Risk Assessment of:

- subject to the following paragraph, every Specified Activity it has arranged; and
- any Launch into Work Project Activity where the Provider intends to place a Participant on their Caseload into the Activity

before the start of the Specified Activity.

The Provider must confirm that an Activity Risk Assessment has been undertaken for any Specified Activity conducted by any:

- Local Jobs Program Activity Host;
- Workforce Australia - Workforce Specialist;
- EST Provider;
- CTA Provider;
- Work for the Dole Host Organisation (where the Provider is not the Arranging Provider),

in which a Participant on the Provider's Caseload has been placed.

Participant Risk Assessment

Subject to the exception noted below, the Provider must, in accordance with any Guidelines (including these Guidelines), undertake a Participant Risk Assessment for each Participant, with regard to their potential participation in any Specified Activity, before their commencement in the Specified Activity.

The Provider is not required to undertake a Participant Risk Assessment for any Participant in relation to their participation in a Specified Activity arranged by a Workforce Specialist. The Provider must confirm that a Participant Risk Assessment has been undertaken for any Specified Activity arranged by a Workforce Specialist in which a Participant on the Provider's Caseload has been placed.

Risk Assessment considerations

The Provider must ensure that each Risk Assessment undertaken or arranged by the Provider takes into account:

- the role of the Host Organisation, or Local Jobs Program Activity Host, or Launch into Work Organisation;
- relevant Participant(s); and
- the relevant working environment,

with regard to the following factors:

- the nature and location of the tasks to be undertaken by a Participant, such as whether the Specified Activity is:
 - in a non-public area (e.g. a private residence worksite with a tradesperson)
 - with a sole trader (e.g. a butcher or hairdresser who operates from a small shop or private residence)
 - working alone with another person
 - with alternative hours of work (for example, early starts, night work)
 - working in a labour hire environment in one or more different workplaces
- the Participant's personal circumstances (that is, working capabilities, any health or other personal issues and level of experience)
- the level of Supervision required
- the nature, cause and likelihood of any risk(s)
- the consequences of an incident
- effective controls, including training and Personal Protective Equipment.

Example: The Provider would need to consider the risks of placing a Participant with medical needs in an Activity in an isolated location to ensure this is a suitable placement for the Participant.

Reviewing, maintaining and updating Risk Assessments

The Provider must review risks regularly and take appropriate action on those risks where required.

As part of its obligation to ensure that there is a safe system of work in place for each Specified Activity, the Provider must determine, and ensure there are implemented, appropriate actions to mitigate the identified risks after conducting or updating any Risk Assessment.

Where the Provider becomes aware (including based on an Activity Risk Assessment) that it cannot ensure that there is a safe system of work in place at a Specified Activity, the Provider must:

- if the Provider was intending to arrange the Specified Activity, not arrange the Specified Activity;
- not refer any Participants to the Specified Activity; and
- if the Provider has already referred any Participant to the Specified Activity, immediately ensure that the Participant ceases participation in the Specified Activity.

Where the Provider becomes aware (including based on a Participant Risk Assessment) that it cannot ensure that there is a safe system of work in place for any Participant participating in any Specified Activity, the Provider must:

- not refer the Participant to the Specified Activity; or
- if the Provider has already referred the Participant to the Specified Activity, immediately ensure that the Participant ceases participation in the Specified Activity.

The Department may, at any time and at its absolute discretion, give a direction to the Provider in relation to an Activity, proposed Activity or type of Activity, including a direction that an Activity must be ceased or varied.

(Deed Reference(s): Clauses 120.5 and 121.1)

Example Risk Assessment Templates and checklists are available on [the Provider Portal](#).

Please note, the Provider must also refer to specific Activity Chapters in this Handbook for any further details or requirements regarding Risk Assessments that may be in addition to the requirements outlined in this Chapter.



The Provider has the discretion to determine how they document their Risk Assessments. A verbal Risk Assessment does not meet the Department's requirements.



The Provider must retain Records of each Risk Assessment and any action taken in accordance with each Risk Assessment. The Provider must provide these Records to the Department if requested.



The Provider must create and maintain a Record identifying any Competent Person(s) that it engages to conduct any Risk Assessment. Providers must maintain a structured register of Competent Person(s) engaged.

This record must contain:

- the full name of the Competent Person,
- a description of the qualification, training or experience (and its relevance, if this is not clear from the qualification, training title, or experience) held by the Competent Person, including:
 - the qualification they hold, including course ID (if formal qualification undertaken),
 - internal or informal training name, and/ or
 - the number of years of relevant experience
- date of qualification/training completion (if applicable)
- refresher due date (if relevant)
- the employment region/s the under which the Competent Person can undertake Risk Assessments, or
- the Licence number under which the Competent Person is able to undertake Risk Assessments.

Providers must provide a Record of this format to the Department upon request. A [Competent Person\(s\) Register Template](#) is available on the Provider Portal, however, use of this template is not mandatory. If the template is not used, Providers must use their own structured register which includes at a minimum all the same headings as in the template.

(Deed Reference(s): Clause 122)

13.10. Supervision requirements

The Provider must, in accordance with the Deed, their Head Licence and these Guidelines, meet their obligations with regard to Supervision for Activities the Provider arranges for Participants. 'Supervision' means the action or process of directly monitoring and managing Participants participating in Activities.

Note: Supervisors may be engaged/employed by the Provider or a Subcontractor to supervise Activities (including Specified Activities or any other activities arranged by the Provider), or may be engaged/employed by Host Organisations to supervise Activities that they provide. Launch into Work Organisations, Local Jobs Program Activity Hosts, Workforce Australia - Workforce Specialists, CTA Providers and EST Providers are responsible for organising Supervision in relation to Activities they provide and for conducting relevant checks on their Personnel and Supervisors prior to their involvement.

-  The Provider must ensure that it or, where relevant, each Host Organisation, provides adequate and appropriate Supervision so that the relevant Participants are undertaking appropriate tasks and operating in a healthy and safe environment.

The Provider must ensure that there is Continuous Supervision provided over the entire duration of any Activity where it involves:

- people who are elderly, disabled or otherwise vulnerable, or
- Children (excluding other Participants).

The Provider must also ensure that the Continuous Supervision is provided over the entire duration of any Activity where the Provider otherwise considers that Supervision should be continuous having regard to the nature of the tasks to be undertaken, the potential Participants in the Activity and any risks identified in the relevant Risk Assessment.

The Provider must ensure that all Supervisors and relevant Personnel have had checks as specified in the Checks and Reasonable Care clauses of the Deed and the [Background Checks](#) section, and Supervisors have met any additional statutory requirements before being given responsibility for the Supervision of Participants.

The Provider must ensure that each Supervisor, whether engaged by the Provider, a Subcontractor or a Host Organisation, is aware of the requirement to notify the Provider of:

- the non-attendance at all relevant Activities; and
- any other non-compliance in connection with the Activities,

of a Participant as soon as practicable.

With the exception of Work for the Dole, the Employment Fund may be used to pay for Supervisor costs, if the costs are associated with the actual supervision of Participants on the Activity and not for any other tasks or services already paid for under the Deed. Refer to [the Employment Fund Chapter](#) for further information on what can be claimed through the Employment Fund and the Documentary Evidence requirements.

13.10.1. Supervision requirements for Specified Activities

In addition to the above, for the Specified Activities detailed in clause 124.3 of the Deed, as well as Non-Government Programs, arranged by the Provider, the Provider must ensure that all Supervisors and relevant Personnel of the Provider, any Host Organisation or any Subcontractor who has direct involvement (including where they have close contact with Participants) in the Activity:

- is a fit and proper person to be involved in the relevant Activity;
- has a high level of skill/knowledge, training and/or experience in:
- each part of the Activity they are involved in; and

- working with, training and supervising individuals in such activities; and
- has relevant work health and safety training.

(Deed Reference(s): Clauses 80, 124)

13.10.2. Background checks

Providers must, in accordance with the Deed, their Head Licence and these Guidelines, and their local jurisdictional requirements, establish whether the nature of an Activity requires Participants and/or Supervisors and/or relevant Personnel to have checks, and arrange those checks if required to do so.

For the purpose of these Guidelines, 'checks' refers to criminal records/police checks, Working with Children checks and/or Working with Vulnerable People checks.

Activities arranged by the Provider that require checks include those where:

- legislation requires checks to be conducted
- the Activity is subject to industry standards or legal requirements that mean Participants cannot have been convicted of particular crimes
- the Participant and/or Supervisor will have regular or unsupervised contact with Children, the elderly or other classes of vulnerable people
- the Activity is otherwise specified by the Department as requiring checks.

Unless notified otherwise by the Department, the Provider must arrange and pay for any checks to be completed before arranging for, or allowing the Participant to participate in any Activity.

The obligation set out in clause 80.1 of the Deed does not apply to Activities delivered by Workforce Australia - Workforce Specialists, CTA Providers and EST Providers, SEE Provider, Launch into Work Organisations (except where the Launch into Work Organisation asks the Provider for assistance in arranging and paying for employer-required checks) and Local Jobs Program Activity Hosts.

Where the Provider has an obligation to undertake a check, the Providers must contact the relevant organisation/s in their state or territory to arrange for the check to be completed. Checks must be arranged in line with the relevant state and territory rules and regulations.

Checks may take some time to complete. Where required, Providers should identify interim or alternative Activities for Participants awaiting the outcomes of the checks.

Where checks show that Participants or Supervisors must not participate in particular Activities, they are no longer eligible and are excluded from participation in or Supervision in that particular Activity. Alternative Activities should be suggested to the Participant. Please note, exclusion from a particular Activity - such as a specific Work for the Dole activity - may not necessarily mean the Participant is unsuitable for all other Work for the Dole activities.

The results of checks contain Personal Information. The Provider must comply with its Deed obligations in relation to such Personal Information, including obligations relating to the use and disclosure of the Personal Information. Additional information regarding disclosure of information and privacy considerations can be found in [Part A Guidelines: Privacy Chapter](#).

If an Activity is repeated or a Participant is to engage in another Activity in the future, Providers must ensure the checks conducted are still valid. Further checks must be conducted where required or where an initial check is no longer valid.

Providers may be able to seek Reimbursement through the Employment Fund for costs associated with Participant checks for Activities.

(Deed Reference(s): Clauses 80 and 124)

13.11. Managing Activity-related Incidents

The Provider must Notify the Department as soon as possible of any incident involving an Activity where a Participant is in attendance (including travel to, from or during an activity), including:

- any Critical WHS Incidents (including in relation to a Participant or member of the public), which must be reported within one hour

A 'Critical WHS Incident' has the same definition as a Notifiable Incident under the WHS Act and means an incident that results in the death of a person, a serious injury or illness of a person, or a dangerous incident.

A dangerous incident is an incident that exposes a person to a serious risk to health or safety due to an immediate or imminent exposure to electric shock, spillage/leakage of a substance, uncontrolled implosion, explosion or fire.

Examples of Critical WHS Incidents include:

- injuries requiring immediate treatment as an in-patient in a hospital,
- a serious head or eye injury,
- a serious burn,
- spinal injury, or
- amputation of any part of the body.

Please refer to the relevant clauses in the WHS Act.

- any Non-critical WHS Incidents, which must be reported on the same day

A 'Non-critical WHS Incident' is any incident that relates to a work, health and safety issue or near miss, but is not a Critical WHS Incident. Non-Critical WHS Incidents include incidents such as those involving:

- non-serious injury requiring first aid and/or assistance from a medical practitioner,
- minor property damage, or near misses that could have resulted in serious or non-serious injury, and
- any other WHS incidents that are non-Critical that may impact upon a Participant or the Department or bring the Provider or the Services into disrepute.

(Deed Reference(s): Clause 123.1)

- ✚ The Provider is required to Notify the Department of all Activity-related accidents or near misses that happen to Participants or other people in accordance with these Guidelines. Refer to the

[WHS Incidents and Insurance Readers Guide - Providers](#) available on the Incidents and Insurance page on the Provider Portal).

When an incident occurs:

- appropriate medical attention, including contacting emergency services depending on the nature of the incident, should immediately be provided by the Supervisor
- the Supervisor must try and protect any other Participants and other people at the Activity from unnecessary trauma, where possible
- the relevant WHS Regulator must be notified of the incident if it results in the death or serious injury, in accordance with laws of the relevant state or territory
- the relevant WHS Regulator must be notified of any dangerous incident that exposes someone to a serious risk, even if no one is injured, in accordance with laws of the relevant state or territory
- any directions by a WHS Regulator must be followed
- a [WHS Employment Assistance Program Incident Report](#) available on the Incidents and Insurance page (on the Provider Portal), must be completed by the Host Organisation when the incident involves a Participant's accident, injury, death or near miss
- the Provider must complete a [Public and Products Liability Incident Report](#), available on the Incidents and Insurance page (under 'Provider Operations' tab of the Provider Portal), when a third party alleges a Participant has been negligent and caused accident, injury or death, or property damage. The [Public and Products Liability Claim Form](#) must be completed by the Provider when a third party is making an insurance claim as a result of a reported incident.

Following submission of any incident reports, the Provider will receive confirmation of successful submission and a copy of the information will be sent to the relevant areas of the Department.

An incident may result in the Department issuing safety recommendations to the Provider and/or Host Organisation (or Local Jobs Program Activity Host) to ensure the risk of the same incident being repeated is reduced or eliminated, if possible. The Provider has an obligation to comply with the Department's directions relating to any Activity (see Deed clause 120.5).

It is imperative that Participants have access to reporting mechanisms in the event they wish to report an incident, lodge a complaint or provide positive/constructive feedback confidentially. The Provider must ensure that there is an internal, impartial and easily accessible complaints mechanism that can be used by Participants regardless of the nature of the complaint.

(Deed Reference(s): Clauses 38.1, 79.6, 79.7 and 123.1)



The Provider is required to submit the WHS Incident Report form on the Department's IT Systems on the same day as the Provider becomes aware of any incident referred to in this section. In the event the WHS Incident form is unavailable, the Provider must complete and submit the WHS Employment Assistance Program Incident Report form.

13.11.1. Work health and safety incidents

Where an incident includes any accident, injury or death occurring during the Activity, or direct travel to or from an Activity, including in relation to a Participant or a member of the public, the Provider must also, as soon as possible, and on the same day, give full details of the accident, injury or death to the Department in the form specified in these Guidelines.



Detailed information on notifying the Department with regard to WHS Incidents is included in the [WHS Incidents and Insurance Readers Guide - Providers](#) on the Incidents and Insurance page under the 'Provider Operations' tab of the Provider Portal.

(Deed Reference(s): Clause 123.2)

The Provider must notify the Department of Critical WHS Incidents within one hour via telephone and followed by formal written notification to the Provider Lead that give full details of the accident, injury or death to the Department.

The Department must be notified of Non-critical WHS Incidents by the Provider as soon as possible and on the same day by completing the WHS Incident Report Form.



The Provider is required to submit the WHS Incident Report form on the Department's IT Systems on the same day as the Provider becomes aware of any incident referred to in this section. In the event the WHS Incident form is unavailable in the Department's IT Systems, (the Provider must complete and submit the WHS Employment Assistance Program Incident Report form. The relevant forms to support Supervisors and Host Organisations to submit a WHS Incident Form are available on the [Incidents and Insurance page on the Provider Portal](#).



The Provider must maintain records of WHS incidents.

Other Incidents

Any other incidents that are non-serious that may impact upon a Participant or the Department or bring the Provider or the Services into disrepute must be reported to the Department within 24 hours. A WHS incident may also be considered a challenging behaviour incident. In these cases, the Provider may need to submit a WHS incident form and also Job Seeker Incident Report in accordance with Deed requirements.

The Provider must report any instances of misconduct or threatening behaviour via the 'Job Seeker Incident Report'. See [Part A Guidelines: Servicing Participants with Challenging Behaviours Chapter](#).

All Incidents – both Personal Accident and Public and Products Liability

Providers must Notify the Department of any incident that may result in a liability claim (irrespective of whether a claim is being made at the time).

The Provider must also comply with any instructions issued by the Department or the Department's insurance broker. Detailed information in relation to the process for reporting incidents that may result in liability is available in the [WHS Incidents and Insurance Readers Guide - Providers](#).

The Department's personal accident liability insurance provides coverage when a Participant is injured while participating in an approved Activity, including direct travel to, from or during such Activities.

The Department's public and products liability insurance provides coverage results when a third party alleges a Participant has been negligent and caused an accident, injury or death, or property damage, while participating in an Activity.

The Provider must, when requested by the Department's insurance broker, provide full details to the insurance broker of any incident that may or does result in a liability claim. The insurer is responsible

for determining liability. The Providers must not admit fault or accept responsibility for any alleged negligence that may or does result in a third party claim.



Forms for the Provider to complete to Notify the Department of any personal accident or public and products liability incidents are available on the [Incidents and Insurance page on the Provider Portal](#).



The Provider must maintain a copy of all incident notifications and records for supporting evidence in any insurance claims.

13.11.2. Insurance coverage for Participants

The Provider must, in accordance with the Deed, comply with any instructions issued by the Department or the Department's insurance broker, and these Guidelines, in relation to insurance purchased by the Department for Participants involved in Activities.

The Department purchases the following insurance policies to cover Activities:

- Personal Accident insurance - covers the Participant in respect of personal injury or death that occurs while undertaking Activities, including direct travel to, from or during such Activities
- Public and Products Liability insurance for Participants - covers the legal liability of the Participant arising out of their negligence that causes personal injury to a third party, or damage to a third party's property, while participating in approved activities
- Public and Products Liability insurance for Work for the Dole Activities - covers the legal liability of Host Organisations who are receiving assistance from Participants undertaking Community Support Projects which would otherwise be denied under the Host Organisation's own insurance policies.

Further information on the insurance purchased by the Department to cover Participants undertaking Activities is in the [WHS Incidents and Insurance Readers Guide – Providers](#), with copies of the insurance policies also on the [Incidents and Insurance page of the Provider Portal](#).

Information for Participants about insurance is included in the [WHS Incidents and Insurance Readers Guide – Participants](#) which is available on the Provider Portal for Providers to give to the Participants and is published on the Department's website under 'Insurance arrangements for Employment Services activities'.

The Provider should note the Department's policies have standard exclusions. The Department's purchased insurance policies:

- do not cover illness or sickness contracted by a Participant during an Activity, including COVID-19
- do not cover any Activities that would have been prohibited under these Guidelines
- may have time limits that apply for claims
- do not cover any other exclusions listed within the terms and conditions of each insurance policy.

If alternative insurance is in place, Providers can still deliver Activities where tasks are excluded under the Department's policies.

In addition, the Provider are contractually obligated to maintain various insurances as outlined in the Deed and understand the coverage available to them under their own insurance policies as outlined in the Deed.

Providers are also required to confirm that the Host Organisation has appropriate insurance coverage, and where coverage is insufficient the Provider can decide to purchase or fund additional insurance for the Activity.

(Deed Reference(s): Clauses 52, 122.5(f) and 123.3)

Sourcing additional insurance coverage

The Provider must purchase additional insurance to ensure adequate coverage of the Participant. For Activities other than Work for the Dole, Employment Fund may be used to purchase additional insurance. Please refer to the [Employment Fund Chapter](#).



The Provider must keep a full copy of any insurance policies relied upon by the Provider to be compliant with the requirements for additional insurance.

As an alternative to purchasing insurance, the Provider may consider modifying the tasks in the proposed Activity so that no part of the Activity would be excluded under the Department's insurance coverage.

(Deed Reference(s): Clause 52.13)

Chapter 14. Employability Skills Training

Supporting Documents for this Chapter:

- [Employability Skills Training Participant Fact Sheet](#)
- [Referral Cap Supporting Document and Temporary Exemption Request Form](#)

14.1. Chapter Overview

Description: Enhances work readiness by providing intensive pre-employment training.		Activity Code: PAET Job Plan Code: N/A
Eligibility: aged 15+, on income support and subject to Mutual Obligation Requirements	Duration: 75 hours over 3 consecutive weeks (25 hours per week) or 5 consecutive weeks (15 hours per week)	Specified Activity: No
PBAS: Yes – Please refer to the PBAS points values for tasks and activities in the Points Based Activation System factsheet	Activation eligible: Yes - approved activity or Provider-assessed	Progress Payment: Yes – vocational intervention
Fee-for-Service Payment: Providers must pay the EST Provider: Up to \$1,335 per Participant for Training Block 1 Courses Up to \$320.40 per Participant for Training Block 2 Courses (full fee is \$1,335 including \$1014.60 paid by the Department)		

This Chapter outlines the requirements for Providers with regard to Employability Skills Training (EST).

EST Courses are available on a fee-for-service basis. Providers must pay the EST Provider for each Participant Referral prior to the date the EST Course starts. Participants must not pay for an EST Course.

14.2. Background

EST is a Complementary Program, administered by the Department, which Providers may access to enhance work readiness of Participants. EST provides intensive pre-employment training through 2 different blocks of targeted training:

- Training Block 1: workplace focused training
- Training Block 2: industry focused training.

EST Eligible Participants can undertake one or both EST Courses, in any order.

Each EST Course runs for 75 hours, in a group setting, over:

- 25 hours per week over 3 consecutive weeks, or
- 15 hours per week over 5 consecutive weeks.

EST Courses can be delivered by EST Providers as Youth Courses, 25 Plus Courses or All Ages Courses. EST Courses can be delivered face-to-face, hybrid (a blend of face-to-face and online) or online.

Providers may approach EST Providers to deliver specific or tailored EST Courses where there is an identified demand, for example for training in a particular location or industry.

Participation in EST is voluntary.

14.3. Benefits of EST

14.3.1. Benefits of both Training Block 1 and 2 Courses

Following their Training Block 1 or Training Block 2 Course, Participants will receive:

- an updated, professionally presented résumé that identifies the Participant's skills and experience, and
- an assessment that documents the industries and/or occupations that may be suitable for the Participant, and recommendations for next steps for the Participant to pursue employment and/or training opportunities.

EST and Points Requirements

EST Participants can gain Points under the PBAS. Participants may also earn points for tasks completed (such as job applications) as part of the EST Course, in addition to the points received for participating in the EST Course. EST can also be undertaken where the Participant would otherwise have Work for the Dole as the Mandatory Activity Requirement. Refer to the [Job Plan and Mutual Obligations Requirements Chapter](#) for more information.

The TCF will not apply for non-attendance in EST, however, it will apply if Participants fail to meet their Points Requirement.

14.3.2. Benefits of Training Block 1

Training Block 1 Courses help Participants develop job search and workplace skills.

Advanced job search skills training helps Participants gain the skills they need to look for work and a better understanding of the local labour market to help them find sustainable employment opportunities. Training Block 1 Courses help Participants demonstrate they have the attitude and approach to work that employers want.

Upon successful Completion of a Training Block 1 Course, Participants should be able to demonstrate the following Learning Outcomes:

- use a variety of techniques and strategies to seek and apply for work
- identify opportunities in the local labour market
- understand employer expectations
- prepare a résumé
- prepare a job application, including preparing a cover letter, addressing selection criteria, and preparing video applications as relevant to opportunities in the local labour market
- complete an online psychometric and aptitude screening test
- prepare for an in-person and virtual job interview

- manage their digital footprint
- apply conventions of online etiquette
- apply the 10 skill areas described in the [Core Skills for Work Developmental Framework](#).

14.3.3. Benefits of Training Block 2

Training Block 2 Courses help EST Participants learn more about industries that are in demand or have emerging opportunities in their local labour market.

Upon successful Completion of a Training Block 2 Course, EST Participants should be able to demonstrate the following Learning Outcomes:

- use the most suitable techniques and strategies to seek and apply for work in the industries covered
- understand the duties, requirements, career prospects and employer expectations of the industries covered
- tailor a résumé to the industries covered
- tailor a job application to the industries covered, including preparing a cover letter, addressing selection criteria, and preparing video applications as relevant to the industries covered
- complete an online psychometric and/or aptitude screening test as relevant to the industries covered
- prepare for an in-person and virtual job interview for the industries covered
- use technology relevant to entry-level employment opportunities in the industries covered.

Training Block 2 Courses include Industry Awareness Experiences that aim to provide EST Participants with insight into the tasks and duties of an industry. Examples of Industry Awareness Experiences include guided tours of workplaces arranged with an Employer and Inbound Employer Visits.

There are 2 types of Training Block 2 Courses:

- Generalist Courses
- Specialist Courses.

Generalist Courses

Generalist Courses give EST Participants a taste of a few different industries to help them decide whether an industry is right for them.

The industries must have entry-level employment opportunities in the local labour market.

Generalist Courses may offer accredited training to support the Learning Outcomes.

Specialist Courses

Specialist Courses focus on a single industry to help EST Participants build industry-specific skills and provide a pathway for EST Participants to entry-level Employment opportunities in the industry or a formal training program.

Specialist Courses may offer accredited training to support the Learning Outcomes and to support Participants to build skills relevant to the industry. Examples include a construction Work Health and Safety 'white card' or the Responsible Service of Alcohol unit of competency.

Specialist Courses are endorsed by a relevant industry association to ensure the training is suitably tailored to, and valued by, employers in the industry and to make course Participants more competitive for entry-level employment opportunities in the industry.

14.4. Role of Providers

Key responsibilities and actions undertaken by Providers in relation to EST, which must be done in accordance with the Deed and these Guidelines, include:

- only referring Participants who meet the eligibility criteria to participate in an EST Course
- confirming if the Participant would benefit from EST
- confirming if the Participant is capable of undertaking the EST Course for the required hours per week and by the nominated delivery mode (see [Referral to EST](#))
 - If the session times of a course do not suit the Participant, then an alternative EST Course should be selected
- in referring an EST Eligible Participant to an EST Course, Providers must ensure the Participant is:
 - made aware of their responsibilities, such as recording attendance
 - made aware of, and consented to, the disclosure of relevant personal information to the EST Provider for the purpose of managing the Participant's referral and participation in an EST Course
- ensuring that the EST Provider has all the information it requires to inform the required Risk Assessments for any Industry Awareness Experience (other than an Inbound Employer Visit), ensuring any personal information is only disclosed if the Participant has given consent
- paying the relevant EST Provider in accordance with these Guidelines
- providing Participants with or arranging any EST Course prerequisites
- encouraging Participant attendance at the EST Course, noting that Participants must attend the EST Course within 7 Business Days of the EST Course starting (including the EST Course start date) or the EST Provider will end the Participant's referral to the EST Course
- working collaboratively with EST Providers to support Participants to successfully complete the EST Course
- reviewing, on completion of the EST Course, the assessment provided by the EST Provider of the Participant's learning outcomes and recommended next steps.

EST Providers will identify any EST Course prerequisites in the EST Course description (for example a police check, personal protective equipment or a USB memory stick). Providers should action EST Provider requests to supply or arrange EST Course prerequisites in a timely manner. If eligible, Providers can seek reimbursement from the Employment Fund for the cost of required items.

EST Providers will enter EST Course completion details in the Department's IT Systems. If a Participant is required to exit from the Activity early, the Provider must contact the EST Provider to request they action the exit.

If a Participant transfers to a new Provider, Provider Site or is Exited from Workforce Australia Services whilst participating in EST, they will be automatically Exited from the EST Course by the

Department's IT Systems, irrespective of how many hours the Participant has attended. Providers should notify EST Providers where this occurs.

(Deed Reference(s): Clauses 120.1, 120.3, 120.4, 120.6, 133)

14.5. Eligibility

To be eligible to participate in EST, a Participant must:

- be aged 15 years or over
- be receiving income support, and
- have Mutual Obligation Requirements.

Participants are eligible for referral to EST from their Commencement in Services.



The Department's IT Systems will identify if a Participant is EST Eligible.

There is no limit to the number of times a Participant can undertake EST if the Provider and EST Provider consider that the Participant would benefit.

(Deed Reference(s): Clauses 133)

14.6. Referral to EST

Local EST Providers are expected to make suitable Courses available to meet the needs of Individuals in their contracted Employment Region, including those on Provider caseloads. Providers can search for and view scheduled EST Courses in the Department's IT Systems. Participants cannot be referred to an EST Course after the first day of the course schedule.



Providers view available EST Course places via the Activity Management component in the Department's IT Systems.



Providers must make referrals to EST in the Department's IT Systems.

EST Providers will contact Participants prior to EST Course Commencement to undertake a range of pre-engagement checks. If the EST Provider identifies concerns about the suitability of the EST Course for the Participant, the EST Provider will contact the Provider to discuss the reasons. The EST Provider will reject the referral in the system if, following discussion with the Provider, the EST Provider determines the Participant would not benefit from or would not be able to participate in an EST Course.

A Participant with a full-time Mutual Obligation Requirement can choose to undertake an EST Course at 15 hours per week over 5 consecutive weeks. Conversely, a Participant with a part-time Mutual Obligation Requirement can choose to undertake an EST Course at 25 hours per week over 3 consecutive weeks. However, if the weekly hours would exceed the Participant's assessed work capacity, the Provider must agree with the Participant that full-time participation in an EST Course is appropriate before referring the Participant.

(Deed Reference(s): Clause 133)

14.6.1. Referral Cap

Providers which are also EST Providers (as their Own Organisation, Related Entity or Subcontractor) delivering Training Block 2 Courses in the same Employment Region are subject to a Referral Cap whereby no more than 50 per cent of total referrals to EST Training Block 2 Courses resulting in a commencement may be made to the Provider's Own Organisation, a Related Entity or a Subcontractor. The Provider must not refer a Participant to an EST Course if to do so would exceed the Referral Cap.

The Referral Cap does not apply to Training Block 1 referrals, or where the only EST Providers in an Employment Region are the Provider's Own Organisation, Related Entities or Subcontractors. A temporary exemption to the Referral cap can be requested using the [Referral Cap Temporary Exemption Request Form](#).

The Referral Cap applies at the Employment Region level and is measured on a cumulative basis over the length of the Head Licence. Provider compliance will be reviewed by the Department on a regular basis.

Any Provider that has exceeded the Referral Cap in accordance with these Guidelines may have their capacity to make future EST referrals to their Own Organisation, Related Entity or Subcontractor restricted, which may include the Department issuing a direction to cease referrals to those entities. This restriction will remain in place until the Provider is below the Referral Cap, or unless otherwise advised by the Department.

Providers may request a temporary exemption from the Referral Cap or access further details about the application and review process by referring to the [Referral Cap Supporting Document and Temporary Exemption Request Form](#).

(Deed Reference(s): Clause 133.3)



Providers can use Qlik report WREF03 to monitor their adherence to the Referral Cap.

14.7. On Completion of the EST Course

Once the EST Course ends, the Participant and the Provider will receive an assessment which sets out:

- progress made by the Participant
- the Participant's performance against each of the Learning Outcomes of the EST Course
- any units of competency completed
- industries and/or occupations suitable for the Participant, taking into account the Participant's goals, skills and the local labour market
- recommended next steps the Participant should take to pursue Employment and/or training opportunities based on the Participant's goals, skills and the local labour market.

Note that if a Participant does not attend each day of the EST Course, the EST Provider will complete the assessment to the extent possible given the Participant's level of participation.

14.8. Payments

14.8.1. Course fee

Providers must pay the relevant course fee to the EST Provider on a fee-for-service basis of:

- up to \$1,335 per Participant for each Training Block 1 Course
- up to \$320.40 per Participant for each Training Block 2 Course (full course fee is \$1,335, the remaining \$1,014.60 is subsidised directly to the EST Provider by the Department).

Providers must pay the EST Provider the relevant course fee by the date advised by the EST Provider. The transfer of funds from Provider to EST Provider happens outside of the Department's IT Systems. Providers must make their own arrangements with the EST Provider to facilitate payment.

The course fee paid is fully refundable if the EST Provider cancels the EST Course or finds the EST Course is not suitable for the Participant prior to commencement. The Provider should ascertain from the EST Provider whether there are other circumstances in which any proportion of the fee paid will be refundable if the Participant does not attend.

14.8.2. Progress Payments

Progress Payments are available to claim when the Participant's circumstances have been changed during participation in Workforce Australia Services such that they are more prepared to gain and maintain Employment. Completion of at least 60 hours of an EST Course (at least 60 hours) may contribute towards a Progress Payment. For Progress Payments, Providers must refer to and comply with the requirements specified in the [Provider Payments and Vacancies Chapter](#).

Chapter 15. Career Transition Assistance

Supporting Documents for this Chapter:

- [CTA – Information for Providers](#)
- [CTA – Information for Participants](#)
- [Referral Cap Supporting Document and Temporary Exemption Request Form](#)

15.1. Chapter Overview

Description: Practical pre-employment assistance for Participants aged 45 and over to increase digital literacy and employability in the local job market.		Activity Code: CTA Job Plan Code: N/A
Eligibility: 45 years and over, subject to confirmation by CTA Providers	Duration: 75+ hours over 3 to 8 weeks consecutively and no more than 25 hours per week.	Specified Activity: No
PBAS: Yes – Please refer to the PBAS points values for tasks and activities in the Points Based Activation System factsheet	Activation Eligible: Yes – approved activity or Provider-assessed	Progress Payment: Yes – vocational intervention

This Chapter outlines the requirements for Providers with regard to the Career Transition Assistance program (CTA).

CTA Eligible Participants can be referred to a CTA Course, with payment made by the Department to the CTA Provider upon Commencement of the Participant in CTA. Participants must not pay for a CTA Course.

15.2. Background

CTA is a Complementary Program, administered by the Department, which Providers may access to provide practical assistance to Participants 45 and over with the aim of improving digital literacy, and increasing their employability and competitiveness in the local job market.

Each CTA Course runs for 3 to 8 weeks consecutively. Participation in a CTA Course is for a minimum of 75 hours (including a minimum of 50 hours in small group settings), excluding breaks, and no more than 25 hours per week.

Participation in CTA is voluntary.

15.3. Benefits of CTA

The benefits of CTA include, but are not limited to:

- building skills and confidence to use everyday technologies such as computers, tablets and smart phones
- improving skills to apply for jobs online, and to use simple technology found in different workplaces

- identify existing skills and how they transfer to other jobs or industries
- better understanding of the job opportunities in their local area, and the skills needed
- updating and tailoring job applications to apply for a range of different jobs
- exploring goals and motivations.

At the end of the CTA Course, each Participant will also have a personal Career Pathway Plan and an updated résumé.

CTA Providers will leverage their local labour market and industry connections to provide at least one Employer Visit per Course.

CTA Participants can gain points under the PBAS. Participants may earn points for tasks completed (such as job applications) as part of the CTA Course, in addition to the points received for participating in the CTA Course. CTA can also be undertaken where the Participant would otherwise have Work for the Dole as the Mandatory Activity Requirement. Refer to the [Job Plan and Mutual Obligation Requirements Chapter](#) for more information.

The TCF will not apply for non-attendance in CTA, however, it will apply if Participants fail to meet their Points Requirement.

15.4. Role of Providers

Key responsibilities and actions undertaken by Providers in relation to CTA, which must be done in accordance with the Deed and these Guidelines include:

- identifying if Participants meet the eligibility criteria to participate in a CTA Course
- confirming if the CTA Course is suitable for the Participant
- confirming if the Participant:
 - has the capacity to undertake the CTA Course for the required hours per week and by the nominated delivery mode
 - is capable of undertaking, and would benefit from, referral to CTA
- where the session times of a course do not suit the Participant, then an alternative CTA Course should be selected
- in referring a CTA Eligible Participant to a CTA Course, Providers must ensure the Participant is:
 - made aware of their responsibilities, such as recording attendance,
 - made aware of, and consented to, the disclosure of relevant personal information to the CTA Provider for the purpose of managing the Participant's referral and participation in a CTA Course selecting an appropriate schedule for details to appear in the Participant's Calendar, in accordance with the Department's training resources
- ensuring that the CTA Provider has all the information it requires to inform the required Risk Assessments for any Outbound Employer Visits ensuring any personal information is only disclosed if the Participant has given consent
- supporting Participants to successfully complete the CTA Course
- on completion of the CTA Course, Providers must be available for the Personal Handover Meetings.

CTA Providers must enter CTA Course completion details in the Department's IT Systems. If a Participant is required to exit from the Activity early, the Provider must contact the CTA Provider to request they action the exit.

(Deed Reference(s): Clauses 120, 122, 134)

15.5. Eligibility and Suitability

To be eligible to participate in CTA, a Participant must be aged 45 years or over and have not already completed a CTA Course. Participants who commence a CTA Course but do not complete it, may be eligible to commence in a new CTA course, subject to Departmental approval.

After assessing that a Participant is eligible to participate in CTA, the Provider must also determine that CTA is suitable for the Participant prior to referral. CTA is considered suitable for CTA Eligible Participants where the Provider believes the Participant would benefit from the program, **unless** the Participant has a significant non-vocational issue that needs to be addressed as a priority before they can benefit from CTA.



Providers will be able to view a list of CTA Eligible Participants via the CTA Eligibility Widget in the Department's IT Systems.

(Deed Reference(s): Clauses 134)

15.6. Collaboration with CTA Providers

Providers will need to work with local CTA Providers to facilitate referrals to the program and ensure CTA Providers are aware of upcoming demand to schedule courses accordingly.

The Provider is expected to participate in Personal Handover Meetings to discuss the Participant's next steps following completion of CTA, including pursuing employment and work experience opportunities. As part of this meeting, the CTA Provider will provide a copy of the Participant's updated résumé and Career Pathway Plan. The CTA Provider will also offer the Participant 2 future Contacts to occur within 3 months of completion of CTA.

Exception - A Personal Handover Meeting is not required where a Participant exits the CTA Course prior to completing 60 hours of the scheduled CTA Course hours or to commence employment.

If a Participant transfers to a new Provider, Provider Site or is Exited from Workforce Australia Services whilst participating in CTA, they will be automatically Exited from the CTA Course by the Department's IT Systems, irrespective of how many hours the Participant has attended. Providers should notify CTA Providers where this occurs.

15.7. Referral to CTA

Once a CTA Provider has entered a CTA Course into the Department's IT Systems, Providers can search for and view that CTA Course. CTA Eligible Participants are also able to view all Activities in their Employment Region for which they may be eligible.

Once a suitable CTA course has been identified in the Department's IT Systems, the Provider must select the appropriate schedule from those available in the CTA Course, taking the CTA Eligible

Participant's individual circumstances into account. Participants cannot be referred to a CTA Course after the first day of the course schedule.

As part of the referral process, the CTA Eligible Participant will undertake an Initial Meeting with the CTA Provider.

During the Initial Meeting, the CTA Provider will assess the suitability of the Participant.

If the CTA Provider believes the CTA Course is not suitable for the Participant, or the Participant will not benefit from CTA, the CTA Provider will reject the referral and advise the Provider that the Participant has not been accepted into the CTA Course, and the reasons for this.

If the Participant is unable to attend the Initial Meeting, the Participant is required to notify their Provider, who must then work with the CTA Provider to reschedule this meeting.

A place in the CTA Course will only be confirmed once the Course has been assessed as suitable for the Participant by the CTA Provider at the Initial Meeting.



Providers view available CTA Course places via the Activity Management component in the Department's IT Systems.

Participants are to be provided with details of the suitable CTA Courses available in their Employment Regions, and Providers are required to refer Participants, in the Department's IT Systems, to the CTA Provider chosen by the Participant, where this would not exceed the Referral Cap. Information on Activity referrals is available in the Department's training resources.

(Deed Reference(s): Clauses 134.2)

15.7.1. Referral Cap

Providers which are also CTA Providers (as their Own Organisation, Related Entity or Subcontractor) in the same Employment Region are subject to a Referral Cap whereby no more than 50 per cent of total referrals to CTA Courses resulting in a commencement may be made to the Provider's Own Organisation, a Related Entity or a Subcontractor. The Provider must not refer a Participant to a CTA course if to do so would exceed the Referral Cap.

The Referral Cap will not apply if all CTA Providers in an Employment Region are the Provider's Own Organisation, Related Entities or Subcontractors.

The Referral Cap applies at the Employment Region level and is measured on a cumulative basis over the Term of the Head Licence. Provider compliance will be reviewed by the Department on a regular basis.

Any Provider that has exceeded the Referral Cap in accordance with these Guidelines may have their capacity to make future CTA referrals to their Own Organisation, Related Entity or Subcontractor restricted, which may include the Department issuing a direction to cease referrals to those entities. This restriction will remain in place until the Provider is below the Referral Cap, or unless otherwise advised by the Department.

Providers may request a temporary exemption from the Referral Cap or access further details about the application and review process by referring to the [Referral Cap Supporting Document and Temporary Exemption Request Form](#).

(Deed Reference(s): Clauses 134.4)



The Provider can use Qlik report cREF01 to monitor their adherence to the Referral Cap.

15.8. Progress Payments

Progress Payments are available to claim when the Participant's circumstances have been changed during participation in Workforce Australia Services such that they are more prepared to gain and maintain Employment. Completion of at least 60 hours of a CTA Course may contribute towards a Progress Payment. For Progress Payments, Providers must refer to and comply with the requirements specified in the [Provider Payments and Vacancies Chapter](#).

Chapter 16. Reserved

Chapter 17. Reserved

Chapter 18. Observational Work Experience

Supporting Documents for this Chapter:

- [Observational Work Experience Host Organisation Agreement template](#)
- [OWE Contact Card](#)
- [OWE Fact Sheet](#)

18.1. Chapter Overview

Description: Enables a Participant to undertake voluntary, short-term, unpaid, observational work experience placements to build soft skills and gain a better understanding of the workplace or potential career opportunities.		Activity Code: UWEP Job Plan Code: N/A
Eligibility: Aged 15 and older, and registered in Workforce Australia Services	Duration: Up to 4 weeks	Specified Activity: Yes
PBAS: Yes – Please refer to the PBAS points values for tasks and activities in the Points Based Activation System factsheet	Activation eligible: Yes – Provider-assessed	Progress Payment: Yes – work placement
Participant Payment: No	Host Payment: No	Provider Payment: No

This Chapter outlines the requirements for the Provider when arranging and managing Observational Work Experience (OWE) Placements.

OWE is an Activity which the Provider may use for eligible Participants who are not yet job-ready and have limited or no experience in the workplace.

18.2. Benefits of OWE

Some of the potential benefits of OWE include it being:

- an opportunity for the Participant to gain valuable exposure to workplaces and learn what Employers expect of their workers
- an opportunity to enhance Participants' awareness of different careers
- an effective tool to assist Participants to build employability skills, such as attendance and communication.

OWE Participants can gain points under the PBAS. The TCF will not apply for non-attendance in OWE, however, it will apply if Participants fail to meet their Points Requirement. Refer to the [Job Plan and Mutual Obligations Requirements Chapter](#) for more information.

18.3. Role of Providers

When arranging an OWE Placement, the Provider must:

- ensure the Participant is eligible and suitable for OWE

- ensure the Host Organisation is eligible to host an OWE Placement
- ensure the OWE Placement meets the requirements set out in these guidelines
- ensure an Activity Risk Assessment and Participant Risk Assessment have been completed by a Competent Person
- negotiate and enter into an OWE Host Organisation Agreement with the Participant and the Host Organisation
- monitor the OWE Placement for its duration and respond to any issues that arise.

18.4. Eligibility

18.4.1. Eligible Participants

To be eligible to participate in OWE, a Participant must be:

- aged 15 years or over
- participating in Workforce Australia Services.

Participants are not required to be receiving an Income Support Payment.

18.4.2. Eligible Host Organisations

OWE Placements can occur in:

- for-profit organisations
- not-for-profit organisations
- the Provider's Own Organisation, Related Entities or Subcontractor.

The Host Organisation requirements and prohibitions outlined in the [Eligible Host Organisations](#) section of the [Activity Management Chapter](#) also apply to OWE Placements.

18.5. Arranging Placements

In addition to the Activity requirements and prohibitions outlined in the [Identifying Suitable Activities for Participants](#) section of the [Activity Management Chapter](#),

The Provider must ensure OWE Placements:

- only involve observation (allowing for participation in meetings and discussions where relevant), with no tasks to be undertaken by the Participant
- are no more than 4 weeks in duration
- do not involve more than 50 hours of attendance per fortnight, and generally not more than 25 hours per week
- do not involve more than 8 hours of attendance per day (excluding breaks)
- include at least one 30-minute break every 5 hours
- do not include participation on a public holiday

Participants may participate in OWE placements outside of core business hours. However, the Participant needs to agree to this before being referred.

OWE Placements do not need to have a reasonable prospect of future Employment with the Host Organisation. It is at the discretion of the Provider as to the number of OWE Placements a Participant undertakes (either with the same Host Organisation, or another).



For each OWE Placement, an Activity record with an activity description outlining the observational tasks to be undertaken by the Participant must be created in the Department's IT Systems in accordance with the [Department's training resources](#). An Activity ID will then be created automatically by the Department's IT Systems.



Study Placements should not be recorded as an OWE Placement in the Department's IT Systems as they are not considered to be OWEs.

18.6. Work Health and Safety



For the purposes of Work Health and Safety, the Provider must also refer to, and comply with, the requirements specified in [Managing Work Health and Safety for Activities](#) section in the [Activity Management Chapter](#).

(Deed Reference(s): Clauses 121, 129.2)



The Provider must retain Records of any action taken with regard to any Incidents that occur during an OWE Placement in accordance with the [WHS Incidents and Insurance Readers Guides](#).



Providers have the discretion to determine how they document Activity Risk Assessments and Participant Risk Assessments for OWE Placements but must retain Records of each Risk Assessment undertaken.

18.7. Managing OWE Placements

18.7.1. Referring a Participant to OWE

Prior to referring a Participant to an OWE Placement, the Provider must:

- determine the Participant's eligibility for OWE
- ensure the Participant has undertaken any [background checks](#) required for the OWE Placement
- ensure the Risk Assessment process has been completed by a Competent Person
- ensure the nature of the observation activities are appropriate and suitable for a Participant (see the [Activity Management Chapter](#) for further information).

In addition, The Provider should identify any assistance or items the Participant will require for the OWE Placement. This may include specific clothing and transport. The Provider may be able to seek reimbursement for goods and services related to OWE. Providers should refer to, and comply with, the requirements specified in the [Employment Fund Chapter](#).



The Provider must refer the Participant against the relevant Activity record in accordance with the [Department's training resources](#).

18.7.2. Host Organisation Agreement

For the purposes of completing Host Organisation Agreements for OWE Placements, Providers must also refer to and comply with the requirements specified in the Engaging with Host Organisations Section in the [Activity Management Chapter](#).



For OWE Placements, the Provider must use the [Host Organisation Agreement template](#). This template can be found on the Provider Portal.

The OWE Host Organisation Agreement must be agreed and signed by the Participant, Provider and Host Organisation prior to the Participant commencing in the OWE Placement.

As part of this process, the Provider must:

- explain the terms and conditions to the Participant and Host Organisation to ensure they understand their obligations under the OWE Host Organisation Agreement
- ensure all fields in the OWE Host Organisation Agreement are completed with accurate details
- provide the Participant with the [OWE Participant Contact Card](#) and [OWE Participant Fact Sheet](#), which are available on the Provider Portal.



The Provider must retain either a hard copy or soft copy of the signed OWE Host Organisation Agreement and provide it to the Department upon request.

Prior to the OWE Placement commencing, the Provider should discuss the preferred contact method, frequency and timing of contact with the Participant and Host Organisation to avoid disruption during the activity. The frequency of contact should also be appropriate to the length of the OWE Placement.

18.7.3. Commencing the Placement

The Provider must confirm with the Host Organisation that the Participant commenced in the OWE Placement on the start date recorded in the OWE Host Organisation Agreement, and then confirm the Participant's commencement in the Department's IT Systems.



The Provider must confirm the OWE Placement start date in the Department's IT Systems within 5 Business Days following the scheduled start date.

18.7.4. Monitoring the Placement

The Provider is expected to proactively monitor the OWE Placement for its duration. The Provider should remain in contact with the Host Organisation and Participant to:

- identify any changes in circumstances affecting the OWE Placement
- ensure the Host Organisation is operating in accordance with the OWE Host Organisation Agreement
- ensure any issues that may arise are quickly resolved.

18.7.5. Transfer Arrangements

If a Participant is required to be transferred between Providers and the OWE Placement can continue, the transfer should be delayed until the OWE Placement concludes. The relinquishing and gaining Providers should work together to ensure the completion of the OWE Placement.

Refer to the [Commencements, Transfers, Suspensions and Exits Chapter](#) for more information in relation to transfers.



Where it is agreed an OWE Placement should not continue to completion, the relinquishing Provider must end the OWE Placement in the Department's IT Systems using the appropriate end reason.

(Deed Reference(s): Clause 103)

18.7.6. Participant Completion of Placement

In addition to the requirements outlined in [Completion of Activities](#), Providers must exit the Participant from the OWE Placement and provide an exit reason. The Provider must also close the activity in the Department's IT Systems.

18.8. Progress Payments

Progress Payments are available to claim when the Participant's circumstances have been changed during participation in Workforce Australia Services such that they are more prepared to gain and maintain Employment. Completion of an OWE Placement may contribute towards a Progress Payment. For Progress Payments, the Provider must refer to and comply with the requirements specified in the [Provider Payments and Vacancies Chapter](#).

Chapter 19. Self-Employment Assistance

Supporting Documents for this Chapter:

- [Self-Employment Assistance program factsheet](#)

19.1. Chapter Overview

Description: Self-Employment Assistance that encourages people to consider self-employment and helps people to start and run viable small businesses.		Activity Code: TBD Job Plan Code: N/A
Eligibility: Aged 15+ (18+ for Small Business Coaching) and as determined by Self-Employment Assistance Providers	Duration: Variable	Specified Activity: No
PBAS: Yes – Please refer to the PBAS points values for tasks and activities in the Points Based Activation System factsheet		Progress Payment: Yes – education or vocational intervention

This Chapter outlines the requirements for Providers about the Self-Employment Assistance program.

Participants can be referred to Self-Employment Assistance with all payments for the delivery of services made by the Department to the Self-Employment Assistance Provider upon delivery of the relevant element.

19.2. Background

Self-Employment Assistance is a Complementary Program, administered by the Department, which provides eligible Participants with a broad range of services that help them to start and run a small business.

There are 6 core Self-Employment Assistance Services delivered by Self-Employment Assistance Providers.

- **Exploring Self-Employment Workshops** that help Participants learn about small business, help them generate and validate a business idea, and decide whether self-employment is a good fit for them. These workshops are delivered over 25 hours and are generally conducted over the course of 1 to 2 weeks.
- **Small Business Training** that provides Participants with access to free accredited small business training. This training may range from accessing a skillset through to a full Certificate IV qualification.
- **Business Plan Development** offers advice and assessment that helps Participants to develop a viable business plan and gauge the viability of their business idea.

- **Small Business Coaching** provides Participants with up to 12 months of business mentoring and support. Additionally, for those who are eligible, they can receive Self-Employment Allowance for up to 39 weeks and Self-Employment Rental Assistance for up to 26 weeks.
- **Business Health Checks** help existing business owners to identify opportunities to further develop their business to ensure they remain successful.
- **Business Advice Sessions** provide eligible Participants with flexible advice and support on a range of small business-related issues.

Participants are given the flexibility to access the elements of the program most relevant to their needs and, subject to eligibility requirements, may access any of the above services in any order.

For more information about Self-Employment Assistance, refer to the [Self-Employment Assistance program factsheet](#).

19.3. Role of Providers

Provider responsibilities in relation to Self-Employment Assistance, which must be in accordance with the Deed and these Guidelines, include:

- ensuring that any Participant who expresses an interest in self-employment is made aware of Self-Employment Assistance
- providing interested Participants with the contact details of relevant Self-Employment Assistance Providers and either:
 - referring the Participant to the Self-Employment Assistance Provider in the Department's IT Systems, or
 - suggesting the Participant contact the Self-Employment Assistance Provider directly, to allow the Self-Employment Assistance Provider to self-refer the Participant to their program
- ensuring that Participants accessing Self-Employment Assistance are supported to do so, including through the setting of appropriate Mutual Obligation Requirements
- working collaboratively with all local Self-Employment Assistance Providers to ensure Participants are given relevant and accurate information about the program.

(Deed Reference(s): Clause 135)

19.4. Eligibility

Participants may be eligible to access Self-Employment Assistance regardless of whether they:

- already have a business idea or existing business
- receive Income Support Payments
- have Mutual Obligation Requirements
- are available full-time or part-time.

Participants that intend to access Self-Employment Assistance Small Business Coaching should be advised that to do so they must:

- be 18 years of age or old, and
- not have accessed Self-Employment Assistance Small Business Coaching in the previous 12 months.

Participants must meet a range of eligibility criteria that relate to both the status of the Participant, and the nature of their business or business idea (if applicable).

Self-Employment Assistance Providers are responsible for determining Participant eligibility for Self-Employment Assistance, so the Provider must refer questions about eligibility for Self-Employment Assistance to the relevant Self-Employment Assistance Provider.

19.5. Referrals to Self-Employment Assistance

There are 2 ways for a Participant to be referred to Self-Employment Assistance Services on the Department's IT Systems.

19.5.1. Provider referrals

Participants can be referred by their Provider to Self-Employment Assistance through the Department's IT Systems.

Following the Provider's referral, the Self-Employment Assistance Provider will contact the Participant to confirm their eligibility and discuss which elements of Self-Employment Assistance Services the Participants wishes to access.



Providers can issue a referral to Self-Employment Assistance through the Referrals screen in the Department's IT Systems by selecting the relevant Self-Employment Assistance Provider.

19.5.2. Self-Employment Assistance Provider self-referrals

Participants may also directly approach a Self-Employment Assistance Provider to discuss Self-Employment Assistance prior to being referred to the program through the Department's IT Systems. If the Self-Employment Assistance Provider assesses the Participant to be eligible and suitable, the Self-Employment Assistance Provider will complete a self-referral in the Department's IT Systems and refer the Participant to their own services.



Providers can confirm that the Participant has been referred to Self-Employment Assistance Services by viewing the contract referral in the Referral History screen in the Department's IT Systems.

19.6. Mutual Obligation Requirements for Participants accessing Self-Employment Assistance

All of the Self-Employment Assistance Services will contribute to a Participant's Mutual Obligation Requirements.



Providers may confirm that a Participant has been placed in an activity by a Self-Employment Assistance Provider by viewing the Activity Placement screen in the Department's IT Systems.

The Self-Employment Assistance Provider is responsible for ensuring that a Participant accessing Self-Employment Assistance services is participating appropriately. Where a Self-Employment Assistance Provider determines that a Participant in one of those activities is not participating appropriately, they will exit the Participant from relevant Activity, advise the Provider of their

decision and refer the Participant back to the Provider for continued access to Workforce Australia Services.

19.6.1. Exploring Self-Employment Workshops

Participants accessing Exploring Self-Employment Workshops can gain points under PBAS when they participate in the Activity. The TCF will not apply for non-attendance at the Workshops, however, it will apply if Participants fail to meet their Points Requirement.

19.6.2. Business Plan Development

Participants accessing a Business Plan Development session can gain points under PBAS per approved Business Plan.

19.6.3. Small Business Training

Participation in Small Business Training meets the Points Requirements and Mutual Obligation Requirements of Participants for up to 8 weeks and they will not have a Job Search Requirement at the same time. Participants will be required to record their attendance at training to meet their requirements. For this 8-week period, Participants who continue to satisfactorily participate in Small Business Training cannot have their Income Support Payment suspended due to a Mutual Obligation Failure.

Small Business Training can also be undertaken where the Participant would otherwise have Work for the Dole as the Mandatory Activity Requirement.

More details on PBAS and activation are in the [Job Plan and Mutual Obligation Requirements Chapter](#).

19.6.4. Business Health Check

Participants who access a Business Health Check can gain points under PBAS for each session they participate in, which they can access twice in a 12 month period.

19.6.5. Business Advice Session

Participants who access a Business Advice Session can gain points under PBAS for each session they participate in, which they can access once in a 12 month period.

19.7. Payments

19.7.1. Progress Payments

Progress Payments are available to claim when the Participant's circumstances have been changed during participation in Workforce Australia Services such that they are more prepared to gain and maintain Employment or self-employment.

For example, completion of an Exploring Self-Employment Workshop may contribute towards a Progress Payment as a vocational intervention.

Small Business Training may contribute towards a Progress Payment as a vocational intervention, or result in a Progress Payment for undertaking Education, depending on the outcome of the Participant's participation.

For Progress Payments, Providers must refer to and comply with the requirements specified in the [Provider Payments and Vacancies Chapter](#).

19.7.2. Outcome Payments

Providers may be eligible to claim 4, 12 and 26 Week Partial Outcomes, and any associated Very Long Term Unemployment Bonus if applicable, for Participants who Exit the Provider's Caseload upon the Participant's Self-Employment Assistance Commencement.

For more information, please refer to the [Provider Payments and Vacancies Chapter](#).

Chapter 20. Work for the Dole

Supporting Documents for this Chapter:

- [Work for Dole Activity Risk Assessment Template](#)
- [Work for the Dole Activity Risk Assessment Checklist](#)
- [Work for the Dole Activity Host Agreement Template – Projects](#)
- [Work for the Dole Activity Host Agreement Template – Work for Dole Placements](#)
- [Work for the Dole Host Organisation Handbook](#)
- [Work for the Dole Community Support Project – Proposal Form](#)
- [Managing the Work for the Dole Projects Fund Guide](#)
- [Request for Additional Work for the Dole Projects Funding Form](#)

20.1. Chapter Overview

Description: Work for the Dole is designed to help Participants gain the skills, experience and confidence needed to move to secure and sustainable employment.		Activity Code: WFD Job Plan Code: PA15 (only if Mandatory Activity)
Eligibility: Aged 18 years and over, registered in Workforce Australia Services and in receipt of income support	Duration: Minimum of 8 weeks, depending on needs of the Participant	Specified Activity: Yes
PBAS: Yes – Please refer to the PBAS points values for tasks and activities in the Points Based Activation System factsheet	Activation eligible: Yes - approved activation activity or Provider-assessed except where it is done as a Mandatory Activity	Progress Payment: Yes - work placement
Participant Payment: Yes – \$20.80 per fortnight Approved Program of Work Supplement	Host Payment: Yes – to be passed on by the Arranging Provider from the Work for the Dole Placement Fee (at least 50 per cent of the Work for the Dole Placement Fee) or the Work for the Dole Projects Fund (as per agreed Budget)	Provider Payment: Yes – Work for the Dole Placement Fee – \$534 per Participant commencement to be shared with the Host Organisation Work for the Dole Projects Fund Allocation – Providers will be given a notional allocation within the Department's IT Systems to be drawn down on each financial year.

This Chapter outlines the requirements for Providers for setting up and managing Work for the Dole activities. It includes specific requirements for ensuring that there is always a safe system of work in place during the conduct of a Work for the Dole activity.

20.2. Background

Work for the Dole is designed to improve Participants' skills, experience and confidence to help them towards secure and sustainable employment. It provides a valuable opportunity for Participants to develop skills through training and demonstrate their capabilities and positive work behaviours. This will stand Participants in good stead with potential employers while at the same time making a positive contribution to the local community.

Work for the Dole may be undertaken by eligible Participants as a voluntary activity at any time. It is also the Mandatory Activity where an eligible Participant with Mutual Obligation Requirements has not satisfied their activation requirement and does not undertake another Activity when they reach their activation point. Participants may have their first Mandatory Activity Requirement at 3 months Period of Service following at least 12 months in Workforce Australia Online (Online Full Services), or at 6 months Period of Service for any other Participants, with future requirements every 6 months. Refer to the [Activation and Mandatory Activity Requirement](#) section for further information.

20.3. Role of Providers

The role of Providers is to arrange sufficient, suitable Work for the Dole activities to meet their caseload needs by engaging with existing and potential Host Organisations. The range of Work for the Dole activities available must suit the different characteristics, needs and limitations of a wide variety of Participants.

Providers should plan and collaborate to meet the needs of Participants and make a positive contribution to the local community through the delivery of Work for the Dole activities. Providers are encouraged to collaborate with other Providers by sharing Work for the Dole activities in the Employment Region.

For the purpose of managing Work for the Dole, a Provider will be either an Arranging Provider or a Non-arranging Provider.

An Arranging Provider is the Provider that has the Host Organisation Agreement with the Host Organisation. An Arranging Provider must be identified for each activity.

A Non-arranging Provider is a Provider that has a Participant in a Work for the Dole activity for which they are not the Arranging Provider.

(Deed Reference(s): Clauses 120 and 125.1)

20.3.1. Responsibilities of Providers

Providers, whether they are the Arranging Provider or Non-arranging Provider must:

- comply with all relevant Commonwealth, state and territory and local authority legislation and regulations, including work health and safety
- work proactively and collaborate with other Providers, Host Organisations and other stakeholders to deliver the Work for the Dole Program
- ensure that the integrity of the Work for the Dole Program is maintained
- ensure that all work health and safety requirements are adhered to.
- ensure that all requirements relating to Participant Risk Assessments are met

- comply with processes outlined in the [WHS Incidents and Insurance Readers Guides](#)
 - monitor and enter participation results into the Participant's Electronic Calendar in the Department's IT Systems for Participants not required to report their own attendance, or where they are unable to do so on an individual day and request assistance by close of business on the day
 - follow up on non-attendance
 - continue to service Participants while they are undertaking Work for the Dole activities.
-  ensure a Competent Person conducts a Participant Risk Assessment taking into account the Activity Risk Assessment and the Participant's personal circumstances and work restrictions to ensure the Activity is suitable and safe.
 -  ensure that any required actions identified in the Participant Risk Assessment have been actioned prior to the Participant commencing in the activity.
 -  ensure a Competent Person reviews and revises the Participant Risk Assessment as appropriate and when advised by the Arranging Provider that there have been significant changes to the activity.

(Deed Reference(s): Clauses 120, 122 and 125.1)

20.3.2. Responsibilities of the Arranging Provider

In addition to the above responsibilities for all Providers, as part of securing Work for the Dole activities, Arranging Providers are required to:

- Source Work for the Dole activities
- plan activities in consultation with Host Organisations and identify the requirements of each Work for the Dole activity
- ensure Host Organisations are eligible and perform due diligence on their bona fides and ensure they have a good reputation and that the proposed activity will not result in displacement of paid workers
- negotiate and execute the Host Organisation Agreement in accordance with the Deed and Guidelines, and update as necessary during the activity
- ensure Host Organisations understand program requirements, including acquittal requirements and the types of Documentary Evidence that may be required to support any funding received for Work for the Dole activities
- satisfy itself that the Host Organisation is aware of its work health and safety obligations and ensure Host Organisations meet all work health and safety requirements
- ensure that all requirements relating to Activity Risk Assessments and the Activity Risk Assessment Checklist are met
- ensure that the Host Organisation implements all actions agreed in the Host Organisation Agreement and those identified through risk assessments
- monitor the Work for the Dole activity to ensure it continues to be suitable and safe for Participants
- ensure that Supervisors are aware of their role in managing individual daily QR and Passcodes to ensure Participants attending activities can locate and scan the daily code to self-report their attendance

- maintain contact with the Host Organisation. Unless the Host Organisation agrees otherwise and to ensure clear communication, they should only deal with the Arranging Provider of an activity.
 - appropriately manage the overall activity including liaising with the Host Organisation and other Providers (as necessary) to ensure the activity is delivered as agreed in the Host Organisation Agreement
 - reserve Places for Non-arranging Providers. Arranging Providers are able to reserve places in the Department's IT Systems for Non-arranging Providers for a maximum period of 2 full Business Days. If the Places are not claimed within that timeframe, they will be automatically returned to the advertising pool
 - report significant issues to relevant Non-arranging Providers and, if appropriate, the Department
 - suspend or terminate the activity where required
 - make payments to Host Organisations from the Work for the Dole Placement Fees, including the amounts received on behalf of other Providers for their Participants in the Arranging Provider's Work for the Dole activity
 - pay the relevant amounts for approved Projects to Host Organisations.
-  immediately advise other Non-arranging Providers of any relevant or significant issues, including work health and safety matters, such as changes in circumstances/activity tasks.
 -  monitor, review and amend the Activity Risk Assessment and immediately advise Non-arranging Providers so that they can review the Participant Risk Assessment for their Participant where necessary. Upload the amended Activity Risk Assessment to the Department's IT Systems.

(Deed Reference(s): Clause 122, 125)

20.3.3. Responsibilities of the Non-arranging Providers

When Non-arranging Providers commence a Participant into an activity, in addition to Provider responsibilities outlined above they must:

- pass on and maintain the Participant's details (including any relevant personal circumstances/work restrictions) to the Arranging Provider
- work proactively and collaboratively with the Arranging Provider and the Host Organisation for the activity.

20.4. Eligibility

20.4.1. Eligible Participants

Participants can choose to engage early in a Work for the Dole activity to assist them to meet their activation requirement or they may be referred to Work for the Dole as the Mandatory Activity at the activation point. Participation in Work for the Dole early will be considered as voluntary and Work for the Dole Participants can gain points under the PBAS for both voluntary and mandatory participation.

Only Participants aged 18 years and over, in receipt of income support and referred to Workforce Australia Services are eligible to participate in Work for the Dole. Participants under 18 years of age cannot participate in Work for the Dole activities. Participants who are in receipt of Disability

Support Pension (Compulsory Participation Requirements) and referred to Workforce Australia Services may be placed into a Work for the Dole activity. For further information on Disability Support Pension, see the [Disability Support Pension \(Compulsory Participation Requirements\) Chapter](#).

Participants receive an Approved Program of Work Supplement of \$20.80 per fortnight while they are undertaking Work for the Dole activities to assist with the cost of participating in the activity, such as travel.

For the purposes of the Mandatory Activity Requirement and Services that Providers must deliver to Participants, Providers must refer to, and comply with the requirements specified in the [Job Plan and Mutual Obligation Requirements Chapter](#).

(Deed Reference(s): Clause 125.7, 138, 141 and 142)

20.4.2. Eligible Host Organisations

In addition to the requirements outlined in the [Activity Management Chapter](#), Work for the Dole activities must only be hosted by:

- not-for-profit organisations/charities
- local, state, territory or Australian Government organisations or agencies, or
- a not-for-profit arm of for-profit organisations

except in specific circumstances, including Community Support Projects (CSPs) (see the [Community Support Projects](#) section for more information).

Providers need to satisfy themselves that the potential Host Organisation is:

- eligible to host a Work for the Dole activity
- of good reputation, can demonstrate they are who they claim to be and have the capacity to undertake a Work for the Dole activity satisfactorily
- able to meet all program requirements
- able to deliver the proposed activity as agreed.

Third Party Intermediaries

Host Organisations may appoint third party intermediaries to undertake Work for the Dole activity functions on their behalf. However, third party intermediaries cannot take on the obligations of Host Organisations. A third party intermediary cannot sign the Host Organisation Agreement on behalf of the Host Organisation.

Providers are required to take reasonable steps when sourcing places with Host Organisations that engage third party intermediaries to ensure compliance with the Deed and these Guidelines. Third party intermediaries must also meet guideline requirements for a suitable Host Organisation.

20.5. Arranging activities

20.5.1. Participating in Work for the Dole

Participants can choose to undertake Work for the Dole activities at any time while they are in Workforce Australia Services. However, if an eligible Participant has not met their activation

requirement and has not chosen to undertake another Activity, they are required to undertake a Mandatory Activity. Work for the Dole is the only Mandatory Activity that can be undertaken to meet the Mandatory Activity Requirement (where the Participant is 18 or over and can be compelled to participate in Work for the Dole). For more information on the Mandatory Activity Requirement, see the [Activation and Mandatory Activity Requirement](#) section in the [Job Plan and Mutual Obligation Requirements Chapter](#).

When commencing Participants in Work for the Dole activities, Providers must prioritise Participants with a Mandatory Activity Requirement.

A Participant's commitment to participate in a Work for the Dole activity must only be entered into the Participant's Job Plan and linked to the Work for the Dole activity if it is for a Mandatory Activity Requirement and the Participant is aged 59 or under and not on a part rate of payment. This is a compulsory activity, and any non-compliance is subject to the TCF. For further information, see the [Targeted Compliance Framework and Mutual Obligation Failures Chapter](#). The Work for the Dole Mandatory Activity Code (PA15) must be removed from the Participant's Job Plan once they have completed the activity.



All Participants undertaking Work for the Dole must have the days and times they are required to participate in the activity scheduled in their Electronic Calendar.

There are 2 participation requirement categories for Work for the Dole. The table below outlines the minimum and maximum fortnightly requirement for each of these categories.

Table 20-A: Work for the Dole Participation Requirements

Participant Category	Fortnightly Requirement
Category 1 - Participants who are: aged 18-59 with full-time requirements	Minimum – 30 hours Maximum – 50 hours
Category 2 - Participants who are: - aged 18-59 who have a Partial Capacity to Work (15 – 29 hours) - aged 18-59 who are Principal Carers - aged 60 – up to Age Pension (irrespective of whether they have full-time or part-time requirements)* - Disability Support Pension (DSP) recipients have Compulsory Participation Requirements	Minimum – 15 hours Maximum – 30 hours

***Note:** While Participants aged 60 and over, and those on part rate of income support can participate in Work for the Dole, they cannot have this activity added as a compulsory activity to their Job Plan. Their participation in Work for the Dole can only be voluntary.

Factors that Providers might consider when determining a Participant's specific Fortnightly Requirement in a Work for the Dole activity include (but are not limited to):

- the individual circumstances and any non-vocational barriers of the Participant
- the method and availability of transport for a participant to travel to and from the activity

- other activities a Participant may be involved with (i.e., Education and training, casual employment)
- the availability of the Host Organisation (i.e., how many hours per week a Host Organisation may be able to accommodate for Participants).

Work for the Dole participation undertaken as the Mandatory Activity will not count towards future Mandatory Activity/activation requirements. To meet Mandatory Activity Requirements, Participants are required to undertake Work for the Dole for a minimum of 8 weeks. Providers should only place a Participant with a Mandatory Activity Requirement in Work for the Dole for longer than 8 weeks where the Participant agrees to do so. In this circumstance the Provider must ensure the Participant is advised that the requirement will be compellable, even after the minimum of 8 weeks and that any non-compliance is subject to the TCF.

Factors that Providers may consider when determining whether a Mandatory Requirement of longer than 8 weeks is suitable include:

- whether the activity includes a training component that requires a commitment of more than 8 weeks
- the Participant would benefit from a longer duration in Work for the Dole to improve their chances of obtaining secure and sustainable employment
- a longer placement is suitable for the Participant's individual circumstances.

Participants may participate in Work for the Dole activities outside of core business hours, including on a public holiday, if the Participant chooses to do so. However, the Participant needs to agree to this before being referred and inform the Provider of any barriers to their participation, such as transport or caring responsibilities.

If the Participant does not agree to the participation outside normal business hours, the Provider needs to Source a different activity so that the Participant can meet their Mutual Obligation Requirement.

(Deed Reference(s): Clause 120.1)

20.5.2. Activity types

Placements

Placements are to be undertaken by individual Participants and must involve the Participant being provided with a work-like experience with a Host Organisation that require the Participant to join the everyday functions of the Host Organisation. Where possible, a sequence of Participants should undertake the Place when the original Participant leaves.

A Host Organisation may choose to take on a single Participant or multiple Participants at any one time in a Placement. Generally, a Placement activity sits within the existing structure of the Host Organisation. A Placement activity can initially run for up to 12 months and may be extended up to a maximum of 24 months. If a Placement activity is extended beyond 12 months, the Activity Risk Assessment and Host Organisation Agreement must be reviewed and updated in the Department's IT Systems prior to the commencement of the extension period.

A Placement activity with multiple Places is different from a Project.

(Deed Reference(s): Clause 125.1(d))

Projects

Work for the Dole Projects are specific community projects developed for the purpose of providing a work-like experience for groups of Participants, including the engagement of a supervisor for Participants and delivery of a benefit to the community.

A Project must:

- have a specific goal and / or deliverable of a benefit to the community with an identified end date, and
- involve a group of Participants working as a team to meet the common goal or deliverable.

The identified goal or deliverable of the Work for the Dole Project must go beyond the everyday functions of the Host Organisation and would not otherwise occur if it weren't for the Work for the Dole Project. Participants can be referred to Projects from multiple Providers. Projects often involve the engagement of an external Supervisor for the activity; however, a Host Organisation or Provider may also choose to use their own staff to supervise an activity where agreed. Projects should be created to meet caseload needs of Providers.

 All activities, whether Projects or Placements must have adequate and appropriate Supervision. See the [Activity Management Chapter](#) for details.

 When creating Work for the Dole Projects in the Department's IT Systems, the projects must have start and end dates within the same financial year.

 For further information on entering activity types into the Department's IT Systems, see the [Department's training resources](#).

(Deed Reference(s): Clause 125.1)

20.5.3. Suitable Work for the Dole activities

Work for the Dole activities must focus on providing Participants with work-like experiences that include skills that are in demand within the local labour market and provide training that is relevant to, or a prerequisite for, the activity that is being undertaken. Work-like experiences involve providing Participants with experiences that are similar to those in a workplace. Participation in Work for the Dole activities is intended to assist in preparing Participants to take up employment. Work for the Dole activities must be available to Participants for a minimum of 8 weeks.

Providers should also take into consideration the types of activities undertaken by a Host Organisation to ensure that Work for the Dole activities meet program requirements and do not bring the Commonwealth into disrepute. Refer to the list of Prohibited Work for the Dole activities for more information.

20.5.4. Prohibited Work for the Dole activities

In addition to the activities listed in the [Identifying Suitable Activities for Participants](#) section, an activity must not be a Work for the Dole activity, where it:

- requires the Participant to undertake activities in a non-face-to-face environment (i.e. all aspects of activities must be undertaken in-person at the activity location)
- is in Early Childhood Education settings such as childcare and early learning or preschools

- involves personal care of people, of an intimate nature, including dressing, showering, feeding or toileting, or professional services
- results in a benefit or gain to the Provider, or would fund any operations, activities, or infrastructure of the Provider
- involves work which would have been undertaken by a paid worker if the Work for the Dole activity had not taken place
- involves tasks that primarily promote a particular religious or political view
- might bring, the Work for the Dole Program, the Provider or the Department into disrepute.
- is otherwise prohibited under any Guidelines or by any advice provided by the Department

An activity must not be a Work for the Dole activity, unless it is a Community Support Project or otherwise specified in any Guidelines, where it:

- involves working exclusively on private property
- requires Participants to enter private homes or grounds, unless prior approval is obtained from the Department
- competes with established businesses
- fulfils a function that is part of a commercial contract or enterprise
- is undertaken for a for-profit organisation or on a for-profit basis

An activity must not be a Work for the Dole activity, unless it is an Indigenous specific activity and the Department's prior written approval has been obtained, where it:

- involves undertaking tasks for a Family Member

An activity must not be a Work for the Dole activity, unless the Department's prior written approval has been obtained, where it:

- involves a residential or an overnight accommodation component

(Deed Reference(s): Clause 120.7)

20.5.5. Displacement

Work for the Dole activities, whether they are Placements or Projects, must not displace paid workers. Work for the Dole Places must not:

- involve the same tasks that would normally be done by a paid worker, including a worker in casual or part-time work, and/or
- reduce the hours usually worked by a paid worker or reduce the customary overtime of an existing employee.

In addition, a Work for the Dole Place must not proceed if:

- an organisation has downsized its workforce in the previous 12 months—for example, through redundancies or termination—and the tasks that are being proposed are doing the same tasks as those roles made redundant, and/or
- it is being used as a stop-gap measure while an organisation is undertaking recruitment exercises or as a way of meeting ad-hoc needs in lieu of creating paid employment opportunities.

If a Provider becomes aware of displacement, the Provider is required to advise the Department through its Provider Lead and act in accordance with the Deed.

If the Work for the Dole activity has been created but Places have not been filled, the activity must be closed immediately.

(Deed Reference(s): Clause 120.9)

20.5.6. Indigenous specific activities

Providers should look for opportunities to establish Indigenous specific, community-based Work for the Dole activities.

Indigenous specific activities are activities which:

- have an Indigenous Host Organisation and/or are for the benefit of an Indigenous community
- are linked to community goals
- help support achievable and meaningful career pathways for Indigenous Participants
- can be Placements or Projects

Non-Indigenous Participants can also undertake an Indigenous specific activity.

Providers can access the Employment Fund to provide non-accredited pre-placement training to Indigenous Participants and Host Organisations with Indigenous Participants undertaking a Work for the Dole activity.

More information on access to the Employment Fund can be obtained through the Employment Fund Chapter.



Indigenous specific flag must be selected when creating an Indigenous specific activity.

20.5.7. Community Support Projects

CSPs are Work for the Dole activities that will contribute to recovery efforts following a disaster event or assist with nationally significant projects at a local level that have been identified as providing a social, economic, environmental, cultural and/or heritage benefit to the Australian community.

Where a CSP is assisting because of a natural disaster, the project should not compete with the work of, or replace the roles of, specialised emergency services (such as the State Emergency Service).

CSPs require the prior written approval of the Department to proceed. CSPs may:

- respond to, and assist with, the recovery from declared national, state, territory and local community natural disasters
- assist not-for-profit and volunteer organisations that are supporting affected communities
- support local residents and assist rebuilding of the local economy
- provide logistical support to emergency services personnel in areas such as food preparation, delivery of clothing and maintenance of emergency services accommodation and infrastructure
- respond to other events and/or identified tasks that positively impact on local communities or at a national level
- assist the community where there is an identified need for a coordinated national activity and human resources and finances are limited.

Flexibilities available in Natural Disaster Zones/Areas for CSPs

The Department will ease some restrictions on Work for the Dole activities when CSPs are established following a natural disaster in areas where the Australian or state/territory governments have declared a State of Emergency or a Natural Disaster Zone/Area or as determined by the Department.

This means that Providers can develop activities that:

- operate on private residential properties, in private commercial businesses and with farming enterprises. This could include primary producers, a group of local small businesses or disadvantaged community members such as the elderly or people with a disability
- carry out tasks that are normally prohibited—for example, activities that may compete with or support an established business or a commercial contract or enterprise, and/or
- would normally be prohibited because the activity or Host Organisation has received government funding

Providers must continue to meet all other Deed and Guideline requirements.

Who can be the Host Organisation for CSPs?

CSPs must only be hosted by:

- Providers
- not-for-profit organisations/charities
- local, state, territory or Australian Government organisations or agencies, or
- a not-for-profit arm of a for-profit organisation.

Implementation

CSPs can be initiated by one or more Providers (as a joint activity), however an Arranging Provider must be identified. Providers should consult with authorities and community organisations in the local area to offer assistance with the recovery and/or restoration activities. In this way, Providers can target activities most appropriately. There is no limit on the number of CSPs that a Provider can create.

The Provider/s must complete a Work for the Dole Community Support Project Proposal Form and submit to the Department for approval. Providers must demonstrate the following in their proposal:

- broad benefit to the wider community from working on private residential property, with private commercial businesses and with farming enterprises (that is, the economic benefit of having families, communities and local businesses return to normal life as soon as possible)
- that they are not working with just one person or entity, except in the case of farmers, where large infrastructure restoration is required to protect the community (for example, repairing common boundary fences along public roads and highways). Activities can assist homeowners or business operators, provided they offer support to multiple establishments in the surrounding area
- a focus on repair and restoration work (activities should not be seen to add value over and above what was previously in place)
- that Participants will not be undertaking tasks that could be perceived as 'business as normal' tasks

- that Participants will not be kept working on the CSP for indefinite periods of time and are provided with appropriate skills and work-like experiences.

Provider Leads will assess proposals for CSPs as quickly as possible. It may be useful for Providers to include their Provider Lead in early conversations about the proposed activity to assist this process.

Use of Work for the Dole Payments in CSPs

Work for the Dole Payments cannot be used to purchase materials that may be funded through other sources, such as insurance or flood recovery funding, grants or payments that improve the capital value of a property to the sole benefit of a property owner or entity.

In addition, Providers cannot purchase or reimburse the following items using Work for the Dole Payments for CSPs:

- additional Supervision costs where the Supervisor is the farmer on the site where CSPs are taking place
- material costs such as water, fuel, stock feed and fencing materials
- upgrades to equipment owned by a landowner, or
- costs involved in the transport of such things as fencing material or stock feed.
- Providers should adhere to all other standard Deed and Guideline requirements when determining the types of purchases for which Work for the Dole Payments can be used.

Entering CSPs into the Department's IT Systems



When creating a CSP activity, Providers must select the CSP Activity sub-type from the drop-down list in the Department's IT Systems.



Providers should make Work for the Dole Places in CSPs viewable in the Department's IT Systems to other Workforce Australia Services Providers and consider requests to collaborate.

20.5.8. Private Property

Where a proposed Work for the Dole activity involves entering private homes or grounds or working exclusively on private property, the Provider is required to seek the Department's agreement to undertaking the activity by sending a written request to the Provider Lead.

A request to the Department for activities requiring entry to, or work on, Private Property must include:

- a clear description of the Work for the Dole activity, including:
- the reason for Participants needing to enter private homes or grounds
- the part(s) of the activity that will involve entering private homes or grounds, or working on private property
- the approximate amount of time that Participants will spend on the property
- where known, the location of the property (note that this can be at a regional level)
- whether the activity is for private benefit
- details of the Supervision provided to Participants, including details of how the Host Organisation manages its employees and who will supervise Participants

- a copy of the Activity Risk Assessment that addresses specific risks regarding private property, including mitigation strategies and work health and safety procedures
- confirmation whether, for the duration of the activities, there is public liability insurance, written on an occurrence basis, with a limit of indemnity of at least \$20 million in respect of any one occurrence, which covers the liability of the lessor or owner of the land on which the activities take place, including to the Participant.

When seeking permission, the Provider is required to ensure there is sufficient and detailed information to inform the Department's decision. The Department may ask for additional documentation or information to support the request at any time.

The Department will acknowledge receipt of the request within 2 Business Days and endeavour to respond within 5 Business Days. It will provide its agreement or refusal in writing.

In addition to any other relevant conditions imposed, Providers must:

- undertake regular reviews of the Work for the Dole activity (the frequency of these reviews will be at the discretion of the Provider and should take into account the nature of the activity and the requirements of the Participant)
- advise the Department of any changes to the nature or circumstances of the activity. In these circumstances, the Department may review its permission for the activity, including possible cessation.

(Deed Reference(s): Clauses 122, 124, 125.11)

20.5.9. Supervision

For the purposes of Supervision at Work for the Dole activities, Providers must refer to and comply with the requirements specified in the [Activity Management Chapter](#).

Providers must ensure that Participants will be adequately and appropriately supervised at all times. In addition, for activities involving identified vulnerable people, there must be Continuous Supervision.

Supervisors need to be aware of non-Work for the Dole Participants (e.g. members of the public) on site at activities and their level of interaction with and proximity to Work for the Dole Participants while undertaking the activity.

- ✚ Providers should also carefully consider the appropriate ratio of Supervisor(s) to Participants, depending on how many Participants there are and the nature of the activities taking place at the site, to ensure the health, welfare and safety of Participants and members of the public. Where a Host Organisation has multiple activities, the Provider must take this into account.

Example: If the nominated Supervisor is also Supervising other Work for the Dole activities, this could significantly affect the Supervision ratio for the activities involved. The Arranging Provider should also liaise with other Arranging Providers with activities at the site to ensure a consistent approach is undertaken to risk assessments, acquittal/reimbursements and other program requirements.

Arranging Providers must ensure that the Host Organisation has Supervisors on all Work for the Dole activities for the duration of each activity who meet these requirements as well as those outlined in the [Activity Management Chapter](#).

If there are to be changes in the Supervisor arrangements (for example, a new Supervisor is introduced or a Supervisor is away) during an activity, the Arranging Provider needs to ensure that the Host Organisation is aware that they need to notify the Arranging Provider of the change in Supervisor arrangements and confirm they meet the above requirements. Providers should also ensure that Host Organisations have a procedure in place for non-attendance by Supervisors, especially at short notice.



Providers must keep records of all Supervision arrangements and the associated Supervision period. This information should also be kept up-to-date in the Department's IT Systems.

If a Participant is not self-reporting, then the Arranging Provider must ensure that the Supervisor notifies the Arranging Provider of any Participant non-attendance or non-compliance as soon as practicable, but by no later than the end of the relevant day. Where the 'Supervisor' mobile device application is being used by a Work for the Dole Supervisor, they will have access (through the application) to details of those Participants who are expected to participate in the activity on any given day. These details are only accessible where the Department's IT Systems is being used by the Provider to record required participation. In addition, the Provider must record the hours spent participating in the Work for the Dole activity for each Fully Eligible Participant undertaking a Mandatory Activity Requirement. Through the application, Supervisors can record attendance and preliminary non-attendance results, which will be automatically sent to the Department's IT Systems.

All reported non-compliance must be followed up by the Provider.

(Deed Reference(s): Clause 80, 124)

20.5.10. Checks

Providers must refer to and comply with the requirements specified in the [Conducting Background Checks](#) section in the [Activity Management Chapter](#).

Providers must, in accordance with the Deed and these Guidelines, establish whether the nature of a Work for the Dole activity requires Participants and/or Supervisors and/or relevant Personnel to have checks, and arrange those checks if required to do so.

Where a Provider creates a Work for the Dole activity, they must identify, in consultation with the Host Organisation, whether any checks will be required and any associated costs.



If a Work for the Dole activity requires the Participant to have identified checks, the Provider must record this in the Department's IT Systems.

Where checks are required, Providers must arrange and pay for the checks to be completed before allowing the Participant to participate in that activity (as per the Deed). The Work for the Dole Payments may be used by the Provider to pay for any appropriate checks required for the activity. Providers may use the Employment Fund to cover the costs of police checks for Participants undertaking Work for the Dole Placements.

Providers should keep in mind the timeframes required for checks to be processed by external parties and how this may impact on the timeliness of placing and commencing a Participant in a Work for the Dole activity, including Participants who are to undertake Work for the Dole as the Mandatory Activity Requirement.

(Deed Reference(s): Clause 80, 124.3, 124.4)

20.5.11. Conducting Risk Assessments

For the purposes of conducting Risk Assessments, Providers must also refer to and comply with the requirements specified in the [Conducting Risk Assessments for Specified Activities](#) section in the [Activity Management Chapter](#).

Work for the Dole Placements and Work for the Dole Projects are Specified Activities. Prior to referring a Participant to a Work for the Dole activity and entering into the Host Organisation Agreement, the Provider must ensure that an Activity Risk Assessment and Participant Risk Assessment have been completed by a Competent Person.

The Provider must also ensure that the [Activity Risk Assessment Checklist](#) is completed.

It is the responsibility of the Arranging Provider to review and update the Activity Risk Assessment for the duration of the activity.



The Work for the Dole activity must have an Activity Risk Assessment and Activity Risk Assessment Checklist completed and uploaded to the Department's IT Systems prior to the approval and commencement of an activity.

Any time an Activity Risk Assessment is updated, the Arranging Provider must immediately notify Non-Arranging Providers with Participants in the Work for the Dole activity of the changes to the Activity Risk Assessment so they can review their Participant Risk Assessment and determine if the activity is still suitable for the Participant. If the Work for the Dole activity is not assessed as suitable, the Participant must be exited from the Place and referred to a more suitable Work for the Dole activity or another Approved Activity.

If the proposed or actual changes to the Work for the Dole activity include risks that cannot be mitigated or adequately managed by the Provider and/or the Host Organisation, the Arranging Provider must cease the activity and notify the Host Organisation, Non-Arranging Providers and their Provider Lead.

(Deed Reference(s): Clause 121.1, 122)

20.5.12. Activity Risk Assessment

The Provider must ensure an on-site Activity Risk Assessment is undertaken by a Competent Person for each potential Work for the Dole activity. Through this Activity Risk Assessment, the Competent Person must be satisfied that there is a safe system of work in place prior to the activity being approved.

The Activity Risk Assessment must include the name and ID of the activity when it is uploaded to the Department's IT System.

An optional template is available for Providers to use, however, all Activity Risk Assessments must identify, assess and record all work health and safety issues and any other concerns at the site or premises where a Participant will undertake the activity (in accordance with the Deed), such as:

- physical (e.g. noise, heat, cold, dust, step/stairs, slippery surfaces, lifting, manual handling)
- chemical (e.g. acids, poisons, asbestos, flammable and hazardous substances)

- biological (e.g. radiation, lead)
- psychological, such as arising from fatigue, shift work (mental tiredness), bullying or harassment
- work that is inherently dangerous (e.g. working with electricity, heavy machinery, at heights or requiring formal competency/operator tickets)
- electrical equipment (e.g. electrical equipment not tested and tagged e.g. machinery, power tools, kitchen appliances)
- warehousing, traffic management and driving (e.g. traffic and pedestrian interactions not marked appropriately with safe clearances and walkways, vehicles and mobile plant registered and well maintained)
- emergency preparedness (e.g. emergency drills/procedures, floor maps, exit signs, fire extinguishers and first aid kits must be in place).

The Activity Risk Assessment must also identify/include:

- that the Host Organisation and Competent Person are satisfied that the Host Organisation has adequate work health and safety processes in place to deliver the activity safely
- that the Host Organisation and Competent Person are satisfied that the Host Organisation is compliant with the relevant legislative and regulatory work health and safety obligations
- all steps and measures that will be put in place to mitigate any identified issues and concerns
- the nature, scope and duration of any training, including work health and safety training, to be undertaken by the Participant at commencement and for the duration of the activity
- any specific personal protection equipment and clothing that is required for the Participant to participate safely in the activity and whether this material will be provided by the Host Organisation or will be arranged by the Arranging Provider or Participant's provider
- if the activity will involve direct or indirect interaction with vulnerable people and whether relevant checks should be undertaken
- the Supervision arrangements, including the level (that is, ratio and frequency) of Supervision that will be provided to the Participant and the experience, skills and knowledge of the Supervisor(s), and the Organisation has undertaken relevant checks on Supervisors and that Supervisors meet any additional statutory requirements, prior to being given responsibility for the Supervision of Participants
- confirmation that where the activity involves vulnerable people, the Host Organisation will provide continuous Supervision for the duration of the activity
- confirmation that the Host Organisation is satisfied it has current and appropriate insurance to cover any risks associated with the Work for the Dole Place
- whether there are other activities (including other Work for the Dole activities) taking place at the site and any associated risks are identified and addressed
- availability and details of appropriate facilities (e.g. access to drinking water, toilets) to the Participant for the duration of the activity.

(Deed Reference(s): Clause 122)

20.5.13. Work for the Dole activities in multiple locations

- ✚ Where any Work for the Dole activity involves Placements undertaking tasks across multiple locations, one comprehensive Activity Risk Assessment may be conducted. However, the Activity Risk Assessment must clearly identify the multiple locations and corresponding hazards and risks at each of the different locations, including travel between these locations.

20.5.14. Activity Risk Assessment Checklist

The Activity Risk Assessment Checklist must be completed by a Competent Person, prior to a Work for the Dole activity commencing.

-  The Arranging Provider must complete the [Activity Risk Assessment Checklist](#). The Activity Risk Assessment Checklist must be completed accurately, in full in the format provided, and the template must not be altered. Should a change to the activity require an update to the Activity Risk Assessment, the Activity Assessment Checklist will also need to be updated to align with the Activity Risk Assessment.

A template for the [Activity Risk Assessment Checklist](#) is available on the Provider Portal.

-  Each Activity Risk Assessment must include the completed Activity Risk Assessment Checklist and be uploaded to the Department's IT Systems. The Activity Risk Assessment Checklist should be used as a cover page to the Activity Risk Assessment.

-  The Arranging Provider must maintain Records of all Activity Risk Assessment they have undertaken and provide these Records to the Department upon request.

(Deed Reference(s): Clause 121.1, 122)

20.5.15. Conducting a Participant Risk Assessment

Providers must, in accordance with the Deed, ensure a Participant Risk Assessment is undertaken by a Competent Person for each individual Participant before the Participant is referred to, or participates in, a Work for the Dole activity. The Participant Risk Assessment must ensure that the Work for the Dole activity is suitable for the Participant, taking into account any relevant circumstances and work restrictions of the Participant.

The format of the Participant Risk Assessment is not prescribed for Work for the Dole activities, however, the Participant Risk Assessment must specify:

- that the Activity Risk Assessment has been reviewed
- the Participant's personal circumstances and work restrictions. This could include, but is not limited to:
 - working capabilities and capacity
 - transport restrictions
 - carer responsibilities
 - specific injuries
 - pregnancy
 - allergies or other health issues (e.g. diabetes)
 - history of aggressive behaviour
- any training, additional to that contained in the Activity Risk Assessment, including work health and safety training, required for the Participant to participate safely, and ensure that training is of sufficient length and quality
- any specific personal protection equipment, clothing or materials, additional to that contained in the Activity Risk Assessment required for the Participant to participate safely, and ensure that such materials will be provided to the Participant
- that the level of Supervision being provided is adequate and appropriate for the Participant

- the Participant has been advised of the work health and safety and incident reporting and escalation processes
- the Participant has been provided with the location or access to [the WHS Incidents and Insurance Reader's Guide – Participants](#), and
- whether any checks (for example, National Criminal Records and/or Working with Vulnerable People/Children Checks) are required and ensure that such checks will be completed prior to the Participant commencing in the activity.

In addition, the Provider must, if applicable and only if the Participant provides consent, discuss the personal circumstances of the Participant with the Arranging Provider/Host Organisation to determine whether they can be accommodated and whether the Work for the Dole activity will be suitable. If any of these elements is not met, the Participant must not be commenced into the activity.

The Participant Risk Assessment must also be signed and dated by the Participant before they commence in the activity.



The Arranging Provider must maintain Records of all Participant Risk Assessments they have undertaken and provide these Records to the Department upon request.

20.5.16. Host Organisation Agreement

For the purposes of completing Host Organisation Agreements, Providers must also refer to and comply with the requirements specified in the Engaging with Host Organisations Section in the [Activity Management Chapter](#).

Providers can provide Work for the Dole activities themselves if they are eligible to be Host Organisations or arrange Work for the Dole activities from a Host Organisation. The Arranging Provider must not arrange a Work for the Dole activity if it results in a benefit or gain to the Provider, or would fund any operations or infrastructure of the Provider.

If a Provider provides a Work for the Dole activity itself (i.e., the Provider and the Host Organisation have the same ABN), the Provider is not required to enter into a Host Organisation Agreement for the Work for the Dole activity. However, the Provider must upload to the Department's IT Systems a document setting out Work for the Dole activity details, corresponding to the information required to be included in [Part 1 of the Host Organisation Agreement Template – Work for the Dole Project](#) or [Host Organisation Agreement Template – Work for the Dole Placement](#) (as relevant), prior to the start date.

For all other Work for the Dole activities, a Host Organisation Agreement must be completed, signed and dated for each Work for the Dole activity by the Arranging Provider and Host Organisation. Template agreements are available for Providers to use.

Where a Provider uses its own agreement format for these purposes, they must ensure that all topics in the Department's template agreement are covered in their agreement and must include, word for word, any clauses specified as mandatory in the Department's template agreement.

The Arranging Provider must negotiate and execute the Host Organisation Agreement before any Participants can be commenced in the activity. The Provider must retain written evidence of any agreed changes to the Host Organisation Agreement.

-  If the Arranging Provider for the activity is different from the Provider who created the activity, the Arranging Provider—as part of negotiating the Host Organisation Agreement—must ensure a Competent Person checks the Activity Risk Assessment, confirm with the Host Organisation that all controls listed in the Activity Risk Assessment have been implemented and if there have been any changes, and update the Activity Risk Assessment as necessary.
-  The completed Activity Risk Assessment, including the Activity Risk Assessment Checklist, must be provided to the Host Organisation with the final Host Organisation Agreement to ensure that all parties are aware of any identified issues so they can be appropriately managed.
-  The final Host Organisation Agreement or, where relevant, the alternative document setting out Work for the Dole activity details, must be uploaded to the Department's IT Systems prior to the approval and commencement of the activity.
-  Host Organisation Agreements must be reviewed and updated or renegotiated every 12 months. As part of this process a new Activity Risk Assessment, including the Activity Risk Assessment Checklist, must be completed.
-  A copy of the revised Host Organisation Agreement and any subsequent versions must be retained.
-  The revised Host Organisation Agreement (including any subsequent versions) must be uploaded to the Department's IT Systems.
-  The Arranging Provider must retain written evidence of any agreed changes to the Host Organisation Agreement.

(Deed Reference(s): Clauses 122.4, 125.4)

20.6. Provision of Skills Development and Training

20.6.1. Providing suitable skills development

To improve the work readiness of Participants, Work for the Dole activities should include some or all of the 10 Core Competencies outlined in the Australian Skills Classification. They are:

- Digital Engagement
- Initiative & Innovation
- Learning
- Numeracy
- Oral Communication
- Planning & Organising
- Problem Solving
- Reading
- Teamwork
- Writing

The relevant Core Competencies should be identified, in consultation with the Host Organisation when establishing the Work for the Dole activity. The Host Organisation Agreement should reflect the Core Competencies being addressed within the activity.



The Core Competencies covered in each Work for the Dole activity should be listed in the Department's IT Systems.

20.6.2. Provision of training

Training should be offered to a Participant if it forms part of, or is relevant to, the Work for the Dole activity. This must include any relevant work health and safety training required.

Wherever possible, Work for the Dole activities should also include the attainment of a licence, qualification, Micro-credential or other recognised skill, to assist in improving the employment opportunities of Participants. Providers should keep in mind the skills in demand in their local area when determining the inclusion of relevant skills development within Work for the Dole activities.

Work for the Dole Fees can be used to support the delivery of this training.

Where the Work for the Dole activity includes the opportunity for the attainment of a licence, qualification, Micro-credential or other recognised skill, Providers should ensure the activity offers Participants the opportunity to develop experience using that licence, qualification, Micro-credential or other recognised skill.



The training intended to be delivered within the Work for the Dole activity, should be outlined in the Training Requirements section of the Department's IT Systems.

(Deed Reference(s): Clauses 125.1, 125.9)

20.6.3. Partnering with Registered Training Organisations

As Work for the Dole activities may include specific training elements, Providers may engage Registered Training Organisations (RTOs) to deliver these training elements.

A Provider, who is also an RTO, or is associated with an RTO, may deliver training for up to 50 per cent of their Work for the Dole activities. However, a Provider may not engage themselves to deliver training on a Work for the Dole activity where they are both the Arranging Provider and the Host Organisation. In some circumstances, for example, if the Provider is the only RTO in the Employment Region or sub-Employment Region, the Provider may seek written approval from the Department to exceed this cap.

20.7. Managing work health and safety and incidents

For the purposes of managing work health and safety and incidents at Work for the Dole activities Providers must refer to and comply with the requirements specified in the [Managing Work Health and Safety for Activities](#) section in the [Activity Management Chapter](#).

(Deed Reference(s): Clauses 121, 125.3)

20.8. Managing/Monitoring activities

20.8.1. Recording the activity on the Department's IT Systems

Where the Provider has determined that the Work for the Dole activity is appropriate, details of the activity must be recorded in the Department's IT Systems.

A Work for the Dole activity must be for a minimum of 8 weeks, however, Work for the Dole activities can be created for up to 12 months. Work for the Dole Places must be a minimum of 15 hours per fortnight for the duration of the activity.

Extending Work for the Dole Placements

If a Host Organisation wishes to establish a Work for the Dole Placement of more than 12 months, the activity will need to be entered into the Department's IT Systems for 12 months and must only be extended for up to another 12 months' duration once the Activity Risk Assessment and Host Organisation Agreement have been reviewed and uploaded into the Department's IT Systems.

Extending Work for the Dole Projects

Work for the Dole Projects cannot be extended into a new financial year. If a Host Organisation wishes to continue a Work for the Dole Project into a new financial year, a new activity must be created, taking into consideration the availability of Work for the Dole Projects Funding.

Activity Schedules

The Provider must enter in the schedule/s that will apply to the activity prior to advertising the activity. The schedule/s relate to the days/hours that Participant/s may participate in the activity. Schedules are set for a period of time – for example, Monday to Thursday from 9 am to 4 pm or Monday, Wednesday, Thursday from 11 am – 5 pm. The schedules will depend on when the activity is being run and how Participants will participate.



All schedule/s are developed during the activity creation to approval stage. For further information on recording activities in the Department's IT Systems, see the [Employment Services Task Cards](#).

Advertising the Activity

Providers may choose to advertise at a national, state/territory, Employment Region, Organisational or Site level.

The advertising level can be changed by the Arranging Provider at any time. For example, if the activity was advertised to an Employment Region, it could later be advertised to the State level.

Once an Arranging Provider decides the advertising level, they can then reserve places for other Providers. Reserved Places will be held for up to 2 Business Days from the date the reservation is made. If a Provider does not claim their Reserved Place within the necessary timeframe, it will be returned to the pool for advertising.

Where a Place is claimed by a Provider, and a Participant is referred, but does not commence within 10 Business Days, the Place will be readvertised to the original pool to which the activity was first advertised.

20.8.2. Claiming a Work for the Dole Place



Providers can claim a Work for the Dole Place up to 5 Business Days before a Participant commences in a Work for the Dole activity. This gives Providers flexibility in managing their Participants.

Where a Provider claims a Work for the Dole Place in an activity that has started, the Provider must:

- identify and assign a Job Seeker ID to the Place
- commence the Participant in that Place within 10 Business Days of claiming the Place. If this does not occur, the Work for the Dole Place will automatically be readvertised to those Providers to which the activity was first advertised

Providers are able to claim a future Work for the Dole Place up to 10 Business Days before the start date of the new Work for the Dole activity. When claiming the Place, Providers must:

- identify and assign a Job Seeker ID to each Work for the Dole Place they require
- commence the Participant in the activity within 10 Business Days of the activity start date. If this does not occur, the Work for the Dole Place will automatically be readvertised to those Providers to which the activity was first advertised.

To ensure the Host Organisation's needs are met, where a Provider claims a Work for the Dole Place they must utilise as much of the Work for the Dole Place as possible. This will be monitored by the Department.

(Deed Reference(s): Clause 125.8)

20.8.3. Commencing a Participant in a Work for the Dole Place

Before commencing a participant in a Work for the Dole activity the Provider must:

- as part of conducting the Participant Risk Assessment, examine the Activity Risk Assessment to ensure that the Work for the Dole activity is appropriate and safe for the Participant
- ensure that relevant checks (for example, criminal records/police checks and Working with Vulnerable People Checks) have been finalised
- consider a Participant's individual circumstances, capabilities, skills and work experience and only commence Participants in Work for the Dole activities that are safe and suitable to the participation requirements and capabilities of the Participant and the activity

Where a Participant commences in and subsequently leaves a Placement or Project activity before its conclusion, their Provider should identify and place another suitable Participant in that Place, where possible, within 5 Business Days. If no Participant is able to be placed in the activity within this timeframe, the activity Place will be made available in the original pool in which it was advertised. This is to ensure Host Organisations have Participants in their activities and minimises the delay in progressing projects.

The Department will monitor timeliness in placing subsequent Participants and utilisation of Places in an activity.

(Deed Reference(s): Clause 125.6, 125.8)



Providers must confirm the Work for the Dole commencement in the Department's IT Systems no later than 5 calendar days after the Participant commences in the Work for the Dole activity.



To ensure PBAS Points are accurately applied, Providers should select the Placement type 'Part Time' where the Participant is scheduled to undertake up to 15 hours (15 points) per week and 'Full Time' where the Participant is scheduled to undertake over 15 hours per week (20 points).

20.8.4. Managing Participants undertaking Work for the Dole activities

The Provider must schedule participation requirements into the Participant's Electronic Calendar. For Participants who are not capable of self-reporting their attendance at activities, the Provider must enter the attendance result on behalf of the Participant by close of business on the day of the requirement.

Arranging Providers must:

- ensure that arrangements are in place for Host Organisations or Supervisors to advise the Provider (through the Arranging Provider as appropriate), as soon as practicable, when a Participant does not attend their activity
- follow up on preliminary non-attendance results from the Supervisor App and follow up on any non-compliant behaviour reported
- where possible, replace any Participant who leaves a Work for the Dole Place early

While Participants are undertaking Work for the Dole activities, Providers must:

- review the Participant Risk Assessment if the Activity Risk Assessment is updated, if there are changes to the activity tasks or circumstances, or if the Participant's circumstances change
- maintain contact with the Participant to ensure that they continue to focus on looking for work as well as participating in Work for the Dole activities
- work with Participants who are not yet capable of self-reporting their own attendance at Work for the Dole activities to develop these skills
- refer to the [Targeted Compliance Framework and Mutual Obligation Failures Chapter](#) when non-compliance is identified, for required action including recording decisions and re-engaging Participants

(Deed Reference(s): Clause 125.6)

For further information on scheduling participation requirements in the Participant's Electronic Calendar in the Department's IT Systems. For further information, see the [Targeted Compliance Framework and Mutual Obligation Failures Chapter](#).



For further information on reporting attendance at activities on behalf of the Participant in the Department's IT Systems, see [Recording and Monitoring Attendance at Activities](#).

20.8.5. Monitoring of Work for the Dole Places

Providers must track Work for the Dole activities and ensure that Places that are time sensitive are filled as a matter of priority. Providers should ensure that Host Organisations are kept informed in a timely manner regarding the availability of suitable Participants so the delivery of Activities can be managed.

(Deed Reference(s): Clause 125.8)

20.9. Participant Completion of Activities

In addition to the requirements outlined in [Completion of Activities](#), where a Participant completes their participation in a Work for the Dole activity, prior to the Expected End Date, the Provider must exit the Participant from the Place in the Department's IT Systems in a timely manner.



Providers must ensure all Participants are exited from their Work for the Dole activity in the Department's IT Systems if they have completed their Placement or Project activity or have transferred to another activity or service and are no longer attending Work for the Dole. Where a Participant has completed a Mandatory Work for the Dole activity, the Mandatory Activity Code (PA15) must be removed from their Job Plan.

20.10. Work for the Dole Payments

Work for the Dole Payments are designed to offset the running costs of a Work for the Dole activity for the Provider and the Host Organisation. Providers must ensure that the Host Organisation is aware that:

- costs must not be inflated and must be representative of actual costs incurred
- Work for the Dole Payments are not grants and there is no guarantee of repeat funding, and, therefore, Host Organisations should not rely on Work for the Dole funding to support their ongoing operations.

A Provider cannot use the Employment Fund for any Work for the Dole expenses with the following exceptions:

- police checks for Participants who will be undertaking Work for the Dole Placements.
- transport costs for Participants undertaking Work for the Dole Placements who are incurring transport costs, over and above the fortnightly Approved Program of Work Supplement.
- for non-accredited pre-placement training to Indigenous Participants and Host Organisations with Indigenous Participants undertaking a Work for the Dole activity.

Expenses for Participants undertaking Work for the Dole Projects must be covered by Work for the Dole Projects Funding.

(Deed Reference(s): Clause 150.7, 160.1)

20.10.1. Work for the Dole Placement Fees

The Work for the Dole Placement Fee is paid per commencement for Placement activities. The Work for the Dole Placement Fee can only be used to help offset costs of the Host Organisation or the costs of Participants undertaking Work for the Dole activities.

Where the Arranging Provider commences a Participant in a Place, they will receive the Work for the Dole Placement Fee. At least 50 per cent of this Fee must be passed on to the Host Organisation.

Where a non-Arranging Provider commences a Participant in an activity, the non-Arranging Provider will receive 50 per cent of the Work for the Dole Placement Fee. The Department's IT Systems will automatically transfer the remaining 50 per cent of the Work for the Dole Placement Fee to the Arranging Provider for them to pass to the Host Organisation. This is not considered a payment to the Arranging Provider. Where the Provider has agreed to pass on more than 50 per cent of the Work for the Dole Placement Fee to the Host Organisation, payment of any additional Work for the

Dole Placement Fees from the non-Arranging Provider must be facilitated between the Arranging and non-Arranging Provider.

A maximum of 3 Work for the Dole Placement Fees will be paid per Participant, per 12 month period, even if the Participant has changed Providers. The Department may allow for the payment of additional Work for the Dole Placement Fees upon approval, under exceptional circumstances. Providers must send a written request to their Provider Lead detailing the reasons for the additional Work for the Dole Placement Fee. Once received, the Provider Lead will process the request through the Department's IT Systems.

Note: Where a Participant is in Yarrabah or Broome Employment Services, Placements with previous Providers within the relevant 12 month period will not count towards the maximum Placement Fee limit. Providers may need to contact their Provider Lead to have additional Placement Fees processed in the Department's IT Systems.

If any amount of the Fee has not been expended, the Provider must use the balance solely for Services undertaken by the Provider that are directly related to Work for the Dole. These funds do not need to be acquitted.

(Deed Reference(s): Clause 160.2, 160.3, 160.4, Annexure B1 - Payments and Employment Fund Credits - Table 8C)

20.10.2. Work for the Dole Projects Funding

Work for the Dole Projects Funding is notionally allocated every financial year, based on a Provider's anticipated caseload, and any previously run Work for the Dole Projects, per Employment Region. Providers may request additional funding where there is a demonstrated need. Requests should be submitted to their Provider Lead before the end of February each year, using the Request for additional Work for the Dole Projects Funding form, available on the Provider Portal.

Work for the Dole Projects Fund Allocation

The Department will inform Arranging Providers of their notional allocation for each Employment Region prior to each financial year.

-  The notional allocation balance will be visible in the Department's IT Systems when creating a Work for the Dole Project. Providers will not be able to approve a Work for the Dole Project if the budget entered in the Department's IT Systems exceeds the Provider's notional allocation for that Employment Region.
-  Once a Work for the Dole Project has been approved in the Department's IT Systems, the funding is considered committed, and it is not possible for it to be returned to the overall allocation if the activity status is changed to 'Closed' or 'Withdrawn'. The Budget for the Project can also not be decreased once the activity has had a status of 'Approved' even if the activity has been closed or withdrawn and does not proceed.

The notional allocation cannot be transferred between Employment Regions.

(Deed Reference(s): Clauses 161.1, 161.2)

Budget

All Work for the Dole Projects require a Budget to ensure that Project expenditure does not exceed the notional allocation for a particular Employment Region.



The total Budget figure must be entered into the Department's IT Systems when creating the Work for the Dole Project.

Providers must not use the Work for the Dole Project Funding to cover:

- management fees
- administration fees
- handling costs (for example, buying items for the Participant and charging them a storage fee).

Further information is available in [Managing the Work for the Dole Projects Fund Guide](#).

Assets

Assets can be purchased for the purpose of Work for the Dole Projects and where possible should be retained for use on other Work for the Dole Projects or Placements. Where a Provider wishes to dispose of an Asset prior to the Deed or Head Licence completion date, they must seek approval in writing from their Provider Lead.

(Deed Reference(s): Clauses 161.1, 161.9-161.13)

Advance payment

Work for the Dole Project Funding can be claimed up to 28 calendar days in advance of an approved Work for the Dole Project start date (and prior to the Project end date) in the Department's IT Systems. Where an activity is approved in the Department's IT Systems less than 28 calendar days prior to the start date, the advance payment will be made once the Provider selects the option to claim the advance payment.

Where Payments are claimed in advance, Arranging Providers may claim up to 80 per cent of the Budget recorded in the Department's IT Systems from their notional allocation.

(Deed Reference(s): Clauses 161.3, 161.4)

Reimbursement

Providers may choose to access the Work for the Dole Projects Fund via a Reimbursement. Providers will be able to claim reimbursement of Work for the Dole Project Funding once the Department has approved the relevant acquittal report at the end of each financial year.

(Deed Reference(s): Clauses 161.3, 161.7)

Project Acquittals

An Arranging Provider is required to submit one acquittal report per Employment Region, per acquittal period. The Arranging Provider must submit this acquittal report within 56 calendar days of the end of an acquittal period. The set acquittal periods are 1 July to 31 December (interim acquittal) and 1 January to 30 June (final acquittal) each financial year. The acquittal report must include all

expenditure incurred during a particular acquittal period for all the Work for the Dole Projects in that Employment Region.

Unavoidable (or 'sunk') costs incurred can be paid where reasonable, for example where a Supervisor is engaged but an insufficient number of Participants are available to complete the Project. The Host Organisation Agreement should include a provision to close the activity early if this will avoid unnecessary ongoing costs.

The Department will monitor the use of unavoidable (or 'sunk') costs.

More details relating to Project acquittal report requirements can be found in the [Managing the Work for the Dole Projects Fund Guide](#) available on the Provider Portal.

(Deed Reference(s): Clauses 161.3, 161.5, 161.6)

Documentary Evidence for Project Funding

-  Receipts and tax invoices or some other acceptable form of evidence of payment must be kept of all expenditure relating to Work for the Dole Projects, and the Provider must be able to explain how the costs relate to the agreed Projects. This includes maintaining an Asset Register and Disposal Plan in accordance with the Deed.
-  In exceptional circumstances where a Host Organisation is not able to provide receipts or invoices to support expenditure a Statutory Declaration may be accepted.
-  The Arranging Provider must retain written evidence of any changes agreed with the Host Organisation to the Work for the Dole Budget.

The Arranging Provider may choose to upload receipts and Budgets for Projects in the Department's IT Systems, to assist with record keeping for acquittals.

(Deed Reference(s): Clauses 28.1-28.3, 161.11)

20.11. Progress Payments

Progress Payments are available to claim when the Participant's circumstances have been changed during participation in Workforce Australia Services such that they are more prepared to gain and maintain Employment. Participation in a Work for the Dole activity may contribute towards a Progress Payment. For Progress Payments, Providers must refer to and comply with the requirements specified the [Provider Payments and Vacancies Chapter](#).

Chapter 21. Voluntary Work

Supporting Documents for this Chapter:

- [Voluntary Work Host Organisation Agreement template](#)

21.1. Chapter Overview

Description: Provider Sourced Voluntary Work placements and Participant Sourced Voluntary Work aim to develop Participants' skills and experience with a not-for-profit community organisation.		Activity Code: VWRK - Voluntary work - Community/non-profit sector Activity N/A - Participant Sourced Job Plan Code: N/A
Eligibility: 15 years old and older, and registered in Workforce Australia Services	Duration: Should not exceed 26 weeks, unless the Provider determines this is the best participation option under the circumstances	Specified Activity: Yes – if Provider Sourced Voluntary Work
PBAS: Yes – Please refer to the PBAS points values for tasks and activities in the Points Based Activation System factsheet	Activation: Yes - Can meet activation requirement as provider-assessed	Progress Payment: Yes – work placement
Participant Payment: No	Host Payment: No	Provider Payment: No

In this Chapter, Voluntary Work refers to both Provider Sourced Voluntary Work (arranged by the Provider) and Participant Sourced Voluntary Work (arranged by the Participant). This Chapter does not cover Voluntary Work managed by Services Australia.

This Chapter outlines the requirements Providers must adhere to when sourcing Voluntary Work, in addition to the requirements in the [Activity Management Chapter](#). It also outlines the Provider's responsibility when supporting Participants who engage in self-sourced Voluntary Work. Provider Sourced Voluntary Work is a Specified Activity arranged by the Provider. Participant Sourced Voluntary Work is self-driven and directly reported by the Participant.

21.2. Benefits of Voluntary Work Placements

The benefits of Voluntary Work placements for eligible Participants include:

- developing practical employability skills such as attendance and communication
- increasing networks, updating referees and building confidence

- demonstrating their skills, knowledge, experience and attitude, and gaining valuable exposure to workplaces to help them understand workplace expectations.
- providing service to a Participant's community, such as State Emergency Service and volunteer firefighting
- counts toward meeting their Points Requirement. More details on these requirements are available in the [Job Plan and Mutual Obligation Requirements Chapter](#).
- can also be undertaken to satisfy their activation requirement. Refer to the [Job Plan and Mutual Obligation Requirements Chapter](#) for more information.

Voluntary Work Participants can gain points under the PBAS. The TCF will not apply for non-attendance in Voluntary Work, however, it will apply if Participants fail to meet their Points Requirement. Refer to the [Job Plan and Mutual Obligations Requirements Chapter](#) for more information.

Participation in Voluntary Work may also fully meet a Participant's Mutual Obligation Requirements for certain cohorts. Refer to the [Job Plan and Mutual Obligations Requirements Chapter](#) for more information.

The benefits of Provider Sourced Voluntary Work placements for the Host Organisation may include:

- access to extra sets of hands to undertake activities and projects that may not normally get done
- access to support from the Provider to source suitable Participants, and contribute towards participation costs, such as relevant checks
- Participants referred by a Provider are covered by personal accident insurance and public and/or product liability insurance. However, this coverage does not extend to Provider Sourced Voluntary Work placements that are extended by Services Australia after the initial expected end date, for those Participants who are Fully Meeting their Mutual Obligations through Voluntary Work.

21.3. Role of Providers

21.3.1. Provider Sourced Voluntary Work

The role of the Provider is to:

- arrange suitable Provider Sourced Voluntary Work placements for Participants in eligible Host Organisations
- determine the suitability of Activity Host Organisations and their proposed placements and discuss the opportunities with the Participant to determine their interests, experience, skills, and suitability for the available placement
- support Participants declaring their attendance at Voluntary Work
- identify if Participants are Fully Meeting their Mutual Obligation Requirements through participation in Voluntary Work and if so, discuss the options with the Participant. Refer to the [Job Plan and Mutual Obligations Requirements Chapter](#) for more information.

State-based laws may apply to Voluntary Work placements. Please check with your relevant State/Territory government for more information.

21.3.2. Participant Sourced Voluntary Work

Participant Sourced Voluntary Work is Voluntary Work that a Participant with a Points Based Activation System Requirement has identified and secured for themselves. Participants can report the hours retrospectively as a Job Search Related Task. Documentary Evidence is not required for Participant Sourced Voluntary Work and Providers must not create this as an Activity in the Department's IT Systems.

Where Providers are aware Participants are undertaking Participant Sourced Voluntary Work, they should discuss with the Participant how the activity benefits and contributes to improving employment prospects, including adding experience to their resume and leveraging job networking. Where appropriate, Providers should encourage Participants to diversify their job search efforts and activities where the Participant Sourced Voluntary Work is not contributing to their employment prospects.



Providers must ensure Participants are not reporting hours for Provider Sourced Voluntary Work as a Job Search Related Task in the Department's IT Systems.

21.4. Eligibility

21.4.1. Eligible Participants

The Provider may arrange a Provider Sourced Voluntary Work Placement for any Participant on their Caseload who is aged 15 and over, if they are of the view that the Participant would benefit from the Activity, and the Activity is suitable and safe for the Participant.

Participants aged 15 and over are eligible to participate in Participant Sourced Voluntary Work.

For information on how Participants aged 55 and above, Principal Carer Parents, Participants with a Partial Capacity to Work and Participants in receipt of Carer Allowance can fully meet their Mutual Obligation Requirements through Voluntary Work and other activities, refer to the [Job Plan and Mutual Obligation Requirements Chapter](#).

21.4.2. Eligible Host Organisations

In addition to the Host Organisation requirements and prohibitions outlined in the [Eligible Host Organisations section](#) of the [Activity Management Chapter](#), Voluntary Work Host Organisations must be a:

- not-for-profit organisation/charity, or
- not-for-profit arm of a for-profit organisation,

that provides a community service (examples include firefighter reserves, State Emergency Service, school canteen, etc.) and is adequately insured. At minimum, Host Organisations must have public liability and personal accident insurance.

Note: Government sector agencies are considered to be not-for-profit organisations for the purpose of Voluntary Work.

Voluntary Work can be conducted in an eligible Host Organisation's place of business where all other requirements specified in the Deed and Guidelines have been met.

21.5. Arranging Placements

In addition to the Activity requirements and prohibitions outlined in the [Identifying suitable Activities for Participants section](#) of the [Activity Management Chapter](#), Voluntary Work placements must:

- be of benefit to the Participant and the local community and offer no financial gain to the volunteer organisation
- provide the Participant with the opportunity to gain vocational and nonvocational skills that will directly improve their Employment prospects, such as the ability to work as part of a team, take directions from a Supervisor, work independently, communicate effectively, and become more motivated and dependable
- be unpaid, however some eligible placement costs associated with Voluntary Work can be reimbursed using the Employment Fund,
- not primarily promote a particular religious or political view, and
- not involve more than 50 hours of attendance per fortnight, and not more than 25 hours per week
- not include participation outside core business hours, including on a public holiday, unless a Participant chooses to do so and has agreed in advance.
- A Provider Sourced Voluntary Work placement should not exceed 26 weeks unless:
 - the Provider determines this is the best participation option under the circumstances, or
 - the Participant is Fully Meeting their Mutual Obligation Requirements through approved voluntary work. Refer to the [Job Plan and Mutual Obligations Requirements Chapter](#) for more information.

Note: Unpaid work performed under a Community Service Order is not considered to be Voluntary Work



For each Provider Sourced Voluntary Work placement, an Activity record with an activity description clearly outlining the Voluntary Work tasks being undertaken by the Participant/s must be created in the Department's IT Systems by selecting the Voluntary work - Community/non-profit sector Activity type. Providers are encouraged to include details of the Core Competencies that will be covered by participation in the Voluntary Work activity when creating the Activity in the Department's IT Systems.



Where a Provider Sourced Voluntary Work placement will fully meet or contribute to a Participant Fully Meeting their Mutual Obligation Requirements, this must be recorded in the Placement details. The number of hours per fortnight a Participant will be undertaking Voluntary Work must be entered in the placement details. For a Fully Meeting Participant to be exited from Workforce Australia Services the Placement length must exceed 13 weeks and be no longer than 363 days.

21.6. Work Health and Safety



For the purposes of work health and safety, the Provider must refer to, and comply with, the requirements specified in the [Managing Work Health and Safety for Activities](#) section in the [Activity Management Chapter](#).

(Deed Reference(s): Clauses 121, 126.2)

 The Provider must retain Records of any action taken with regard to any Incidents that occur during a Voluntary Work placement in accordance with the [WHS Incidents and Insurance Readers Guides](#).

 Providers have the discretion to determine how they document Activity Risk Assessments and Participant Risk Assessments for Provider Sourced Voluntary Work Placements but must retain Records of each Risk Assessment undertaken.

21.7. Managing Provider Sourced Voluntary Work Placements

21.7.1. Referring a Participant to Provider Sourced Voluntary Work

Prior to referring a Participant to a Provider Sourced Voluntary Work placement, the Provider must:

- determine the Participant's eligibility
- ensure the Participant has undertaken any [background checks](#) required for the Placement
- ensure the Risk Assessment process has been completed by a Competent Person
- ensure the nature of the activities are appropriate and suitable for a Participant (see the [Activity Management Chapter](#) for further information).
- refer to and comply with the requirements specified in the Engaging with Host Organisations Section in the Activity Management Chapter.

In addition, the Provider should identify any assistance or items the Participant will require for the Placement. This may include specific clothing and transport. The Provider may be able to seek reimbursement for goods and services related to the Placement. Providers should refer to, and comply with, the requirements specified in the [Employment Fund Chapter](#).

 The Provider must refer the Participant against the relevant Activity record in accordance with the [Department's training resources](#).

21.7.2. Commencing the Provider Sourced Voluntary Work Placement

The Provider must confirm with the Host Organisation that the Participant commenced in the placement on the start date recorded in the Voluntary Work Host Organisation Agreement, and then confirm the Participant's commencement in the Department's IT Systems.

 The Provider must confirm the placement start date in the Department's IT Systems within 5 Business Days following the scheduled start date.

21.8. Monitoring the Provider Sourced Voluntary Work Placement

The Provider is expected to proactively monitor the placement for its duration.

In addition to the [Activity Management Chapter](#), the Provider should remain in contact with the Host Organisation and Participant to ensure:

- they are aware of any changes in circumstances affecting the placement
- the Host Organisation is operating in accordance with the Voluntary Work Host Organisation Agreement, and
- any issues that may arise are quickly resolved.

21.9. Participant Completion of Placement

In addition to the requirements outlined in [Completion of Activities](#), Providers must ensure all Participants are exited from their Provider Sourced Voluntary Work Placement and provide an exit reason. When a Provider Sourced Voluntary Work activity ends, the Provider must end the activity in the Department's IT Systems.

21.10. Progress Payments

Progress Payments are available to claim when the Participant's circumstances have been changed during participation in Workforce Australia Services such that they are more prepared to gain and maintain Employment. Participation in Provider Sourced Voluntary Work may contribute towards a Progress Payment based on work placement. For Progress Payments, the Provider must refer to, and comply with the requirements specified in the [Provider Payments and Vacancies Chapter](#).

Chapter 22. Local Jobs Program

22.1. Chapter Overview

Description: The Local Jobs Program supports tailored, local approaches to skilling individuals to meet local workforce needs. The program is a collaborative place-based initiative to ensure local labour markets work well for all Australians, in partnership with business and communities.		Activity Code: LCJB Job Plan Code: N/A
Eligibility: All Participants with a Workforce Australia Employment Services Provider, Broome Employment Services Provider, Yarrabah Employment Services Provider, Parent Pathways Provider, Transition to Work Provider. See Eligibility for further details	Duration: Local Jobs Program Activities vary depending on project.	Specified Activity: Where advised by the Department
PBAS: Points depend on the intensity level and/or nature of the activity. Please refer to the PBAS points values for tasks and activities in the Points Based Activation System factsheet	Activation eligible: Yes – Provider-assessed	Progress Payment: Yes

This Chapter outlines the requirements for Workforce Australia Providers with regard to the Local Jobs Program.

22.2. Background

The Local Jobs Program is a collaborative place-based initiative to ensure local labour markets work well for all Australians, in partnership with business and communities. The program supports tailored approaches to skilling individuals to meet local workforce needs. A key focus of the program is to support the more effective local delivery of employment services, achieved by leveraging existing programs and resources, reducing duplication, and providing opportunities for local collaboration. As a place-based initiative, the program acknowledges that regions across Australia have unique characteristics and require responses that reflect and leverage local conditions to best support the needs of individuals and businesses. The program operates in all of Australia's 51 Employment Regions and runs until 30 June 2027.

The program includes the following elements:

- A Job Coordinator - formerly titled Employment Facilitator - and a Support Officer/Program Officer on the ground in each region. They bring together key stakeholders such as employers, employment services providers, education and training organisations to work collaboratively to address the priorities for the region, as identified in the Local Jobs Plan (see below).
- A Local Jobs and Skills Taskforce with representatives from the local region. They identify key employment priorities and local workforce needs and then connect and collaborate with stakeholders to design and implement solutions.
- A Local Jobs Plan, developed in consultation with the Local Jobs and Skills Taskforce, which outlines employment priorities and actions.
- A Local Initiatives Fund (LIF) that provides a flexible pool of funding for Job Coordinators to use towards small activities addressing community priorities.
- The Local Jobs, Local People grant which will provide \$10 million over 2025-26 and 2026-27 to support the program. This grant will fund activities to address local employment and training priorities, and support individuals and businesses to meet local workforce needs and strengthen local labour markets.
- Australian Government Job Coordinators deliver the Job Coordinator role in:
 - Three micro regions in WA in Broome, Geraldton and Kalgoorlie (these positions share a Program Officer)
 - The Mid North Coast of NSW (includes a Program Officer)
 - Mackay of QLD (includes a Program Officer)
 - Cairns of QLD (includes a Program Officer)
 - North and North Western Tasmania (includes a Program Officer).

Until 30 June 2025, the program also consisted of the following elements:

- A Local Recovery Fund (LRF) to support activities designed to address employment and training priorities and identify opportunities to better skill participants to meet local employer demand.
- A National Priority Fund (NPF) for innovative initiatives that address structural and other barriers to the attraction, recruitment and retention of job seekers and workers.

(Deed Reference(s): Clause 130)

22.3. Benefits of the Local Jobs Program

The benefits of the Local Jobs Program include, but are not limited to:

- building strong connections between local stakeholders, including Providers, employers and education and training organisations to solve local workforce needs
- developing tailored skills and employment initiatives that meet local labour market and employer needs and create opportunities for Participants with local employers that result in employment outcomes
- providing a mechanism to transition people into new roles by reskilling and upskilling in the skills needed in the Employment Region
- providing an opportunity for Providers to improve their local connections and creating pathways to employment for Participants on their Caseload
- enhancing collaboration and coordination between the Australian Government, state, territory and local governments and community-initiated skills and employment initiatives

- responding to retrenchments, company closures and other structural adjustment events, including as a part of the Transition Support Network
- raising awareness of current and upcoming local employment and training opportunities.

The overall goal is to support significant improvements in labour market outcomes for each Employment Region by addressing the issues unique to each region.

Participants in Local Jobs Program Activities can gain points under the PBAS, depending on the nature of the Activity. Refer to the [Job Plan and Mutual Obligations Requirements Chapter](#) for more information.

The TCF will not apply for non-attendance in Local Jobs Program Activities, however, it will apply if Participants fail to meet their Points Requirement.

(Deed Reference(s): Clauses 90 and 130)

22.4. Local Jobs Program Activities

Activities include:

- Local Jobs Program Activities
 - Local Jobs Program Activities are for the Local Jobs, Local People grant, delivered by a Local Jobs Program Activity Host, funded through a grant agreement.
 - Only the Department can use the Local Jobs Program Activity type (Activity type code: LCJB) when creating these activities in the Department's IT Systems.
- Other Activities
 - Other activities that do not receive funding through the Local Jobs, Local People grant but which may be funded and/or delivered by Job Coordinators under the Local Jobs Program.
 - Activities that leverage existing programs and services, including state and territory government programs, coordinated through the Local Jobs Program.
 - When leveraging existing activities, programs and services, Providers must ensure these programs and services adhere to their relevant requirements as described in these Guidelines.
 - If these activities are to be recorded in the Department's IT Systems, Providers should use the most relevant Activity type in the Department's IT Systems.

22.5. Eligibility

All Participants registered with a Workforce Australia Employment Services Provider, Broome Employment Services Provider, Yarrabah Employment Services Provider, Transition to Work Provider and Parent Pathways Provider are eligible to participate in Local Jobs Program Activities.

Any of these Providers may refer a Participant to the Local Jobs Program Activity, with Activities allocated points under the Points Based Activation System (PBAS), depending on the nature of the activity.

Local Jobs Program Activities can also be open to any individual.

Participation in Local Jobs Program Activities is voluntary.

(Deed Reference(s): Clause 130)

22.6. Local Jobs Program Activity Hosts

Local Jobs Program Activities funded by the Local Jobs, Local People grant will be delivered by a Local Jobs Program Activity Host. The Local Jobs Program Activity Host will be responsible for delivering the Local Jobs Program Activity in accordance with their Local Jobs, Local People grant agreement, including providing Supervision, ensuring that a safe system of work is in place, and reporting attendance and any incidents (where relevant) to any relevant Providers or the Department.

(Deed Reference(s): Clause 123, 124, 130)

22.7. Role of Providers

The Local Jobs Program offers Providers the opportunity to improve their local connections and create pathways to training and employment for Participants on their caseload. Key responsibilities and actions undertaken by Providers in relation to Local Jobs Program Activities, which must be done in accordance with the Deed and these Guidelines include:

- collaborating and engaging with Job Coordinators and Support Officers, and key stakeholders in the region such as employers, and Local Jobs Program Activity Hosts
- referring and commencing Participants in Local Jobs Program Activities and supporting broader Local Jobs Program activities, as required
- identifying potentially eligible and suitable Participants on their caseload to participate in Local Jobs Program Activities
- referring and commencing Participants on their caseload in the Local Jobs Program Activity
- ensuring referrals and commencements are correctly recorded in the Department's IT Systems, where relevant
- undertaking and updating Participant Risk Assessments, as required and advising the Local Jobs Program Activity Host
- recording participation in the Activity for Participants on their Caseload
- working with the Local Jobs Program Activity Host to:
 - advise them when they are referring a Participant to the Local Jobs Program Activity
 - manage the replacement of Participants to maximise utilisation.
- following up non-attendance of Participants on their caseload
- reporting incidents to the Department

Job Coordinators, as part of their contractual obligations, will provide regular feedback to the Department regarding Providers' collaboration and participation in Local Jobs Program Activities and the broader Local Jobs Program.

(Deed Reference(s): Clause 90.2, 121.1, 122, 124, 130)

22.8. Referral to a Local Jobs Program Activity

The Department will set up Local Jobs Program Activities funded by the Local Jobs, Local People grant in the Department's IT Systems. The Department and/or Job Coordinators and Support Officers will provide relevant Activity IDs to Providers.

Providers must, in accordance with work health and safety requirements, refer eligible and potentially suitable Participants for Local Jobs Program Activities.

It is a priority to ensure that available places in a Local Jobs Program Activity are fully utilised. Job Coordinators and Support Officers may liaise with Providers to maximise participation in Local Jobs Program Activities.

Providers should work with Job Coordinators to refer Participants to Local Jobs Program Activities not funded by the Local Jobs, Local People Grant.

(Deed Reference(s): Clause 130)

22.9. Work Health and Safety and Incidents

- ✚ For the purposes of Work Health and Safety, Providers must also refer to, and comply with, the requirements specified in the Deed and Activity Management Chapter.

Should an incident occur on a Local Jobs Program Activity, the Local Jobs Program Activity Host is responsible for managing the incident, in collaboration with the Supervisor of the Local Jobs Program Activity. The Local Jobs Program Activity Host is responsible for advising the Department of any incidents which involve Participants.

It is the Local Jobs Program Activity Host's responsibility to ensure that the Participant's relevant Provider is notified.

For further information in relation to the process for reporting incidents and completing incident forms refer to the [WHS Incidents and Insurance Readers Guides and the Activity Management Chapter](#).

-  Providers must retain Records of any action taken with regard to any Incidents that occur during an Local Jobs Program Activity in accordance with the WHS Incidents and Insurance Readers Guide.

(Deed Reference(s): Clause 121, 130)

22.9.1. Conducting Risk Assessments

If the Department has advised that the Local Jobs Program Activity is a Specified Activity, Providers must:

- confirm that the Local Jobs Program Activity Host has undertaken an Activity Risk Assessment on the Specified Activity
- undertake and update Participant Risk Assessments for participants on their caseload that are referred to Local Jobs Program Activities.

Further information on Risk Assessment Requirements is available in the [Conducting Risk Assessments for Specified Activities](#) section of the [Activity Management Chapter](#).

-  Providers have the discretion to determine how they document Risk Assessments, but must retain Records of each Risk Assessment undertaken.

22.10. Payments

Progress Payments are available to claim when the Participant's circumstances have been changed during participation in Workforce Australia Services such that they are more prepared to gain and maintain Employment. Successful participation in and/or completion of a Local Jobs Program Activity

may contribute towards a Progress Payment. Providers must refer to and comply with the requirements specified in the [Provider Payments and Vacancies Chapter](#).

Chapter 23. Workforce Specialists

23.1. Chapter Overview

Description: Workforce Specialists deliver Workforce Specialist Projects that connect job seekers with workforce opportunities in selected industries and occupations.		Activity Code: WFS Job Plan Code: N/A
Eligibility: All Participants, noting projects may have additional eligibility criteria.	Duration: Variable	Specified Activity: No
PBAS: Yes - Please refer to the PBAS points values for tasks and activities in the Points Based Activation System factsheet	Activation eligible: Yes . For Workforce Specialist Projects – Provider-assessed	Progress Payment: Yes – Pathway to employment activity or work placement (dependant on project)
Participant Payment: N/A	Host Payment: Any host payments are managed by the Workforce Specialist	Provider Payment: No

This Chapter outlines the requirements for Providers in regard to Workforce Specialists and Workforce Specialist Projects.

23.2. Background

Workforce Specialist Projects are designed to meet the workforce needs of identified industries and occupations, connecting them to suitable Participants in Workforce Australia Online, Workforce Australia Services and Workforce Australia – Transition to Work.

Projects may support job seekers to identify, access and engage with:

- labour market opportunities within these industries
- the skills and training pathways to connect with these opportunities
- potential areas for career progression, and/or
- the support available to prepare for and take up these employment opportunities.

Workforce Specialist Projects will vary considerably in their design and duration, with details provided as part of each project description, including PBAS points.

On 14 May 2024, the Australian Government announced it would cease approving new projects under the Workforce Specialists initiative, effective immediately. Projects currently being delivered will continue until completion.

Information regarding current Workforce Specialist Projects can be found at: Workforce Specialists - Department of Employment and Workplace Relations, Australian Government (dewr.gov.au)

23.3. Role of Providers

Key responsibilities and actions undertaken by Providers in relation to Workforce Specialist Projects, which must be done in accordance with the Deed and these Guidelines, include:

- identifying if Participants meet any identified eligibility criteria to participate in a Workforce Specialist Project
- confirming, including by reference to the relevant Risk Assessments, if the Workforce Specialist Project is suitable for the Participant
- assisting Participants to submit an expression of interest to participate in the Workforce Specialist Project via Workforce Australia Online
- where a Participant is accepted to participate in a Workforce Specialist Project, Providers:
 - must ensure the Participant is aware of their responsibilities, such as attending the Workforce Specialist Project on the relevant days and times advised by the Workforce Specialist
 - must work collaboratively with the Workforce Specialist to support the Participant's participation in the Workforce Specialist Project. This may include using their discretion to draw upon the Employment Fund where appropriate, in accordance with the requirements specified in the [Employment Fund Chapter](#)
 - must confirm an Activity Risk Assessment has been undertaken for any Specified Activity conducted by the Workforce Specialist as part of a Workforce Specialist Project
- where a Participant is placed into Employment by a Workforce Specialist, providing Post-placement Support, in collaboration with the Workforce Specialist if appropriate.

(Deed Reference(s): Clauses 122.3, 122.4, 131)

23.4. Eligibility

Participation in a Workforce Specialist Project is voluntary. A Provider can assist a Participant from their Caseload to submit an expression of interest to be considered for participation in a Workforce Specialist Project, subject to any additional Workforce Specialist Project specific eligibility criteria. For example, a Workforce Specialist Project may be targeted to Participants of a specific age group, or require Participants to have a Driver's Licence.



Providers can view any additional eligibility criteria in a Workforce Specialist Project description in the Department's IT Systems.

Participants in a Workforce Specialist Project can gain points under the PBAS. Refer to the [Job Plan and Mutual Obligation Requirements Chapter](#) for more information. The TCF will not apply for non-attendance in Workforce Specialist Projects, however, it will apply if Participants fail to meet their Points Requirement.

23.5. Collaboration with Workforce Specialists

Providers will need to work with Workforce Specialists to support Participant referrals to, and participation in, Workforce Specialist Projects. Providers will also need to work with Workforce Specialists to provide Post-placement support to Participants placed into Employment as part of a Workforce Specialist Project.

-  Providers must provide support to Workforce Specialists to assess the suitability and capacity of a Participant from the Provider's Caseload to undertake any Activity within a Workforce Specialist Project. This includes assisting with the provision of information to support the Workforce Specialist undertake a Participant Risk Assessment and the management of other Work Health & Safety matters, including incidents.

(Deed Reference(s): Clauses 90.2, 91.5, 122.3, 123, 131)

23.6. Expressions of Interest for a Workforce Specialist Project

Once a Workforce Specialist has entered Workforce Specialist Project into the Department's IT Systems, Providers can search for and view that Workforce Specialist Project.

-  Providers view available Workforce Specialist Projects via the Activity Management component in the Department's IT Systems.

Information about each Workforce Specialist Project will be available in the project description, including the number of PBAS points a Participant can receive by participating.

Workforce Specialists may also promote Workforce Specialist Projects to Providers and Participants outside of the Department's IT Systems.

Providers must identify eligible and potentially suitable Participants for Workforce Specialist Projects. Providers should provide identified Participants with details of Workforce Specialist Projects available in their Employment Regions.

Prior to discussing potential referrals with the Workforce Specialist, the Provider must ensure the Participant has been made aware of, and consented to, the disclosure of relevant personal information to the Workforce Specialist for the purpose of managing the Participant's referral and participation in a Workforce Specialist Project.

Before recommending that a Participant submits an expression of interest for a Workforce Specialist Project, the Provider must consider the nature of the tasks involved in the Workforce Specialist Project and whether these are appropriate and suitable for the Participant. The Provider may also discuss potential referrals with the Workforce Specialist to assist in making any determination of the Participant's suitability and capacity to participate in the Workforce Specialist Project.

To be considered for a Workforce Specialist Project, the Participant will need to submit an expression of interest. The expression of interest process will vary from project to project, and may include several screening questions (for example, relevant tickets or licences already held by the Participant, or occupations they may be interested in).

-  Providers are required to support Participants to submit expressions of interest for Workforce Specialist Projects via Workforce Australia Online.

The Workforce Specialist will assess all expressions of interest to participate in a Workforce Specialist Project. A place in the Workforce Specialist Project will only be confirmed once a Participant's expression of interest has been accepted by the Workforce Specialist.

Participants may submit expressions of interest via Workforce Australia Online without first notifying their Provider. The Workforce Specialist is strongly encouraged to discuss the referral with the Provider prior to accepting an expression of interest from the Participant.

If a Workforce Specialist does not accept a Participant's expression of interest, it should notify the Participant of the reasons for its decision. A Workforce Specialist Project may have a limited number of places available.

(Deed Reference(s): Clauses 120.1, 131)

23.7. Payments

The funding arrangements for each Workforce Specialist Project will be outlined in a contract between the Workforce Specialist and the Department. The funding arrangement will consider existing support and funding available under other programs available to assist Participants.

Providers may be asked to draw upon Financial Incentives, including the Employment Fund, to support Participants successfully take part in Workforce Specialist Projects. For example, a Participant may require workwear or equipment for a job placement that forms part of a Workforce Specialist Project.

Progress Payments are available to claim when the Participant's circumstances have been changed during participation in Workforce Australia Services such that they are more prepared to gain and maintain Employment. Completion of a Workforce Specialist Project may contribute towards a Progress Payment. For Progress Payments, Providers must refer to and comply with the requirements specified in the [Provider Payments and Vacancies Chapter](#).

The Provider of a Participant placed into Employment by a Workforce Specialist may be eligible to receive Employment Outcome Payments in line with the Deed and the [Provider Payments and Vacancies Chapter](#).

(Deed Reference(s): Clauses 149, 155.6)

Chapter 24. Launch into Work

24.1. Chapter Overview

Description: Launch into Work (LiW) is a pre-employment Activity for clients of Workforce Australia Services, Transition to Work or Parent Pathways. Participation is voluntary. LiW Projects support LiW Project Participants into entry level employment and are tailored to the role requirements. LiW Projects include training, practical workplace activities, mentoring and a guaranteed job for suitable LiW Project Participants who successfully complete all requirements of the Project. LiW Project Participants must have participated in screening and selection, and pre-employment checks (if required), to determine their suitability for the job on offer prior to commencement in a LiW Project.		Activity Code: LiW The LiW team will create the Activity ID for each Project and will provide it to you prior to commencement of the LiW Project. Job Plan Code: Not Applicable
Eligibility: Aged 18 years and over who are in Workforce Australia Services, Transition to Work or Parent Pathways. Note: LiW Projects may have additional unique eligibility criteria relevant to the role.	Duration: Variable - depending on the requirements of the role. Can run for 2 or up to 12 weeks.	Specified Activity: Yes
PBAS: Yes – Please refer to the points values for tasks and activities in the Points Based Activation System participant fact sheet.	Activation eligible: Yes - Provider-assessed	Progress Payment: Yes – Refer to Provider Payments and Vacancies Chapter - Progress Payments for undertaking Activities and Progress Payments for completing a pathway to Employment.

This Chapter outlines the requirements for Providers with regard to LiW.

24.2. Background

LiW funds employers (i.e. LiW Organisations) to deliver LiW Projects that include:

- Pre-LiW Project events focused on screening and selection of the Caseload to identify Participants who are suitable for a LiW Project
 - LiW Organisations select candidates based on the essential values and attributes required for success in the participating employer's entry-level jobs
 - Participants who are selected for a LiW Placement are 'LiW Project Participants'
- Delivery of the LiW Project to selected Participants

- The LiW Organisation prepares Participants for employment by providing training, practical workplace activities and mentoring tailored to the roles available with the participating employer(s).

The LiW Organisation, or nominated employer for coordinated projects, is required to commit to employing all suitable Participants who successfully complete the LiW Project. The number of LiW Project Participants must not exceed the number of available jobs.

The LiW Program creates opportunities for Participants who would not otherwise have been offered employment through typical recruitment methods.

LiW Organisations provide information to Providers and potential LiW Project Participants about career pathways in their industry and organisation.

LiW Projects offer Providers the opportunity to place Participants into an Activity that leads to a guaranteed employment outcome for all LiW Project Participants who successfully complete all aspects of the LiW Project. LiW Project Participants will be deemed to have successfully completed the LiW Project when they:

- successfully complete the required training
- participate in mentoring
- participate in practical workplace activities
- have a positive attendance record for the duration of the LiW Placement
- demonstrate the required values and attributes throughout the LiW Placement
- any other requirements of the LiW Project and employer(s).

Providers cannot provide or purchase LiW Projects.

24.3. Benefits to Participants

Participants who are selected for and successfully complete all aspects of a LiW Project are guaranteed employment with the participating employer(s) (the definition of successfully completes a LiW placement provided at section 24.2 applies to the guaranteed employment outcome).

LiW is a high intensity form of pre-employment preparation. Projects vary in duration depending on the requirements of the role. They can run for 2 weeks and up to 12 weeks.

LiW Project Participants gain Points under the PBAS for their participation in screening and selection processes and LiW Projects. A Participant's Job Search Requirement will be automatically set to zero when the Provider commences the Participant into the LiW Project in Workforce Australia Online. Refer to the [Job Plan and Mutual Obligations Requirements Chapter](#) for more information.

The Targeted Compliance Framework will not apply for non-attendance in pre-LiW Project events and LiW Projects, however, it will apply if Participants fail to meet their Points Requirement.

24.4. Role of Providers

The role of Providers in the LiW Project is:

- attending a provider briefing session delivered by the LiW Organisation and department regarding the Project and risk assessments

- collaborating with the LiW Organisation to promote LiW Projects and the associated employment outcome to LiW Project Participants
- identifying and referring potentially suitable and interested Participants to LiW Project information sessions and screening and selection processes
- supporting the preparation of Participants for LiW Project screening and selection, through resume development, interview preparation and organising pre-employment checks where required, e.g. police checks, working with children checks or medical assessments (this includes supporting Participants to source the relevant identity documents)
- placing and commencing Participants who are selected by the LiW Organisation for the LiW Project against the Activity ID in the Department's IT Systems to enable them to earn their full PBAS points from the first day of the project
- ensuring that the Participant is set up on Workforce Australia Online to claim their PBAS points for screening and selection related assessments and the LiW Project (this includes instances where the Provider has removed the PA03 Job Plan code from the Participant's Job Plan and the Participant cannot self report).
- providing transport support to Participants (if required) to enable them to participate in screening and selection, pre-employment checks, the LiW Project and the early stages of employment and meeting the cost of pre-employment checks and personal protective equipment (where this is not met by the LiW Organisation)
- conducting Participant and Activity Risk Assessments prior to commencement of the LiW Project, updating Participant and Activity Risk Assessments (as required) if any aspects of the LiW Project change during the LiW Project, and critical incident management during the LiW Project (if required)
- working collaboratively with the LiW Organisation to follow up on any issues throughout the LiW Project and the early stages of employment (e.g. non-attendance of Participants on their Caseload).

Providers may be able to seek reimbursement from the Employment Fund for goods and services related to LiW participation where it is not funded through the LiW Activity. Providers should refer to, and comply with, the requirements specified in the [Employment Fund Chapter](#).

(Deed Reference(s): Clauses 90, 122, 132)

24.5. Eligibility

Participants must be in Workforce Australia Services, Transition to Work or Parent Pathways and must be aged 18 years or over to participate in a LiW Project.

Other eligibility requirements will vary depending on the job role and the needs of the employer who is offering guaranteed jobs to successful Participants. These will be clearly communicated at the provider briefing and LiW Project information sessions.

24.6. Collaboration with Launch into Work Organisations

The Department will notify Providers when there is a LiW Project opportunity in their location and invite them to a LiW Project briefing session with the LiW Organisation. At the briefing session the LiW Organisation will:

- describe the LiW Project duration and the job type, employment outcome and supported career pathways offered by the participating employer(s)

- describe the values and attributes Participants will require to be successful in employment on completion of the LiW Project (Providers must use this information to screen their Caseload prior to referral of a Participant to a LiW Project information session)
- outline the screening and selection process and the pre-employment checks required to determine Participant suitability for commencement in the LiW Project
- provide timelines for Participant referral, screening and selection, project delivery and employment.

Following the briefing session, Providers will:

- screen their Caseload for Participants who are interested and may be suitable for a LiW Placement
- if required, organise a space for a virtual LiW Project information session and support Participants to complete any expression of interest forms
- refer interested and suitable potential Participants (in keeping with the LiW Organisation's requirements) to a LiW Project information session or assessment centre with the LiW Organisation
- provide Participants with:
 - any LiW Project specific marketing material (where applicable), e.g. flyers, position descriptions
 - details of the LiW Project job seeker information session and any information they need to bring with them to the session
 - a basic understanding of the employer and positions available.

The LiW Organisation will undertake screening and selection activities to identify their preferred LiW Project Participants and invite them to commence in the LiW Project.

LiW Organisations will ensure all relevant Personnel and Supervisors involved in LiW Projects have undertaken appropriate employment checks for their role and are fit for involvement in the LiW Project.



The LiW Organisation does not have IT system access. Where the Participant or the LiW Organisation advises the servicing Provider that a Participant has attended a job interview or other assessment activities (such as a medical) for a LiW Project after the fact, the servicing Provider can add a task on behalf of the Participant via the IT system. Refer to the [Meeting the Points Requirement section](#) in the [Jobs Plan and Mutual Obligations Chapter](#) for more information.



Providers may be able to seek reimbursement from the Employment Fund for goods and services related to LiW participation where it is not funded through the LiW Project. Providers should refer to, and comply with, the requirements specified in the [Employment Fund Chapter](#).

The LiW Organisation will advise the Provider when the Participant has passed all the required pre-employment checks and has been selected for the LiW Project. The LiW Organisation will provide constructive feedback to those not successful in securing a position on the LiW Project.



The LiW Organisation does not have IT system access and cannot schedule the Activity for the LiW Project Participant. The Provider must place and commence the LiW Project Participant into the Activity using the Activity ID provided by the Department.

Once the placement of the Participant into the Activity has been confirmed by the Provider a weekly declaration will be triggered to allow the LiW Project Participant to confirm participation in the LiW

Project via the Workforce Australia website or mobile app. Where LiW Project Participants do not have the authority to confirm their own participation in the Activity, the Provider will need to do this on their behalf. Where this is the case, the Provider must advise the LiW Organisation at the commencement of the relevant Participant in the LiW Project, request regular updates from the LiW Organisation on the Participant's attendance and use this information to update the Participant's details on their behalf. Refer to the [Job Plan and Mutual Obligations Requirements Chapter](#) for more information.

Consistent with the Deed and the [Conducting Risk Assessments section](#), Providers must complete the Participant and Activity Risk Assessments and ensure that the LiW Project is appropriate prior to the Participant commencing in the LiW Project.

Providers must ensure that the Participant is not booked into conflicting appointments for the duration of these LiW events:

- information sessions
- screening and selection processes, including assessment centres
- pre-employment checks, and
- the LiW Project.

24.7. Activity management

24.7.1. Creation and referral to a Launch into Work Project

The Department will create the Activity for the LiW Project in the Department's IT Systems and provide the Activity ID to the Provider.

The Provider can place Participants into the LiW Project once:

- the LiW Organisation has confirmed with the Provider that the Participant has passed the screening and selection requirements for the LiW Project and has accepted a place on the LiW Project, and
- the Provider has conducted Participant and Activity Risk Assessments, determined the Activity is suitable for the Participant and implemented a strategy for mitigation of any risks associated with the Activity.

The Department will provide the relevant Activity ID to those Providers whose Participants are invited to join a LiW Project.



Providers must refer the eligible and selected Participant to the LiW Project (as expected to start), prior to the start of the LiW Project.



Once the Provider has received confirmation that the Participant has commenced in the LiW Project, the Provider must confirm the Participant's placement in the Department's IT Systems.



Once the Participant has completed the LiW Project, Providers must update the Participant's placement with their actual end date and end reason for the Participant to be exited from the Activity. Refer to the [Meeting the Points Requirement section](#) in the [Jobs Plan and Mutual Obligations Chapter](#) for more information.

24.7.2. Risk Assessments for a Launch into Work Project

LiW Placements are Specified Activities. Providers must comply with the requirements set out in the Deed and Guidelines, including the [Activity Management Chapter](#).

LiW Organisations undertake a risk analysis as part of the LiW Project development process. LiW Organisations will share relevant information from this risk analysis with Providers on request. Providers remain responsible for conducting Participant and Activity Risk Assessments for LiW Project Participants.

Before placing the Participant into a LiW Project, the Provider must ensure the Activity is suitable and safe, will assist the Participant to progress towards employment and accounts for the Participant's individual circumstances and capacity. Refer to the [Activity Management Chapter, Referrals and Commencement of an Activity Section](#).

The Activity Risk Assessment should take into account the role of the LiW Organisation and the tasks the LiW Project Participants will be undertaking, consistent with [Activity Management Chapter, Managing work health and safety for Activities of this Guideline](#).

Providers must review risks regularly and take appropriate action on those risks where required. The Provider and the LiW Organisation must determine and implement appropriate methods to mitigate the identified risks after the Provider conducts the Activity Risk Assessment, taking into consideration the Participant Risk Assessment.

Where a Participant and/or Activity Risk Assessment identifies significant work health and safety concerns that cannot be mitigated to create a safe working environment and/or cannot be adequately managed by the Provider and/or the LiW Organisation, the Activity must not proceed.

24.8. Payments

Providers may be eligible for Progress and Outcome Payments. Refer to and comply with the requirements specified in the [Provider Payments and Vacancies Chapter](#).

Chapter 25. Education and training

Supporting Documents for this Chapter:

- [Education and training in Workforce Australia Participant fact sheet](#)

25.1. Chapter Overview

Description: Provides Participants with the opportunity to learn skills and gain qualifications that will improve their employment prospects. Prepares Participants to meet Employers' skill needs through skills development, Education and training.		Activity Code: AETV (accredited) NETV (non-accredited) Job Plan Code: N/A
Eligibility: Variable Refer to the Eligible Education and training courses section below.	Duration: Less than 12 months in duration.	Specified Activity: No
PBAS: Yes – Please refer to the PBAS points values for tasks and activities in the Points Based Activation System factsheet	Activation eligible: Yes - approved Activity or Provider-assessed depending on the type of training.	Progress Payment: Yes – education or vocational intervention

This Chapter outlines the Education and training options available for Participants to learn skills and gain qualifications that will improve their employment prospects.

25.2. Eligible Education and training courses

Education and training benefits Participants to increase their skills and complete courses and/or gain a qualification that will enhance their ability to gain secure and meaningful employment.

Participants can undertake an Education or training course, of less than 12 months:

- by selecting an eligible course that is listed on [Your Career](#) as either:
 - a Fee-Free TAFE course, or
 - subsidised by a state or territory government
- where the Provider approves that course for the Participant, they can do so by selecting a course not subsidised or not listed on [Your Career](#). Refer to Approval of a course of study for more information on the approval process.

Participants undertaking an eligible Education and training course will earn points towards their Points Target under the PBAS. The Participant can choose to undertake these courses at any time during their Points Reporting Period. The Provider should guide the choice but unless specified by these Guidelines, does not need to approve the Participant to undertake these courses.

Note: Participants undertaking an eligible Education and training course over 15 hours per week, for less than 12 months duration, will not be required to complete a Job Search Requirement.

 Providers must reduce the Job Search Requirement to zero in the Department's IT Systems for these Participants.

 Where a Participant's Points Target is 100 points, Providers must reduce a Participant's Points Target by applying a 20 point Activity bonus credit where they are undertaking Education and training courses over 15 hours per week.

Education and training may be undertaken where the Participant would otherwise have Work for the Dole as a Mandatory Activity Requirement. Refer to the [Job Plan and Mutual Obligation Requirements Chapter](#) for more information.

The TCF will not apply for non-attendance in Education and training, however, it will apply if Participants fail to meet their Points Requirement.

Fee-Free TAFE courses can vary between different states and territories. Participants should check their eligibility when selecting a course and can find this information under 'Enrol now in your state or territory' on the [Fee-Free TAFE | Your Career](#) website.

25.2.1. Allowable breaks while undertaking an Education and training course

Where a Participant has a break, such as a semester break, that is of less than or equal to a period of 4 consecutive weeks while undertaking an eligible Education or training course which is contributing to their Points Target, there is no need to adjust a Participant's requirements. Points relating to the ongoing Education and training course should continue to be credited for the duration of the break.

If the break is greater than 4 weeks, the Participant must do other requirements, such as Job Search or other Activities to meet their Points Target, for the period of the break.

25.3. Approval of a course of study

Participants can study a course not listed as eligible on [Your Career](#) or is non-accredited if the course is less than 12 months in duration and the Provider determines that the course is appropriate to the Participant and improves their employment prospects.

Courses considered to improve a Participant's employment prospects include:

- courses that will lead to qualifications in an in-demand area of identified skill needs
- courses that will address a skills gap of the individual necessary for them to find work
- courses that will lead directly to employment for the Participant
- courses that are year 12 or an equivalent level for Early School Leavers.

Areas of identified skills needs may include:

- identified on the Skills Priority List as in shortage and/or of high to moderate future demand ([Skills Priority List | Jobs and Skills Australia](#));
- a higher education short course listed on the www.coursesseeker.edu.au/courses, or
- information sources relevant to the local area.

Any course approved by a Provider must be a Certificate I course or higher (but not a Masters or Doctorate course, except in the circumstances listed at section [Approval of courses of 12 months or longer in duration](#), or certain non-accredited courses as outlined below).

Note: Non-accredited courses do not need to be a Certificate I or higher, but the course must be in the best interest of the Participant and will allow the Participant to develop skills that will enhance their employability or enable them to undertake further study in accredited Education and training courses.

People undertaking full-time Education and training that is longer than 12 months in duration should generally be placed on a student allowance. Providers should refer full-time students to Services Australia for an Income Support Payment eligibility check.

Early School Leavers should generally be required to participate in Education and training/or other suitable Activities for 25 hours per week until they have achieved year 12 or an equivalent level qualification (15 hours for Principal Carer Parents/ those with a Partial Capacity to Work).

Specific courses and qualifications may have their own eligibility criteria and Providers should discuss these with the Participant to ensure that the Participant meets any prerequisite requirements before approving any Education and training.

25.3.1. Approval of courses of 12 months or longer in duration

Providers must not approve full-time courses of 12 months (2 semesters) or longer in duration, or Masters or Doctorate courses, except in the following specific circumstances.

- Participants in receipt of Special Benefit (Nominated visa holder - NVH) who have not attained a Year 12 or equivalent qualification may undertake full-time study in a school institution up to Year 12. These Participants will still be required to attend Provider appointments and have a Job Search Requirement, where appropriate for their circumstances.
- Participants in receipt of Youth Allowance (other) can continue to study in a course which is longer than 12 months in duration if they have exceeded the allowable time for their course under Youth Allowance (student) but have less than 12 months of study remaining to complete their course.
- The Participant is a single Principal Carer Parent who has been granted Pensioner Education Supplement (PES) for an academic course or course longer than 12 months. Where an eligible course for which PES is granted is being undertaken full-time or for at least 30 hours per fortnight, this will fully meet requirements, and the single principal carer will not be required to undertake additional Activities.
- The Participant is in receipt of Parenting Payment Single.
- The Participant is a Parenting Payment recipient who transferred to JobSeeker Payment or Youth Allowance (other) or, in some limited instances, where a Participant was granted the Disability Support Pension and then transferred to JobSeeker Payment or Youth Allowance (other). They are able to continue their studies in the same course they commenced while receiving the previous Income Support Payment type for which they receive PES.
- Services Australia has approved participation in a full-time course for Participants prior to entering employment services if the Participant has been identified as requiring training under the SEE Program or AMEP.
- Services Australia can also approve participation in a full-time course for any Participant prior to entering employment services or another relevant Provider's program if:
 - the Participant has an offer of employment, confirmed by a letter from the potential employer, contingent upon their completing the course
 - the course has a clear vocational application, and

- the Participant is prepared to meet any additional expenses involved.

25.4. Role of Providers

The Provider should:

- encourage Participants to build on their existing skill sets and help them to access appropriate and targeted skills and training opportunities and increase their ability to find work
- become familiar with, and promote, flexible Education and training including courses subsidised by Commonwealth, state and territory governments
- monitor Participants undertaking Education or training, and support them to complete their course
- support Participant to update their résumé and profile to reflect the new qualification.

Providers are required to obtain copies of any qualifications or statements of attainment from the Participant.

The Provider may also consider supporting costs associated with studying in accordance with the requirements outlined in the [Employment Fund Chapter](#).



Where study is undertaken online, Providers can request Documentary Evidence from Participants of the online hours that they complete.



The Provider must retain evidence (either hard copy or soft copy) of timesheets or other records of attendance. Where Participants are recording their own attendance, Documentary Evidence is not required to be kept by the Provider.



The Provider must retain evidence (either hard copy or soft copy) of qualifications, statements of attainment or similar where relevant.

(Deed Reference(s): Clauses 89, 90, 91, 120)

25.5. Payments

Progress Payments may be available to claim when the Participant's circumstances have been changed during participation in Workforce Australia Services such that they are more prepared to gain and maintain Employment. Providers must refer to and comply with the requirements specified in the [Provider Payments and Vacancies Chapter](#).

Chapter 26. Skills for Education and Employment

Supporting Documents for this Chapter:

- [Summary of Eligibility Criteria](#)
- [SEE and AMEP Client Capability Guide](#)
- [‘How to refer to SEE’ task cards](#)
- [Differentiating between AMEP and SEE: when to refer to which program](#)
- [SEE Program – Evidence for Progress Payments](#)

26.1. Chapter Overview

Description: Training that prepares Participants for employment or further study, or supports their existing connection to the workforce, by building vital foundation skills in language, literacy, numeracy and digital literacy (LLND), boosting their communication skills, engagement, and confidence.		Activity Code: OAPG - LN Job Plan Code: N/A
Eligibility: aged 15 years and over, and have left school, an Australian citizen, permanent resident or on an eligible ⁶ provisional or temporary visa, suitable for training without significant barriers to successful participation	Duration: Up to 2 years for an individual referral (iterative referrals are available until the participant achieves an exit benchmark)	Specified Activity: No
PBAS: Yes – Please refer to the PBAS points values for tasks and activities in the Points Based Activation System factsheet	Activation eligible: Yes – approved activity or Provider-assessed	Progress Payment: Yes – education
Participant Payment: \$20.80 per fortnight Language, Literacy and Numeracy Supplement if eligible	Host Payment: N/A	Provider Payment: N/A

This Chapter outlines the requirements for Providers with regard to the Skills for Education and Employment (SEE) program. Please see the [Provider Portal](#) for more information about the program.

26.2. Background

Low levels of literacy, numeracy and basic digital skills can be a significant barrier to even entry-level employment. However, they are able to be addressed.

⁶ Provisional or temporary visa with working rights and eligible for the Adult Migrant English Program

The SEE program provides free accredited and non-accredited training in English language, reading, writing, maths and digital skills, to prepare Participants for work or further study or strengthen their connection to existing employment. The program addresses the foundation skill gaps that limit individuals' employment options and prevent their successful engagement in training for a specific occupation.

SEE courses can focus on language and literacy only, for example a Certificate in General Education for Adults, or numeracy and digital skills, or contextualised to support learning for those undertaking VET courses such as Childcare or Aged Care certificates. Workforce Australia Participants can undertake SEE in classroom settings, via distance learning, or using a combination of both. Participants may undertake individual building blocks of a course focusing on specific skill sets, or work toward a recognised qualification up to Certificate III level with LLND skills embedded in the training. Training is tailored to meet a Participant's needs and goals and both part-time and full-time options are available.

26.3. Benefits of SEE

SEE prepares Participants for employment or further study by building vital foundation skills in language, literacy, numeracy and digital literacy, boosting communication skills, engagement, and confidence.

Participation in SEE meets a Participant's Points Requirement and will not have a Job Search Requirement under the PBAS. SEE can also be undertaken where the Participant would otherwise have Work for the Dole as a Mandatory Activity Requirement. Refer to the [Job Plan and Mutual Obligations Requirements Chapter](#) for more information.

The TCF does not apply directly for non-attendance in SEE. However, it can apply if the Participant fails to meet their Points Requirement through non-attendance and does not make up the points deficit another way.

26.4. Role of Providers

Providers have the responsibility to:

- work with their [local SEE Providers](#) and ensure they are familiar with SEE's service offering.
- actively identify Participants likely to benefit and discuss referral (the Participant may struggle to complete forms, or navigate online environments, or be identified in the [SEE Potential Clients Qlik App](#))
- ensure potential referrals are aware of the program, its flexible delivery options, and the opportunities and benefits it offers.
- engage with any concerns or hesitation and consider what supports can be provided.

The [SEE Foundation Skills Quiz](#) is an additional tool to help Providers clearly and confidently identify when a SEE referral is indicated.

26.4.1. SEE First Nations

SEE includes a training stream for First Nations communities. This stream supports the development of local, First Nations-led solutions addressing barriers to access and delivery in First Nations communities.

SEE First Nations is a competitive grant opportunity and there are a limited number of projects. Additionally, as SEE First Nations are community designed and led, they will be aligned to the needs of each community and may not all be directly related to employment outcomes. Projects may also have identified the potential cohort for their respective projects.

Due to the community-led nature of these projects, Providers cannot initiate referrals under this stream. If First Nations Participants enquire about SEE First Nations training:

- Providers may advise them if there is a SEE First Nations project in their community. A list of approved First Nations Delivery Grants is available on the department's website. www.dewr.gov.au/skills-education-and-employment/see-first-nations.
- If there is a project in their community, Providers must contact the SEE First Nations Delivery grantee to discuss referral, participation requirements and eligibility, prior to any referral being entered into the Department's IT Systems. Note: both the Participant and grantee must agree to a referral.
- Providers may also offer to explore other options available in General SEE, which is also available to First Nations Participants, should a SEE First Nations training project be unsuitable.

Where an individual has been identified by a SEE First Nations Delivery grantee and is registered with a Workforce Australia Employment Services Provider, the SEE First Nations Delivery grantee may contact their Workforce Australia Employment Services Provider to discuss the job seeker's interest in the project and seek your assistance with a referral to the Activity.

(Deed Reference(s): Clauses 89, 90, 120, 136)

26.5. Eligibility

26.5.1. Eligibility

A Participant's eligibility for Workforce Australia Services will already cover most SEE eligibility criteria (see [Summary of Eligibility Criteria](#)). Individuals must also be aged 15 years and over, have left school and be deemed suitable for training without barriers that would prevent successful participation.

Participants are not required to be receiving an Income Support Payment or have Mutual Obligation Requirements to participate in SEE.

26.5.2. Suitability

Potential suitability and benefit will often be indicated by the Job Seeker Snapshot. Under the heading 'Skills for Education and Employment or Adult Migrant English Program', the word 'Yes' is displayed if the job seeker self-identified low ability in speaking, reading or writing English, required an interpreter during appointments, or completed less than year 10 schooling.



Providers should review the Participant's Job Seeker Snapshot and discuss potential referral to SEE with the Participant if any of the above indicators are present.

The [Adult Migrant English Program \(AMEP\)](#) also offers free language training to eligible migrants and humanitarian entrants. The guide [Differentiating between AMEP and SEE](#) was developed to help Providers refer clients to the most appropriate service for their needs.

26.6. Referral to SEE

After a potential SEE Participant is identified, the Provider must make a referral and book a Pre-Training Assessment (PTA) appointment in the Department's IT Systems. Once the referral and appointment booking have been received, a PTA is conducted by the SEE Provider. The PTA assesses the Participant's capability levels against the Australian Core Skills Framework (ACSF) and determines their capacity to benefit from the program.

The SEE Provider will advise the Participant and the Provider whether or not training is recommended and, if SEE is recommended, will commence the Participant in a course of study aligned to their goals and capabilities.

-  Providers refer Participants to SEE via the Department's IT Systems as an Activity. For detailed system steps refer to Knowledge Base Article [KB0017282 - Workforce Australia/Parent Pathways/Transition to Work – Activities – Adding a Referral to Skills for Education and Employment \(SEE\)](#).
-  Providers book a Pre-Training Assessment for a Participant via the Department's IT Systems. For detailed system steps refer to Knowledge Base Article [KB0017021 - Activities – Adding a Pre-Training Assessment \(PTA\) booking for a Skills for Education and Employment \(SEE\) referral](#).
-  SEE placement information must be entered in the Activity Management screen to ensure eligible Participants receive the Language, Literacy and Numeracy Supplement from Services Australia.

26.7. Monitoring Placements

Providers should liaise with the SEE Provider regarding the Participant's assessed capability levels and establish agreed communication protocols for advice on progression.

Where the SEE Participant lacks the capability to self-report their weekly attendance, the Provider will need to undertake this on the Participant's behalf. The Provider only needs to seek the Participant's personal confirmation of SEE attendance that week and ensure the Participant is aware of the consequences of a false declaration. Once the SEE Provider has entered actual attendance records in the system, or forwarded records to the Provider, any inconsistency should be followed up with the Participant.

The SEE Provider is responsible for exiting the Participant from SEE should they cease to attend training regularly and are not contactable to ascertain a reason. In this instance, the SEE Provider will notify the Provider.

No system steps are required of the Provider when the Participant is exited from the SEE program.

26.8. Completion of SEE

Average participation in SEE is approximately 8 months. SEE clients have 2 years in a single referral period to complete their chosen course(s) or qualification(s). They can continue to access the program, which may involve iterative referrals, until they achieve an exit benchmark, i.e. a Certificate IV in a foundation course or a Certificate III in a VET course. After 2 years in the program, a Participant may again access the program if a new PTA indicates further capacity to benefit.

No system steps are required of the Provider when the Participant completes a SEE referral.

26.9. Payments

Progress Payments are available to claim when the Participant's circumstances have changed during participation in Workforce Australia Services such that they are more prepared to gain and maintain Employment. For Progress Payments, Providers must refer to, and comply with, the requirements specified in the [Provider Payments and Vacancies Chapter](#).

Payment eligibility will often be evidenced by the Participant's Customised Training Plan (CTP), which summarises the Participant's SEE progress against the ACSF. A [guide to the CTP](#) is available via the [SEE page](#) of the Provider Portal.

Additional information on ACSF levels and the capabilities they typically indicate is available via the [SEE Client Capability Guide](#), which can be completed by the SEE Provider after assessments to help inform Providers' servicing decisions.

26.10. Transfer arrangements

Where a Participant already participating in SEE moves to the Provider from another Workforce Australia Employment Services Provider, a different employment service or from Workforce Australia Online, the Provider should support and encourage the Participant's continuation, particularly if they have not yet achieved an exit benchmark.

Chapter 27. Adult Migrant English Program

27.1. Chapter Overview

Description: Free English language tuition to eligible migrants.		Activity Code: AMEP Job Plan Code: N/A
Eligibility: aged 18 + (or 15-17 years in specific circumstances) and a permanent resident of Australia or hold an eligible temporary visa or be a citizen who previously held a permanent visa	Duration: Unlimited hours until vocational English is achieved	Specified Activity: No
PBAS: Yes – Please refer to the PBAS points values for tasks and activities in the Points Based Activation System factsheet	Activation eligible: Yes – approved activity or Provider-assessed	Progress Payment: Yes – education

This Chapter outlines the requirements for the Provider in regard to the Adult Migrant English Program (AMEP).

27.2. Background

The AMEP provides free English language tuition to eligible migrants and humanitarian entrants to help them learn foundation English language and settlement skills to enable them to participate socially and economically in Australian society.

Participants can access unlimited hours of English classes until vocational English is achieved for clients with a visa commencement date on or before 1 October 2020. No time limits for registration, commencement and completion apply.

Clients who have a visa commencement date after 1 October 2020 also have unlimited hours of tuition until vocational English is achieved, however a five-year completion timeframe applies. This can be extended to 10 years in certain circumstances.

27.3. Benefits of the AMEP

The AMEP gives participants the opportunity to learn the English that they need to get a job, help their children settle, and participate more in day-to-day life in Australia.

The AMEP provides a range of flexible learning options to help participants study, including full-time, part-time, evening and weekend classes.

It offers face-to-face and online classes, a volunteer tutor scheme and distance learning. The AMEP also provides free childcare services if participants have under school-aged children when participating in face-to-face classes.

AMEP Participants can gain points under the PBAS. The AMEP can also be undertaken where the Participant would otherwise have Work for the Dole as the Mandatory Activity Requirement. Refer to the [Job Plan and Mutual Obligation Requirements Chapter](#) for more information.

The TCF will not apply for non-attendance in the AMEP, however, it will apply if Participants fail to meet their Points Requirement.

27.4. Role of Providers

The role of the Provider is to be familiar with the AMEP and its requirements, and actively identify Participants on their Caseload who would benefit from attending the program.

The Provider should advise potential participants of the opportunities and benefits of the program including the varied delivery options. The Provider should offer additional support, including through the Employment Fund, where appropriate.

(Deed Reference(s): Clauses 89, 90, 120, 136)

27.5. Eligibility

Participants must generally be 18 years or over (15-17 years in specific circumstances as assessed by an AMEP provider), a permanent resident of Australia or hold an eligible temporary visa, or be a citizen who previously held a permanent visa. More information on eligibility is available by speaking to a local AMEP provider, or through the [Department of Home Affairs Website](#).

27.6. Payments

Progress Payments are available to claim when the Participant's circumstances have been changed during participation in Workforce Australia Services such that they are more prepared to gain and maintain Employment. Participation in AMEP may contribute towards a Progress Payment as an Education Activity. For Progress Payments, Providers must refer to and comply with the requirements specified in the [Provider Payments and Vacancies Chapter](#).

27.7. Further Information

For more information about the AMEP, including contact details for local AMEP providers is available on the [Department of Home Affairs Website](#).

Chapter 28. Other Activities

Supporting Documents for this Chapter:

- [List of Approved Non-Government Programs](#)
- [Non-Government Programs – Approval Application Form](#)
- [Non-Government Programs – Submission and Assessment Guide](#)

28.1. Chapter Overview

This Chapter outlines other Activities that the Providers may wish to consider in order to assist Participants to improve their employment prospects and/or manage or overcome vocational and non-vocational barriers to employment.

All Activities detailed in this Chapter are voluntary.

This Chapter includes the following Activities that may be undertaken by Participants to meet participation requirements as outlined in the [Job Plan and Mutual Obligation Requirements Chapter](#):

- Non-Government Programs
- non-vocational assistance and interventions, for example
 - counselling
 - drug and alcohol treatment/rehabilitation
 - medical or health related programs
 - self-help and support groups
- other government programs
- Australian Defence Force Reserves.

Note: Some of the Activities above are described as Engagements in the Deed where they must be recorded in the Electronic Calendar.

28.2. Role of Providers

The Provider must refer to and comply with the Deed and Guidelines including:

- the [Activity Management Chapter](#), and
- [Employment Fund Chapter](#) should they seek reimbursement from the Employment Fund for participation costs

in relation to the Activities described in this Chapter.

The Provider will need to determine if the Activity will be of benefit to the Participant, help support the Participant to progress towards employment, and is appropriate for the Participant's individual circumstances and capacity.

The Provider should also consider whether the Activities will prepare Participants to meet skills needs identified by Employers.

The Provider should be familiar with programs and services that are available in their local area, including keeping up-to-date with the available Non-Government Programs and the offerings of the relevant state, territory and local governments.

(Deed Reference(s): Clauses 89, 90, 91, 120)

28.3. Eligibility

Specific eligibility criteria vary between Activities. The Provider must ensure a Participant meets the relevant eligibility criteria before referring them to an Activity listed in this Chapter.

The Provider and Participant must also agree that the Activity will help address Vocational or Non-vocational Barriers and support the Participant on their pathway towards employment.

28.4. Payments

Progress Payments are available to claim when the Participant's circumstances have been changed during participation in Workforce Australia Services such that they are more prepared to gain and maintain employment. Participation in Activities described in this Chapter may contribute towards a Progress Payment. For Progress Payments, Providers must refer to and comply with the requirements specified in the [Provider Payments and Vacancies Chapter](#).

28.5. Non-Government Programs

Description: A broad range of work-focused programs or vocational interventions approved by the Department and identified as such on the Provider Portal.		Activity Code: ANGP Job Plan Code: N/A
Eligibility: aged 18+, noting that programs may have additional eligibility criteria	Duration: Approved programs may have rolling intakes and varying durations.	Specified Activity: Yes
PBAS: Yes – Please refer to the PBAS points values for tasks and activities in the Points Based Activation System factsheet	Activation eligible: Yes – Provider-assessed	Progress Payment: Yes - vocational intervention

Non-Government Programs (NGPs) are work-focused programs or vocational interventions run by community and private sector organisations.

NGPs must be approved by the Department (see the [Approved NGP](#) section below) to be eligible for a Progress Payment, noting the Provider must still confirm participation in the approved NGP meets the criteria for the Progress Payment as outlined in the [Provider Payments and Vacancies Chapter](#).

Participants in an NGP can gain points under the PBAS. Refer to the [Job Plan and Mutual Obligation Requirements Chapter](#) for more information.

The TCF will not apply for non-attendance in NGPs, however, it will apply if Participants fail to meet their Points Requirement.



The Provider must refer participants to NGPs in accordance with the Department's training resources.

Note: The Provider may be able to seek reimbursement from the Employment Fund under the Activities Costs category for NGPs. However, departmental approval of an NGP does not constitute

automatic approval of any costs in relation to the Employment Fund. Providers must ensure use of the Employment Fund meets all Guideline requirements, including the Employment Fund Principles and Prohibited purchase list, as outlined in the [Employment Fund Chapter](#).

28.5.1. Eligibility

Eligible Participants

To be eligible to participate in an NGP, a Participant must be:

- aged 18 years or over
- registered in Workforce Australia Services.

Participants are not required to be receiving an Income Support Payment.

Eligible Host Organisations

The Provider is not eligible to be a Host Organisation for the purpose of delivering an NGP. However, the Provider is able to collaborate with local organisations with established or proposed employment pathways, and encourage them to apply to be recognised as a NGP. To be eligible as a Host Organisation of an NGP, the organisation must:

- not be prohibited due to its conduct as outlined in the [Eligible Host Organisations](#) section of the [Activity Management Chapter](#)
- have developed a program that comprises more than just the delivery of a training course – those that are only training should instead be assessed and, where appropriate, arranged by Providers in accordance with the [Education and Training Chapter](#).

28.5.2. Approved NGP

The Department will approve NGPs following assessment against the criteria outlined in the NGP application form on the Department's website. Factors that will be considered include the need for a work or vocational focus and ensuring the NGP does not duplicate Workforce Australia Services.

Approved NGPs will not be hosted by the Provider, Related Entities or Subcontractors.

28.5.3. NGPs are Specified Activities

 NGPs are Specified Activities. The Provider must comply with the requirements in the Deed and Guidelines regarding Specified Activities. This includes requirements relating to:

- work health and safety
- Activity Risk Assessments and Participant Risk Assessments, and
- Supervision

described in the [Activity Management Chapter](#).

28.6. Non-vocational assistance and interventions

Description: A broad range of assistance and interventions for Participants to manage or overcome non-vocational barriers to employment.		Activity Codes: ASNV - Non-vocational Assistance INTV - Interventions Job Plan Code: N/A
Eligibility: Variable. The Provider must determine it is in the best interests of the Participant.	Duration: As considered appropriate by the Provider.	Specified Activity: No
PBAS: Yes – Please refer to the PBAS points values for tasks and activities in the Points Based Activation System factsheet .	Activation eligible: Yes – Provider-assessed	Progress Payment: Yes - non-vocational interventions

Participants can undertake activities to help address Non-vocational Barriers to employment at any time the Provider thinks it is in the best interest of the Participant.

Non-vocational assistance and interventions may include:

- parenting courses
- financial courses
- mental health support services
- cultural services
- personal development, such as addressing self-esteem and confidence issues
- drug or alcohol treatment/rehabilitation programs
- counselling
- medical or health related services
- anger management courses
- treatment for behavioural addictions
- obtaining stable housing
- addressing barriers associated with caring responsibilities
- addressing financial instability/difficulty
- addressing transport access issues.

Arranging these interventions may include:

- the assistance of a:
 - doctor
 - counsellor
 - psychologist
 - social worker

- allied health professional
- rehabilitation provider
- self-help programs
- support groups
- driving lessons
- referral to appropriate government, health, community or private organisations.

Non-vocational assistance can be delivered either in-person or, where appropriate, via video or teleconference.

The Provider may be able to seek reimbursement from the Employment Fund under the Non-Vocational Support and Professional Services categories for non-vocational assistance and interventions. The Provider should refer to the [Employment Fund Chapter](#) for further information including regarding limits that can be claimed for Professional Services delivered by the Provider's Own Organisation or Related Entities.

Participants undertaking non-vocational assistance and interventions can gain points under the PBAS. Refer to the [Job Plan and Mutual Obligation Requirements](#) Chapter for more information.

The TCF will not apply for non-attendance in non-vocational assistance and interventions, however, it will apply if Participants fail to meet their Points Requirement.

As outlined in the [Mutual Obligation Requirements](#) section, Participants who are undertaking full-time residential or intensive drug and alcohol treatment or rehabilitation will not be required to have a Points Requirement for the duration of the intervention. These Participants remain on the Provider's caseload and continue to be serviced by the Provider while undertaking these interventions.



The Provider **must** retain evidence (either hard copy or soft copy) of invoices for services or a letter of acceptance into a program for non-vocational interventions).



The Provider must enter non-vocational assistance and intervention Activities in the Department's IT Systems and refer participants to these Activities in accordance with the Department's training resources.

28.7. Australian Defence Force Reserves

Description: Participation in the Australian Defence Force Reserves.		Activity Code: MDF Job Plan Code: N/A
Eligibility: Available to Participants who can meet the enlistment and ongoing standards required by the Defence Reserves.	Duration: Ongoing, hours dependent on commitment	Specified Activity: No

PBAS: Yes – Please refer to the PBAS points values for tasks and activities in the Points Based Activation System factsheet	Activation eligible: Yes – Provider-assessed	Progress Payment: Yes – work placements
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Australian Defence Force Reserves is an Activity available to Participants who can meet the enlistment and ongoing standards required by the Australian Defence Force Reserves.

The Australian Defence Force Reserves offers a Participant the opportunity to provide a service to the community and train and develop self-discipline, focus and leadership. Reservists develop skills and experience through formal Defence courses, ongoing training, and on the job, as they put their skills into practice.

Participants in the Australian Defence Force Reserves can gain points under the PBAS. Refer to the [Job Plan and Mutual Obligation Requirements](#) Chapter for more information.

The TCF will not apply for non-attendance in Australian Defence Force Reserves, however, it will apply if Participants fail to meet their Points Requirement.

The Provider will have the ability to update the Placement Type during the Activity Placement to reflect changes to the Participant's participation.



The Provider **must** retain evidence (either hard copy or soft copy) of signed training notice or signal notice (for Defence Force Reserves).



The Provider must refer Participants to this Activities in accordance with the Department's training resources.

28.8. Other government programs

Description: Commonwealth, state, territory or local government program that vary between jurisdictions.		Activity Code: OAPG Job Plan Code: N/A
Eligibility: aged 15+, noting that programs may have additional eligibility criteria	Duration: Variable	Specified Activity: No
PBAS: Yes – Please refer to the PBAS points values for tasks and activities in the Points Based Activation System factsheet	Activation eligible: Yes – Provider-assessed	Progress Payment: Yes – work placements (where the other government program has an employment focus)



Providers must ensure that there is a safe system of work in place prior to referring a Participant to another government program.

Participants can undertake other government programs, including other Australian Government, state, territory or local government programs, where the Provider and Participant agree that

participation would support the job seeker to progress towards employment, and that participation would be suitable and safe for the Participant.

Other government programs should not duplicate services Providers are contracted to deliver.

Participants in other government programs can gain points under the PBAS. Refer to the [Job Plan and Mutual Obligation Requirements Chapter](#) for more information.

The TCF will not apply for non-attendance in other government programs, however, it will apply if Participants fail to meet their Points Requirement.

Other government programs available to Participants vary between jurisdictions. Providers can contact their relevant state, territory or local government for up-to-date information on their range of programs available.



The Provider must enter other government program Activities in the Department's IT Systems. and refer participants to these Activities in accordance with the Department's training resources.

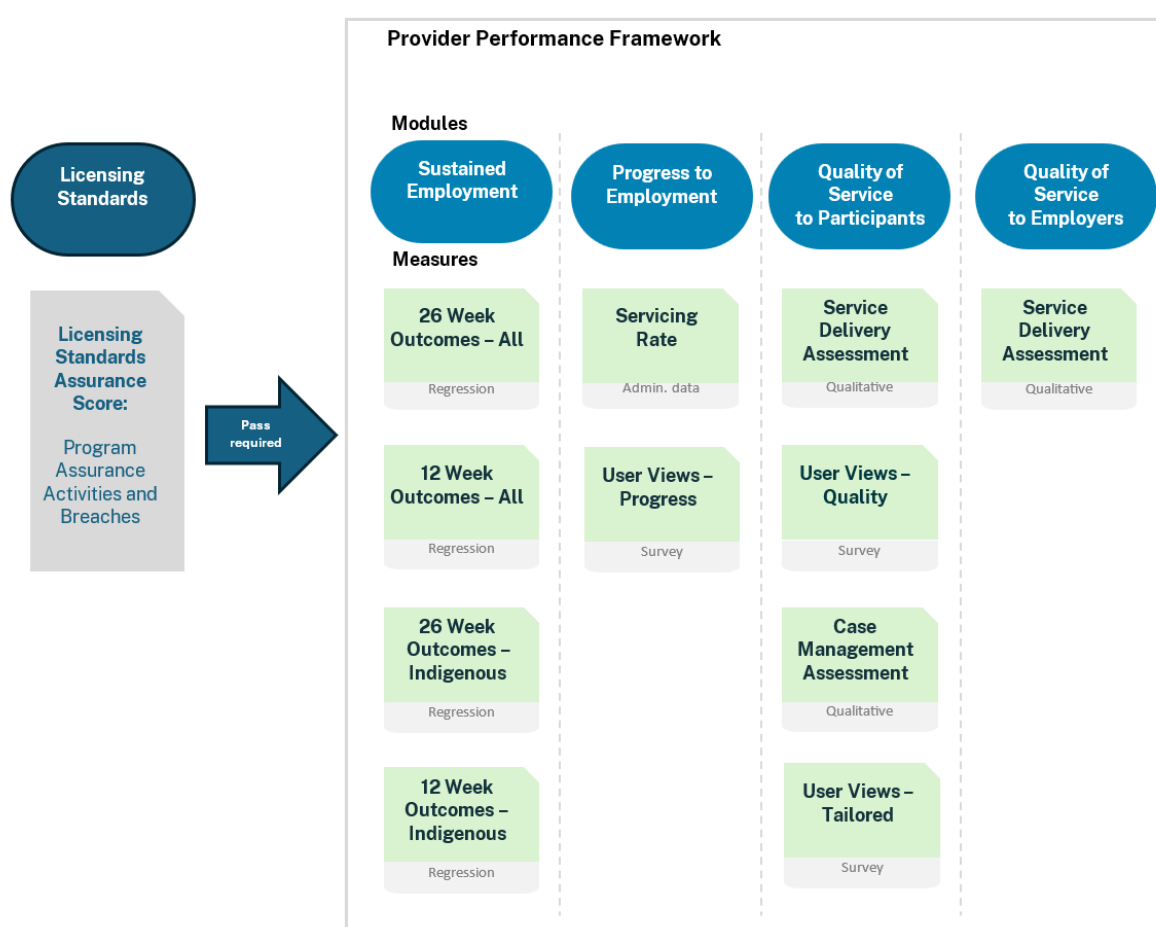
Chapter 29. Provider Performance Framework

29.1. Chapter Overview

Provider performance is assessed using the Workforce Australia Employment Services Provider Performance Framework (the Provider Performance Framework) as shown in Figure 29-A. This chapter describes the Provider Performance Framework, its 4 modules and the licensing standards pre-requisite to receive a performance rating. The Provider Performance Framework is intended to:

- ensure Participants and employers are getting tailored and quality servicing, and
- encourage innovation and drive performance improvement.

Figure 29-A: The Workforce Australia Employment Services Provider Performance Framework



29.2. Licensing Standards Pre-requisite

To qualify to receive a quarterly performance rating against the Provider Performance Framework, Providers must first meet the minimum licensing standards pre-requisite. This is calculated through the Licensing Standards Assurance Score (LSAS) and ensures that Providers meet the standards required to operate.

The LSAS is a demerit-based score for which each Licence starts with a score of 100. Demerits are applied based on results against the following elements:

- Compliance against the Deed, including Guidelines and Supporting Documents; and
- Results from Assurance activities, as undertaken by the Department to review Provider transactions and ensure they conform with Deed and Guidelines requirements.

The LSAS is calculated quarterly prior to the release of performance ratings, and comprised of data released as follows:

- Compliance activities: in the relevant month finalised;
- Targeted Assurance Activities: in the relevant month finalised; and
- The Continuous Assessment of Payment Integrity: on a quarterly basis.

Minimum Standards

- **Licensing Standards Met:** An LSAS of **95 or above** out of 100 ensures eligibility for a quarterly performance rating against the Provider Performance Framework.
- **Licensing Standards Not Met:** An LSAS **below 95** out of 100, is classified as “Licensing Standards not met”. Providers will not receive an Overall Performance Rating for the relevant Licence for that quarter. This result will be displayed publicly on the Department’s website in the ratings table. To support continuous improvement, Licences that do not meet the minimum licensing standards will still receive their performance data through the Qlik App.

29.3. Provider Performance Framework

The Provider Performance Framework is a comprehensive and holistic assessment for each licence of Provider performance across 4 modules. The underpinning performance measures include both quantitative and qualitative metrics and the frequency of assessment varies depending on the type of measure.

The modules and measures may be refined over time with Providers being notified of any changes. Supporting documents provide detailed descriptions of the methodology for each of the measures.

For each licence, a performance rating of High, Moderate or Low is awarded for each measure, then measure ratings are aggregated to determine module ratings of High, Moderate or Low. Module ratings are aggregated to determine overall ratings of High, Moderate or Low – shown in performance reports as HIGH, MOD or LOW.

From 1 January 2026, where a rating is not available the reason is shown in reporting as follows:

- ‘INS’ (insufficient data) - is applied where insufficient data is available to calculate a rating
- ‘NR’ (No Rating) – is applied where a performance measure and/or module has been identified for review
 - when NR has been applied performance measure data may still be released to Providers to support them to manage and improve their own performance.
- ‘Not Reported’ – is applied for new licences that commenced operating from 1 July 2025, while performance data matures.
- ‘NA’ (Not Available) – due to licence specialisation type.

To ensure the Provider Performance Framework continues to drive continuous improvement, regular reviews are conducted of the performance thresholds required to achieve performance ratings for each module and their performance measures.

The performance ratings inform Provider performance treatments, for example a performance improvement plan, and Licence Review decisions. For more information about the Licence Review refer to the [Licence Administration Chapter](#).

(Deed Reference(s): Clause 92)

29.3.1. Overall Performance Ratings

Module ratings for each Licence are used to determine overall ratings as set out in Table 29-A.

Table 29-A: Overall Performance Ratings

Performance Category	Requirements
High Performance	A High rating for the Sustained Employment module. AND At least Moderate ratings for all other modules.
Moderate Performance	At least Moderate ratings for all modules
Low Performance	A Low rating for any module.

29.3.2. Progress to Employment Module

This module assesses the success of the Provider in progressing Participants towards Employment via 2 performance measures:

- Participant Servicing Rate
A quantitative measure of the extent to which Providers deliver regular services to eligible Participants on their Caseload.
- User Views - Progress
A survey-based measure of Participant views on whether Providers have improved their chances of finding employment.

The performance measure ratings are used to determine module ratings as set out in Table 29-B.

Table 29-B: Progress to Employment Module Ratings

Performance Category	Requirements
High Performance	One or both measures rated High and no Low rating
Moderate Performance	Does not meet the requirement for a High or Low Module rating
Low Performance	One or both measures rated Low

29.3.3. Quality of Service to Participants Module

This module assesses the success of the Provider in delivering high quality services to Participants via 4 performance measures.

- **Service Delivery Assessment – Participants**
A qualitative assessment of each Provider’s quality of service to Participants.
- **User Views - Quality**
A survey-based assessment of the Participant experience of the quality of service delivered by each Provider.
- **User Views - Tailored**
A survey-based measure focusing on the extent to which Participants agree the support offered by their Provider matches their needs.
- **Case Management Assessment**
A qualitative assessment of each Provider’s ability to personalise services to individual circumstances of Participants on their Caseload.

The performance measure ratings are used to determine module ratings as set out in Table 29-C.

Table 29-C: Quality of Service to Participants Module Ratings

Performance Category	Requirements
High Performance	One or more measures receive High ratings and no Low rating
Moderate Performance	Does not meet the requirement for a High or Low Module rating
Low Performance	One or more measures receive a Low rating

29.3.4. Quality of Service to Employers Module

This module assesses the success of the Provider in delivering high quality services to Employers via the Service Delivery Assessment – Employers measure. This measure is a qualitative assessment of each Provider’s quality of service to Employers.

The rating for this measure is also the rating for the module.

29.3.5. Sustained Employment Module

This module assesses the success of Providers in their Participants achieving sustained employment outcomes via 4 quantitative outcome rate performance measures.

- 26 Week Outcomes – All Participants
- 12 Week Outcomes – All Participants
- 26 Week Outcomes – Indigenous Participants
- 12 Week Outcomes – Indigenous Participants

Generalist and Ex-Offender specialist Licences receive ratings for all 4 measures. Indigenous specialist Licences receive ratings for the 2 Indigenous Participant measures. Culturally and Linguistically Diverse and Refugee specialist Licences receive ratings for the 2 All Participant measures.

For Licences with 4 measure ratings, the performance measure ratings are used to determine module ratings as set out in Table 29-D.

Table 29-D: Sustained Employment Module Ratings for Licences with 4 Measure Ratings

Performance Category	Requirements
High Performance	High in 2 or more measures (and not being one of the exceptions detailed below) AND not Low in any measure
Moderate Performance	Does not meet the requirement for a High or Low Module rating
Low Performance	Low in 2 or more measures

High Performance – Exceptions

In the following situations, a Licence that achieves 2 High measure ratings and 2 Moderate measure ratings receives a module rating of Moderate:

- The 2 High ratings are for the 2 – All Participant measures, indicating that the Licence has not achieved comparably high results for their Indigenous Participants.
- The 2 High ratings are for the 2 Indigenous Participant measures, indicating that the Licence has not achieved comparably high results for All Participants.
- The 2 High ratings are for the two 12 Week Outcome measures, indicating that the Licence has not been highly effective at sustaining employment placements for 26 weeks.

For Licences with 2 measure ratings, the performance measure ratings are used to determine module ratings as set out in Table 29-E.

Table 29-E: Sustained Employment Module Ratings for Licences with 2 Measure Ratings

Performance Category	Requirements
High Performance	High in both measures
Moderate Performance	At least Moderate in both measures
Low Performance	Low in one or both measures

29.4. Performance Thresholds

Each measure has 2 performance thresholds that define the 3 performance ratings:

- The upper threshold is the cut-off between High and Moderate
- The lower threshold is the cut-off between the Moderate and Low

The performance rating for each measure is determined by comparing a Licence's result against the performance thresholds for that measure.

29.4.1. Annual Performance Threshold Adjustment Process

The Provider Performance Framework is designed to drive continuous improvements in performance by adjusting performance thresholds over time, where appropriate.

The thresholds are evaluated annually between April and May each year, Providers are advised of any adjustments for the upcoming financial year in June each year.

29.5. Release of Performance Ratings

The Department calculates and releases quarterly performance ratings.

29.5.1. Public Release

Overall ratings, module ratings and measure ratings are released on the Department website 1 week after each Provider receives their own performance ratings. In addition, quarterly performance ratings are shared with Services Australia for use in the referral process.

29.5.2. Reports

To support Providers to manage their own performance, they receive regular reports. Table 29-F details when performance measure data were first distributed to Providers and the frequency of updates.

Table 29-F: Reporting of Performance Measure Data

Module	Measure	Performance Measure Data Reports	
		First Report Distributed	Frequency of Updates
Progress to Employment	User Views – Progress	June 2023	Quarterly
	Participant Servicing Rate	December 2022	Monthly
Quality of Services – Participant	User Views – Quality	June 2023	Quarterly
	Service Delivery Assessment – Participants	April 2023	Biannually
	User Views – Tailored	March 2026	Quarterly
	Case Management Assessment	June 2026	Biannually
Quality of Services – Employer	Service Delivery Assessment – Employers	April 2023	Biannually
Sustained Employment	26 Week Outcomes – All Participants	March 2023	Monthly
	26 Week Outcomes – Indigenous Participants	March 2023	Monthly
	12 Week Outcomes – All Participants	December 2022	Monthly

	12 Week Outcomes – Indigenous Participants	December 2022	Monthly
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29.6. Provider under-performance

The Department will work in partnership with Providers to clarify and resolve any issue(s) to help improve performance against all measures in the Provider Performance Framework.

Assessment of Provider performance is ongoing, and Providers must at all times make efforts to improve their performance.

The Department may also undertake a Licence Review to make a holistic assessment of performance. For further information refer to the [Licence Administration Chapter](#).

Provider performance ratings and licence review outcomes help the Department determine when to implement performance management action where performance at the licence level is less than satisfactory.

Action the Department may take, at any time, to address poor performance includes:

- a requirement for the Provider to enter into a Performance Improvement Plan (PIP),
- a reduction in the Provider's business share,
- any other action under the terms of the Deed, including non-extension or ceasing of a licence.

The Department will work with Providers holding licences with conditional extensions.

29.6.1. Performance Improvement Plan

Where the Department determines a PIP is required to address poor performance, including where it results from a Licence Review, the Provider is responsible for developing and implementing strategies to improve its performance. The Department will negotiate the PIP details with the Provider.

The Department will regularly review progress against each of the performance priorities. The outcome of these reviews will inform decisions about whether a PIP will be ongoing or ceased. The PIP will include details of review points and expectations.

Progress against the areas for improvement addressed in a PIP may be a consideration for future licence review activity.

29.7. Periodic Review of Provider Performance Framework

The Department may periodically initiate broader reviews of the Provider Performance Framework to ensure the framework is driving the overall policy intent of the model. Such reviews could result in the Department making changes to the framework, such as adding, removing, or adjusting modules and/or measures and their thresholds.

Chapter 30. Quality Assurance Framework

Supporting Documents for this Chapter:

- [Quality Assurance Framework Audits Process document for Providers](#)

30.1. Chapter Overview

The Quality Assurance Framework (QAF) sets out the minimum standards of quality for Workforce Australia Employment Services Providers, ensuring their policies and processes support continuous improvement and quality service delivery.

This Chapter contains detailed information on the requirements for Providers to achieve and maintain QAF Certification.

30.2. QAF Certification

To obtain QAF Certification, Providers must:

- achieve certification against one of the 2 approved Quality Standards
- demonstrate adherence to the Department's Quality Principles, and
- achieve certification against Right Fit For Risk.

QAF Certification is valid for 3 years, or as approved by the Department, and ongoing Certification is subject to the Department being satisfied that the Provider continues to be certified against the Quality Standards, Quality Principles and has met the required Right Fit For Risk milestone.

Providers must obtain a QAF Certificate no later than 9 months after any Head Licence Start Date, unless otherwise Notified by the Department, and maintain the currency of the Certificate for the duration of the Head Licence Term.

(Deed Reference(s): Clause 7.1, 7.4, 95.1, 95.5)

30.2.1. Group Respondents (including change of membership)

Where the Provider is a Group Respondent, the lead member must achieve and maintain Certification against the QAF. All Sites listed in the Provider's Head Licence are within scope for audit Site sample. When conducting Quality Principles audits, the head office must be included.

If there is a change in Group membership, the new Group Respondent must gain or maintain QAF Certification.

(Deed Reference(s): Clause 54.1)

30.2.2. Novations

Following execution of a Deed of Novation, the Provider must achieve or demonstrate adherence to QAF Certification as specified in the Deed of Novation, and in line with QAF Certification requirements in this Guideline.

(Deed Reference(s): Clause 60.3)

30.3. The Quality Standards

The Quality Standards approved by the Department under the QAF are:

- ISO 9001
- the National Standards for Disability Services (NSDS).

For QAF purposes, the scope of all Quality Standard audits must include a Provider's Workforce Australia business.

The Provider must choose one of these Quality Standards to be certified against as part of its QAF Certification. If the Provider changes to a different approved Quality Standard during the term of its Head Licence, it must achieve Certification against the new Quality Standard prior to the expiry date of its previous certification.

The Provider must be delivering Inclusive Employment Australia if using NSDS for QAF Certification. Providers who have previously used NSDS to meet their Quality Standards requirements that do not deliver Inclusive Employment Australia must transition to ISO 9001 before the expiry of their NSDS Quality Standard Certification.

30.3.1. Quality Standards Audits

The Provider must engage a Conformity Assessment Body (CAB) that has been accredited by the [Joint Accreditation Scheme of Australia and New Zealand](#) (JAS-ANZ) to undertake ISO 9001 or NSDS audits.

Quality Standards Audit Plan

-  The Provider must send a completed Quality Standards Audit Declaration form and submit it with the associated Quality Standards Audit Plan to the Department for approval **40 Business Days** before the commencement of the audit.

These documents are required for all Quality Standards Audits (Certification, Surveillance and Recertification) to ensure the sample included in the audit is representative of Workforce Australia Services business.

The Department will approve or request changes to the Audit Plan documentation **within 25 Business Days** of receipt.

Where **approved** Quality Standards Audit Plan documentation changes prior to the audit start date, the Provider must send updated Audit Plan documentation to the Department for reapproval before the Quality Standards Audit commences.

Quality Standards Audit Report

-  Within **30 Business Days** of a Quality Standards Audit closing meeting, the Provider must submit the Quality Standards Audit Report to the Department, along with copies of any new or updated Certificates as evidence of Quality Standard Certification.
-  The Department will respond to the outcomes of the Quality Standards Audit Report within **15 Business Days** of Audit Report receipt.

A Provider must notify the Department immediately if its Quality Standards Certification lapses or is suspended.

(Deed Reference(s): Clauses 95.2, 95.3 and 95.4)

Quality Standard Non-conformances

Providers must close any non-conformance identified in a Quality Standards Audit within the timeframe provided by the Quality Auditor.

Any non-conformance raised against a Quality Standard that results in the suspension of certification against that Quality Standard may result in QAF Certification being suspended and remedial action being taken against the Provider.

(Deed Reference(s): Clause 95.4)

30.4. Quality Principles

Quality Principles are underpinned by Practice Requirements that the Provider must meet to ensure their policies and processes support continuous improvement and quality service delivery. The Quality Principles are:

1. Participants and Personnel
2. Labour Market, Employers and Community, and
3. Operations and Work Health and Safety.

The Practice Requirements and associated Evidence Requirements to support the Quality Principles are outlined at [Attachment 30A](#).

30.4.1. Quality Principles Certification

A Provider must achieve, and maintain, certification against the Quality Principles by fulfilling all the requirements of the Quality Principles, including following the audit schedule.

For the purposes of Quality Principles Certification, Providers must refer to the [Quality Assurance Framework Audit Process document for Providers](#) in relation to how the Department manages the QAF Certification process.

30.4.2. Quality Principles Audits

Initial Certification audit

Required to gain initial QAF Certification. Providers must engage a Conformity Assessment Body (CAB) that has been approved and included on the [Department Approved Quality Audit List](#) to complete this audit.

Surveillance audit

Conducted annually in-between Initial and Recertification audits through a Self-Assessment Report completed by the Provider. Providers have the option of completing the Self-Assessment Report themselves or engaging a CAB to assist them complete the report.

Recertification audit

Conducted every 3 years. Providers must engage a Conformity Assessment Body (CAB) that has been approved and included on the [Department Approved Quality Audit List](#) to complete this audit.

Extraordinary audit

The Department may conduct, or may request that a Quality Auditor conducts, an Extraordinary audit. The Provider is required to cover the audit costs.

The scope of an Extraordinary audit is determined by the Department on a case-by-case basis and will be targeted to a specific aspect, or aspects, of the Quality Principles.

Audit Schedule

Providers must engage a Department approved CAB to undertake Quality Principles Initial and Recertification audits. Quality Auditors nominated by approved CABs must complete the Department's required training before conducting a Quality Principles audit. The [list of approved Quality Principles CABs is on the Provider Portal](#).

The Provider is responsible for the costs associated with external audits.

Surveillance audits are conducted annually in between the Initial Certification and Recertification audits. Providers have the option of completing the Self-Assessment Report themselves or engaging a CAB to assist them complete the report.

Audit Type	Year	Requirements
Initial Certification Audit	Y0	Initial audit completed no later than 9 months after any Head Licence Start Date. Audit to be conducted by a CAB. Audit Report and Corrective Action Plan (if required) must be submitted to the Department for review and acceptance.
Surveillance Audit	Y1	Self-Assessment Report completed by Provider (or CAB) and submitted to the Department for acceptance. Where required a Quality Improvement Plan will be developed and closed with the Department's approval.
Surveillance Audit	Y2	A Self-Assessment Report completed by Provider (or CAB) and submitted to the Department for acceptance. Where required a Quality Improvement Plan will be developed and closed with the Department's approval.

Audit Type	Year	Requirements
Recertification Audit	Y3	Audit to be conducted by a CAB. Audit Report and Corrective Action Plan (if required) must be submitted to the Department for review and acceptance. NOTE: After completion of the Recertification audit, repeat the Surveillance audit cycle.
Extraordinary Audit	As initiated by the Department.	

30.5. Quality Principles Initial Certification and Recertification Audits

The Provider must achieve and maintain certification against the Quality Principles by fulfilling all the requirements of the Quality Principles, including following the audit schedule.

30.5.1. Quality Principles Audit Plans



A Provider **must** send a completed Quality Principles Audit Plan to the Department for approval for its Quality Principles Initial or Recertification audit no less than **40 Business Days** before the commencement of the audit.

Providers **must** use the Quality Principles Audit Plan template which is available on the [Provider Portal](#). Providers must refer to the 'QAF Audit Process document for Providers' in relation to sampling requirements.



The Department will advise approval or request changes to the Audit Plan within **25 Business Days** of Audit Plan receipt.



A Quality Principles Audit Plan is required for Initial and Recertification Quality Principles audits only.

Where an approved Quality Principles Audit Plan requires changes, the Provider must send this to the Department for reapproval before the Quality Principles audit commences.

30.5.2. Initial and Recertification Audit Reports



Providers **must** send a copy of the Quality Principles Audit Report to the Department **within 30 Business Days** of the audit closing meeting.



Providers must use the Quality Principles Audit Report template which is available on the Provider Portal.

(Deed Reference(s): Clauses 95.3, 95.4)

30.6. Initial and Recertification Audit Non-conformances

Any non-conformance identified during a Quality Principles Initial or Recertification audit must be listed in a Corrective Action Plan and closed in accordance with the requirements outlined below.

30.6.1. Quality Principles Non-conformances

Major non-conformance

A Major non-conformance is:

- a failure to have any process, or an effective process, in place for a Practice Requirement
- an identified [Minor non-conformance](#) that is the same as identified in the preceding audit (Certification or Recertification).

Major non-conformances must be closed or downgraded **within 3 months** of the audit closing meeting.

A Major non-conformance identified by the Department following a review of an Audit Report must be closed **within 3 months** of the date the Provider is advised of the non-conformance.

Quality Principles and QAF Certifications will not be granted or renewed until all Major non-conformances are downgraded to a Minor non-conformance or closed.

Failure to address a Major non-conformance within the required timeframes may result in an existing QAF Certification being suspended, and remedial action taken against the Provider.

(Deed Reference(s): Clauses 63.2, 67.1, 95.5)

Minor non-conformance

A Minor non-conformance is issued where the process in place for a Practice Requirement is only partially effective.

QAF Certification may be granted if Minor non-conformances are identified.

Minor non-conformances must be closed **within 6 months** of the audit closing meeting.

In the case of a Department-identified Minor non-conformance, the Minor non-conformance must be closed **within 6 months** from the date the Provider is advised of the Minor non-conformance.

If a Major non-conformance has been downgraded to a Minor non-conformance, the Provider must completely close the Minor non-conformance **within 6 months** of the audit closing meeting date.

That is:

- the non-conformance should be closed in a **maximum timeframe of 6 months** from the audit closing meeting date or,
- for non-conformances identified by the Department following a review of an Audit Report a **maximum timeframe of 6 months** from the date the Department advised the Provider of the additional non-conformance/s.

Failure to address a Minor non-conformance within the required timeframes may result in the QAF Certification being suspended and remedial action being taken against the Provider.

(Deed Reference(s): Clauses 63.2, 67.1, 95.5)

30.6.2. Non-conformances identified by the Department

The Department may issue a non-conformance for a Quality Principles audit where it is not satisfied that the evidence included in the Audit Report addresses the requirements or where it considers that the evidence in the audit report indicates a non-conformance.

The Department reserves the right to raise non-conformances where it has received information contrary to the Audit Report.

30.6.3. Quality Principles Corrective Action Plan

A Corrective Action Plan (CAP) must be submitted to the Department where non-conformances have been identified in a Quality Principles audit.

All CAPs **must** use the [Department's CAP template, available on the Provider Portal](#).

Corrective Action Plan

-  A CAP must be submitted to the Department no later than **30 Business Days** after the audit closing meeting or the Provider being notified of Department-identified non-conformances.
-  Where there is already a CAP in place relating to the Quality Principles audit, Department-identified non-conformances must be added to the existing CAP and submitted to the Department within the outlined timeframe.

Closing a CAP

-  When a non-conformance is closed, an updated CAP must be submitted to the Department by the Provider. The updated CAP must include verification by the Quality Auditor to close the relevant non-conformance.
-  Non-conformances identified by the Department following a review of an audit must be closed by a Quality Auditor.

30.7. Surveillance Audits

Surveillance audits occur annually between Initial and Recertification audits. Providers have the option of completing the Self-Assessment Report themselves or engaging a CAB to assist them complete the Self-Assessment Report.

30.7.1. Self-Assessment Report – 'Developing' Rating

Where a Provider, or the Department, has identified that a Practice Requirement has a rating of 'Developing', a Quality Improvement Plan (QIP) will be required. The Department will develop the initial draft of the QIP and send to the Provider for acceptance, action and closure.

A 'Developing' rating is applied where the process in place for a Practice Requirement does not fully meet requirements or is only partially effective and requires the Provider to implement agreed mitigations or strategies within 3 - 6 months (as advised by the Department).

Once the mitigations or strategies have been finalised, the Provider must submit the closed QIP to the Department for acceptance.

Quality Improvement Plan



An agreed and signed (open) QIP must be submitted to the Department no later than 30 Business Days after the Department has notified the Provider of the Self-Assessment Report review outcome and provided the draft QIP.

Closing a QIP



Once the QIP have been finalised (closed), the Provider must submit the QIP to the Department by the agreed closed date. The Provider will be notified when the Department has accepted the closed QIP.

30.8. Failure to obtain QAF Initial Certification

If a Provider fails to comply with Deed clause 95 – Quality Assurance Framework conformance, the Department may exercise remedies under the Deed, including terminating the Deed.

Workforce Australia Employment Services Providers who do not achieve certification against the QAF within 9 months of the issuance and commencement of their first Workforce Australia Services (Generalist or Specialist) Licence may have their Head Licence revoked.

30.9. Suspension of QAF Certification

The Department may suspend a Provider's QAF certification where (but not limited to):

- a Major non-conformance identified in a Quality Standards and/or Quality Principles Audit has been identified that poses a risk to the safety or wellbeing of Participants and/or Personnel
- a Minor or Major non-conformance identified in a Quality Standards and/or Quality Principles audit is not closed within the required timeframes, and the delay is not due to circumstances outside the control of the Provider
- the Provider does not submit its Quality Standards and/or Quality Principles Audit Report in time for the Certification to be renewed before the Certification expiry date.

If the Department suspends the Provider's QAF Certification or the Provider fails to comply with Deed clause 95 – Quality Assurance Framework conformance, the Department may exercise remedies under the Deed, including terminating the Deed.

(Deed Reference(s): Clauses 7.1, 7.4, 63.2, 95.5)

Attachment 30A. Quality Principles

Table 30-A: QAF Principle 2 - Participants and Personnel

Principle	Practice Requirement	Evidence Requirements
Principle 1 PARTICIPANTS and PERSONNEL	PR 1.1 The Provider has written communication policies or processes to engage Participants in line with the Service Guarantee, Guidelines and Deed requirements.	The policies or processes: a) include a variety of communication methods to meet individual Participant needs b) align with the Service Guarantee, Guidelines and Deed requirements.
	PR 1.2 Written policies or processes support Personnel to review Participant circumstances and implement strategies to gain and maintain employment.	There are policies or processes in place to ensure its Personnel: a) regularly review Participants' circumstances and provide tailored strategies to become more work ready b) commence Participants quickly after referral, suspension, exemption period, or where they fall out of employment c) record factual and informative notes in the appropriate system to ensure that Participants receive consistent service.
	PR 1.3 The Provider has written policies or processes in place for promoting and supporting employment opportunities to Participants.	There are policies or processes in place to ensure its Personnel: a) identify suitable employment opportunities for Participants b) promote suitable employment opportunities to Participants

Principle	Practice Requirement	Evidence Requirements
		c) deliver appropriate Post Placement Support.
	PR 1.4 Job Plans include activities, where relevant, to satisfy Mutual Obligation Requirements and Points Based Activation System targets, and Personnel are supported to undertake appropriate action under the Targeted Compliance Framework.	There are policies or processes in place to ensure: a) Job Plans have been discussed, are up to date, agreed and signed by Participants b) Job Plans are uploaded to the Department's IT system c) Participants are placed into suitable activities that enable them to meet Mandatory Activity Requirements d) Personnel understand the obligations delegated to them under the Social Security legislation in relation to the Targeted Compliance Framework, including the appropriate application to the Targeted Compliance Framework.

Table 30-B: Principle 2 - Labour Market, Employers and Community

Principle	Practice Requirement	Evidence Requirements
Principle 2 LABOUR MARKET, EMPLOYERS and COMMUNITY	PR 2.1 The Provider has written policies or processes in place to incorporate local labour market knowledge to meet current and future employment needs.	There are policies or processes in place to: a) assess current and future local labour market insights

Principle	Practice Requirement	Evidence Requirements
		b) implement strategies to address employment priorities and challenges.
	PR 2.2 The Provider has processes in place for assessing and meeting the needs of employers and Host Organisations including matching Participants with opportunities.	There are processes in place that ensure Personnel: a) engage, develop and maintain relationships with employers and Host Organisations b) assess the needs of employers or Host Organisations and match these with Participants on the caseload.
	PR 2.3 The Provider has policies or processes in place to support appropriate referrals to Services delivered by other agencies.	There are policies or processes in place to support Personnel to refer Participants to Services delivered by other agencies.

Table 30-C: Principle 3 - Operations and Work Health and Safety

Principle	Practice Requirement	Evidence Requirements
Principle 3 OPERATIONS and WORK HEALTH and SAFETY	PR 3.1 Changes in the Deed and Guidelines are accurately reflected in the Provider's systems, processes and practices.	The Provider has policies or processes that outline: a) how and when systems, processes and practices are updated following changes to the Deed and/or Guidelines b) how changes are communicated to Personnel.
	PR 3.2 Personnel with suitable skills and abilities deliver Services to Participants in accordance with Guidelines and Deed requirements.	There are policies or processes in place to ensure Personnel: a) have suitable skills and abilities to deliver Services to Participants

Principle	Practice Requirement	Evidence Requirements
		b) have obtained, and maintain, required National Police Checks and/or Working with Vulnerable People checks (as required by relevant legislations).
	PR 3.3 The Provider has policies or processes in place to manage suspected fraud and corruption compliance in accordance with the Deed and Guidelines.	The Provider has policies or process to: a) support Personnel in reporting any suspected fraudulent or corrupt activity b) ensure Personnel are aware of the various mechanisms available to report suspected fraud and corruption.
	PR 3.4 The Provider has policies or processes in place to ensure that Participants, employers and Host Organisations are advised of their privacy and confidentiality policies.	The Provider has policies or processes that ensure: a) Personnel follow privacy and confidentiality requirements in relation to Participants, employers and Host Organisations b) Participants are informed how their personal information may be used c) employers and Host Organisations are informed of privacy requirements in relation to Participants' personal information d) breaches of privacy or confidentiality are addressed in accordance with Guidelines and Deed requirements, and processes updated as required.

Principle	Practice Requirement	Evidence Requirements
	PR 3.5 The Provider has policies or processes in place to monitor and comply with applicable Work Health and Safety requirements and other relevant legislations.	The Provider has policies or processes in place that ensure: a) Provider Sites and Activities involving Participants have ongoing compliance with all applicable Work Health and Safety requirements b) Risk Assessments for Activities and Participants are completed and uploaded prior to the commencement of an Activity c) Personnel are aware of their responsibilities and respond to Work Health and Safety issues, including reporting issues and Notifiable Incidents d) processes are reviewed following a Work Health and Safety issue or incident and updated as required e) processes are updated quickly when there are changes to any applicable Work Health and Safety requirements.
	PR 3.6 The Provider's policies or processes ensure reimbursements and claims align with Guidelines and Deed requirements.	The Provider has policies or processes that ensure: a) reimbursements and claiming for Services align with Deed and Guidelines b) the approval processes for expenditure, reimbursements and claims are outlined in process documents c) incorrect or improper reimbursements and/or claims are addressed appropriately.

Chapter 31. Licence Administration

31.1. Chapter Overview

The Workforce Australia Services licensing system aims to drive high quality service delivery and support employment outcomes for Participants.

Each Workforce Australia Services Licence is part of a Head Licence, which is formed when the Department issues a Work Order to a Panel Member. This Chapter contains information about how the Department will undertake Annual Licence Reviews and novations of Head Licences.

For the purposes of this Guideline, the Panel Member is referred to as 'the Provider' once it has been issued with a Head Licence. Being a Panel Member does not guarantee the issuance of a Head Licence.

31.2. Licence Review

The Deed provides that the Department will assess Provider performance, including through Licence Reviews. In February 2025, the Department finalised the first Workforce Australia Services Licence Review. All Workforce Australia Services Licences were assessed under the Licence Review, allowing the Department to consider performance and other factors related to each Licence held by a Provider to ensure the best possible service to participants.

Under the first Licence Review the range of factors considered included:

- Provider Performance Framework ratings;
- the requirements of the Deed;
- the Guidelines;
- the Service Guarantee;
- the Joint Charter;
- relevant Commonwealth and State or Territory Laws;
- financial viability;
- any other value for money considerations;
- representations from Providers made in the original response to the Request for Proposal (2021); and
- any other factors with a reasonable connection to performance of the Deed.

All Licence Review recommendations were made by experienced staff within the Department. An independent Probity Adviser supported the Licence Review to ensure it was conducted in a fair, transparent, accountable and defensible manner.

Should the Department commence any future Licence Review process, information will be given to Providers by the Department prior to its commencement.

31.3. Novations

Deeds and Head Licences are not transferrable (i.e. cannot be novated) when organisations sell their business/es without the Department's agreement (in the form of a deed of novation).

Providers must not enter into any arrangement that might require the transfer (i.e. novation) of business under their Deed or Head Licence to another organisation, irrespective of whether that organisation is a Provider that is contracted to deliver Workforce Australia Services, or a Provider under any other deed the Department manages, without prior written approval from the Department. The Department's approval is not guaranteed, and any timeframes requested by a Provider on the effective date of any legal instrument cannot be guaranteed.

The rights and obligations under the Deed and any Head Licence remain with the Provider until otherwise approved by the Department and the relevant legal instrument (i.e. a deed of novation) takes effect.

Where the Department considers that a Provider has failed to comply with its obligations regarding assignment and/or novation, the Department may potentially exercise its rights under clause 67 to terminate or reduce the scope of the Deed or the Provider's Head Licence, which would include ending all relevant Licences.

(Deed Reference(s): Clause 60, 67)

Chapter 32. Capacity Building Fund

Supporting Documents for this Chapter:

- [Acquittal Summary Form](#)

32.1. Chapter Overview

A Capacity Building Fund (the Fund) has been established to support greater diversity in the employment market through two key elements; assisting small Workforce Australia Services Providers to establish themselves under Workforce Australia Services and to build the capacity of First Nations organisations to deliver employment services.

Specifically, the Fund is available to eligible Workforce Australia Services Providers to provide financial assistance in helping cover some of the costs associated with attaining the required quality assurance standards these being ISO 9001 or National Standards for Disability (NSDS) and/or the Department's Right Fit for Risk (RFFR) IT security accreditation.

The Fund is also available to the National Indigenous Employment and Training Alliance (NIETA) to provide financial support in building the capacity of new and emerging First Nations organisations in delivering employment services. Using the Capacity Building Fund, the Department will work in partnership with NIETA to co-design projects that will help improve employment opportunities for Aboriginal and Torres Strait Islander Peoples and progress under the National Agreement on Closing the Gap.

This section sets out who is eligible for the Fund, guidance around the kinds of costs can be reimbursed under the Fund and how claims for reimbursement can be lodged.

32.2. Provider Eligibility

For a Workforce Australia Services Provider to be eligible for the Fund, all 3 of the following criteria must be met:

- the Provider has been issued a Head Licence, and
- is a Small Business Entity, and
- does not currently have or has not previously been required to have, under any agreement with the Commonwealth Government for the delivery of employment services,
 - ISO 9001 or NSDS certification, and/or
 - the Department's RFFR accreditation for information security.

Workforce Australia Services Providers may be eligible to claim reimbursement of Right Fit for Risk (RFFR) costs through the Capacity Building Fund where the Provider's RFFR requirements have increased due to their Workforce Australia Services Licence(s). This includes eligible Small Business Entity Providers, who previously were required to meet RFFR accreditation requirements under any agreement with the Commonwealth Government for the delivery of employment services prior to being granted a Workforce Australia Services Licence.

Capacity Building for First Nations Organisations

The Capacity Building Fund eligibility has been broadened to allow NIETA to co-design projects to build the capacity of the Aboriginal community-controlled sector. Contracting arrangements with NIETA will be undertaken via a grant opportunity process.

(Deed Reference(s): Clauses 98.2, 98.3)

32.2.1. Small Business Entity (SBE)

At the time a Head Licence is issued, the Provider must be a Small Business Entity (SBE) as defined by the Australian Taxation Office. That is, the Provider's aggregated turnover (being all ordinary income that the Provider earned in the ordinary course of running a business, plus the annual turnover of any entities connected with the Provider or that are the Provider's affiliates) was less than \$10 million for the most recent Financial Year ending prior to the Head Licence Start Date.

Eligibility as an SBE will be based on the Provider's most recent financial statements at the time a Head Licence is issued. For example, if the Provider receives a Head Licence as part of the initial tender, the Provider must supply evidence in the form of financial statements for 30 June 2021 or 31 December 2021 (depending on financial year cycle).

If the Provider's business status changes after the Head Licence is issued, the Provider will continue to be eligible for the Fund.

Group Respondent

Where the Provider is a Group Respondent, the financial statement of each individual member (for the relevant financial year) will be assessed in aggregate to determine if the Group Respondent as a whole, is an SBE.

Panel Members

A Panel Member offered a Head Licence will need to confirm they are still an SBE in order to be eligible for the Fund. This check will be completed as part of the licensing process through the form of providing the latest financial statements relevant at the time the Head Licence is issued. If a Panel Member's business status changes from being an SBE before a Head Licence is issued, they will not be eligible for the Fund.

Panel Members can attain the required certification/accreditation while on the Panel, however, claims for reimbursement cannot be made unless a Head Licence is issued, and all the eligibility requirements as outlined under the 'Provider Eligibility' section are met.

(Deed Reference(s): Clauses 98.2)

32.2.2. Certification/Accreditation requirements

In addition to meeting the SBE requirement, to be eligible for the Fund, a Provider (including through any Related Entity) must not currently have or been required to have under any agreement with the Commonwealth Government for the delivery of employment services,

- ISO 9001 or the NSDS certification for Quality, and/or

- the Department's RFFR accreditation for information security.

For Group Respondents if any of the members within the Group have or are required to have the ISO 9001 or NSDS certification and RFFR accreditation, the Group as a whole will not be eligible to access the Fund.

Where the Provider (including any member of a Group Respondent) has:

- obtained some but not all the required certification/accreditation; and
- has not been required to have this certification/accreditation under any agreement with the Commonwealth Government for the delivery of employment services, or
- where the Provider's RFFR requirements have increased due to their Workforce Australia Services Licence(s), including eligible SBE Providers, who previously were required to meet RFFR accreditation requirements under any agreement with the Commonwealth Government for the delivery of employment services,

the Provider is eligible for the Fund.

Example: If the Provider has obtained the RFFR accreditation under a previous employment services agreement; however, has not obtained (and has not been required to have) ISO 9001 or NSDS, the Provider is eligible to access the Fund to help with attaining the outstanding certification.

(Deed Reference(s): Clauses 98.3, 98.4)

32.2.3. Obtaining and Maintaining Certification/Accreditation

ISO 9001 or NSDS Certification for Quality

Providers are required to meet the Department's Quality Assurance Framework (QAF) certification requirements as outlined in the [Quality Assurance Framework Chapter](#).

The Fund is only for reimbursements related to Providers obtaining and maintaining the ISO 9001 or the NSDS certification for the purposes of delivering Workforce Australia Services and is not for reimbursements associated with meeting the Quality Principles component of the QAF. A Provider is considered certified against the ISO 9001 or the NSDS when the Provider has received their certification from a third party auditor approved by the Department. Once this certification is attained or renewed, a claim for reimbursement can be made.

Where a Provider ceases to deliver Disability Employment Services or Inclusive Employment Australia while delivering services under a Head Licence and transitions to achieving ISO 9001 certification, the Provider can claim for those expenses if the Provider has not already exceeded the \$300,000 cap and all other eligibility criteria is met. Note, Providers cannot seek reimbursement for expenses that have already been claimed and paid by another Commonwealth Agency.

Right Fit for Risk Accreditation

Providers are required to meet the Department's External Systems Accreditation Framework (ESAF) to ensure confidential data stored outside of the Department's IT Systems, i.e. in a Provider's IT system, is secure.

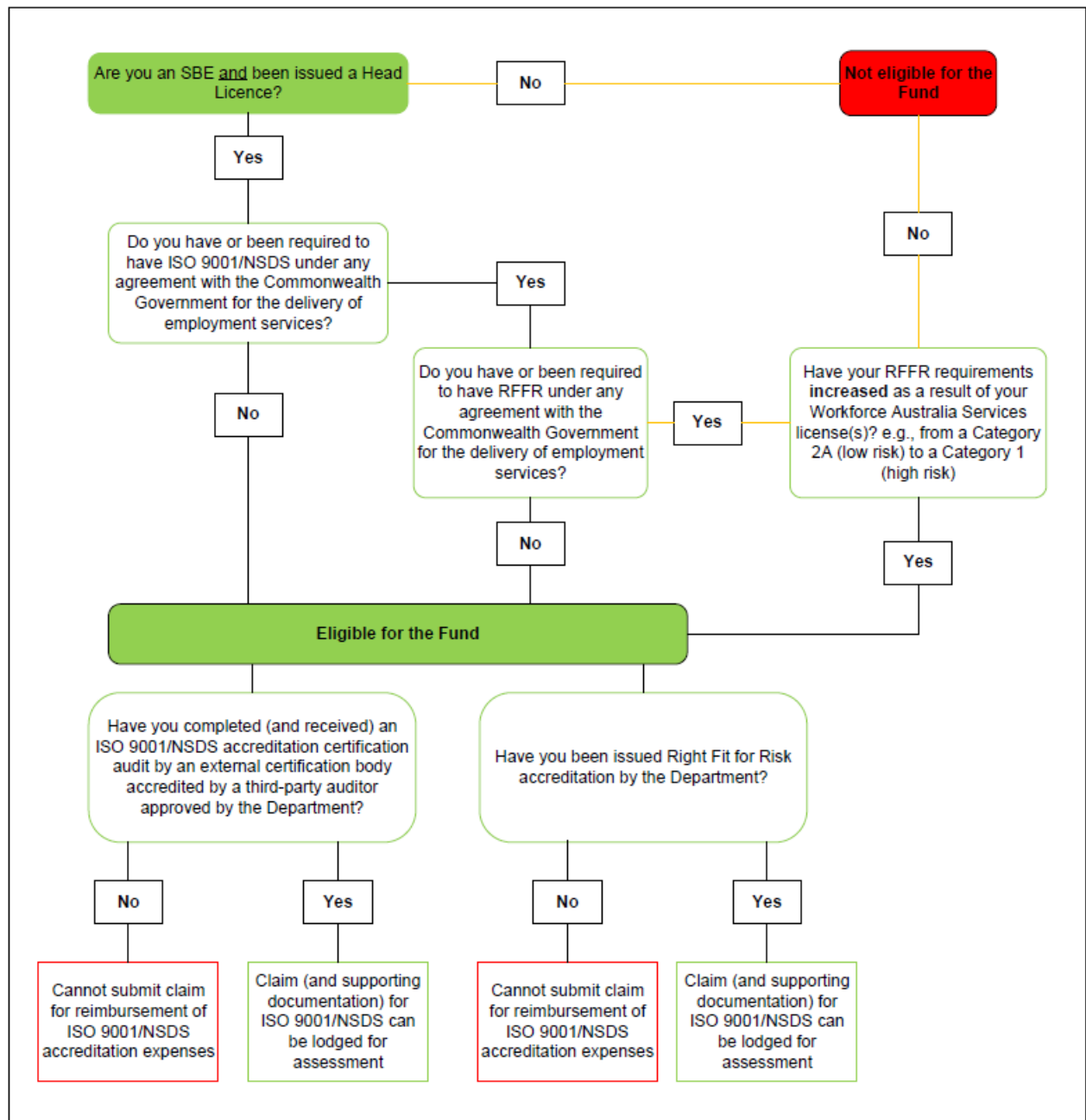
Under ESAF, Providers are required to undertake a Right Fit for Risk (RFFR) Accreditation process that provides a tailored assurance approach to inform the Department's accreditation decision.

The Fund is only for reimbursements related to Providers obtaining and maintaining the full RFFR Accreditation component. To obtain the full accreditation, the Department requires Providers to complete a set of milestones within a prescribed period that demonstrates the Provider's IT systems meets the RFFR requirements. The accreditation and milestone process for each Provider will depend on their size and risk profile to the department. Refer to the [Part A Guideline: External Systems Assurance Framework Chapter](#).

Providers are encouraged to contact the Department's Digital Information Assurance Section through the SecurityComplianceSupport@dewr.gov.au mailbox for additional support and guidance towards meeting the RFFR accreditation requirements.

32.2.4. Eligibility Check

Figure 32-A: Capacity Building Fund Eligibility Check Flowchart



32.3. Eligible Reimbursement Expenses

In addition to claiming reimbursement attributed to obtaining the required certification/accreditation, effective 1 January 2025, eligible Providers (as above) can also claim reimbursement for costs associated with the maintenance and renewal of the required certification/accreditation. As of 1 January 2025, there are two reimbursement caps per Head Licence (for the life of the Head Licence) as follows:

- up to \$300,000 for obtaining the initial ISO 9001 or the NSDS certification and/or the full RFFR Accreditation component, and

- up to \$300,000 for expenses directly attributed to the maintenance and renewal of the initial ISO 9001 or the NSDS certification and/or the full RFFR Accreditation component.

All expenses submitted for reimbursement must be **GST inclusive**. The \$300,000 caps include the value of GST paid by the Provider in purchasing the service and/or products.

For Group Respondents, reimbursements can be claimed for any of the Group members that form the Head Licence, however the \$300,000 caps apply collectively at the Head Licence level.

The Department will not fully prescribe reimbursement expenses; however, claims for reimbursement must be for costs **directly** associated with obtaining, maintaining and renewing the required certification/accreditation for the purpose of delivering Workforce Australia Services.

Reimbursement examples include:

- Obtaining professional advice and support (from relevant consultants, auditors, etc.) to undertake services such as:
 - a gap analysis to identify areas in the organisation's current structure that require adjustments for obtaining, maintaining and renewing certification/accreditation,
 - creating documents needed for obtaining and renewing certification/accreditation,
 - designing, implementing and maintaining the system to meet information security requirements,
 - training and working with employees to implement and maintain the new system.
- Procuring services of an independent certifying body to externally audit a system (quality or cybersecurity) against all specific requirements needed for obtaining, maintaining and renewing certification/accreditation.
- Software upgrades, new hardware, other IT infrastructure to comply with information security requirements, such as Australian cloud storage and Essential Eight Maturity Level One.
- Hiring of additional staff to specifically obtain and renew certification/accreditation.

In addition, reimbursements are only payable for expenses that are incurred by the Provider:

- on or after the date the Deed has been executed by the Parties (the Provider and Department). For example, if a Provider has commenced obtaining quality certification before the Deed has been executed only those expenses incurred on or after the date the Deed was executed are payable, and
- on or before the Head Licence Completion Date.

(Deed Reference(s): Clauses 98.5)

32.4. Ineligible Reimbursement Expenses

The following expenses are not eligible for reimbursement through the Fund:

- Paying for mentoring from another employment services provider or industry body.
- New or upgraded software, hardware or other IT infrastructure that is not required for the purpose of supporting the requirements of information security.
- Certification/accreditation costs directly associated with a Related Entity.

The Department may also exclude any other expenses for which a Provider may seek reimbursement if not considered appropriate spending under the Fund.

(Deed Reference(s): Clauses 98.6)

32.5. Lodging Claim for Reimbursement

Reimbursement to obtain initial certification/accreditation

Eligible Providers are required to lodge a claim for reimbursement within 30 calendar days of obtaining the initial RFFR accreditation and/or ISO 9001 or National Standards for Disability quality assurance certification.

A Provider can only submit up to 2 claims for attaining initial certification/accreditation, one for each claim type (ISO 9001/NSDS and RFFR). Providers must ensure all amounts for reimbursement are submitted for each claim type as Providers can only lodge one claim per accreditation/certification. Where a Provider is only eligible for reimbursement of one accreditation type, only that claim type can be submitted, however, the full cap of up to \$300,000 (GST inclusive) can still be claimed for reimbursement.

Reimbursement for the maintenance and renewal of certification/accreditation

Effective 1 January 2025, eligible Providers can lodge claims for reimbursement for reasonable costs incurred and directly attributed to the maintenance and required renewal of the initial ISO 9001 or the NSDS certification and/or the full RFFR Accreditation component. Providers can submit claims for reimbursement retrospectively for any costs already incurred as long as the expenses are directly associated with the maintenance of the initial certification/accreditation and sufficient documentary evidence is provided.

A Provider can submit multiple claims for reimbursement associated with the maintenance and renewal of each certification/accreditation type they are eligible for (ISO 9001/NSDS and/or RFFR) until the Head Licence Completion Date, however the aggregate amount for all claims approved must not exceed the \$300,000 cap.

Lodging a claim in the Department's IT Systems

When lodging a claim for reimbursement, the Provider must upload:

- supporting documentation for the expenses being claimed,
- the completed [Acquittal Summary Form](#) clearly linking the supporting evidence to the certification/accreditation expense (GST inclusive) for reimbursement, and
- for ISO 9001/NSDS related reimbursements claims only, evidence that full certification or renewal has been attained.

Note: as the Department is the certifying body for attaining, maintaining and renewing the RFFR accreditation, evidence of achieving this does not need to be uploaded for reimbursements related to RFFR.



Providers must upload and retain sufficient Documentary Evidence as outlined below.



Providers must lodge claims for Reimbursement using the 'Request Payment' function, selecting the applicable claim type as follows:

- PRO6 Capacity Building Fund - ISO 9001/NSDS Certification
- PRO6 Capacity Building Fund - RFFR Accreditation.

32.6. Documentary Evidence

Examples of supporting evidence for reimbursement claims can include:

- Valid tax invoice that distinguishes between individual item costs:
 - if required, the Provider can issue a recipient created tax invoice (RCTI) as long as the supplier is registered for GST. The RCTI must contain all of the information required of a tax invoice.
- Evidence of payment from the Provider to a third party supplier which may include:
 - a record of transaction (bank statement or a record of transaction from the organisation's financial system);
 - a Tax Invoice with the receipt from the supplier;
 - a remittance advice;
 - other valid proof of payment; or
 - timesheets for staff wages that relate to attaining certification/accreditation.

32.7. Assessment of Reimbursement

Once a claim for reimbursement has been lodged in the Department's IT Systems, the Department will assess the evidence provided and approve as relevant. When assessing the claim/s the Department will consider the following:

- does the Provider meet the eligibility criteria to access the Fund,
- are the expenses directly associated with attaining, maintaining or renewing the required accreditation/certification being claimed,
- do the expenses fall within any of the ineligible reimbursement categories,
- has the Provider already claimed for reimbursement against the certification/accreditation for which they are making a claim against, and
- are funds available from the applicable \$300,000 cap.

Where the total expenses claimed exceed the applicable \$300,000 cap (including GST), the Department will only reimburse expenses up to the value of the cap.

Where the Department requires further information to assess the claim, it will be sought from the nominated contact person on the acquittal summary via the Provider's Provider Lead. The Provider Lead will work with the contact person to resolve any issues that may arise throughout the claim assessment and reimbursement process. The Provider will be informed of the claim reimbursement result through either approving the claim in the Department's IT Systems or communication from the Provider Lead where a claim is not valid or is only partially valid.

The Department will assess the claim lodged in Department's IT Systems. Where Documentary Evidence is not sufficient to assess the claim in full, the assessment process and therefore payment may be delayed while the issues are resolved.

(Deed Reference(s): Clauses 98.7)